

**SENIOR SECURED
REVOLVING CREDIT AGREEMENT**

dated as of
December 19, 2022

among

PENNANTPARK CREDIT OPPORTUNITIES FUND IV AGGREGATOR, LP,
as Borrower

PENNANTPARK CAPITAL IV GP, LLC,
as General Partner

The **LENDERS** Party hereto

and

ING CAPITAL LLC,
as Administrative Agent,
Lead Arranger and Bookrunner

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SENIOR SECURED REVOLVING CREDIT AGREEMENT dated as of December 19, 2022 (this “*Agreement*”), among **PENNANTPARK CREDIT OPPORTUNITIES FUND IV AGGREGATOR, LP**, a Delaware limited partnership (the “*Borrower*”), **PENNANTPARK CAPITAL IV GP, LLC**, a Delaware limited liability company (the “*General Partner*”), the LENDERS party hereto, and **ING CAPITAL LLC**, as Administrative Agent.

WHEREAS, the Borrower has requested that the Lenders (as defined herein) extend credit to the Borrower from time to time pursuant to the Commitments as set forth herein, and the Lenders have agreed to extend such credit upon the terms and conditions hereof;

NOW, THEREFORE, in consideration of the premises and the covenants and agreements contained herein, the parties hereto hereby agree as follows:

Article I. DEFINITIONS

1.01 **Defined Terms.** As used in this Agreement, the following terms have the meanings specified below and the terms defined in *Section 5.13* have the meanings assigned thereto in such section:

“**ABR**”, when used in reference to any Loan or Borrowing, refers to whether such Loan, or the Loans constituting such Borrowing, are bearing interest at a rate determined by reference to the Alternate Base Rate.

“**Account Control Agreement**” means a control agreement, in form and substance satisfactory to Administrative Agent, executed by the Administrative Agent, an Obligor and the Custodian or a depository institution where any Control Accounts are maintained, as the same may be amended, restated or supplemented from time to time.

“**Adjusted Covered Debt Balance**” means, on any date, the aggregate Covered Debt Amount on such date minus the aggregate amount of Cash and Cash Equivalents included in the Borrowing Base.

“**Adjusted Term SOFR**” means, for purposes of any calculation, the rate per annum equal to Term SOFR for such calculation; *provided* that, if Adjusted Term SOFR as so determined shall ever be less than the Floor, then Adjusted Term SOFR shall be deemed to be the Floor.

“**Adjusted Term SOFR Loan**” means a Loan that bears interest at a rate based on Adjusted Term SOFR, in each case, other than pursuant to *clause (c)* of the definition of “Alternative Base Rate”.

“**Administrative Agent**” means ING, in its capacity as administrative agent for the Lenders hereunder.

“**Administrative Agent’s Account**” means, for each Currency, an account in respect of such Currency designated by the Administrative Agent in a notice to the Borrower and the Lenders.

“**Administrative Questionnaire**” means an Administrative Questionnaire in a form supplied by the Administrative Agent.

“**Advance Rate**” has the meaning assigned to such term in *Section 5.13*.

“Affected Financial Institution” means (a) any EEA Financial Institution, or (b) any UK Financial Institution.

“Affiliate” means, with respect to a specified Person, another Person that directly, or indirectly through one or more intermediaries, Controls or is Controlled by or is under common Control with the Person specified. Anything herein to the contrary notwithstanding, the term “Affiliate” of an Obligor shall not include any Person that constitutes an Investment held by any Obligor in the ordinary course of business.

“Affiliate Agreements” means the Investment Management Agreement, dated as of December 19, 2022, among the Borrower, any Feeder and the Investment Advisor.

“Affiliate Investment” means any Investment in a Person in which the Borrower or any of its Subsidiaries owns or controls more than 25% of the Equity Interests.

“Agency Account” has the meaning assigned to such term in **Section 5.08(c)(iv)**.

“Agreed Foreign Currency” means, at any time, Canadian Dollars and, with the agreement of each Multicurrency Lender, any other Foreign Currency, so long as, in respect of such Canadian Dollars or other Foreign Currency, at such time (a) such Foreign Currency is freely transferable and convertible into Dollars in the applicable foreign exchange market and (b) no central bank or other governmental authorization in the country of issue of such Foreign Currency (including, in the case of the Euro, any authorization by the European Central Bank) is required to permit use of such Foreign Currency by any Multicurrency Lender for making any Loan hereunder and/or to permit the Borrower to borrow and repay the principal thereof and to pay the interest thereon, unless such authorization has been obtained and is in full force and effect.

“Alternate Base Rate” means, for any day, a rate per annum equal to the greatest of (a) the Prime Rate in effect on such day, (b) the Federal Funds Effective Rate for such day plus 1/2 of 1%, (c)(1) if the then-current Benchmark is Daily Compounded SOFR, (x) Daily Compounded SOFR in effect on such day (taking into account the Floor) plus (y) 1% and (2) if the then-current Benchmark is Adjusted Term SOFR, (x) the Adjusted Term SOFR for a period of one (1) month (taking into account any floor set forth in the definition of “Adjusted Term SOFR”) plus (y) 1%, and (d) 0.00%. Any change in the Alternate Base Rate due to a change in the Prime Rate, the Federal Funds Effective Rate or Adjusted Term SOFR or Daily Compounded SOFR shall be effective from and including the effective date of such change in the Prime Rate, the Federal Funds Effective Rate, Adjusted Term SOFR or Daily Compounded SOFR, as the case may be.

“Alternative Base Rate Term SOFR Determination Day” has the meaning specified in the definition of “Term SOFR”.

“Alternative Investment Vehicle” means an “AIV” as defined in the Governing Agreement of the Borrower or a Feeder.

“Annual Valuation Period” means the “annual valuation period” as defined in 29 C.F.R. §2510.3-101(d)(5)(ii).

“Applicable Commitment Fee Rate” means, with respect to any day during the Availability Period, a rate per annum reflected in the table below, during that portion of such period indicated below:

	<i>Applicable Commitment Fee Rate</i>
From Effective Date until 9 months thereafter	0.50% per annum
From Final Closing Date until 6 months thereafter	0.50% per annum
At all other times:	
if the utilized portion of the aggregate Commitments as of the close of business on such day (after giving effect to Borrowings, prepayments and Commitment reductions on such day) is less than or equal to the Minimum Utilization Amount	0.75% per annum
if the utilized portion of the aggregate Commitments as of the close of business on such day (after giving effect to Borrowings, prepayments and Commitment reductions on such day) is greater than the Minimum Utilization Amount	0.50% per annum

For purposes of determining the Applicable Commitment Fee Rate, the Commitments shall be deemed to be utilized to the extent of the outstanding Loans of all Lenders.

“Applicable Margin” means a per annum rate determined on a daily basis equal to

- (i) the Blended ABR Margin in the case of ABR Loans and
- (ii) the Blended Term Margin in the case of Term Rate Loans;

provided, that, the Applicable Margin shall not be less than 0.0% per annum at any time. Any change in the Applicable Margin will become effective three Business Days following the date of delivery of the applicable monthly Borrowing Base Certificate pursuant to ***Section 5.01(d)(i)***; *provided, however*, if such monthly Borrowing Base Certificate is not timely delivered, (x) on or prior to the date that is five (5) Business Days (or such longer period as Administrative Agent may reasonably agree) after the date on which such monthly Borrowing Base Certificate was required to be delivered pursuant to ***Section 5.01(d)(i)***, the Blended ABR Margin and the Blended Term Margin will be the Blended ABR Margin and the Blended Term Margin, respectively, in effect immediately prior to the date on which such monthly Borrowing Base Certificate was required to be delivered pursuant to ***Section 5.01(d)(i)*** and (y) after the time period set forth in the foregoing ***clause (x)***, until such time as the resulting Default is cured to the satisfaction of the Administrative Agent, the Blended ABR Margin will be 2.00%, and the Blended Term Margin will be 3.00%.

“Applicable Percentage” means, with respect to any Lender, the percentage of the total Commitments represented by such Lender’s Commitments. If the Commitments have terminated or expired in full, the Applicable Percentages shall be determined based upon the Commitments most recently in effect, giving effect to any assignments pursuant to ***Section 9.04(b)***.

“Approved Dealer” means (a) in the case of any Eligible Portfolio Investment that is not a U.S. Government Security, a bank or a broker-dealer registered under the Securities Exchange Act of 1934 of nationally recognized standing or an Affiliate thereof, (b) in the case of a U.S. Government Security, any primary dealer in U.S. Government Securities and (c) in the case of any foreign Portfolio Investment, any foreign broker-dealer of internationally recognized standing or an Affiliate thereof, in the case of each of ***clauses (a), (b)*** and ***(c)*** above, as set forth on ***Schedule 1.01(a)*** or (d) any other bank or broker-dealer acceptable to the Administrative Agent in its reasonable determination.

“Approved Pricing Service” means (a) a pricing or quotation service as set forth in ***Schedule 1.01(a)*** or (b) any other pricing or quotation service (i) approved by the Borrower, (ii) designated

in writing by the Borrower to the Administrative Agent (which designation shall be accompanied by a copy of a resolution of the Borrower that such pricing or quotation service has been approved by the Borrower) and (iii) reasonably acceptable to the Administrative Agent.

“Approved Third-Party Appraiser” means any Independent nationally recognized third-party appraisal firm engaged by the Borrower, at its own expense, as part of its valuation procedures or any other third-party appraisal firm selected by the Borrower and reasonably acceptable to the Administrative Agent. Notwithstanding the foregoing, it is understood and agreed that each of Houlihan Lokey, Duff & Phelps, LLC, Murray, Devine and Company, Lincoln Advisors, Valuation Research Corporation, Stout LLC, and their respective Affiliates that provide valuation services shall be deemed to be an ***“Approved Third-Party Appraiser”***. As used in **Section 5.12** hereof, an ***“Approved Third-Party Appraiser”*** retained by the Administrative Agent shall mean any of the firms identified in the preceding sentence and any other Independent nationally recognized third-party appraisal firm identified by the Administrative Agent and reasonably acceptable to the Borrower.

“Arranger” means ING in its capacity as sole lead arranger and sole bookrunner.

“ASC” is defined in the definition of ***“Solvent.”***

“Asset Sale” means a sale, lease or sub lease (as lessor or sublessor), sale and leaseback, assignment, conveyance, transfer or other disposition to, or any exchange of property with, any Person, in one transaction or a series of transactions, of all or any part of any Obligor’s assets or properties of any kind, whether real, personal, or mixed and whether tangible or intangible, whether now owned or hereafter acquired.

“Assignment and Assumption” means an Assignment and Assumption entered into by a Lender and an assignee (with the consent of any party whose consent is required by **Section 9.04**), and accepted by the Administrative Agent, in the form of **Exhibit A** or any other form approved by the Administrative Agent.

“Assuming Lender” has the meaning assigned to such term in **Section 2.06(f)**.

“Available Tenor” means, as of any date of determination and with respect to the then-current Benchmark, as applicable, (x) if the then-current Benchmark is a term rate, any tenor for such Benchmark that is or may be used for determining the length of an Interest Period or (y) otherwise, any payment period for interest calculated with reference to such Benchmark, as applicable, pursuant to this Agreement as of such date and not including, for the avoidance of doubt, any tenor for such Benchmark that is then-removed from the definition of “Interest Period” pursuant to **Section 2.11(b)(iv)**.

“Availability Period” means the period from and including the Effective Date to but excluding the earlier of the Commitment Termination Date and the date of termination of the Commitments.

“Bail-In Action” means the exercise of any Write-Down and Conversion Powers by the applicable Resolution Authority in respect of any liability of an Affected Financial Institution.

“Bail-In Legislation” means, (a) with respect to any EEA Member Country implementing Article 55 of Directive 2014/59/EU of the European Parliament and of the Council of the European Union, the implementing law, rule, regulation or requirement for such EEA Member Country from time to time which is described in the EU Bail-In Legislation Schedule, and (b) with respect to the United Kingdom, Part I of the United Kingdom Banking Act 2009 (as amended from time to time) and any other law, regulation or rule applicable in the United Kingdom relating to the resolution of unsound or failing banks,

investment firms or other financial institutions or their affiliates (other than through liquidation, administration or other insolvency proceedings).

“Bank Holding Company” means a “bank holding company” as defined in *Section 2(a)* of the Bank Holding Company Act of 1956, or a non-bank Subsidiary of such bank holding company.

“Bankruptcy Code” means *Title 11* of the United States Code, entitled “Bankruptcy,” as now and hereafter in effect, or any successor statute.

“Benchmark” means, initially, Adjusted Term SOFR for Dollar Loans and the CDOR Screen Rate for Loans denominated in Canadian Dollars; provided that if a replacement of any Benchmark has occurred pursuant to **Section 2.11(b)**, then “Benchmark” means the applicable Benchmark Replacement to the extent that such Benchmark Replacement has replaced such prior benchmark rate. Any reference to “Benchmark” shall include, as applicable, the published component used in the calculation thereof.

“Benchmark Replacement” means, for any Available Tenor, the first alternative set forth in the order below that can be determined by the Administrative Agent:

(a) Daily Compounded SOFR, solely with respect to Dollar Loans; or

(b) the sum of: (i) the alternate benchmark rate and (ii) an adjustment (which may be a positive or negative value or zero (0)), in each case, that has been selected by the Administrative Agent (in consultation with the Borrower) as the replacement for such Available Tenor of such Benchmark giving due consideration to any evolving or then-prevailing market convention, including any applicable recommendations made by the Relevant Governmental Body, for syndicated credit facilities denominated in the applicable currency at such time.

If the Benchmark Replacement as determined pursuant to **clause (a)** or **(b)** above would be less than the Floor, the Benchmark Replacement will be deemed to be the Floor for the purposes of this Agreement and the other Loan Documents.

“Benchmark Replacement Conforming Changes” means, with respect to any Benchmark Replacement, any technical, administrative or operational changes (including changes to the definition of “Adjusted Term SOFR”, the definition of “Alternative Base Rate”, the definition of “Business Day”, the definition of “Daily Compounded SOFR”, the definition of “Interest Period” or any similar or analogous definition (or the addition of such analogous concept), the definition of “U.S. Government Securities Business Day”, timing and frequency of determining rates and making payments of interest, timing of borrowing requests or prepayment, conversion or continuation notices, the applicability and length of lookback periods, the applicability of breakage provisions and other technical, administrative or operational matters) that the Administrative Agent decides may be appropriate to reflect the adoption and implementation of such Benchmark Replacement or to permit the administration thereof by the Administrative Agent in a manner substantially consistent with market practice (or, if the Administrative Agent decides that adoption of any portion of such market practice is not administratively feasible or if the Administrative Agent determines that no market practice for the administration of such Benchmark Replacement exists, in such other manner of administration as the Administrative Agent decides is reasonably necessary in connection with the administration of this Agreement and the other Loan Documents).

“Benchmark Transition Event” means, with respect to any then-current Benchmark, the occurrence of a public statement or publication of information by or on behalf of the administrator of such Benchmark, the regulatory supervisor for the administrator of such Benchmark, the Board, the Federal Reserve Bank of New York, an insolvency official with jurisdiction over the administrator for such

Benchmark, a resolution authority with jurisdiction over the administrator for such Benchmark or a court or an entity with similar insolvency or resolution authority over the administrator for such Benchmark, announcing or stating that (a) such administrator has ceased or will cease on a specified date to provide all Available Tenors of such Benchmark, permanently or indefinitely; provided that, at the time of such statement or publication, there is no successor administrator that will continue to provide any Available Tenor of such Benchmark or (b) all Available Tenors of such Benchmark are or will no longer be representative of the underlying market and economic reality that such Benchmark is intended to measure and that representativeness will not be restored.

“Beneficial Ownership Certification” means a certification regarding a beneficial ownership required by the Beneficial Ownership Regulation.

“Beneficial Ownership Regulation” means 31 C.F.R § 1010.230.

“Blended ABR Margin” means the sum of: (a) the product of (i) the Subscription Percentage and (i) 1.25% and (b) the product of (i) the Portfolio Leverage Percentage and (ii)(A) 1.75% at any time that the contribution of First Lien Bank Loans to the Portfolio Leverage Borrowing Base exceeds 65%, or (B) 2.00% at all other times.

“Blended Term Margin” means the sum of: (a) the product of (i) the Subscription Percentage and (i) 2.25% and (b) the product of (i) the Portfolio Leverage Percentage and (ii)(A) 2.75% at any time that the contribution of First Lien Bank Loans to the Portfolio Leverage Borrowing Base exceeds 65%, or (B) 3.00% at all other times.

“Board” means the Board of Governors of the Federal Reserve System of the United States of America or any successor thereof.

“Board of Directors” means, with respect to any person, (a) in the case of any corporation, the board of directors of such person, (b) in the case of any limited liability company, the board of managers of such person, or if there is none, the Board of Directors of the managing member of such Person, (c) in the case of any partnership, the Board of Directors of the general partner of such person and (d) in any other case, the functional equivalent of the foregoing.

“Borrower” has the meaning assigned to such term in the preamble to this Agreement.

“Borrower External Unquoted Value” has the meaning assigned to such term in **Section 5.12(b)(ii)(B)**.

“Borrower Materials” has the meaning assigned to such term in **Section 9.01(b)**.

“Borrowing” means (a) all ABR Loans of the same Class made, converted or continued on the same date or (b) all Term Rate Loans of the same Class denominated in the same Currency that have the same Interest Period.

“Borrowing Base” means the sum of: (a) the Portfolio Leverage Borrowing Base and (b) the Subscription Borrowing Base.

“Borrowing Base Certificate” means a certificate of a Financial Officer of the Borrower, substantially in the form of **Exhibit B** and appropriately completed.

“**Borrowing Base Deficiency**” means, at any date on which the same is determined, the amount, if any, that (a) the aggregate Covered Debt Amount as of such date exceeds (b) the Borrowing Base as of such date.

“**Borrowing Base Investor**” means an Institutional Investor or HNW Investor: (a) that has been approved in writing as a “*Borrowing Base Investor*” by the Administrative Agent and all Lenders, each in its sole discretion, as evidenced in a writing executed by Administrative Agent and delivered to the Borrower and (b) that has executed and delivered to Administrative Agent the applicable Governing Agreement and the other information and documents described in **Section 4.01(a)(xii)**; *provided* that an Excluded Investor will no longer be a Borrowing Base Investor until such time as all Exclusion Events affecting such Investor have been cured and such Investor has been approved as a Borrowing Base Investor in the reasonable discretion of the Lenders.

“**Borrowing Request**” means a request by the Borrower for a Borrowing in accordance with **Section 2.03**, substantially in the form of **Exhibit D** hereto or such other form as is reasonably acceptable to the Administrative Agent.

“**Business Day**” means any day (a) that is not a Saturday, Sunday or other day on which commercial banks in New York City are authorized or required by law to remain closed, (b) if such day relates to any Loan for which reference to SOFR is applicable, means a U.S. Government Securities Business Day and (c) if such day relates to a Borrowing, continuation or conversion of, a payment or prepayment of principal of or interest on, or the Interest Period for, any Borrowing denominated in any Foreign Currency, or to a notice by the Borrower with respect to any such Borrowing, continuation, payment, prepayment or Interest Period, that is also a day on which commercial banks settle payments in the Principal Financial Center for such Foreign Currency.

“**Calculation Amount**” shall mean, as of the end of any Testing Quarter, an amount equal to the greater of: (a)(i) the product of (1) 125% of the Adjusted Covered Debt Balance (as of the end of such Testing Quarter) and (2) the Portfolio Leverage Percentage *minus* (ii) the aggregate Value of all Quoted Investments included in the Portfolio Leverage Borrowing Base (as of the end of such Testing Quarter) and (b) 10% of the aggregate Value (or as near thereto as reasonably practicable) of all Unquoted Investments included in the Portfolio Leverage Borrowing Base (as of the end of such Testing Quarter); *provided* that in no event shall more than 25% (or, if **clause (b)** applies, 10%) of the aggregate Value (or as near thereto as reasonably practicable) of the Unquoted Investments in the Portfolio Leverage Borrowing Base be tested in respect of any applicable Testing Quarter.

“**CAM Exchange**” means the exchange of the Lenders’ interests provided for in **Article VII**.

“**CAM Exchange Date**” means the first date on which there shall occur (a) any event referred to in **paragraph (h), (i) or (j) of Section 7.01** or (b) an acceleration of Loans pursuant to **Article VII**.

“**CAM Percentage**” means, as to each Lender, a fraction, expressed as a decimal, of which (a) the numerator shall be the aggregate Dollar Equivalent of the Designated Obligations owed to such Lender (whether or not at the time due and payable) immediately prior to the CAM Exchange Date and (b) the denominator shall be the aggregate Dollar Equivalent amount of the Designated Obligations owed to all the Lenders (whether or not at the time due and payable) immediately prior to the CAM Exchange Date.

“**Canadian Dollar**” means the lawful money of Canada.

“Capital Call” means a call upon all or any of the Investors for payment of all or any portion of their Unfunded Capital Commitments.

“Capital Call Notice” means any notice sent to an Investor for the purpose of making a Capital Call.

“Capital Call Security Agreement” means the Security Agreement, dated as of the date hereof (as the same shall be amended, restated, modified and supplemented from time to time), among the Borrower, the General Partner, the Administrative Agent and the Collateral Agent or, for any Intermediate Entity, a security agreement in the form of the Capital Call Security Agreement modified to address its grant of Liens in the Collateral, among such Intermediate Entity and the General Partner in favor of another Intermediate Entity or the Borrower.

“Capital Call Trigger Period” means any period during which an Event of Default has occurred and is continuing.

“Capital Commitment” means a **“Commitment”** as defined in the Governing Agreement of the Borrower or a Feeder, as applicable.

“Capital Contribution” means, for any Investor, any contribution of capital made to the Borrower or an Intermediate Entity in response to a Capital Call.

“Capital Event” means any waiver, amendment, cancellation, termination, reduction, excuse, suspension, deferral, repurchase or withdrawal in any manner of the Capital Commitment of any Investor or the obligation of any Investor to fund the same pursuant to Capital Calls.

“Capital Stock” of any Person means any and all shares of corporate stock (however designated) of and any and all other Equity Interests and participations representing ownership interests (including membership interests and limited liability company interests) in, such Person.

“Capital Lease Obligations” of any Person means the obligations of such Person to pay rent or other amounts under any lease of (or other arrangement conveying the right to use) real or personal property, or a combination thereof, which obligations are required to be classified and accounted for as capital leases on a balance sheet of such Person under GAAP, and the amount of such obligations shall be the capitalized amount thereof determined in accordance with GAAP.

“Cash” means any immediately available funds in Dollars or in any Currency other than Dollars (measured in terms of the Dollar Equivalent thereof) which is a freely convertible Currency.

“Cash Control Event” will occur if, on any date of determination: (a) an Event of Default has occurred and is continuing; or (b) a Default related to **Section 7.01(a)** or **Section 7.01(b)** or **Section 7.01(h)** (including, for the avoidance of doubt, with respect to a Default related to **Section 7.01(a)**, a Borrowing Base Deficiency exists and has not been cured).

“Cash Equivalents” means investments (other than Cash) that are one or more of the following obligations: (a) Short-Term U.S. Government Securities or commercial paper maturing within 180 days from the date of acquisition thereof and having, at the date of acquisition, a credit rating of at least A-1 from S&P and at least P-1 from Moody’s or similar investments to be mutually agreed (including, without limitation, money market and mutual funds that invest substantially all their assets in other Cash or cash equivalents); and (b) investments in certificates of deposit, banker’s acceptances and time deposits maturing within 180 days from the date of acquisition thereof (i) issued or guaranteed by or placed with,

and money market deposit accounts issued or offered by, any domestic office of any commercial bank organized under the laws of the United States of America or any State thereof, or the jurisdiction or any constituent jurisdiction thereof of any Agreed Foreign Currency, provided that such certificates of deposit, banker's acceptances and time deposits are held in a securities account (as defined in the Uniform Commercial Code) through which the Collateral Agent can perfect a security interest therein and (ii) having, at such date of acquisition, a credit rating of at least A-1 from S&P and at least P-1 from Moody's; *provided*, that (i) in no event shall Cash Equivalents include any obligation that provides for the payment of interest alone (for example, interest-only Securities or "**IOs**"); and (ii) Cash Equivalents (other than U.S. Government Securities, certificates of deposit or repurchase agreements) shall not include any such investment representing more than 25% of total assets of the Obligor in any single issuer.

"CDOR Screen Rate" means, with respect to any Interest Period, the average rate for Canadian Dollar bankers acceptances as administered by the Investment Industry Regulatory Organization of Canada (or any other Person that takes over the administration of that rate) with a tenor equal in length to such Interest Period, as displayed on CDOR page of the Reuters screen at or about 10:00 a.m. (Toronto, Ontario time) on the day that is two Business Days prior to the first day of the Interest Period or, in the event such rate does not appear on such Reuters page, on any successor or substitute page on such screen or service that displays such rate, or on the appropriate page of such other information service that publishes such rate as shall be selected from time to time by the Administrative Agent in its reasonable discretion; *provided* that if the CDOR Screen Rate is less than 0.00%, such rate shall be deemed to be 0.00% for purposes of this Agreement.

"CFC" means an entity that is a "controlled foreign corporation" within the meaning of *Section 957* of the Code.

"Change in Control" means the occurrence of any one or more of the following events: (a) the General Partner shall cease to be the sole general partner of the Borrower or shall otherwise cease to Control the Borrower; (b) any Feeder fails to, directly or indirectly through Intermediate Entities, hold an interest in the Borrower or (c) any Person or group of Persons (other than the Permitted Holders) which does not Control the Investment Advisor or the General Partner as of the Effective Date subsequently acquires Control of the Investment Advisor or the General Partner (unless, in each case, approved by the Administrative Agent in its reasonable discretion), and as a result, no Permitted Holder or other Person or group of Persons that Controls the Investment Advisor or the General Partner as of the Effective Date then Controls the Investment Advisor or General Partner.

"Change in Law" means (a) the adoption of any law, rule or regulation or treaty after the Effective Date, (b) any change in any law, rule or regulation or treaty or in the interpretation, implementation or application thereof by any Governmental Authority after the Effective Date or (c) compliance by any Lender (or, for purposes of **Section 2.12(b)**, by any lending office of such Lender or by such Lender's holding company, if any) with any request, guideline or directive (whether or not having the force of law) of any Governmental Authority made or issued after the Effective Date, provided that, notwithstanding anything herein to the contrary, (i) the Dodd-Frank Wall Street Reform and Consumer Protection Act and all requests, rules, guidelines or directives in connection therewith and (ii) all requests, rules, guidelines or directives promulgated by the Bank for International Settlements, the Basel Committee On Banking Supervision (or any successor or similar authority) or the United States or foreign regulatory authorities, in each case pursuant to Basel III, shall in each case be deemed to be a "Change in Law" regardless of the date enacted, adopted or issued.

"Class", when used in reference to any Loan or Borrowing, refers to whether such Loan, or the Loans constituting such Borrowing, are Dollar Loans or Multicurrency Loans; when used in reference to any Lender, refers to whether such Lender is a Dollar Lender or a Multicurrency Lender; and, when used

in reference to any Commitment, refers to whether such Commitment is a Dollar Commitment or a Multicurrency Commitment.

“**Code**” means the Internal Revenue Code of 1986.

“**Collateral**” means all the collateral security for the Obligations pledged or granted pursuant to the Security Documents; provided that “Collateral” shall not include any Equity Interest in any Subsidiary that is a CFC, a Transparent Subsidiary or a “passive foreign investment company” as defined in Section 1297(a) of the Code.

“**Collateral Agent**” means ING Capital LLC in its capacity as Collateral Agent under the Guarantee and Security Agreement and other Security Documents, as applicable, and includes any successor Collateral Agent thereunder.

“**Commitment Increase**” has the meaning assigned to such term in **Section 2.06(f)**.

“**Commitment Increase Date**” has the meaning assigned to such term in **Section 2.06(f)**.

“**Commitment Termination Date**” means, the date that is the earlier to occur of (a) the four year anniversary of the Effective Date; (b) the date upon which Administrative Agent declares the Obligations, or the Obligations become, due and payable after the occurrence of an Event of Default; or (c) the date upon which the Commitments are terminated pursuant to **Section 2.06** or otherwise.

“**Commitments**” means, collectively, the Dollar Commitments and the Multicurrency Commitments.

“**Companies**” means the General Partner, the Borrower, its Subsidiaries and any Intermediate Entities.

“**Connection Income Taxes**” means Other Connection Taxes that are imposed on or measured by net income (however denominated) or that are franchise Taxes or branch profits Taxes.

“**Contributed Partners’ Capital**” means the aggregate amount of Capital Commitments less the aggregate amount of the Unfunded Capital Commitments.

“**Control**” means the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of a Person, whether through the ability to exercise voting power, by contract or otherwise. “**Controlling**” and “**Controlled**” have meanings correlative thereto.

“**Control Account**” has the meaning assigned to such term in **Section 5.08(c)(ii)**.

“**Corresponding Tenor**” with respect to any Available Tenor means, as applicable, either a tenor (including overnight) or an interest payment period having approximately the same length (disregarding business day adjustment) as such Available Tenor.

“**Covered Debt Amount**” means, on any date, the sum of all of the Revolving Credit Exposures of all Lenders on such date.

“**Covered Taxes**” means (a) Taxes, other than Excluded Taxes, imposed on or with respect to any payment made by or on account of any obligation of the Borrower under any Loan Document and (b) to the extent not described in **clause (a)**, Other Taxes.

“**Currency**” means Dollars or any Foreign Currency.

“**Currency Valuation Notice**” has the meaning assigned to such term in **Section 2.08(b)**.

“**Custodian**” means The Bank of New York Mellon, or any other financial institution mutually agreeable to the Collateral Agent and the Borrower, as custodian holding documentation for Portfolio Investments, and accounts of the Obligors holding Portfolio Investments, on behalf of the Obligors and, pursuant to the Custodian Agreement, the Collateral Agent. The term “**Custodian**” includes any agent or sub-custodian acting on behalf of the Custodian.

“**Custodian Account**” means an account subject to a Custodian Agreement.

“**Custodian Agreement**” means a control agreement entered into by and among an Obligor, the Collateral Agent and a Custodian, in form and substance acceptable to the Collateral Agent.

“**Daily Compounded SOFR**” means, for any day (a “**SOFR Rate Day**”), a rate per annum equal to SOFR for the day (such day “*i*”) that is five (5) U.S. Government Securities Business Days prior to (a) if such SOFR Rate Day is a U.S. Government Securities Business Day, such SOFR Rate Day or (b) if such SOFR Rate Day is not a U.S. Government Securities Business Day, the U.S. Government Securities Business Day immediately preceding such SOFR Rate Day, in each case, as such SOFR is published by the SOFR Administrator on the SOFR Administrator’s Website (the “**Daily Compounded SOFR Screen Rate**”); provided that if Daily Compounded SOFR as so determined shall ever be less than the Floor, then Daily Compounded SOFR shall be deemed to be the Floor. If by 5:00 p.m. (New York City time) on the second (2nd) U.S. Government Securities Business Day immediately following any day “*i*”, the SOFR in respect of such day “*i*” has not been published on the SOFR Administrator’s Website and a replacement of Daily Compounded SOFR has not occurred pursuant to **Section 2.11(b)(i)-(ii)**, then the SOFR for such day “*i*” will be the SOFR as published in respect of the first preceding U.S. Government Securities Business Day for which such SOFR was published on the SOFR Administrator’s Website; provided that any SOFR determined pursuant to this sentence shall be utilized for purposes of calculation of Daily Compounded SOFR for no more than three (3) consecutive SOFR Rate Days. Any change in Daily Compounded SOFR due to a change in SOFR shall be effective from and including the effective date of such change in SOFR without notice to the Borrower. All interest hereunder on any Loan computed by reference to Daily Compounded SOFR shall be computed in the manner described in **Section 2.10**.

“**Daily Compounded SOFR Loan**” means a Loan that bears interest at a rate based on Daily Compounded SOFR, in each case, other than pursuant to clause (c) of the definition of “Alternative Base Rate”.

“**Debtor Relief Laws**” means the Bankruptcy Code, and all other liquidation, conservatorship, bankruptcy, assignment for the benefit of creditors, moratorium, rearrangement, receivership, insolvency, reorganization, or similar debtor relief Laws of the United States or other applicable jurisdictions from time to time in effect and affecting the rights of creditors generally.

“**Default**” means any event or condition which constitutes an Event of Default or which upon notice, lapse of time or both would, unless cured or waived, become an Event of Default.

“**Defaulting Lender**” means, subject to **Section 2.16**, any Lender that: (a) has failed to: (i) fund all or any portion of its Loans within two (2) Business Days of the date such Loans were required to be funded hereunder unless such Lender notifies Administrative Agent and Borrower in writing that such failure is the result of such Lender’s determination that one or more conditions precedent to funding has not been satisfied, and specifically identifying in such writing each such condition precedent, or (ii) pay to

Administrative Agent or any other Lender any other amount required to be paid by it hereunder within two (2) Business Days of the date when due; (b) has notified Borrower or Administrative Agent in writing that it does not intend to comply with its funding obligations hereunder, or has made a public statement to that effect (unless such writing or public statement relates to such Lender's obligation to fund a Loan hereunder, states that such position is based on such Lender's determination that a condition precedent to funding cannot be satisfied, and specifically identifies such condition precedent, together with any applicable default), (c) has failed, within three (3) Business Days after written request by Administrative Agent or Borrower, to confirm in writing to Administrative Agent and Borrower that it will comply with its prospective funding obligations hereunder (*provided* that such Lender will cease to be a Defaulting Lender pursuant to this *clause (c)* upon receipt of such written confirmation by Administrative Agent and Borrower), (d) has, or has a direct or indirect parent company that has (other than by way of an Undisclosed Administration): (i) become the subject of a proceeding under any Debtor Relief Law; (ii) had appointed for it a receiver, custodian, conservator, trustee, administrator, assignee for the benefit of creditors or similar Person charged with reorganization or liquidation of its business or assets, including the Federal Deposit Insurance Corporation or any other state or federal regulatory authority acting in such a capacity; or (iii) become the subject of a Bail-in Action; *provided* that a Lender will not be a Defaulting Lender solely by virtue of the ownership or acquisition of any Equity Interest in that Lender or any direct or indirect parent company thereof by a Governmental Authority so long as such ownership interest does not result in or provide such Lender with immunity from the jurisdiction of courts within the United States or from the enforcement of judgments or writs of attachment on its assets or permit such Lender (or such Governmental Authority) to reject, repudiate, disavow or disaffirm any contracts or agreements made with such Lender or (e) directly or indirectly causes the Borrower to become subject to the requirement that it register as an investment company under the Investment Company Act. Any determination by Administrative Agent that a Lender is a Defaulting Lender under any one or more of *clauses (a)* through *(e)* above, and of the effective date of such status, will be conclusive and binding absent manifest error, and such Lender will be deemed to be a Defaulting Lender (subject to *Section 2.16(b)*) as of the date established therefor by Administrative Agent in a written notice of such determination, which will be delivered by Administrative Agent to Borrower and each other Lender promptly following such determination.

“Designated Obligations” means all obligations of the Borrower with respect to (a) principal of and interest on the Loans and (b) accrued and unpaid fees under the Loan Documents.

“Disqualified Equity Interests” means stock of the Borrower that after its issuance is subject to any agreement between the holder of such stock and the Borrower where the Borrower is required to purchase, redeem, retire, acquire, cancel or terminate such stock, other than (x) as a result of a Change of Control, or (y) in connection with any purchase, redemption, retirement, acquisition, cancellation or termination with, or in exchange for, shares of stock.

“Disqualified Lenders” means, on any date, any Person designated by the Borrower as a “Disqualified Lender” by written notice delivered to the Administrative Agent and the Lenders from time to time (including by posting to DebtDomain™ or an equivalent website) not less than three Business Days prior to such date; *provided* that (i) the designation of any Person as a “Disqualified Lender” shall be subject to the approval of the Administrative Agent and (ii) there shall be no more than 20 Disqualified Lenders at any time.

“Dollar Commitment” means, with respect to each Dollar Lender, the Commitment of such Dollar Lender to make Loans denominated in Dollars, as such Commitment may be (a) reduced or increased from time to time pursuant to *Section 2.06* or reduced from time to time pursuant to *Section 2.08* or as otherwise provided in this Agreement and (b) reduced or increased from time to time pursuant to assignments by or to such Lender pursuant to *Section 9.04* and the other provisions of this Agreement (including *Section 7.04*). The aggregate amount of each Lender's Dollar Commitment as of the Effective

Date is set forth on **Schedule 1.01(b)**, or in the Assignment and Assumption pursuant to which such Lender shall have assumed its Commitment, as applicable. The aggregate amount of the Lenders' Dollar Commitments as of the Effective Date is \$0.

"Dollar Equivalent" means, on any date of determination, (a) with respect to any amount denominated in Dollars, such amount, and (b) with respect to any amount denominated in any Foreign Currency, the equivalent amount thereof in Dollars as determined by the Administrative Agent at such time on the basis of the Spot Rate as of the applicable valuation date, as provided in this Agreement (*i.e.*, either the date upon which such amount is initially drawn or on the most recent Revaluation Date, as applicable) for the purchase of Dollars with such Foreign Currency.

"Dollar Lender" means the Persons listed on **Schedule 1.01(b)** as having Dollar Commitments and any other Person that shall have become a party hereto pursuant to an Assignment and Assumption that provides for it to assume a Dollar Commitment or to acquire Revolving Dollar Credit Exposure, other than any such Person that ceases to be a party hereto pursuant to an Assignment and Assumption.

"Dollar Loan" means a Loan denominated in Dollars made pursuant to the Dollar Commitment.

"Dollars" or **"\$"** refers to lawful money of the United States of America.

"Early Opt-In Election" means, the occurrence of:

(a) in the case of Loans denominated in Dollars, the occurrence of the joint election by the Administrative Agent and the Borrower to trigger a fallback from the then-current Benchmark and the provision by the Administrative Agent of written notice of such election to the Lenders; and

(b) in the case of Loans denominated in any Agreed Foreign Currency, the occurrence of (i) the election by the Administrative Agent or (ii) the election by the Required Lenders to declare that an Early Opt-in Election has occurred and the provision, as applicable, by the Administrative Agent of written notice of such election to the Borrower and the Lenders or by the Required Lenders of written notice of such election to the Administrative Agent.

"EEA Financial Institution" means: (a) any credit institution or investment firm established in any EEA Member Country which is subject to the supervision of an EEA Resolution Authority, (b) any entity established in an EEA Member Country which is a parent of an institution described in **clause (a)** of this definition, or (c) any financial institution established in an EEA Member Country which is a Subsidiary of an institution described in **clauses (a) or (b)** of this definition and is subject to consolidated supervision with its parent.

"EEA Member Country" means any of the member states of the European Union, Iceland, Liechtenstein, and Norway.

"EEA Resolution Authority" means any public administrative authority or any Person entrusted with public administrative authority of any EEA Member Country (including any delegatee) having responsibility for the resolution of any EEA Financial Institution.

"Effective Date" has the meaning assigned to such term in **Section 4.01**.

“**Eligible Liens**” means, any right of offset, banker’s lien, security interest or other like right against the Portfolio Investments held by the Custodian pursuant to or in connection with its rights and obligations relating to the Custodian Account, or against Cash or deposits held by a bank pursuant to or in connection with its rights and obligations relating to a Control Account, *provided* that such rights are subordinated, pursuant to the terms of the Custodian Agreement, to the first priority perfected security interest in the Collateral created in favor of the Collateral Agent, except to the extent expressly provided therein.

“**Eligible Portfolio Investment**” means any Portfolio Investment held by any Obligor (and solely for purposes of determining the Portfolio Leverage Borrowing Base, Cash and Cash Equivalents held by any Obligor) that, in each case, meets all of the criteria set forth on **Schedule 1.01(d)** hereto; *provided*, that no Portfolio Investment, Cash or Cash Equivalent shall constitute an Eligible Portfolio Investment or be included in the Portfolio Leverage Borrowing Base if the Collateral Agent does not at all times maintain a first priority, perfected Lien (subject to no other Liens other than Eligible Liens) on such Portfolio Investment, Cash or Cash Equivalent or if such Portfolio Investment, Cash or Cash Equivalent has not been or does not at all times continue to be Delivered (as defined in the Guarantee and Security Agreement). Without limiting the generality of the foregoing, it is understood and agreed that Special Equity Interests shall not be treated as Eligible Portfolio Investments until distributed, sold or otherwise transferred to the Borrower free and clear of all Liens (other than Eligible Liens). Notwithstanding the foregoing, nothing herein shall limit the provisions of **Section 5.12(b)(i)**, which provide that, for purposes of this Agreement, all determinations of whether an Investment is to be included as an Eligible Portfolio Investment shall be determined on a settlement-date basis (meaning that any Investment that has been purchased will not be treated as an Eligible Portfolio Investment until such purchase has settled, and any Eligible Portfolio Investment which has been sold will not be excluded as an Eligible Portfolio Investment until such sale has settled), provided that no such Investment shall be included as an Eligible Portfolio Investment to the extent it has not been paid for in full.

“**Equity Interests**” means shares of Capital Stock, partnership interests, membership interests in a limited liability company, beneficial interests in a trust or other equity ownership interests in a Person, and any warrants, options or other rights entitling the holder thereof to purchase or acquire any such equity interest. As used in this Agreement, “Equity Interests” shall not include convertible debt unless and until such debt has been converted to Capital Stock.

“**ERISA**” means the Employee Retirement Income Security Act of 1974.

“**ERISA Affiliate**” means any trade or business (whether or not incorporated) that, together with any Company, is treated as a single employer under *Section 414(b)* or *(c)* of the Code, or, solely for purposes of *Section 302* of ERISA and *Section 412* of the Code, is treated as a single employer under *Section 414* of the Code.

“**ERISA Event**” means (a) any “reportable event”, as defined in *Section 4043* of ERISA or the regulations issued thereunder with respect to a Plan (other than an event for which the 30-day notice period is waived in accordance with the U.S. Department of Labor regulations promulgated under *Section 4043* of ERISA); (b) with respect to any Plan, the failure to satisfy the minimum funding standard (as defined in *Section 412* of the Code or *Section 302* of ERISA), whether or not waived; (c) the filing pursuant to *Section 412(d)* of the Code or *Section 302(c)* of ERISA of an application for a waiver of the minimum funding standard with respect to any Plan; (d) the incurrence by any Company or any of its ERISA Affiliates of any liability under Title IV of ERISA with respect to the termination of any Plan (other than premiums due and not delinquent under *Section 4007* of ERISA); (e) the receipt by any Company or any ERISA Affiliate from the PBGC or a plan administrator of any notice relating to an intention to terminate any Plan or Plans under *Section 4041(c)* of ERISA or to appoint a trustee to administer any Plan

under *Section 4042* of ERISA; (f) the incurrence by any Company or any of its ERISA Affiliates of any liability with respect to the withdrawal or partial withdrawal from any Plan or Multiemployer Plan; (g) the occurrence of any nonexempt prohibited transaction within the meaning of *Section 4975* of the Code or *Section 406* of ERISA which results in liability to a Lender that was not caused by a violation of ***Section 8.11***; (h) the failure to make any required contribution to a Multiemployer Plan or failure to make by its due date any required contribution to any Plan; (i) the receipt by any Company or any ERISA Affiliate of any notice, or the receipt by any Multiemployer Plan from any Company or any ERISA Affiliate of any notice, concerning the imposition of Withdrawal Liability or a determination that a Multiemployer Plan is, or is expected to be, insolvent, within the meaning of Title IV of ERISA; or (j) the incurrence with respect to any “employee benefit plan” as defined in *Section 3(3)* of ERISA that is sponsored or maintained by any Company of any material unfunded liability for post-retirement health or welfare benefits, except as may be required by *Section 4980B* of the Code or similar laws.

“***ERISA Investor***” means an Investor that is: (a) an “employee benefit plan” (as such term is defined in *Section 3(3)* of ERISA) subject to Title I of ERISA, (b) any “plan” subject to *Section 4975* of the Code, or (c) a partnership or commingled account of a fund, or any other entity, whose assets include or are deemed to include the assets of one or more such employee benefit plans or plans in accordance with the Plan Assets Regulation.

“***Erroneous Payment***” has the meaning assigned to it in ***Section 8.09***.

“***Erroneous Payment Notice***” has the meaning assigned to it in ***Section 8.09***.

“***EU Bail-In Legislation Schedule***” means the EU Bail-In Legislation Schedule published by the Loan Market Association (or any successor Person), as in effect from time to time.

“***Event of Default***” has the meaning assigned to such term in ***Article VII***.

“***Excluded Investor***” has the meaning assigned to such term in the definition of “***Exclusion Event***”.

“***Excluded Taxes***” means, with respect to the Administrative Agent, any Lender, or any other recipient of any payment to be made by or on account of any obligation of the Borrower hereunder, (a) income, or franchise or branch profits Taxes, in each case, (i) imposed by the United States of America, or by the jurisdiction (or any political subdivision thereof) under the laws of which such recipient is organized or in which its principal office is located or, in the case of any Lender, in which its applicable lending office is located, (ii) that are Other Connection Taxes, (b) in the case of a Lender, any United States federal withholding Tax that is imposed on amounts payable to or for the account of such Lender at the time such Lender becomes a party to this Agreement (other than pursuant to an assignment request by the Borrower under *Section 2.17(b)*), or designates a new lending office, except to the extent that (i) such withholding would not have been imposed but for the occurrence of a CAM Exchange, or (ii) such Lender (or its assignor, if any) was entitled, at the time of designation of a new lending office (or assignment), to receive additional amounts from the Borrower with respect to such withholding Tax pursuant to ***Section 2.14(a)***, (c) Taxes attributable to such recipient’s failure to comply with ***Section 2.14(e)*** and ***Section 2.14(g)***, and (d) any Taxes imposed under FATCA.

“***Exclusion Event***” means the occurrence, with respect to any Investor (such Investor hereinafter referred to as an “***Excluded Investor***”), of any of the following events:

(i) such Investor (or its Sponsor or Responsible Party, as applicable): (A) applies for or consents to the appointment of a receiver, trustee, custodian, intervenor, or liquidator of itself or of all

or a substantial part of its assets; (B) files a voluntary petition as debtor in bankruptcy or admit in writing that it is unable to pay its debts as they become due; (C) makes a general assignment for the benefit of creditors; (D) files a petition or answer seeking reorganization or an arrangement with creditors or take advantage of any Debtor Relief Laws; (E) files an answer admitting the material allegations of, or consents to, or defaults in answering, a petition filed against it in any bankruptcy, reorganization, or insolvency proceeding; or (F) takes any personal, partnership, limited liability company, corporate or trust action, as applicable, for the purpose of effecting any of the foregoing;

(ii) (A) the commencement of any proceeding under any Debtor Relief Laws relating to such Investor (or its Sponsor or Responsible Party, as applicable) or all or any material part of its respective property is instituted without the consent of such Person; or (B) an order, judgment, or decree is entered by any court of competent jurisdiction or other competent authority approving a petition seeking such Investor's (or its Sponsor's or Responsible Party's, as applicable) reorganization or liquidation, or appointing a receiver, custodian, trustee, intervenor, liquidator, administrator or similar entity, of such Person or of all or substantially all of its assets, *provided, however*, that if any such proceeding referenced in **clause (A)** is dismissed within 60 days, such Investor will be automatically reinstated as a Borrowing Base Investor, so long as no other Exclusion Event then applies (and if any such proceeding is stayed, such Investor will also be automatically reinstated as a Borrowing Base Investor, but re-commencement of the proceeding will constitute an Exclusion Event under **clause (A)**);

(iii) a Financial Officer of the Borrower obtains actual knowledge of any final judgment(s) for the payment of money which in the aggregate exceed 15% of the net worth of such Investor (or its Sponsor or Responsible Party, as applicable) is rendered against such Person, and such judgment is, or judgments are, not satisfied or discharged at least 10 days prior to the date on which any of its assets could be lawfully sold to satisfy such judgment;

(iv) such Investor (or its Sponsor or Responsible Party, as applicable) repudiates, challenges, or declares unenforceable its obligation to make Capital Contributions of the Borrower or the applicable Intermediate Entity pursuant to its Capital Commitment or a Capital Call Notice; otherwise disaffirms any material provision of its Subscription Agreement, or any applicable Governing Agreement; or its obligations under any of such documents are or become unenforceable;

(v) such Investor fails to make a contribution to the capital of the Borrower or the applicable Intermediate Entity within 10 Business Days of the date required pursuant to a Capital Call Notice, or is otherwise in material default under its Subscription Agreement or the Governing Agreement in each case relating to its Subscription Facility Obligations;

(vi) any representation or warranty by such Investor (or its Sponsor or Responsible Party, as applicable) made under any applicable Governing Agreement, or its Subscription Agreement, proves to be untrue or inaccurate in any material respect, as of the date on which such representation or warranty is made, and such Investor fails to cure the adverse effect of the failure of such representation or warranty within 30 days after written notice thereof is delivered by the Administrative Agent to the Borrower and to such Investor;

(vii) such Investor transfers its entire Subscribed Interest in the Borrower or the applicable Intermediate Entity or such Investor's Sponsor or Responsible Party, as applicable transfers its entire interest in Investor or, except as otherwise permitted pursuant to **Section 6.14**, its entire Subscribed Interest in the Borrower or the applicable Intermediate Entity is cancelled, reduced, excused, suspended or deferred, provided that if less than all of such Investor's Subscribed Interest is transferred, assigned, cancelled, reduced, excused, suspended or deferred, only such portion as is transferred, assigned, cancelled,

reduced, excused, suspended or deferred will be subject to exclusion from the calculation of the Subscription Borrowing Base;

(viii) material default occurs in the performance by such Investor of any of the covenants or agreements contained in its Subscription Agreement or any applicable Governing Agreement (except, in each case, as otherwise specifically addressed in this definition of Exclusion Event, in which case no grace period beyond any provided for herein will apply), and such default continues uncured to the satisfaction of the Administrative Agent for a period of 30 days after written notice thereof has been given by the Administrative Agent to the Borrower and to such Investor;

(ix) Reserved;

(x) in the case of each Investor (or its Sponsor or Responsible Party, as applicable), the occurrence of any circumstance or event which: (A) could reasonably be expected to have a material and adverse effect on the financial condition or business operations of such Investor; or (B) could reasonably be expected to impair, impede, or jeopardize the obligation and the liability of such Investor to fulfill its Subscription Facility Obligations;

(xi) the Administrative Agent is unable to obtain such information from any Investor that was delivered by the Borrower or such Investor prior to its designation as a Borrowing Base Investor and relied upon by the Administrative Agent and Lenders for such designation; and, in either case, such Investor fails, within 30 days after written request from the Borrower or Administrative Agent, to deliver such financial information to Borrower or Administrative Agent as required by Administrative Agent and Lenders in order to continue to designate such Investor as a Borrowing Base Investor hereunder;

(xii) such Investor (or its Sponsor or Responsible Party, as applicable) becomes Subject to Sanctions, or, to the Borrower's, the General Partner's or the Administrative Agent's knowledge, such Investor's funds to be used in connection with funding Capital Calls are derived from illegal or suspicious activities;

(xiii) such Investor amends its Side Letter in any way that Administrative Agent determines would materially impair Lenders' Collateral rights, or a Side Letter for a Borrowing Base Investor is entered into after designation of an Investor as a Borrowing Base Investor which contains terms that Administrative Agent determines would materially impair Lenders' Collateral rights;

(xiv) in the case of all ERISA Investors (and each other Investor that opts to be treated as an ERISA Investor under the applicable Governing Agreement), General Partner has delivered a notification that the Borrower holds Plan Assets; or

(xv) (A) the General Partner delivers notice to any Investors of its intent to cause a Compulsory Withdrawal (as defined in the Partnership Agreement) of such Investor, or (B) any Investor provides the General Partner with written notice that it will completely or partially withdraw as an Investor pursuant to *Sections 13.1 or 13.2* of the applicable Governing Agreement (except that in the case of a partial withdrawal, only such portion of such Investor's Unfunded Capital Commitment that is cancelled in connection with such withdrawal will be eliminated from the Subscription Borrowing Base).

“External Quoted Value” has the meaning assigned to such term in ***Section 5.12(b)(ii)***.

“Extraordinary Receipts” means an amount equal to (a) any Cash amount (and Cash proceeds of any non-Cash amount) received by or paid to any Obligor on account of any foreign, United States, state or local tax refunds, pension plan reversions, judgments, proceeds of settlements or other

consideration of any kind in connection with any cause of action, condemnation awards (and payments in lieu thereof), indemnity payments received not in the ordinary course of business, purchase price adjustments received not in the ordinary course of business in connection with any purchase agreement and proceeds of insurance, minus (b) any costs, fees, commissions, premiums and expenses actually incurred by any Obligor directly incidental to such Cash receipts and paid in Cash to a Person that is not an Affiliate of any Obligor (or if paid in Cash to an Affiliate, only to the extent such expenses are reasonable and customary), including reasonable legal fees and expenses, minus (c) all taxes paid or reasonably estimated to be payable (including amounts necessary to satisfy Tax Distributions) as a result of such Cash receipts after taking into account any available tax credits or deductions; provided, however, that Extraordinary Receipts do not include (i) proceeds of any issuance of Equity Interests or issuances of Indebtedness by any Obligor, (ii) amounts that any Obligor receives from Administrative Agent or any Lender in connection with the Loan Documents, (iii) Cash receipts to the extent received from proceeds of any casualty insurance or condemnation awards (or payments in lieu thereof) to the extent that such proceeds are used within 90 days to repair or replace the assets giving rise to such proceeds (provided that any amounts not so used within ninety (90) days will constitute Extraordinary Receipts) (iv) proceeds of business interruption insurance to the extent such proceeds constitute compensation for lost earnings, or (v) indemnity payments or payments in respect of judgments or settlements or claims, litigation or proceedings to the extent that such payments are received, by any Person in respect of any unaffiliated third party claim against or loss by such Person and promptly applied to pay (or to reimburse such Person for its prior payment of) such claim or loss and the costs and expenses of such Person with respect thereto.

“FATCA” means Sections 1471 through 1474 of the Code, as of the date of this Agreement (or any amended or successor provisions that are substantially comparable and not materially more onerous to comply with), any current or future regulations or official administrative interpretations thereof, any agreements entered into pursuant to Section 1471(b)(1) of the Code, any intergovernmental agreement entered into in connection with the implementation of the foregoing, and any fiscal or regulatory legislation, rules or practices adopted pursuant to any intergovernmental agreement, or any treaty or convention among Governmental Authorities entered into in connection with the implementation of the foregoing.

“Federal Funds Effective Rate” means, for any day, the weighted average (rounded upwards, if necessary, to the next 1/100 of 1%) of the rates on overnight Federal funds transactions with members of the Federal Reserve System, as published on the next succeeding Business Day by the NYFRB, or, if such rate is not so published for any day that is a Business Day, the average (rounded upwards, if necessary, to the next 1/100 of 1%) of the quotations for such day for such transactions received by the Administrative Agent from three Federal funds brokers of recognized standing selected by it; provided, that if the Federal Funds Effective Rate is less than zero, such rate shall be zero for purposes of this Agreement.

“Feeder” means each of PennantPark Credit Opportunities Fund IV, LP, PennantPark Credit Opportunities Fund IV ERISA Feeder, LP and each other Intermediate Entity that is joined to this Credit Agreement as a “Feeder” after the Effective Date.

“Feeder Acknowledgment and Confirmation” means an acknowledgment, consent and confirmation made by a Feeder and its General Partner in favor of an Intermediate Entity, as the same may be amended, restated, supplemented and otherwise modified from time to time; and **“Feeder Fund Acknowledgment and Confirmations”** means, where the context requires, all such Feeder Fund Acknowledgment and Confirmations, collectively.

“Final Closing Date” has the meaning given to such term in the Partnership Agreement.

“Financial Officer” means the chief executive officer, president, co-president, chief financial officer, principal accounting officer, treasurer or controller of the Borrower.

“Floor” means the greater of (a) 0.00%, and (b) the benchmark rate floor, if any, provided in this Agreement (as of the execution of this Agreement, the modification, amendment or renewal of this Agreement or otherwise) with respect to any applicable Benchmark (including any component thereof).

“Foreign Currency” means at any time any Currency other than Dollars.

“Foreign Currency Equivalent” means, with respect to any amount in Dollars, the amount of any Foreign Currency that could be purchased with such amount of Dollars using the reciprocal of the foreign exchange rate(s) specified in the definition of the term **“Dollar Equivalent”**, as determined by the Administrative Agent.

“Foreign Lender” means any Lender that is not a U.S. Person.

“GAAP” means generally accepted accounting principles in the United States, as in effect from time to time. GAAP shall be determined on the basis of such principles in effect on the date hereof consistent with those used in the preparation of the most recent financial statements referred to in **Section 5.01**.

“General Partner” means, as applicable, (i) PennantPark Capital IV GP LLC or (ii) an Affiliate of PennantPark Capital IV GP, LLC that becomes the general partner of the Borrower and/or any Intermediate Entities after the Effective Date that is Controlled by the Permitted Holders.

“Governing Agreement” with respect to Borrower and any Intermediate Entity, means the limited partnership agreement, limited liability company agreement, exempted limited partnership agreement, memorandum and articles of association, or other equivalent governing document in the applicable jurisdiction of such Person, as the same may be further amended, restated, modified or supplemented in accordance with the terms hereof, in each case, as described on **Schedule 1.01(e)** hereto (or on a replacement **Schedule 1.01(e)** delivered in connection with the formation or joinder of any Intermediate Entity. References to a Governing Agreement, unless otherwise specified, will be deemed to be references to the Partnership Agreement of the Borrower, but will also refer, as applicable, to the equivalent provisions of the Governing Agreement of any Intermediate Entity.

“Governmental Authority” means the government of the United States, or of any other nation, or any political subdivision thereof, whether state or local, and any agency, authority, instrumentality, regulatory body, court, central bank or other entity exercising executive, legislative, judicial, taxing, regulatory or administrative powers or functions of or pertaining to government (including any supra-national body exercising such powers or functions, such as the European Union or the European Central Bank).

“Governmental Plan Investor” means an Investor that is a governmental plan as defined in **Section 3(32)** of ERISA.

“GP Report” means a written report or letter delivered by the General Partner to the Limited Partners with respect to the operations of the Borrower over a given accounting period.

“Guarantee” of or by any Person (the **“guarantor”**) means any obligation, contingent or otherwise, of the guarantor guaranteeing or having the economic effect of guaranteeing any Indebtedness or other obligation of any other Person (the **“primary obligor”**) in any manner, whether directly or indirectly, and including any obligation of the guarantor, direct or indirect, (a) to purchase or pay (or advance or supply funds for the purchase or payment of) such Indebtedness or other obligation or to purchase (or to advance or supply funds for the purchase of) any security for the payment thereof, (b) to

purchase or lease property, Securities or services for the purpose of assuring the owner of such Indebtedness or other obligation of the payment thereof, (c) to maintain working capital, equity capital or any other financial statement condition or liquidity of the primary obligor so as to enable the primary obligor to pay such Indebtedness or other obligation or (d) as an account party in respect of any letter of credit or letter of guaranty issued to support such Indebtedness or obligation; provided, that the term Guarantee shall not include endorsements for collection or deposit in the ordinary course of business or customary indemnification agreements entered into in the ordinary course of business in connection with obligations that do not constitute Indebtedness. The amount of any Guarantee at any time shall be deemed to be an amount equal to the maximum stated or determinable amount of the primary obligation in respect of which such Guarantee is incurred, unless the terms of such Guarantee expressly provide that the maximum amount for which such Person may be liable thereunder is a lesser amount (in which case the amount of such Guarantee shall be deemed to be an amount equal to such lesser amount).

“Guarantee and Security Agreement” means the Guarantee, Pledge and Security Agreement, dated as of the date hereof (as the same shall be amended, restated, modified and supplemented from time to time), among the Borrower, the Subsidiary Guarantors, the Administrative Agent and the Collateral Agent.

“Guarantee Assumption Agreement” means a Guarantee Assumption Agreement substantially in the form of *Exhibit B* to the Guarantee and Security Agreement between the Collateral Agent and an entity that pursuant to **Section 5.08** is required to become a “Subsidiary Guarantor” under the Guarantee and Security Agreement (with such changes as the Administrative Agent shall request consistent with the requirements of **Section 5.08**).

“Hedging Agreement” means (i) any interest rate protection agreement, foreign currency exchange protection agreement, commodity price protection agreement or other interest or currency exchange rate or commodity price hedging arrangement and (ii) any credit default swaps.

“Hedging Agreement Obligations” has the meaning specified in the Guarantee and Security Agreement as in effect on the date hereof.

“HNW Investor” means each Borrowing Base Investor that is a high net worth individual or an Affiliate of the Borrower or a Feeder, and in each case is a shareholder of the Borrower or a Feeder.

“Holding Vehicle” has the meaning given to such term in the Partnership Agreement.

“Immaterial Subsidiaries” means those Subsidiaries of the Borrower that are “designated” as “Immaterial Subsidiaries” by the Borrower from time to time (it being understood that the Borrower may at any time change any such designation); *provided* that such designated Immaterial Subsidiaries shall collectively meet all of the following criteria as of the date of the most recent balance sheet required to be delivered pursuant to **Section 5.01**: (a) such Subsidiaries and their Subsidiaries do not hold any Eligible Portfolio Investment, (b) the aggregate assets of all such Subsidiaries and their Subsidiaries (on a consolidated basis) as of such date do not exceed an amount equal to 3% of the consolidated assets of the Borrower and its Subsidiaries as of such date; and (c) the aggregate revenues of all such Subsidiaries and their Subsidiaries (on a consolidated basis) for the fiscal quarter ending on such date do not exceed an amount equal to 3% of the consolidated revenues of the Borrower and its Subsidiaries for such period.

“Increasing Lender” has the meaning assigned to such term in **Section 2.06(f)**.

“Indebtedness” of any Person means, without duplication, (a)(i) all obligations of such Person for borrowed money or (ii) deposits, loans or advances of any kind that are required to be accounted

for under GAAP as a liability on the financial statements of an Obligor (other than deposits received in connection with a Portfolio Investment in the ordinary course of the Obligor's business (including, but not limited to, any deposits or advances in connection with expense reimbursement, prepaid agency fees, other fees, indemnification, work fees, tax distributions or purchase price adjustments)), (b) all obligations of such Person evidenced by bonds, debentures, notes or similar debt instruments, (c) all obligations of such Person under conditional sale or other title retention agreements relating to property acquired by such Person, (d) all obligations of such Person in respect of the deferred purchase price of property or services (other than trade accounts payable and accrued expenses in the ordinary course of business not past due for more than 90 days after the date on which such trade account payable was due), (e) all Indebtedness of others secured by any Lien on property owned or acquired by such Person, whether or not the Indebtedness secured thereby has been assumed (with the value of such debt being the lower of the outstanding amount of such debt and the fair market value of the property subject to such Lien), (f) all Guarantees by such Person of Indebtedness of others, (g) all Capital Lease Obligations of such Person, (h) all obligations, contingent or otherwise, of such Person as an account party in respect of letters of credit and letters of guaranty, (i) the amount such Person would be obligated for under any Hedging Agreement if such Hedging Agreement was terminated at the time of determination, (j) Disqualified Equity Interests and (k) all obligations, contingent or otherwise, of such Person in respect of bankers' acceptances. The Indebtedness of any Person shall include the Indebtedness of any other entity (including any partnership in which such Person is a general partner) to the extent such Person is liable therefor as a result of such Person's ownership interest in or other relationship with such entity, except to the extent the terms of such Indebtedness provide that such Person is not liable therefor (or such Person is not otherwise liable for such Indebtedness). Notwithstanding the foregoing, "Indebtedness" shall not include (x) purchase price holdbacks arising in the ordinary course of business in respect of a portion of the purchase price of an asset or Investment to satisfy unperformed obligations of the seller of such asset or Investment or (y) a commitment arising in the ordinary course of business to make a future Portfolio Investment.

"Independent" when used with respect to any specified Person means that such Person (a) does not have any direct financial interest or any material indirect financial interest in the Borrower or any of its Subsidiaries or Affiliates (including its investment adviser or any Affiliate thereof) other than ownership of publicly traded stock of the Borrower with a market value not to exceed \$1,000,000 and (b) is not an officer, employee, promoter, underwriter, trustee, partner, director or a Person performing similar functions of the Borrower or of its Subsidiaries or Affiliates (including its investment advisor or any Affiliate thereof).

"Industry Classification Group" means any of the classification groups set forth in *Schedule 1.01(c)* hereto, together with any such classification groups that may be subsequently established by Moody's and provided by the Borrower to the Lenders.

"ING" means ING Capital LLC.

"Initial Closing Date" has the meaning given to such term in the Partnership Agreement.

"Institutional Investor" means each Borrowing Base Investor that is an institutional shareholder of the Borrower or a Feeder.

"Interest Election Request" means a request by the Borrower to convert or continue a Borrowing in accordance with *Section 2.05*.

"Interest Payment Date" means (a) with respect to any ABR Loan, each Quarterly Date and (b) with respect to any Term Rate Loan, the last day of each Interest Period therefor.

“Interest Period” means, as to each Term Rate Loan, the period commencing on the date such Term Rate Loan is disbursed or converted to or continued as a Term Rate Loan and ending on the date one or three months thereafter, as selected by the Borrower in its Loan Notice, provided that, if the then-current Benchmark for Dollar Loans is Daily Compounded SOFR, the Interest Period will be the period commencing on the date such Loan is converted to or continued as a Daily Compounded SOFR Loan and ending on the numerically corresponding day in the calendar month that is one month thereafter; provided, further, in each case, that:

(a) any Interest Period that would otherwise end on a day that is not a Business Day will be extended to the next succeeding Business Day unless such Business Day falls in another calendar month, in which case such Interest Period will end on the next preceding Business Day;

(b) any Interest Period that begins on the last Business Day of a calendar month (or on a day for which there is no numerically corresponding day in the calendar month at the end of such Interest Period) will end on the last Business Day of the calendar month at the end of such Interest Period;

(c) no Interest Period may extend beyond the Maturity Date; and

(d) no tenor that has been removed from this definition pursuant to **Section 2.11** shall be available for selection of an “Interest Period” hereunder.

“Intermediate Entity” means each Feeder and any other Person in the organizational structure of Borrower that is interposed between Borrower and an Investor, including PennantPark Credit Opportunities IV SPV, LLC. For purposes of clarity, an Intermediate Entity will include any intervening corporation, limited partnership, limited liability company or other entity domiciled within or outside of the United States between Borrower and any Investor that is (a) formed by Borrower or an Affiliate of a Borrower to facilitate investments by such Investor(s) directly or indirectly in Borrower or for other structuring purposes, (b) managed or controlled by Borrower or General Partner or other Affiliate of Borrower.

“Internal Value” has the meaning assigned to such term in **Section 5.12(b)(ii)(C)**.

“Investment” means, for any Person: (a) Equity Interests, bonds, notes, debentures or other Securities of any other Person or any agreement to acquire any Equity Interests, bonds, notes, debentures or other Securities of any other Person (including any “short sale” or any sale of any Securities at a time when such Securities are not owned by the Person entering into such sale); (b) deposits, advances, loans or other extensions of credit made to any other Person (including purchases of property from another Person subject to an understanding or agreement, contingent or otherwise, to resell such property to such Person); or (c) Hedging Agreements.

“Investment Advisor” means PennantPark Investment Advisers, LLC, a Delaware limited liability company.

“Investment Advisor Departure Event” means the Investment Advisor shall cease to be the investment adviser of the Borrower or any Feeder.

“Investment Company Act” means the Investment Company Act of 1940.

“Investment Period” has the meaning given to such term in the Partnership Agreement.

“Investment Policies” means the investment policies, procedures and limitations set forth in the private placement memorandum and Governing Agreements of the Companies and as the same may be amended from time to time by a Permitted Policy Amendment and the other terms and conditions herewith.

“Investor” means the General Partner or any one of the limited partners or members of Borrower, or, as applicable, of any Intermediate Entity.

“ISDA Definitions” means the 2006 ISDA Definitions published by the International Swaps and Derivatives Association, Inc. or any successor thereto, as amended or supplemented from time to time, or any successor definitional booklet for interest rate derivatives published from time to time by the International Swaps and Derivatives Association, Inc. or such successor thereto.

“Largest Industry Classification Group” means, as of any date of determination, the single Industry Classification Group to which a greater portion of the Portfolio Leverage Borrowing Base has been assigned pursuant to **Section 5.12(a)** than any other single Industry Classification Group.

“Lenders” means the Persons listed on **Schedule 1.01(b)** as having Commitments and any other Person that shall have become a party hereto pursuant to an Assignment and Assumption that provides for it to assume a Commitment or to acquire Revolving Credit Exposure, other than any such Person that ceases to be a party hereto pursuant to an Assignment and Assumption.

“LIBO Rate” means the London Interbank Offered Rate quoted on the Reuters Screen LIBOR01 Page (or such other commercially available source providing such quotations as may be designated by Administrative Agent from time to time).

“Lien” means, with respect to any asset, (a) any mortgage, deed of trust, lien, pledge, hypothecation, encumbrance, charge or security interest in, on or of such asset, (b) the interest of a vendor or a lessor under any conditional sale agreement, capital lease or title retention agreement (or any financing lease having substantially the same economic effect as any of the foregoing) relating to such asset and (c) in the case of Securities, any purchase option, call or similar right of a third party with respect to such Securities (other than on market terms at fair value so long as in the case of any Portfolio Investment, the Value used in determining the Borrowing Base is not greater than the purchase or call price), except in favor of the issuer thereof (and, for the avoidance of doubt, in the case of Investments that are loans or other debt obligations, restrictions on assignments or transfers thereof on customary and market based terms pursuant to the underlying documentation relating to such Investment shall not be deemed to be a “Lien” and, in the case of Portfolio Investments that are equity Securities, excluding customary drag-along, tag-along, right of first refusal, restrictions on assignments or transfers and other similar rights in favor of other equity holders of the same issuer). For the avoidance of doubt, no Portfolio Investment shall be an Eligible Portfolio Investment unless, among the other requirements set forth in this Agreement, (i) such Investment is subject only to Eligible Liens and (ii) such Investment is Transferable.

“Limited Partners” means the limited partners of the Borrower or any Feeder.

“Loan Documents” means, collectively, this Agreement, any promissory notes delivered pursuant to **Section 2.07(f)** and the Security Documents.

“Loans” means the loans made by the Lenders to the Borrower pursuant to this Agreement.

“Managing Member” means the managing member of the General Partner.

“Margin Stock” means **“margin stock”** within the meaning of Regulations T, U and X.

“Material Adverse Effect” means a material adverse effect on (a) the business, Portfolio Investments of the Obligors (taken as a whole) and other assets, liabilities (actual or contingent), operations or condition (financial or otherwise) of the Borrower and its Subsidiaries, taken as a whole, or (b) the validity or enforceability of any of the Loan Documents or the rights or remedies of the Administrative Agent and the Lenders thereunder or the ability of the Obligors to perform their respective obligations thereunder.

“Material Indebtedness” means (a) Indebtedness (other than the Loans and Hedging Agreements), of any one or more of the Borrower and its Subsidiaries in an aggregate principal amount exceeding \$5,000,000 and (b) obligations in respect of one or more Hedging Agreements or other swap or derivative transactions under which the maximum aggregate amount (giving effect to any legally enforceable netting agreements) that the Borrower and the Subsidiaries would be required to pay if such Hedging Agreement(s) or other such swap or derivative transactions were terminated at such time would exceed \$5,000,000.

“Maturity Date” means the earliest of: (a) the Stated Maturity Date; (b) the date upon which Administrative Agent declares the Obligations, or the Obligations become, due and payable after the occurrence of an Event of Default; (c) the date upon which the Commitments are terminated pursuant to **Section 2.06** or otherwise; or (d) the closing date of any replacement credit agreement between Borrower and Administrative Agent.

“Minimum Utilization Amount” means, for any day, an amount equal to 35% of the aggregate Commitments of the Lenders as of the close of business on such day.

“Moody’s” means Moody’s Investors Service, Inc. or any successor thereto.

“Multicurrency Commitments” means, with respect to each Multicurrency Lender, the Commitment of such Multicurrency Lender to make Loans denominated in Dollars and in Agreed Foreign Currencies hereunder, as such Commitment may be (a) reduced or increased from time to time pursuant to **Section 2.06** or reduced from time to time pursuant to **Section 2.08** or as otherwise provided in this Agreement and (b) reduced or increased from time to time pursuant to assignments by or to such Lender pursuant to **Section 9.04**. The aggregate amount of each Lender’s Multicurrency Commitment as of the Effective Date is set forth on **Schedule 1.01(b)**, or in the Assignment and Assumption pursuant to which such Lender shall have assumed its Commitment, as applicable. The aggregate amount of the Lenders’ Multicurrency Commitments as of the Effective Date is \$60,000,000.

“Multicurrency Lender” means the Persons listed on **Schedule 1.01(b)** as having Multicurrency Commitments and any other Person that shall have become a party hereto pursuant to an Assignment and Assumption that provides for it to assume a Multicurrency Commitment or to acquire Revolving Multicurrency Credit Exposure, other than any such Person that ceases to be a party hereto pursuant to an Assignment and Assumption.

“Multicurrency Loan” means a Loan denominated in Dollars or an Agreed Foreign Currency made pursuant to the Multicurrency Commitment.

“Multiemployer Plan” means a multiemployer plan as defined in *Section 4001(a)(3)* of ERISA, to which any Company or any ERISA Affiliate makes or is obligated to make contributions, or during the preceding six plan years, has made or been obligated to make contributions.

“Net Asset Sale Proceeds” means, with respect to any Asset Sale, an amount equal to (a) the sum of Cash payments and Cash Equivalents received by the Obligor from such Asset Sale (including any Cash or Cash Equivalents received by way of deferred payment pursuant to, or by monetization of, a note receivable or otherwise, but only as and when so received), *minus* (b) any costs, fees, commissions, premiums and expenses actually incurred by any Obligor directly incidental to such Asset Sale and paid in Cash to a Person that is not an Affiliate of any Obligor (or if paid in Cash to an Affiliate, only to the extent such expenses are reasonable and customary), including reasonable legal fees and expenses *minus* (c) all taxes paid or reasonably estimated (including amounts necessary to satisfy Tax Distributions) to be payable by the Borrower as a result of such Asset Sale (after taking into account any available tax credits or deductions), and *minus* (d) in the case of an Asset Sale consisting of a Portfolio Investment that is Capital Stock, reserves for indemnification, purchase price adjustments or analogous arrangements reasonably estimated by the Borrower or the relevant Subsidiary in connection with such Asset Sale; provided that, (i) such reserved amount shall not be included in the Borrowing Base and (ii) if the amount of any estimated reserves pursuant to this *clause (e)* exceeds the amount actually required to be paid in Cash in respect of indemnification, purchase price adjustments or analogous arrangements for such Asset Sale, the aggregate amount of such excess shall constitute Net Asset Sale Proceeds (as of the date the Borrower determines such excess exists).

“Non-Consenting Lender” has the meaning assigned to such term in *Section 9.02(e)*.

“Non-Permitted Holder” means a Lender that is a Defaulting Lender due to a violation of *clause (e)* of the definition of “Defaulting Lender”.

“No Plan Asset Certificate” means a certificate from an Obligor, based on consultation with its counsel and the representations made by the Investors in their Subscription Agreements (which such Obligor has no reason to suspect are untrue with respect to “benefit plan investor” related representations), and in a form reasonably acceptable to Administrative Agent: (a) certifying that throughout the period beginning from the date of the prior No Plan Asset Certificate or the date of the Credit Agreement, as applicable, and continuing through the date of the subject No Plan Asset Certificate, “benefit plan investors” (as defined in *Section 3(42)* of ERISA) hold less than 25% of the total value of each class of equity interest in the Obligor (calculated in accordance with *Section 3(42)* of ERISA) and, accordingly, the underlying assets of such Obligor have not and do not constitute Plan Assets; and (b) covenanting that at all times following the date of such certificate, less than 25% of the total value of each class of equity interest in such Obligor (calculated in accordance with *Section 3(42)* of ERISA) will continue to be held by “benefit plan investors” (as defined in *Section 3(42)* of the ERISA) until such time, if any, that such Obligor delivers to Administrative Agent an Operating Company Opinion.

“NYFRB” means the Federal Reserve Bank of New York.

“Obligations” means all present and future indebtedness, obligations, and liabilities of Borrower to any Secured Party, and all renewals and extensions thereof, or any part thereof, arising pursuant to this Agreement (including, without limitation, the indemnity provisions hereof) and all interest accruing thereon, and attorneys’ fees incurred in the enforcement or collection thereof, regardless of whether such indebtedness, obligations, and liabilities are direct, indirect, fixed, contingent, joint, several, or joint and several; together with all indebtedness, obligations, and liabilities of Borrower to Lenders evidenced or arising pursuant to any of the other Loan Documents, and all renewals and extensions thereof, or any part thereof.

“Obligors” means, collectively, the Borrower and the Subsidiary Guarantors.

“Obligors’ Net Worth” means, at any date, the value of the Partners’ Capital at such date, exclusive of the net asset value held by any Obligor in any non-Obligor Subsidiary.

“Operating Company” means a “*venture capital operating company*” or a “*real estate operating company*” each within the meaning of the Plan Assets Regulation.

“Operating Company Certificate” means a certificate from an Obligor, delivered by the relevant officer of such Obligor, in a form reasonably acceptable to Administrative Agent, certifying that, based upon consultation with counsel, such Obligor should meet the requirements to be an Operating Company for the 12-month period following the end of the Annual Valuation Period for such Obligor.

“Operating Company Opinion” means a written opinion of counsel addressed to the General Partner of the Borrower, in a form reasonably acceptable to Administrative Agent, that such Obligor, should qualify as an Operating Company.

“Other Connection Taxes” means, with respect to any recipient, Taxes imposed as a result of a present or former connection between such recipient and the jurisdiction (or political subdivision thereof) imposing such Tax (other than connections arising from such recipient having executed, delivered, become a party to, performed its obligations under, received payments under, received or perfected a security interest under, engaged in any other transaction pursuant to or enforced any Loan Document, or sold or assigned an interest in any Loan or Loan Document).

“Other Permitted Indebtedness” means (a) accrued expenses and current trade accounts payable incurred in the ordinary course of any Obligor’s business that are overdue for a period of more than 90 days and which are being contested in good faith by appropriate proceedings, (b) Indebtedness (other than Indebtedness for borrowed money) arising in connection with transactions in the ordinary course of any Obligor’s business in connection with its purchasing of Securities, derivatives transactions, reverse repurchase agreements or dollar rolls to the extent such transactions are permitted under the Borrower’s Investment Policies (and otherwise permitted under this Agreement), *provided* that such Indebtedness does not arise in connection with the purchase of Portfolio Investments other than Cash Equivalents and U.S. Government Securities, (c) Indebtedness in respect of judgments or awards that have been in force for less than the applicable period for taking an appeal so long as such judgments or awards do not constitute an Event of Default under **Section 7.01(k)**, (d) Indebtedness incurred in the ordinary course of business to finance equipment and fixtures; provided that such Indebtedness does not exceed \$2,500,000 in the aggregate at any time outstanding; and (e) other Indebtedness not to exceed \$2,500,000 in the aggregate.

“Other Taxes” means any and all present or future stamp or documentary taxes or any other excise or property taxes, charges or similar levies arising from any payment made under any Loan Document or from the execution, delivery or enforcement of, or otherwise with respect to, any Loan Document, except any such Taxes that are Other Connection Taxes imposed with respect to an assignment (other than an assignment made pursuant to a request by the Borrower under **Section 2.17(b)**) and excluding any excise taxes incurred by a Company as a result of the use of Plan Assets by the Administrative Agent or any Lender.

“Parallel Investment Vehicle” means a “*Parallel Fund*” as defined in the Governing Agreement of Borrower or any Feeder, as applicable.

“Partners’ Capital” means, at any date, the amount determined on a consolidated basis, without duplication, in accordance with GAAP, of partners’ capital for the Borrower and its Subsidiaries at such date.

“Partners’ Capital Test” has the meaning assigned to such term in **Section 6.07(a)**.

“Partnership Agreement” means that certain Amended and Restated Limited Partnership Agreement of Borrower, dated as of December 19, 2022.

“PBGC” means the Pension Benefit Guaranty Corporation referred to and defined in **Section 4002** of ERISA.

“Pending Capital Call” means any Capital Call that has been made upon the Investors and that has not yet been funded by the applicable Investor, but with respect to which such Investor is not in default.

“Periodic Term SOFR Determination Day” has the meaning assigned to such term in the definition of “Term SOFR”.

“Permitted Equity Interests” means common stock of the Borrower that after its issuance is not subject to any agreement between the holder of such common stock and the Borrower where the Borrower is required to purchase, redeem, retire, acquire, cancel or terminate any such common stock.

“Permitted Holders” means the “Key Persons” as such term is defined from time to time in the Partnership Agreement.

“Permitted Liens” means (a) with respect to any assets of any Company other than the Subscription Collateral: (i) Liens imposed by any Governmental Authority for taxes, assessments or charges not yet due or that are being contested in good faith and by appropriate proceedings if adequate reserves with respect thereto are maintained on the books of the Borrower in accordance with GAAP; (ii) Liens of clearing agencies, broker-dealers and similar Liens incurred in the ordinary course of business, provided that such Liens (A) attach only to the securities (or proceeds) being purchased or sold and (B) secure only obligations incurred in connection with such purchase or sale, and not any obligation in connection with margin financing; (iii) Liens imposed by law, such as materialmen’s, mechanics’, carriers’, workmen’s, storage, landlord, and repairmen’s Liens and other similar Liens arising in the ordinary course of business and securing obligations (other than Indebtedness for borrowed money) not yet due or that are being contested in good faith and by appropriate proceedings if adequate reserves with respect thereto are maintained on the books of the Borrower in accordance with GAAP; (iv) Liens incurred or pledges or deposits made to secure obligations incurred in the ordinary course of business under workers’ compensation laws, unemployment insurance or other similar social security legislation (other than in respect of employee benefit plans subject to ERISA) or to secure public or statutory obligations; (v) Liens securing the performance of, or payment in respect of, bids, insurance premiums, deductibles or co-insured amounts, tenders, government or utility contracts (other than for the repayment of borrowed money), surety, stay, customs and appeal bonds and other obligations of a similar nature incurred in the ordinary course of business; (vi) Liens arising out of judgments or awards that have been in force for less than the applicable period for taking an appeal so long as such judgments or awards do not constitute an Event of Default; (vii) customary rights of setoff and Liens upon (A) deposits of Cash in favor of banks or other depository institutions in which such Cash is maintained in the ordinary course of business, (B) Cash and financial assets held in securities accounts in favor of banks and other financial institutions with which such accounts are maintained in the ordinary course of business and (C) assets held by a custodian in favor of such custodian in the ordinary course of business, in the case of each of **clauses (A) through (C)** immediately above, securing payment of fees, indemnities, charges for returning items and other similar obligations; (viii) Liens arising solely from precautionary filings of financing statements under the Uniform Commercial Code of the applicable jurisdictions in respect of operating leases entered into by the Borrower or any of its Subsidiaries in the ordinary course of business; (ix) zoning restrictions, easements, licenses, or other

restrictions on the use of any real estate (including leasehold title), in each case which do not interfere with or affect in any material respect the ordinary course conduct of the business of the Borrower and its Subsidiaries; (x) purchase money Liens on specific equipment and fixtures provided that (A) such Liens only attach to such equipment and fixtures, (B) the Indebtedness secured thereby is incurred pursuant to **clause (d)** of the definition of “*Other Permitted Indebtedness*” and (C) the Indebtedness secured thereby does not exceed the lesser of the cost and the fair market value of such equipment and fixtures at the time of the acquisition thereof; (xi) deposits of money securing leases to which Borrower is a party as lessee made in the ordinary course of business; (xii) Eligible Liens; and (xiii) Liens in favor of any escrow agent solely on and in respect of any Cash earnest money deposits made by any Obligor in connection with any letter of intent or purchase agreement (to the extent that the acquisition or disposition with respect thereto is otherwise permitted hereunder); and (b) with respect to the Subscription Collateral, (i) Liens imposed by any Governmental Authority for taxes, assessments or charges not yet due or that are being contested in good faith and by appropriate proceedings if adequate reserves with respect thereto are maintained on the books of the Borrower in accordance with GAAP; and (ii) Liens arising out of judgments or awards that have been in force for less than the applicable period for taking an appeal so long as such judgments or awards do not constitute an Event of Default, and so long as such Liens do not attach only to the Subscription Collateral and no other assets.

“**Permitted Policy Amendment**” is an amendment, modification, termination or restatement of the Investment Policies, that is either (a) approved in writing by the Administrative Agent (with the consent of the Required Lenders), (b) required by applicable law or Governmental Authority, (c) not material or (d) not materially adverse to the rights, remedies or interests of the Lenders in the reasonable discretion of the Administrative Agent.

“**Person**” means any natural person, corporation, limited liability company, trust, joint venture, joint stock company, unincorporated association, company, partnership, Governmental Authority or other entity of whatever nature.

“**Plan**” means any employee pension benefit plan (other than a Multiemployer Plan) subject to the provisions of Title IV of ERISA or Section 412 of the Code or Section 302 of ERISA and any post-employment health or welfare plan in respect of which any Company or any ERISA Affiliate is (or, if such plan were terminated, would under Section 4069 of ERISA be deemed to be) an “employer” as defined in Section 3(5) of ERISA.

“**Plan Assets**” means “*plan assets*” within the meaning of the Plan Assets Regulation.

“**Plan Assets Regulation**” means 29 C.F.R. §2510.3-101, as modified by *Section 3(42)* of ERISA.

“**Platform**” has the meaning assigned to such term in **Section 9.01(b)**.

“**Portfolio Company**” means the issuer or obligor under any Portfolio Investment held by any Obligor.

“**Portfolio Investment**” means any Investment held by the Borrower and its Subsidiaries in their asset portfolio (and, for purposes of determining the Borrowing Base, Cash).

“**Portfolio Leverage Borrowing Base**” has the meaning assigned to such term in **Section 5.13**.

“**Portfolio Leverage Percentage**” means 100% minus the Subscription Percentage.

“Prime Rate” means the rate of interest quoted in *The Wall Street Journal*, Money Rates Section, as the “Prime Rate”, as in effect from time to time (or, if more than one rate is published as the prime rate, then the highest of such rates). The Prime Rate is a reference rate and does not necessarily represent the lowest or best rate actually charged to any customer. The Administrative Agent or any Lender may make commercial loans or other loans at rates of interest at, above, or below the Prime Rate. Each change in the Prime Rate shall be effective from and including the date such change is publicly announced or quoted as being effective.

“Principal Financial Center” means, in the case of any Currency, the principal financial center where such Currency is cleared and settled, as determined by the Administrative Agent.

“Quarterly Date” means the last Business Day of March, June, September and December in each year, commencing on December 31, 2022.

“Quoted Investments” has the meaning assigned to such term in *Section 5.12(b)(ii)*.

“Rating” means, for any Person, its senior unsecured debt rating (or equivalent thereof, such as, but not limited to, a corporate credit rating, issuer rating/insurance financial strength rating (for an insurance company), general obligation rating (for a governmental entity), or revenue bond rating (for an educational institution)) from either of S&P or Moody’s.

“Recallable Capital” means, for any Investor, its “Recallable Amount” as defined in the applicable Governing Agreement; in each case which amount has been set forth as “Recallable Capital” on a certificate of General Partner delivered to Administrative Agent; *provided* that the failure of General Partner to deliver such certificate to Administrative Agent will result in the exclusion of such amount from “Recallable Capital”.

“Register” has the meaning assigned to such term in *Section 9.04(c)*.

“Regulations D, T, U and X” means, respectively, Regulations D, T, U and X of the Board of Governors of the Federal Reserve System (or any successor), as the same may be modified and supplemented and in effect from time to time.

“Related Parties” means, with respect to any specified Person, such Person’s Affiliates and the respective directors, officers, employees, agents and advisors of such Person and such Person’s Affiliates.

“Required Lenders” means, at any time, subject to *Section 2.16*, Lenders having Revolving Credit Exposures and unused Commitments representing more than 50% of the sum of the total Revolving Credit Exposures and unused Commitments at such time; *provided*, that, (a) if there are only three Lenders at such time, “Required Lenders” shall mean Lenders having Revolving Credit Exposures and unused Commitments representing more than 67% of the sum of the total Revolving Credit Exposures and unused Commitments at such time and (b) if there are only two Lenders at such time, “Required Lenders” shall mean all Lenders. Solely for purposes of *Sections 2.08(b)* and *Section 2.11*, the Required Lenders of a Class (which shall include the term “Required Multicurrency Lenders”) means Lenders having Revolving Credit Exposures and unused Commitments of such Class representing more than 50% (or, if there are only three Lenders of such Class at such time, 67% and, if there are only two Lenders of such Class at such time, all such Lenders) of the sum of the total Revolving Credit Exposures and unused Commitments of such Class at such time.

“Resolution Authority” means an EEA Resolution Authority or, with respect to any UK Financial Institution, a UK Resolution Authority.

“Responsible Party” means for any Governmental Plan Investor: (a) if the state or political subdivision under which the Governmental Plan Investor operates is obligated to fund the Governmental Plan Investor and is liable to fund any shortfalls, the state or political subdivision, as applicable; and (b) otherwise, the Governmental Plan Investor itself.

“Restricted Payment” means any dividend or other distribution (whether in Cash, Securities or other property) with respect to any shares of any class of Capital Stock of the Borrower or any of its Subsidiaries, or any payment (whether in Cash, Securities or other property), including any sinking fund or similar deposit, on account of the purchase, redemption, retirement, acquisition, cancellation or termination of any such shares of Capital Stock of the Borrower or any option, warrant or other right to acquire any such shares of Capital Stock of the Borrower (other than any equity awards granted to employees, officers, directors and consultants of the Borrower and its Affiliates); *provided*, for clarity, neither the conversion of convertible debt into Capital Stock nor the purchase, redemption, retirement, acquisition, cancellation or termination of convertible debt made solely with Capital Stock (other than interest or expenses, which may be payable in Cash) shall be a Restricted Payment hereunder.

“Return of Capital” means an amount equal to (a) any Cash amount (and Cash proceeds of any non-Cash amount) received by any Obligor at any time in respect of the outstanding principal of any Portfolio Investment (whether at stated maturity, by acceleration or otherwise), *plus* (b) without duplication of amounts received under *clause (a)*, any Cash proceeds (including Cash proceeds of any non-Cash consideration) received by any Obligor at any time from the sale of any property or assets pledged as collateral in respect of any Portfolio Investment to the extent such Cash proceeds are less than or equal to the outstanding principal balance of such Portfolio Investment, *plus* (c) any Cash amount (and Cash proceeds of any non-Cash amount) received by any Obligor at any time in respect of any Portfolio Investment that is an Equity Interest (x) upon the liquidation or dissolution of the Portfolio Company of such Portfolio Investment, (y) as a distribution of capital made on or in respect of such Portfolio Investment, (other than, in the case of a Portfolio Investment that is Capital Stock, any distribution on account of actual taxes paid or reasonably estimated to be payable as a result of such distribution) or (z) pursuant to the recapitalization or reclassification of the capital of the Portfolio Company of such Portfolio Investment or pursuant to the reorganization of such Portfolio Company *plus* (d) any similar return of capital received by any Obligor in Cash (and Cash proceeds of any non-Cash amount) in respect of any Portfolio Investment, minus (e)(i) any costs, fees commissions, premiums and expenses actually incurred by any Obligor directly incidental to such Cash receipts and paid in Cash to a Person that is not an Affiliate of an Obligor (or if paid in Cash to an Affiliate, only to the extent such expenses are reasonable and customary), including reasonable legal fees and expenses and (ii) any amounts necessary to meet tax obligations (including amounts necessary to satisfy Tax Distributions) from associated gain.

“Revaluation Date” means each of the following: (a) each date of a Borrowing; (b) each Quarterly Date; (c) each date on which the Borrowing Base must otherwise be calculated pursuant to the terms of this Agreement; and (d) any other time requested by the Administrative Agent or Borrower in their sole discretion.

“Revolving Credit Exposure” means, with respect to any Lender at any time, the sum of the outstanding principal amount of such Lender’s Revolving Dollar Credit Exposure and Revolving Multicurrency Credit Exposure at such time.

“Revolving Dollar Credit Exposure” means, with respect to any Lender at any time, the sum of the outstanding principal amount of such Lender’s Dollar Loans at such time.

“Revolving Multicurrency Credit Exposure” means, with respect to any Lender at any time, the sum of the outstanding principal amount of such Lender’s Multicurrency Loans at such time.

“S&P” means S&P Global Ratings, a Subsidiary of the S&P Global, Inc., and any successor thereto.

“Sanctions” has the meaning assigned to such term in *Section 3.17*.

“Second Largest Industry Classification Group” means, as of any date of determination, the single Industry Classification Group to which the second greatest portion of the Portfolio Leverage Borrowing Base has been assigned pursuant to *Section 5.12(a)* than any other single Industry Classification Group (other than the Largest Industry Classification Group).

“Secured Parties” means collectively, Administrative Agent, Collateral Agent, Lenders and any other Person to which Obligations are owing which are or are purported to be secured by the Collateral under the terms of the Security Documents

“Security Documents” means, collectively, the Guarantee and Security Agreement, the Capital Call Security Agreements, the Custodian Agreement, the Feeder Acknowledgment and Confirmations, all Uniform Commercial Code financing statements filed with respect to the security interests in personal property created pursuant to the Guarantee and Security Agreement, and all other assignments, pledge agreements, security agreements, control agreements and other instruments executed and delivered at any time by any of the Obligor pursuant to the Guarantee and Security Agreement or otherwise providing or relating to any collateral security for any of the Secured Obligations under and as defined in the Guarantee and Security Agreement.

“Side Letter” means any side letter executed by an Investor with the General Partner or the Borrower or any applicable Intermediate Entity (i) with respect to such Investor’s rights and/or obligations under its Subscription Agreement or a Governing Agreement or (ii) that amends a Governing Agreement; *provided, that* any Side Letter may be redacted in respect of any economic terms set forth therein that do not adversely affect an Investor’s Subscription Facility Obligations.

“SOFR” means a rate per annum equal to the secured overnight financing rate as administered by the SOFR Administrator.

“SOFR Administrator” means the Federal Reserve Bank of New York (or a successor administrator of the secured overnight financing rate).

“SOFR Loan” means an Adjusted Term SOFR Loan; *provided that*, if a replacement of the Benchmark has occurred pursuant to *Section 2.11(b)* with respect to Adjusted Term SOFR, a Daily Compounded SOFR Loan.

“Solvent” means, with respect to any Obligor, that as of the date of determination, both (a)(i) the sum of such Obligor’s debt and liabilities (including contingent liabilities) does not exceed the present fair saleable value of such Person’s present assets, (ii) such Obligor’s capital is not unreasonably small in relation to its business as contemplated on the Effective Date and reflected in any projections delivered to the Lenders or with respect to any transaction contemplated or undertaken after the Effective Date, and (iii) such Obligor has not incurred and does not intend to incur, or believe (nor should it reasonably believe) that it will incur, debts beyond its ability to pay such debts as they become due (whether at maturity or otherwise); and (b) such Obligor is “solvent” within the meaning given to such term and similar terms under applicable laws relating to fraudulent transfers and conveyances. For purposes of this

definition, the amount of any contingent liability at any time shall be computed as the amount that, in light of all of the facts and circumstances existing at such time, represents the amount that can reasonably be expected to become an actual or matured liability (irrespective of whether such contingent liabilities meet the criteria for accrual under Financial Accounting Standards Board Accounting Standards Codification (“ASC”) Topic 450).

“**Special Equity Interest**” means any Equity Interest that is subject to a Lien in favor of creditors of the issuer of such Equity Interest; provided that (a) such Lien was created to secure indebtedness owing by such issuer to such creditors, (b) such indebtedness was (i) in existence at the time the Obligors acquired such Equity Interest, (ii) incurred or assumed by such issuer substantially contemporaneously with such acquisition or (iii) already subject to a Lien granted to such creditors and (c) unless such Equity Interest is not intended to be included in the Collateral, the documentation creating or governing such Lien does not prohibit the inclusion of such Equity Interest in the Collateral.

“**Sponsor**” of an ERISA Investor means a sponsor as that term is understood under ERISA, specifically, the entity that established the plan and is responsible for the maintenance of the plan and, in the case of a plan that has a sponsor and participating employers, the entity that has the ability to amend or terminate the plan.

“**Spot Rate**” means, at any date of determination thereof, with respect to an amount denominated in any Foreign Currency, the amount of Dollars that would be required to purchase such amount of such Foreign Currency based upon the spot selling rate displayed as the WM Reuters Rate at which Foreign Currency is offered to be sold for Dollars in the London foreign exchange market at approximately 4:00p.m. as of the immediately preceding Business Day.

“**Stated Maturity Date**” means December 17, 2027, unless extended with the consent of the Administrative Agent and each Lender in its sole and absolute discretion.

“**Subordinated Claims**” has the meaning assigned to such term in **Section 9.17(a)**.

“**Subscribed Interest**” of any Investor means the limited or general partnership interest, or membership interest, of such Investor in Borrower or an Intermediate Entity under the applicable Governing Agreement.

“**Subscription Agreement**” has the meaning assigned to such term in the Partnership Agreement.

“**Subscription Borrowing Base**” means, at any time of determination, 65% of the aggregate Unfunded Capital Commitments of the Borrowing Base Investors, in each case as such Unfunded Capital Commitments are first reduced by all applicable Subscription Borrowing Base Concentration Limits. For the avoidance of doubt, the Unfunded Capital Commitment of an Excluded Investor will be excluded from the Subscription Borrowing Base at all times. Notwithstanding the foregoing, the Subscription Borrowing Base will be zero (a) at any time in which there are fewer than two Investors (other than the General Partner), (b) after the third anniversary of the Effective Date, and (c) at any time Investors holding Capital Commitments in excess of 15% (in aggregate) of the total Capital Commitments are Excluded Investors.

“**Subscription Borrowing Base Concentration Limit**” means the limit on the amount of the Unfunded Capital Commitment of an individual Borrowing Base Investor in each Investor classification or an aggregate amount of all Borrowing Base Investors in such Investor classification, in each case as set forth below, calculated as a percentage of the aggregate Unfunded Capital Commitments of all Borrowing Base Investors, provided, that, Investors that are Affiliates of each other will be treated as one Investor for

purposes of applying a Concentration Limit, unless the affiliation is solely as a result of direct or indirect control or management by a common private equity or similar sponsor or manager:

Investor Classification	Individual Concentration Limit	Aggregate Concentration Limit
Institutional Investors	20%	N/A
HNW Investors	5%	20%

“**Subscription Collateral**” means the “**Collateral**” described in the Capital Call Security Agreement.

“**Subscription Document**” means, with respect to any third-party Investor, the Subscription Agreement executed by such Investor and any related Side Letter, and with respect to any Investor that is an Intermediate Entity, the Governing Agreement of the Borrower or other Intermediate Entity of which such Investor is a limited partner or a member.

“**Subscription Facility Obligations**” means the obligations of a Borrowing Base Investor under its Subscription Documents in either such case relating to its obligation to make Capital Contributions in accordance therewith or to otherwise comply with its obligations thereunder relating to subscription facilities, including the maintenance of all rights and remedies of the Lenders thereunder.

“**Subscription Percentage**” means the greater of: (a) (i) the Subscription Borrowing Base divided by (ii) the Borrowing Base, and (b) the lower of (i) 100% and (ii)(A) the Subscription Borrowing Base divided by (B) the Commitments; *provided* that after earliest to occur of (x) the third anniversary of the Effective Date and (y) the date on which the Investment Period is terminated or expires for any reason, the Subscription Percentage will be deemed to be zero.

“**Subsequent Closing Date**” has the meaning given to such term in the Partnership Agreement.

“**Subsidiary**” means, with respect to any Person (the “**parent**”) at any date, any corporation, limited liability company, partnership, association or other entity the accounts of which would be consolidated with those of the parent in the parent’s consolidated financial statements if such financial statements were prepared in accordance with GAAP as of such date, as well as any other corporation, limited liability company, partnership, association or other entity (a) of which Securities or other ownership interests representing more than 50% of the equity or more than 50% of the ordinary voting power or, in the case of a partnership, more than 50% of the general partnership interests are, as of such date, owned, controlled or held, or (b) that is, as of such date, otherwise Controlled by the parent or one or more subsidiaries of the parent or by the parent and one or more subsidiaries of the parent. Anything herein to the contrary notwithstanding, the term “Subsidiary” shall not include any Person that constitutes an Investment held by the Borrower in the ordinary course of business and that is not, under GAAP, consolidated on the financial statements of the Borrower. Unless otherwise specified, “**Subsidiary**” means a Subsidiary of the Borrower.

“**Subsidiary Guarantor**” means any Subsidiary that is or is required to be a Guarantor under the Guarantee and Security Agreement.

“**Supplemental Cap**” has the meaning assigned to such term in **Section 9.03(a)**.

“**Tax Blocker Subsidiary**” means any wholly-owned Subsidiary of the Borrower or a Holding Vehicle from time to time designated in writing by the Borrower to the Administrative Agent as a

“Tax Blocker Subsidiary” hereunder, which Person is formed for the primary purpose of holding Equity Interests of Portfolio Investments.

“**Tax Distributions**” shall have the meaning ascribed to such term in the Partnership Agreement.

“**Taxes**” means any and all present or future taxes levies, imposts, duties, deductions, withholding (including backup withholding), assessments, fees or other charges imposed by any Governmental Authority, including any interest, additions to tax or penalties applicable thereto.

“**Termination Date**” means the date on which the Commitments have expired or been terminated and the principal of and accrued interest on each Loan and all fees and other amounts payable hereunder shall have been paid in full (excluding, for the avoidance of doubt, any amount in connection with any contingent, unasserted obligations).

“**Term Rate Borrowing**” or “**Term Rate Loan**”, when used in reference to any Loan or Borrowing, refers to whether such Loan, or the Loans constituting such Borrowing, are bearing interest at a rate determined by reference to Adjusted Term SOFR or the CDOR Screen Rate (or Daily Compounded SOFR, or any term based replacement rate, in each case following any applicable Benchmark Replacement). For clarity, a Loan or Borrowing bearing interest by reference to **clause (c)** of the definition of the Alternate Base Rate shall not be a Term Rate Loan or Term Rate Borrowing.

“**Term SOFR**” means:

(a) for any calculation with respect to a SOFR Loan, the Term SOFR Reference Rate for a tenor comparable to the applicable Interest Period on the day (such day, the “**Periodic Term SOFR Determination Day**”) that is two (2) U.S. Government Securities Business Days prior to the first day of such Interest Period, as such rate is published by the Term SOFR Administrator; *provided, however*, that if as of 5:00 p.m. (New York City time) on any Periodic Term SOFR Determination Day the Term SOFR Reference Rate for the applicable tenor has not been published by the Term SOFR Administrator and a replacement of the Term SOFR Reference Rate has not occurred pursuant to **Section 2.11(b)(i)-(ii)**, then Term SOFR will be the Term SOFR Reference Rate for such tenor as published by the Term SOFR Administrator on the first preceding U.S. Government Securities Business Day for which such Term SOFR Reference Rate for such tenor was published by the Term SOFR Administrator so long as such first preceding U.S. Government Securities Business Day is not more than three (3) U.S. Government Securities Business Days prior to such Periodic Term SOFR Determination Day; and

(b) for any calculation with respect to a Base Rate Loan on any day, the Term SOFR Reference Rate for a tenor of one (1) month on the day (such day, the “**Alternative Base Rate Term SOFR Determination Day**”) that is two (2) U.S. Government Securities Business Days prior to such day, as such rate is published by the Term SOFR Administrator; *provided, however*, that if as of 5:00 p.m. (New York City time) on any Alternative Base Rate Term SOFR Determination Day the Term SOFR Reference Rate for the applicable tenor has not been published by the Term SOFR Administrator and a replacement of the Term SOFR Reference Rate has not occurred pursuant to **Section 2.11(b)(i)-(ii)**, then Term SOFR will be the Term SOFR Reference Rate for such tenor as published by the Term SOFR Administrator on the first preceding U.S. Government Securities Business Day for which such Term SOFR Reference Rate for such tenor was published by the Term SOFR Administrator so long as such first preceding U.S. Government Securities Business Day is not more than three (3) U.S. Government Securities Business Days prior to such Alternative Base Rate Term SOFR Determination Day.

“Term SOFR Administrator” means CME Group Benchmark Administration Limited (CBA) (or a successor administrator of the Term SOFR Reference Rate selected by the Administrative Agent in its reasonable discretion).

“Term SOFR Reference Rate” means the forward-looking term rate based on Term SOFR.

“Testing Quarter” has the meaning assigned to such term in *Section 5.12(b)(ii)*.

“Transactions” means the execution, delivery and performance by the Borrower of this Agreement and other Loan Documents, the borrowing of Loans, and the use of the proceeds thereof.

“Transfer” means to assign, convey, exchange, pledge, sell, set off, transfer or otherwise dispose.

“Transparent Subsidiary” means an entity classified as a partnership or as a disregarded entity for U.S. federal income tax purposes directly or indirectly owned by an Obligor that has no material assets other than Equity Interests (held directly or indirectly through other Transparent Subsidiaries) in one or more CFCs.

“Type”, when used in reference to any Loan or Borrowing, refers to whether the rate of interest on such Loan, or on the Loans constituting such Borrowing, is determined by reference to Adjusted Term SOFR, the CDOR Screen Rate or the Alternate Base Rate.

“UK Financial Institution” means any BRRD Undertaking (as such term is defined under the PRA Rulebook (as amended from time to time) promulgated by the United Kingdom Prudential Regulation Authority) or any person subject to *IFPRU 11.6* of the FCA Handbook (as amended from time to time) promulgated by the United Kingdom Financial Conduct Authority, which includes certain credit institutions and investment firms, and certain affiliates of such credit institutions or investment firms.

“UK Resolution Authority” means the Bank of England or any other public administrative authority having responsibility for the resolution of any UK Financial Institution.

“Undisclosed Administration” means, in relation to a Lender or its direct or indirect parent company, the appointment of an administrator, provisional liquidator, conservator, receiver, trustee, custodian or other similar official by a supervisory authority or regulator under or based on the law in the country where such Lender or its direct or indirect parent company is subject to home jurisdiction supervision if applicable law requires that such appointment is not to be publicly disclosed and such appointment has not been publicly disclosed.

“Unfunded Capital Commitment” means, with respect to any Investor at any time, the Capital Commitment of such Investor, minus the aggregate Capital Contributions made to Borrower or an Intermediate Entity by such Investor, plus Recallable Capital attributed to such Investor. For the avoidance of doubt, **“Unfunded Capital Commitment”** will include that portion of an Investor’s Capital Commitment that is, at such time, subject to a Pending Capital Call.

“Uniform Commercial Code” means the Uniform Commercial Code as in effect from time to time in the State of New York.

“United States” means the United States of America.

“Unquoted Investments” has the meaning assigned to such term in *Section 5.12(b)(ii)*.

“U.S. Government Securities” means Securities that are direct obligations of, and obligations the timely payment of principal and interest on which is fully guaranteed by, the United States or any agency or instrumentality of the United States the obligations of which are backed by the full faith and credit of the United States and in the form of conventional bills, bonds, and notes.

“U.S. Government Securities Business Day” means any day except for (i) a Saturday, (ii) a Sunday or (iii) a day on which the Securities Industry and Financial Markets Association recommends that the fixed income departments of its members be closed for the entire day for purposes of trading in United States government securities.

“U.S. Person” means any Person that is a “United States Person” as defined in Section 7701(a)(30) of the Code.

“USA PATRIOT Act” has the meaning assigned to such term in **Section 3.18**.

“Value” has the meaning assigned to such term in **Section 5.13**.

“wholly owned Subsidiary” of any person shall mean a Subsidiary of such person, all of the Equity Interests of which (other than directors’ qualifying shares or nominee or other similar shares required pursuant to applicable law) are owned by such person and/or one or more wholly owned Subsidiaries of such person. Unless the context otherwise requires, **“wholly owned Subsidiary Guarantor”** shall mean a wholly owned Subsidiary that is a Subsidiary Guarantor.

“Withdrawal Liability” means liability to a Multiemployer Plan as a result of a complete or partial withdrawal from such Multiemployer Plan, as such terms are defined in Part 1 of Subtitle E of Title IV of ERISA.

“Write-Down and Conversion Powers” means, (a) with respect to any EEA Resolution Authority, the write-down and conversion powers of such EEA Resolution Authority from time to time under the Bail-In Legislation for the applicable EEA Member Country, which write-down and conversion powers are described in the EU Bail-In Legislation Schedule, and (b) with respect to the United Kingdom, any powers of the applicable Resolution Authority under the Bail-In Legislation to cancel, reduce, modify or change the form of a liability of any UK Financial Institution or any contract or instrument under which that liability arises, to convert all or part of that liability into shares, securities or obligations of that person or any other person, to provide that any such contract or instrument is to have effect as if a right had been exercised under it or to suspend any obligation in respect of that liability or any of the powers under that Bail-In Legislation that are related to or ancillary to any of those powers.

1.02 Classification of Loans and Borrowings. For purposes of this Agreement, Loans may be classified and referred to by Class (e.g., a **“Dollar Loan”** or **“Multicurrency Loan”**), by Type (e.g., an **“ABR Loan”**) or by Class and Type (e.g., a **“Multicurrency Term Rate Loan”**). Borrowings also may be classified and referred to by Class (e.g., a **“Dollar Borrowing”** or **“Multicurrency Borrowing”**), by Type (e.g., an **“ABR Borrowing”**), or by Class and Type (e.g., a **“Multicurrency Term Rate Borrowing”**). Loans and Borrowings may also be identified by Currency.

1.03 Terms Generally. The definitions of terms herein shall apply equally to the singular and plural forms of the terms defined. Whenever the context may require, any pronoun shall include the corresponding masculine, feminine and neuter forms. The words “include”, “includes” and “including” shall be deemed to be followed by the phrase “without limitation”. The word “will” shall be construed to have the same meaning and effect as the word “shall”, and vice versa. Unless the context requires otherwise (a) any definition of or reference to any agreement, instrument or other document herein shall be construed

as referring to such agreement, instrument or other document as from time to time amended, supplemented or otherwise modified (subject to any restrictions on such amendments, supplements or modifications set forth herein), (b) any reference herein to any Person shall be construed to include such Person's successors and assigns (subject to any restrictions on such successors and assigns set forth herein), (c) the words "herein", "hereto", "hereof" and "hereunder", and words of similar import, shall be construed to refer to this Agreement in its entirety and not to any particular provision hereof, (d) all references herein to Articles, Sections, Exhibits and Schedules shall be construed to refer to Articles and Sections of, and Exhibits and Schedules to, this Agreement, (e) the words "asset" and "property" shall be construed to have the same meaning and effect and to refer to any and all tangible and intangible assets and properties, including Cash, Securities, accounts and contract rights, (f) any reference to any Law includes all statutory and regulatory provisions consolidating, amending, replacing or interpreting such Law and any reference to any Law or regulation, unless otherwise specified, refers to such Law or regulation as amended, modified or supplemented from time to time, (g) in the computation of periods of time from a specified date to a later specified date, the word "*from*" means "*from and including*", the words "*to*" and "*until*" each mean "*to but excluding*", and the word "*through*" means "*to and including*", and (h) Section headings herein and in the other Loan Documents are included for convenience of reference only and will not affect the interpretation of this Agreement or any other Loan Document.

1.04 Accounting Terms; GAAP. Except as otherwise expressly provided herein, all terms of an accounting or financial nature shall be construed in accordance with GAAP, as in effect from time to time; *provided* that, if the Borrower notifies the Administrative Agent that the Borrower requests an amendment to any provision hereof to eliminate the effect of any change occurring after the Effective Date in GAAP or in the application thereof on the operation of such provision (or if the Administrative Agent notifies the Borrower that the Required Lenders request an amendment to any provision hereof for such purpose), then Borrower, Administrative Agent and the Lenders agree to enter into negotiations in good faith in order to amend such provisions of the Agreement so as to equitably reflect such change to comply with GAAP with the desired result that the criteria for evaluating the Borrower's financial condition shall be the same after such change to comply with GAAP as if such change had not been made; *provided, however*, until such amendments to equitably reflect such changes are effective and agreed to by Borrower, Administrative Agent and the Required Lenders, the Borrower's compliance with such financial covenants shall be determined on the basis of GAAP as in effect and applied immediately before such change in GAAP becomes effective. Notwithstanding the foregoing or anything herein to the contrary, the Borrower covenants and agrees with the Lenders that whether or not the Borrower may at any time adopt the principles under ASC Subtopic 825-10, all determinations relating to fair value accounting for liabilities or compliance with the terms and conditions of this Agreement shall be made on the basis that the Borrower has not adopted the principles under ASC Subtopic 825-10. For the avoidance of doubt, leases shall continue to be classified and accounted for on a basis consistent with GAAP as in effect on the date hereof for all purposes of the Credit Agreement, notwithstanding any change in GAAP related hereto.

1.05 Currencies Generally. At any time, any reference in the definition of the term "*Agreed Foreign Currency*" or in any other provision of this Agreement to the Currency of any particular nation means the lawful Currency of such nation at such time whether or not the name of such Currency is the same as it was on the date hereof. The Administrative Agent will determine the Spot Rates as of each applicable date required to be used for calculating the Dollar Equivalent of the Loans denominated in Agreed Foreign Currencies. In the case of a Spot Rate required to be calculated as of a Revaluation Date, such Spot Rate will become effective as of such Revaluation Date and will be the Spot Rate employed in converting any amounts between the applicable currencies until the next Revaluation Date to occur. Except for purposes of financial statements delivered by Borrower hereunder or calculating financial covenants hereunder or except as otherwise provided herein, the applicable amount of any Currency (other than Dollars) for purposes of the Loan Documents will be such Dollar Equivalent amount as reasonably determined by the Administrative Agent based on the Spot Rate as of the last Revaluation Date. Wherever

in this Agreement in connection with a Borrowing or Loan an amount, such as a required minimum or multiple amount, is expressed in Dollars, but such Borrowing or Loan is denominated in a Foreign Currency, such amount shall be the relevant Dollar Equivalent. Without limiting the generality of the foregoing, for purposes of determining compliance with any basket in **Sections 2.08(d), 5.08(c)(ii), 6.01(b), 6.03(e) or 6.04(g)** of this Agreement, in no event shall the Borrower or any Obligor be deemed to not be in compliance with any such basket solely as a result of change in exchange rates.

1.06 **Times of Day; Rates.** Unless otherwise specified in the Loan Documents, time references are to Eastern time (daylight or standard, as applicable).

1.07 **Interest Rates.** The Administrative Agent does not warrant or accept any responsibility for, and shall not have any liability with respect to (a) the continuation of, administration of, submission of, calculation of or any other matter related to the Alternative Base Rate, the Term SOFR Reference Rate, Adjusted Term SOFR, Term SOFR or Daily Compounded SOFR, or any component definition thereof or rates referred to in the definition thereof, or any alternative, successor or replacement rate thereto (including any Benchmark Replacement), including whether the composition or characteristics of any such alternative, successor or replacement rate (including any Benchmark Replacement) will be similar to, or produce the same value or economic equivalence of, or have the same volume or liquidity as, the Alternative Base Rate, the Term SOFR Reference Rate, Adjusted Term SOFR, Term SOFR, Daily Compounded SOFR, the CDOR Screen Rate or any other Benchmark prior to its discontinuance or unavailability, or (b) the effect, implementation or composition of any Benchmark Conforming Changes. The Administrative Agent and its affiliates or other related entities may engage in transactions that affect the calculation of the Alternative Base Rate, the Term SOFR Reference Rate, Term SOFR, Adjusted Term SOFR, Daily Compounded SOFR, the CDOR Screen Rate, any alternative, successor or replacement rate (including any Benchmark Replacement) or any relevant adjustments thereto, in each case, in a manner adverse to Borrower. The Administrative Agent may select information sources or services in its reasonable discretion to ascertain the Alternative Base Rate, the Term SOFR Reference Rate, Term SOFR, Adjusted Term SOFR, Daily Compounded SOFR, the CDOR Screen Rate or any other Benchmark, in each case pursuant to the terms of this Credit Agreement, and shall have no liability to any Company, any Lender or any other person or entity for damages of any kind, including direct or indirect, special, punitive, incidental or consequential damages, costs, losses or expenses (whether in tort, contract or otherwise and whether at law or in equity), for any error or calculation of any such rate (or component thereof) provided by any such information source or service.

Article II. THE CREDITS

2.01 **The Commitments.** Subject to the terms and conditions set forth herein,

(a) each Dollar Lender severally agrees to make Dollar Loans to the Borrower from time to time during the Availability Period in an aggregate principal amount that will not result in (a) such Lender's Revolving Dollar Credit Exposure exceeding such Lender's Dollar Commitment, (b) the aggregate Revolving Dollar Credit Exposure of all of the Lenders exceeding the aggregate Dollar Commitments or (c) the total Covered Debt Amount exceeding the Borrowing Base then in effect; and

(b) each Multicurrency Lender severally agrees to make Multicurrency Loans to the Borrower from time to time during the Availability Period in an aggregate principal amount that will not result in (a) such Lender's Revolving Multicurrency Credit Exposure exceeding such Lender's Multicurrency Commitment, (b) the aggregate Revolving Multicurrency Credit Exposure

of all of the Lenders exceeding the aggregate Multicurrency Commitments or (c) the total Covered Debt Amount exceeding the Borrowing Base then in effect.

Within the foregoing limits and subject to the terms and conditions set forth herein, the Borrower may borrow, prepay and reborrow Loans.

2.02 Loans and Borrowings.

(a) **Obligations of Lenders.** Each Loan shall be made as part of a Borrowing consisting of Loans of the same Class, Currency and Type made by the applicable Lenders ratably in accordance with their respective Commitments of the applicable Class. The failure of any Lender to make any Loan required to be made by it shall not relieve any other Lender of its obligations hereunder; *provided* that the Commitments of the Lenders are several and no Lender shall be responsible for any other Lender's failure to make Loans as required.

(b) **Type of Loans.** Subject to **Section 2.11**, each Borrowing of a Class shall be constituted entirely of ABR Loans or of Term Rate Loans of such Class denominated in a single Currency as the Borrower may request in accordance herewith. Each ABR Loan and SOFR Loan shall be denominated in Dollars. Each Lender at its option may make any Term Rate Loan by causing any domestic or foreign branch or Affiliate of such Lender to make such Loan; *provided* that (i) any exercise of such option shall not affect the obligation of the Borrower to repay such Loan in accordance with the terms of this Agreement, and (ii) in exercising such option, such Lender shall use reasonable efforts to minimize any increased costs to the Borrower resulting therefrom (which obligation of the Lender shall not require it to take, or refrain from taking, actions that it determines would result in increased costs for which it will not be compensated hereunder or that it determines would be otherwise disadvantageous to it and in the event of such request for costs for which compensation is provided under this Agreement, the provisions of **Section 2.12** shall apply).

(c) **Minimum Amounts.** Each Term Rate Borrowing shall be in an aggregate amount of \$1,000,000 or a larger multiple of \$100,000, and each ABR Borrowing shall be in an aggregate amount of \$1,000,000 or a larger multiple of \$100,000; *provided* that an ABR Borrowing of a Class may be in an aggregate amount that is equal to the entire unused balance of the total Commitments of such Class. Borrowings of more than one Class, Currency or Type may be outstanding at the same time.

(d) **Limitations on Interest Periods.** Notwithstanding any other provision of this Agreement, the Borrower shall not be entitled to request (or to elect to convert to or continue as a Term Rate Borrowing) any Borrowing if the Interest Period requested therefor would end after the Maturity Date.

(e) **Treatment of Classes.** Notwithstanding anything to the contrary contained herein, with respect to each Loan designated in Dollars, the Administrative Agent shall deem the Borrower to have requested that such Loan be applied ratably to each of the Dollar Commitments and the Multicurrency Commitments, based upon the percentage of the aggregate remaining unutilized Commitments represented by the Dollar Commitments and the Multicurrency Commitments, respectively.

2.03 Requests for Borrowings.

(a) **Notice by the Borrower.** To request a Borrowing, the Borrower shall notify the Administrative Agent of such request by telephone (i) in the case of a SOFR Loan, not later than 11:00 a.m., New York City time, three U.S. Government Securities Business Days before the date of the proposed Borrowing, (ii) in the case of a Borrowing denominated in a Foreign Currency, not later than 11:00 a.m., New York City time, four Business Days before the date of the proposed Borrowing, (iii) in the case of an ABR Borrowing not in excess of \$15,000,000, not later than 11:00 a.m., New York City time, on the date of the proposed Borrowing, or (iv) in the case of an ABR Borrowing in excess of \$15,000,000, not later than 11:00 a.m., New York City time, one Business Day before the date of the proposed Borrowing. Each such telephonic Borrowing Request shall be irrevocable and shall be confirmed promptly by hand delivery or telecopy to the Administrative Agent of a written Borrowing Request in a form approved by the Administrative Agent and signed by the Borrower.

(b) **Content of Borrowing Requests.** Each telephonic and written Borrowing Request shall specify the following information in compliance with **Section 2.02**:

- (i) whether such Borrowing is to be made under the Dollar Commitments or the Multicurrency Commitments;
- (ii) the aggregate amount and Currency of the requested Borrowing;
- (iii) the date of such Borrowing, which shall be a Business Day;
- (iv) in the case of a Borrowing denominated in Dollars, whether such Borrowing is to be an ABR Borrowing or a SOFR Loan;
- (v) in the case of a Term Rate Borrowing, the Interest Period therefor, which shall be a period contemplated by the definition of the term “Interest Period” and permitted under **Section 2.02(d)**; and
- (vi) the location and number of the Borrower’s account to which funds are to be disbursed.

(c) **Notice by the Administrative Agent to the Lenders.** Promptly following receipt of a Borrowing Request in accordance with this **Section**, the Administrative Agent shall advise each applicable Lender of the details thereof and of the amounts of such Lender’s Loan to be made as part of the requested Borrowing.

(d) **Failure to Elect.** If no election as to the Class of a Borrowing denominated in Dollars is specified, then the requested Borrowing shall be deemed to be under both the Multicurrency Commitments and Dollar Commitments, provided however, that if no election as to a Class is specified but an Agreed Foreign Currency has been specified then the requested Borrowing shall be deemed to be under the Multicurrency Commitments. If no election as to the Currency of a Borrowing is specified, then the requested Borrowing shall be denominated in Dollars. If no election as to the Type of a Borrowing is specified, then the requested Borrowing shall be a SOFR Loan having an Interest Period of one month. If a Term Rate Borrowing is requested but no Interest Period is specified, (i) if the Currency specified for such Borrowing is Dollars (or if no Currency has been so specified), the requested Borrowing shall be a SOFR Loan having an Interest Period of one month’s duration, and (ii) if the Currency specified for such

Borrowing is Canadian Dollars, the Borrower shall be deemed to have selected an Interest Period of one month's duration.

2.04 Funding of Borrowings.

(a) **Funding by Lenders.** Each Lender shall make each Loan to be made by it hereunder on the proposed date thereof by wire transfer of immediately available funds by 2:00 p.m., New York City time, to the account of the Administrative Agent most recently designated by it for such purpose by notice to the Lenders. The Administrative Agent will make such Loans available to the Borrower by promptly crediting the amounts so received, in like funds, to an account of the Borrower designated by the Borrower in the applicable Borrowing Request.

(b) **Presumption by the Administrative Agent.** Unless the Administrative Agent shall have received notice from a Lender prior to the proposed date of any Borrowing that such Lender will not make available to the Administrative Agent such Lender's share of such Borrowing, the Administrative Agent may assume that such Lender has made such share available on such date in accordance with *paragraph (a)* of this *Section* and may, in reliance upon such assumption, make available to the Borrower a corresponding amount. In such event, if a Lender has not in fact made its share of the applicable Borrowing available to the Administrative Agent, then the applicable Lender and the Borrower severally agree to pay to the Administrative Agent forthwith on demand such corresponding amount with interest thereon, for each day from and including the date such amount is made available to the Borrower to but excluding the date of payment to the Administrative Agent, at (i) in the case of such Lender, the Federal Funds Effective Rate and (ii) in the case of the Borrower, the interest rate applicable to ABR Loans. If such Lender pays such amount to the Administrative Agent, then such amount shall constitute such Lender's Loan included in such Borrowing. Nothing in this *paragraph (b)* shall relieve any Lender of its obligation to fulfill its Commitments hereunder and shall be without prejudice to any claim the Borrower may have against a Lender that shall have failed to make such payment to the Administrative Agent.

2.05 Interest Elections.

(a) **Elections by the Borrower for Borrowings.** Subject to *Section 2.03(d)*, the Loans constituting each Borrowing initially shall be of the Type specified in the applicable Borrowing Request and, in the case of a Term Rate Borrowing, shall have the Interest Period specified in such Borrowing Request. Thereafter, the Borrower may elect to convert such Borrowing to a Borrowing of a different Type or to continue such Borrowing as a Borrowing of the same Type and, in the case of a Term Rate Borrowing, may elect the Interest Period therefor, all as provided in this *Section*; *provided, however* that (i) a Borrowing of a Class may only be continued or converted into a Borrowing of the same Class, (ii) a Borrowing denominated in one Currency may not be continued as, or converted to, a Borrowing in a different Currency, (iii) no Term Rate Borrowing denominated in a Foreign Currency may be continued if, after giving effect thereto, the aggregate Revolving Multicurrency Credit Exposures would exceed the aggregate Multicurrency Commitments, and (iv) a Term Rate Borrowing denominated in a Foreign Currency may not be converted to a Borrowing of a different Type. The Borrower may elect different options with respect to different portions of the affected Borrowing, in which case each such portion shall be allocated ratably among the Lenders of the respective Class holding the Loans constituting such Borrowing (except as provided under *Section 2.11(b)*), and the Loans constituting each such portion shall be considered a separate Borrowing.

(b) **Notice of Elections.** To make an election pursuant to this *Section*, the Borrower shall notify the Administrative Agent of such election by telephone by the time that a Borrowing Request would be required under *Section 2.03* if the Borrower were requesting a Borrowing of the Type resulting from such election to be made on the effective date of such election. Each such telephonic Interest Election Request shall be irrevocable and shall be confirmed promptly (but no later than the close of business on the date of such request) by hand delivery or electronic mail (or other agreed mutually agreeable electronic transmission) to the Administrative Agent of a written Interest Election Request in a form approved by the Administrative Agent and signed by the Borrower.

(c) **Content of Interest Election Requests.** Each telephonic and written Interest Election Request shall specify the following information in compliance with *Section 2.02*:

(i) the Borrowing (including the Class) to which such Interest Election Request applies and, if different options are being elected with respect to different portions thereof, the portions thereof to be allocated to each resulting Borrowing (in which case the information to be specified pursuant to *clauses (iii) and (iv)* of this *paragraph* shall be specified for each resulting Borrowing);

(ii) the effective date of the election made pursuant to such Interest Election Request, which shall be a Business Day;

(iii) whether, in the case of a Borrowing denominated in Dollars, the resulting Borrowing is to be an ABR Borrowing or a SOFR Borrowing; and

(iv) if the resulting Borrowing is a Term Rate Borrowing, the Interest Period therefor after giving effect to such election, which shall be a period contemplated by the definition of the term "Interest Period" and permitted under *Section 2.02(d)*, provided that there shall be no more than 10 separate Term Rate Borrowings outstanding at any one time.

(d) **Notice by the Administrative Agent to the Lenders.** Promptly following receipt of an Interest Election Request, the Administrative Agent shall advise each applicable Lender of the details thereof and of such Lender's portion of each resulting Borrowing.

(e) **Failure to Elect; Events of Default.** If the Borrower fails to deliver a timely and complete Interest Election Request with respect to a Term Rate Borrowing prior to the end of the Interest Period therefor, then, unless such Borrowing is repaid as provided herein, (i) if such Borrowing is denominated in Dollars, at the end of such Interest Period such Borrowing shall be converted to a Term Rate Borrowing of the same Class having an Interest Period of one month, and (ii) if such Borrowing is denominated in a Foreign Currency, the Borrower shall be deemed to have selected an Interest Period of one month's duration. Notwithstanding any contrary provision hereof, if an Event of Default has occurred and is continuing and the Administrative Agent, at the request of the Required Lenders, so notifies the Borrower, (i) any Term Rate Borrowing denominated in Dollars shall, at the end of the applicable Interest Period for such Term Rate Borrowing, be automatically converted to an ABR Borrowing and (ii) any Term Rate Borrowing denominated in a Foreign Currency shall not have an Interest Period of more than one month's duration.

2.06 Termination, Reduction or Increase of the Commitments.

(a) **Scheduled Termination.** Unless previously terminated in accordance with the terms of this Agreement, on the Commitment Termination Date the Commitments of each Class shall automatically be reduced to an amount equal to the aggregate principal amount of the Loans of all Lenders of such Class outstanding on the Commitment Termination Date and thereafter to an amount equal to the aggregate principal amount of the Loans of such Class outstanding after giving effect to each payment of principal hereunder; *provided* that, for clarity, no Lender shall have any obligation to make new Loans on or after the Commitment Termination Date, and any outstanding amounts shall be due and payable on the Maturity Date in accordance with **Section 2.07**.

(b) **Voluntary Termination or Reduction.** The Borrower may at any time terminate, or from time to time reduce, the Commitments ratably among each Class; *provided* that (i) each reduction of the Commitments pursuant to this **Section 2.06(b)** shall be in an amount that is \$5,000,000 or a larger multiple of \$100,000 in excess thereof and (ii) the Borrower shall not terminate or reduce the Commitments if, after giving effect to any concurrent prepayment of the Loans of any Class in accordance with **Section 2.08**, the total Revolving Credit Exposures of such Class would exceed the total Commitments of such Class.

(c) **Notice of Voluntary Termination or Reduction.** The Borrower shall notify the Administrative Agent of any election to terminate or reduce the Commitments under **paragraph (b)** of this **Section** at least three Business Days prior to the effective date of such termination or reduction, specifying such election and the effective date thereof. Promptly following receipt of any notice, the Administrative Agent shall advise the applicable Lenders of the contents thereof. Each notice delivered by the Borrower pursuant to this **Section** shall be irrevocable; *provided* that a notice of termination of the Commitments of a Class delivered by the Borrower may state that such notice is conditioned upon the effectiveness of other credit facilities, in which case such notice may be revoked by the Borrower (by notice to the Administrative Agent on or prior to the specified effective date) if such condition is not satisfied.

(d) **Effect of Termination or Reduction.** Any termination or reduction of the Commitments of a Class shall be permanent. Each reduction of the Commitments of a Class shall be made ratably among the Lenders of such Class in accordance with their respective Commitments.

(e) **[Reserved].**

(f) **Increase of the Commitments.**

(i) **Requests for Increase by Borrower.** The Borrower may, at any time, propose that the Commitments hereunder of a Class be increased (each such proposed increase being a “**Commitment Increase**”) by notice to the Administrative Agent specifying each existing Lender (each an “**Increasing Lender**”) and/or each additional lender (each an “**Assuming Lender**”) that shall have agreed to an additional Commitment and the date on which such increase is to be effective (the “**Commitment Increase Date**”), which shall be a Business Day at least three Business Days (or such lesser period as the Administrative Agent may reasonably agree) after delivery of such notice and 30 days prior to the Commitment Termination Date; *provided* that each Lender may determine in its sole discretion whether or not it chooses to participate in a Commitment Increase; *provided, further* that:

(A) the minimum amount of the Commitment of any Assuming Lender, and the minimum amount of the increase of the Commitment of any Increasing Lender, as part of such Commitment Increase shall be \$5,000,000 or a larger multiple of \$1,000,000 in excess thereof (or such smaller increments as may be agreed by the Administrative Agent, in its sole discretion),

(B) immediately after giving effect to such Commitment Increase, the aggregate Commitments of all of the Lenders hereunder shall not exceed \$350,000,000;

(C) each Assuming Lender shall be consented to by the Administrative Agent (which consent shall not be unreasonably withheld);

(D) no Default shall have occurred and be continuing on such Commitment Increase Date or shall result from the proposed Commitment Increase; and

(E) the representations and warranties contained in this Agreement and the other Loan Documents shall be true and correct in all material respects (other than any representation or warranty already qualified by materiality or Material Adverse Effect, which shall be true and correct in all respects) on and as of the Commitment Increase Date as if made on and as of such date (or, if any such representation or warranty is expressly stated to have been made as of a specific date, as of such specific date).

(ii) **Effectiveness of Commitment Increase by Borrower.** The Assuming Lender, if any, shall become a Lender hereunder as of such Commitment Increase Date and the Commitment of the respective Class of any Increasing Lender and such Assuming Lender shall be increased as of such Commitment Increase Date; *provided* that:

(A) the Administrative Agent shall have received on or prior to 11:00 a.m., New York City time, on such Commitment Increase Date (or on or prior to a time on an earlier date specified by the Administrative Agent) a certificate of the Managing Member or a duly authorized officer of the Borrower stating that each of the applicable conditions to such Commitment Increase set forth in the foregoing *paragraph (i)* has been satisfied; and

(B) each Assuming Lender or Increasing Lender shall have delivered to the Administrative Agent, on or prior to 11:00 a.m., New York City time on such Commitment Increase Date (or on or prior to a time on an earlier date specified by the Administrative Agent), an agreement, in form and substance satisfactory to the Borrower and the Administrative Agent, pursuant to which such Lender shall, effective as of such Commitment Increase Date, undertake a Commitment or an increase of Commitment in each case of the respective Class, duly executed by such Assuming Lender and the Borrower and acknowledged by the Administrative Agent.

Promptly following satisfaction of such conditions, the Administrative Agent shall notify the Lenders of such Class (including any Assuming Lenders) thereof and of the occurrence

of the Commitment Increase Date by facsimile transmission or electronic messaging system.

(iii) **Recordation into Register.** Upon its receipt of an agreement referred to in *clause (ii)(B)* above executed by an Assuming Lender or any Increasing Lender, together with the certificate referred to in *clause (ii)(A)* above, the Administrative Agent shall, if such agreement has been completed, (x) accept such agreement, (y) record the information contained therein in the Register and (z) give prompt notice thereof to the Borrower.

(iv) **Adjustments of Borrowings upon Effectiveness of Increase.** On the Commitment Increase Date, the Borrower shall (A) prepay the outstanding Loans (if any) of such Class in full, (B) simultaneously borrow new Loans of such Class hereunder in an amount equal to such prepayment; *provided* that with respect to *subclauses (A) and (B)*, (x) the prepayment to, and borrowing from, any existing Lender shall be effected by book entry to the extent that any portion of the amount prepaid to such Lender will be subsequently borrowed from such Lender and (y) the existing Lenders, the Increasing Lenders and the Assuming Lenders shall make and receive payments among themselves, in a manner acceptable to the Administrative Agent, so that, after giving effect thereto, the Loans of such Class are held ratably by the Lenders of such Class in accordance with the respective Commitments of such Lenders of such Class (after giving effect to such Commitment Increase) and (C) pay to the Lenders of such Class the amounts, if any, payable under *Section 2.13* as a result of any such prepayment. Notwithstanding the foregoing, unless otherwise consented in writing by the Borrower, no Commitment Increase Date shall occur on any day other than the last day of an Interest Period. Immediately prior to the effectiveness of the new Commitments on the Commitment Increase Date, the Administrative Agent shall amend *Schedule 1.01(b)* to reflect the aggregate amount of each Lender's Dollar Commitments and Multicurrency Commitments (including Increasing Lenders and Assuming Lenders). Each reference to *Schedule 1.01(b)* in this Agreement shall be to *Schedule 1.01(b)* as amended pursuant to this *Section*.

(v) **Terms of Loans Issued on the Commitment Increase Date.** For the avoidance of doubt, the terms and provisions of any new Loans issued by any Assuming Lender or Increasing Lender, and the Commitment Increase of any Assuming Lender or Increasing Lender, shall be identical to the Loans issued by, and the Commitments of, the Lenders immediately prior to the applicable Commitment Increase Date.

2.07 Repayment of Loans; Evidence of Debt.

(a) **Repayment.** Subject to, and in accordance with, the terms of this Agreement, the Borrower hereby unconditionally promises to pay to the Administrative Agent for account of the Lenders of each Class the outstanding principal amount of the Loans of such Class on the Maturity Date.

(b) **Manner of Payment.** Prior to any repayment or prepayment of any Borrowings of any Class hereunder, the Borrower shall select the Borrowing or Borrowings of such Class to be paid and shall notify the Administrative Agent by telephone (confirmed by telecopy) of such selection not later than the time set forth in *Section 2.08(e)* prior to the scheduled date of such repayment; *provided* that each repayment of Borrowings of a Class shall be applied to repay any outstanding ABR Borrowings of such Class before any other Borrowings of such Class. If the Borrower fails to make a timely selection of the Borrowing or Borrowings to be repaid or prepaid,

such payment shall be applied, first, to pay any outstanding ABR Borrowings of such Class and, second, to other Borrowings of such Class in the order of the remaining duration of their respective Interest Periods (the Borrowing with the shortest remaining Interest Period to be repaid first). Each payment of a Borrowing shall be applied ratably to the Loans included in such Borrowing (except as otherwise provided in **Section 2.11(b)**).

(c) **Maintenance of Records by Lenders.** Each Lender shall maintain in accordance with its usual practice records evidencing the indebtedness of the Borrower to such Lender resulting from each Loan made by such Lender, including the amounts and Currency of principal and interest payable and paid to such Lender from time to time hereunder.

(d) **Maintenance of Records by the Administrative Agent.** The Administrative Agent shall maintain records in which it shall record (i) the amount and Currency of each Loan made hereunder, the Class and Type thereof and each Interest Period therefor, (ii) the amount and Currency of any principal or interest due and payable or to become due and payable from the Borrower to each Lender of such Class hereunder and (iii) the amount and Currency of any sum received by the Administrative Agent hereunder for account of the Lenders and each Lender's share thereof.

(e) **Effect of Entries.** The entries made in the records maintained pursuant to *paragraph (c) or (d)* of this **Section** shall be *prima facie* evidence, absent manifest error, of the existence and amounts of the obligations recorded therein; *provided* that the failure of any Lender or the Administrative Agent to maintain such records or any error therein shall not in any manner affect the obligation of the Borrower to repay the Loans in accordance with the terms of this Agreement.

(f) **Promissory Notes.** Any Lender may request that Loans of any Class made by it be evidenced by a promissory note; in such event, the Borrower shall prepare, execute and deliver to such Lender a promissory note payable to such Lender (or, if requested by such Lender, to such Lender and its permitted registered assigns) and in a form attached hereto as **Exhibit C**. Thereafter, the Loans evidenced by such promissory note and interest thereon shall at all times (including after assignment pursuant to **Section 9.04**) be represented by one or more promissory notes in such form payable to the payee named therein (or, if such promissory note is a registered note, to such payee and its permitted registered assigns).

2.08 Prepayment of Loans.

(a) **Optional Prepayments.** The Borrower shall have the right at any time and from time to time to prepay any Borrowing in whole or in part, without premium or fee (but subject to **Section 2.13**), subject to the requirements of this **Section**. Each prepayment in part under this **Section 2.08(a)** shall be in a minimum amount of \$1,000,000 or a larger multiple of \$100,000.

(b) **Mandatory Prepayments due to Changes in Exchange Rates.**

(i) **Determination of Amount Outstanding.** On each Revaluation Date, the Administrative Agent shall determine the aggregate Revolving Multicurrency Credit Exposure. For the purpose of this determination, the outstanding principal amount of any Loan that is denominated in any Foreign Currency shall be deemed to be the Dollar Equivalent of the amount in the Foreign Currency of such Loan, determined as of such Revaluation Date. Upon making such determination, the Administrative Agent shall promptly notify the Multicurrency Lenders and the Borrower thereof.

(ii) **Prepayment.** If on the date of such determination the aggregate Revolving Multicurrency Credit Exposure exceeds 105% of the aggregate amount of the Multicurrency Commitments as then in effect, the Borrower shall promptly prepay the Multicurrency Loans in such amounts as shall be necessary so that after giving effect thereto the aggregate Revolving Multicurrency Credit Exposure does not exceed the Multicurrency Commitments.

(c) **Mandatory Prepayments due to Borrowing Base Deficiency.** In the event that at any time any Borrowing Base Deficiency shall exist (including, without limitation, as a result of an Exclusion Event), within five Business Days the Borrower shall prepay the Loans so that the Borrowing Base Deficiency is cured, provided that if the Borrower shall present to the Administrative Agent (i) within 1 Business Day a Capital Call Notice in an amount sufficient to remedy such Borrowing Base Deficiency then such prepayment or reduction shall be effected within 12 Business Days of the issuance of such Capital Call Notice; provided that Investors shall have funded Capital Contributions in an amount sufficient to remedy such Borrowing Base Deficiency within 10 Business Days of the issuance of such Capital Call Notice, or (ii) if the remaining Unfunded Capital Commitments are insufficient to remedy such Borrowing Base Deficiency, a reasonably feasible plan that is reasonably acceptable to the Administrative Agent that will enable any such Borrowing Base Deficiency to be cured within 30 Business Days of the occurrence of such Borrowing Base Deficiency (which 30-Business Day period shall include the five Business Days permitted for delivery of such plan), then such prepayment or reduction shall be effected in accordance with such plan (subject, for the avoidance of doubt, to the limitations set forth above in this **Section 2.08(c)**). Notwithstanding the foregoing, the Borrower shall pay interest in accordance with **Section 2.10(c)** for so long as a Borrowing Base Deficiency exists during such 30-Business Day period. For clarity, in the event that the Borrowing Base Deficiency is not cured prior to the end of such five Business Day period (or, if applicable, such 10- or 30-Business Day period), it shall constitute an Event of Default under **Section 7.01(a)**.

(d) **Mandatory Prepayments due to Certain Events Following Availability Period.** During the period commencing on the date immediately following the Commitment Termination Date and ending on the Maturity Date, subject to **Section 2.08(e)** below:

(i) **Initial Prepayment.** On the first day after the Commitment Termination Date, all Cash and Cash Equivalents of the Borrower and any of its Subsidiaries as of such date in excess of \$5,000,000 shall be used to prepay the Loans (and the Commitments shall be permanently reduced by such amount).

(ii) **Asset Sales.** In the event that any Obligor shall receive any Net Asset Sale Proceeds, the Borrower shall, no later than the third Business Day following the receipt of such Net Asset Sale Proceeds, prepay the Loans in an amount equal to such Net Asset Sale Proceeds (and the Commitments shall be permanently reduced by such amount); *provided*, that if the Loans to be prepaid are Term Rate Loans, the Borrower may defer such prepayment (and permanent Commitment reduction) until the last day of the Interest Period applicable to such Loans, so long as the Borrower deposits an amount equal to such Net Asset Sale Proceeds, no later than the third Business Day following the receipt of such Net Asset Sale Proceeds, into a segregated collateral account in the name and under the dominion and control of the Administrative Agent pending application of such amount to the prepayment of the Loans (and permanent reduction of the Commitments) on the last day of such Interest Period.

(iii) **Extraordinary Receipts.** In the event that Borrower receives any Extraordinary Receipts, Borrower will, no later than the third Business Day following the receipt of such excess Extraordinary Receipts, prepay the Loans in an amount equal to such excess Extraordinary Receipts (and the Commitments of all Lenders will be permanently reduced by such amount).

(iv) **Returns of Capital.** In the event that any Obligor shall receive any Return of Capital, the Borrower shall, no later than the third Business Day following the receipt of such Return of Capital, prepay the Loans in an amount equal to 100% of such Return of Capital (and the Commitments shall be permanently reduced by such amount); *provided*, that if the Loans to be prepaid are Term Rate Loans, the Borrower may defer such prepayment (and permanent Commitment reduction) until the last day of the Interest Period applicable to such Loans, so long as the Borrower deposits an amount equal to 100% of such Return of Capital, no later than the third Business Day following the receipt of such Return of Capital, into a segregated collateral account in the name and under the dominion and control of the Administrative Agent pending application of such amount to the prepayment of the Loans (and permanent reduction of the Commitments) on the last day of such Interest Period.

(v) **Equity Issuances.** In the event that the Borrower shall receive any Cash proceeds from the issuance of Equity Interests of the Borrower (other than in connection with (A) completing Portfolio Investments (including satisfying the Borrower's capital contribution or other obligations with respect to Portfolio Investments) committed to prior to the end of the Investment Period, (B) funding follow-on or protective investments and (C) paying partnership obligations or expenses), the Borrower shall, no later than the third Business Day following the receipt of such Cash proceeds, prepay the Loans in an amount equal to 100% of such Cash proceeds, net of underwriting discounts and commissions or other similar payments and other costs, fees, premiums and expenses directly associated therewith, including, without limitation, reasonable legal fees and expenses (and the Commitments shall be permanently reduced by such amount).

Notwithstanding the foregoing, if, in connection with any of the events specified in this **Section 2.08(d)**, the Borrower receives any proceeds or Return of Capital in an Agreed Foreign Currency, the Borrower shall be permitted to pay just the then outstanding Loans denominated in such Agreed Foreign Currency (applied ratably among just the Multicurrency Lenders); *provided* that any such proceeds or Return of Capital remaining after the Loans denominated in such Agreed Foreign Currency have been paid in full shall be converted to Dollars and paid ratably among the Dollar Lenders and the Multicurrency Lenders in accordance with **paragraph (e)** below.

(e) **Notices, Etc.** The Borrower shall notify the Administrative Agent by e-mail or other writing, or by telephone (confirmed by e-mail or other writing), of any prepayment hereunder (i) in the case of prepayment of a Term Rate Borrowing denominated in Dollars under **Section 2.08(a)**, not later than 11:00 a.m., New York City time, three Business Days before the date of prepayment, (ii) in the case of prepayment of a Term Rate Borrowing denominated in Foreign Currency under **Section 2.08(a)**, not later than 11:00 a.m., New York City time, four Business Days before the date of prepayment, (iii) in the case of prepayment of an ABR Borrowing under **Section 2.08(a)**, not later than 11:00 a.m., New York City time, one Business Day before the date of prepayment. Each such notice shall be irrevocable and shall specify the prepayment date, the principal amount of each Borrowing or portion thereof to be prepaid and, in the case of a mandatory prepayment, a reasonably detailed calculation of the amount of such prepayment; *provided*, that, if a notice of prepayment is given in connection with a conditional notice of

termination of the Commitments as contemplated by **Section 2.06**, then such notice of prepayment may be revoked if such notice of termination is revoked in accordance with **Section 2.06** and any such notices given in connection with any of the events specified in **Section 2.08(d)** may be conditioned upon (x) the consummation of the issuance of Equity Interests or (y) the receipt of net Cash proceeds from Extraordinary Receipts or Returns of Capital. Promptly following receipt of any such notice relating to a Borrowing, the Administrative Agent shall advise the Lenders of the contents thereof. Subject to **paragraph (b)** above and to the *proviso* of **Section 2.15(c)**, each prepayment in Dollars shall be applied ratably (based on the outstanding principal amounts of such indebtedness) between the Dollar Lenders and the Multicurrency Lenders based on the then outstanding Loans denominated in Dollars and each prepayment in an Agreed Foreign Currency (including as a result of the Borrower's receipt of proceeds from a prepayment event in such Agreed Foreign Currency) shall be applied ratably among the Multicurrency Lenders. In the event the Borrower is required to make any concurrent prepayments under both **paragraph (b)** and also another paragraph of this **Section 2.08**, any such prepayments shall be applied toward a prepayment pursuant to **paragraph (b)** before any prepayment pursuant to any other paragraph of this **Section 2.08**. Prepayments shall be accompanied by accrued interest to the extent required by **Section 2.10** and shall be made in the manner specified in **Section 2.07(b)**.

2.09 Fees.

(a) **Commitment Fee.** The Borrower agrees to pay to the Administrative Agent for account of each Lender a commitment fee, which shall accrue at the Applicable Commitment Fee Rate on the unused amount of the Commitment of such Lender, if any, on each day during the period from and including the Effective Date to the earlier of the date the Commitments terminate and the Commitment Termination Date. Accrued commitment fees shall be payable within one Business Day after each Quarterly Date and on the earlier of the date the Commitments terminate and the Commitment Termination Date, commencing on the first such date to occur after the Effective Date. All commitment fees shall be computed on the basis of a year of 360 days and shall be payable for the actual number of days elapsed (including the first day but excluding the last day). For purposes of computing commitment fees, the Commitments shall be deemed to be used to the extent of the outstanding Loans of all Lenders.

(b) **Administrative Agent Fees.** The Borrower agrees to pay to the Administrative Agent, for its own account, fees payable in the amounts and at the times separately agreed upon between the Borrower and the Administrative Agent.

(c) **Fees, Expenses and Interest.** The Borrower shall have paid in full to the Administrative Agent and the Lenders all fees, expenses and accrued but unpaid interest related to this Agreement owing on the Effective Date, including any up-front fee due to any Lender on the Effective Date (provided that such fees, expenses and interest may be paid, at the Administrative Agent's discretion, out of the Loans made on the Effective Date). Fees paid shall not be refundable under any circumstances absent manifest error. Any fees representing the Borrower's reimbursement obligations of expenses, to the extent requirements of invoice not otherwise specified in this Agreement, shall be due (subject to the other terms and conditions contained herein) within ten Business Days of the date that the Borrower receives from the Administrative Agent a reasonably detailed invoice for such reimbursement obligations.

2.10 Interest.

(a) **ABR Loans.** The Loans constituting each ABR Borrowing shall bear interest at a rate per annum equal to the Alternate Base Rate plus the Applicable Margin.

(b) **Term Rate Loans.** Each SOFR Loan shall bear interest at a rate per annum equal to Adjusted Term SOFR for the related Interest Period for such Borrowing plus the Applicable Margin. Each Borrowing denominated in Canadian Dollars shall bear interest at a rate per annum equal to the CDOR Screen Rate for the related Interest Period for such Borrowing plus the Applicable Margin.

(c) **Default Interest.** Notwithstanding the foregoing, if any Event of Default described in *Sections 7.01(a), 7.01(b), 7.01(d)* (only with respect to *Section 6.07*), *Section 7.01(h)* or *Section 7.01(i)* has occurred and is continuing, or on demand of the Administrative Agent or the Required Lenders if any Event of Default described in any other *paragraph* of *Section 7.01* has occurred and is continuing, or if the Covered Debt Amount exceeds the Borrowing Base during the 30-Business Day period referred to in *Section 2.08(c)*, the interest applicable to Loans shall accrue, and any fee or other amount payable by the Borrower hereunder shall bear interest, after as well as before judgment, at a rate per annum equal to (i) in the case of principal of any Loan, 2% *plus* the rate otherwise applicable to such Loan as provided above, or (ii) in the case of any fee or other amount, 2% *plus* the rate applicable to ABR Loans as provided in *paragraph (a)* of this *Section*.

(d) **Payment of Interest.** Accrued interest on each Loan shall be payable in arrears on each Interest Payment Date for such Loan in the Currency in which such Loan is denominated and upon termination of the Commitments; *provided* that (i) interest accrued pursuant to *paragraph (c)* of this *Section* shall be payable on demand, (ii) in the event of any repayment or prepayment of any Loan (other than a prepayment of an ABR Loan prior to the Maturity Date), accrued interest on the principal amount repaid or prepaid shall be payable on the date of such repayment or prepayment and (iii) in the event of any conversion of any Term Rate Borrowing prior to the end of the Interest Period therefor, accrued interest on such Borrowing shall be payable on the effective date of such conversion.

(e) **Computation.** All interest hereunder shall be computed on the basis of a year of 360 days, except that interest computed (i) by reference to the Alternate Base Rate at times when the Alternate Base Rate is not determined by reference to the Adjusted Term SOFR or Daily Compounded SOFR and (ii) on Multicurrency Loans denominated in Agreed Foreign Currency shall be computed on the basis of a year of 365 days (or 366 days in a leap year), and in each case shall be payable for the actual number of days elapsed (including the first day but excluding the last day). The applicable Alternate Base Rate, CDOR Screen Rate or Adjusted Term SOFR shall be determined by the Administrative Agent and such determination shall be conclusive absent manifest error.

2.11 **Inability to Determine Rates; Benchmark Replacement.**

(a) If (x) prior to the commencement of the Interest Period for any Term Rate Loan or (y) at any time for any Daily Compounded SOFR Loan:

(i) the Administrative Agent determines (which determination shall be conclusive and binding absent manifest error) that adequate and reasonable means do not exist for ascertaining the Benchmark for such Loan or (if applicable) such Interest Period; provided that no Benchmark Transition Event shall have occurred at such time; or

(ii) the Administrative Agent is advised by the Required Lenders that the Benchmark for such Loan and (if applicable) such Interest Period will not adequately and fairly reflect the cost to such Lenders of making or maintaining their respective Loans included in such Borrowing and, if applicable, such Interest Period;

then the Administrative Agent shall give notice thereof to the Borrower and the Lenders by telephone, telecopy or e-mail as promptly as practicable thereafter and, until the Administrative Agent notifies the Borrower and the Lenders that the circumstances giving rise to such notice no longer exist, (i) any obligation of such Lender (A) to make or continue Term Rate Loans or (B) to convert ABR Loans to Term Rate Loans shall be suspended, (ii) any Interest Election Request that requests the conversion of any Loan to, or the continuation of any Loan as, a Term Rate Loan, shall be ineffective and, in each case, unless prepaid, such Loan shall be continued as, or converted to, an ABR Loan, and (iii) any Loan Notice that requests a Term Rate Loan shall be made as an ABR Loan, in each case, with respect to the foregoing clauses (i), (ii) and (iii), to the extent of the affected Benchmarks, Interest Periods or Currencies. Furthermore, if any Term Rate Loan or SOFR Loan is outstanding on the date of the Borrower's receipt of the notice from the Administrative Agent referred to in this **Section 2.11(a)** with respect to the Benchmark, Interest Period or Currency applicable to such Loan, then (I) in the case of a Term Rate Loan, on the last day of the Interest Period applicable to such Loan and (II) in the case of a Daily Compounded SOFR Loan, immediately, such Loan shall be converted by the Administrative Agent to, and shall constitute, an ABR Loan on such day. If the Administrative Agent determines (which determination shall be conclusive and binding absent manifest error) that Daily Compounded SOFR or Adjusted Term SOFR cannot be determined pursuant to the applicable definition thereof, the Alternative Base Rate shall be determined by the Administrative Agent without reference to **clause (c)** of the definition of "Alternative Base Rate" until the Administrative Agent revokes such determination. Upon any such prepayment or conversion, the Borrower shall also pay accrued interest on the amount so prepaid or converted, as applicable, together with any additional amounts required pursuant to **Section 2.14**.

(b) Notwithstanding anything to the contrary herein or in any other Loan Document:

(i) On the earlier of (x) the occurrence of a Benchmark Transition Event and (y) an Early Opt-in Election, the Benchmark Replacement will replace the then-current Benchmark for all purposes hereunder and under any other Loan Document in respect of any Benchmark setting at or after 5:00 p.m. (New York City Time) on the fifth (5th) Business Day after the date notice of such Benchmark Replacement is provided to the Lenders without any amendment to, or further action or consent of any other party to, this Agreement or any other Loan Document so long as the Administrative Agent has not received, by such time, written notice of objection to such Benchmark Replacement from Lenders comprising the Required Lenders.

(ii) At any time that the administrator of the then -current Benchmark has permanently or indefinitely ceased to provide such Benchmark or such Benchmark has been announced by the regulatory supervisor for the administrator of such Benchmark pursuant to public statement or publication of information to be no longer representative of the underlying market and economic reality that such Benchmark is intended to measure and that representativeness will not be restored, the Borrower may revoke any request for a borrowing of, conversion to or continuation of Loans to be made, converted or continued that would bear interest by reference to such Benchmark until the Borrower's receipt of notice from the Administrative Agent that a Benchmark Replacement has replaced such Benchmark, and, failing that, the Borrower will be deemed to have converted any request for an affected Term Rate Loan into a request for a Borrowing of or conversion to ABR Loans. During the period referenced in the foregoing sentence, (a) **clause (c)** of the definition of "Alternative Base Rate" will not be used in any determination of the Alternative Base Rate and (b) any outstanding affected Term Rate Loan shall, on the last day of the Interest Period applicable to such Loan, and any outstanding affected Daily Compounded SOFR Loan shall, immediately, at the Borrower's election prior to such day:

(1) be prepaid by the Borrower on such day or (2) be converted by the Administrative Agent to, and shall constitute, an ABR Loan on such date.

(iii) In connection with the use, implementation and administration of a Benchmark Replacement (or, with respect to any Benchmark Replacement of Adjusted Term SOFR or Daily Compounded SOFR, at any time), the Administrative Agent will have the right to make Benchmark Replacement Conforming Changes from time to time and, notwithstanding anything to the contrary herein or in any other Loan Document, any amendments implementing such Benchmark Replacement Conforming Changes will become effective without any further action or consent of any other party to this Agreement or any other Loan Document.

(iv) The Administrative Agent will promptly notify the Borrower and the Lenders of (w) any occurrence of a Benchmark Transition Event, or an Early Opt-In Election, as applicable, (x) the implementation of any Benchmark Replacement, (y) the removal or reinstatement of any tenor of a Benchmark pursuant to **clause (v)** below and (z) the effectiveness of any Benchmark Replacement Conforming Changes. Any determination, decision or election that may be made by the Administrative Agent or, if applicable, any Lender (or group of Lenders) pursuant to this **Section 2.11(b)**, including any determination with respect to Benchmark Replacement Conforming Changes, a tenor, rate or adjustment or of the occurrence or nonoccurrence of an event, circumstance or date and any decision to take or refrain from taking any action, will be conclusive and binding absent manifest error and may be made in its or their sole discretion and without consent from any other party to this Agreement or any other Loan Document, except, in each case, as expressly required pursuant to this **Section 2.11(b)**.

(v) At any time (including in connection with the implementation of a Benchmark Replacement), (A) if the then-current Benchmark is a term rate (including Adjusted Term SOFR) then the Administrative Agent may remove any tenor of such Benchmark that is unavailable, nonrepresentative, non-compliant or non-aligned for Benchmark (including Benchmark Replacement) settings and (B) the Administrative Agent may reinstate any such previously removed tenor for such Benchmark (including Benchmark Replacement) settings.

(c) **Illegality.** If any Lender determines that any law has made it unlawful, or that any Governmental Authority has asserted that it is unlawful for any Lender to make, maintain or fund Loans whose interest is determined by reference to any Benchmark, or to determine or charge interest rates based upon any Benchmark, or any Governmental Authority has imposed material restrictions on the authority of such Lender to purchase or sell, or to take deposits of, Dollars or any Agreed Foreign Currency in any relevant market, then, on notice thereof by such Lender to Borrower and the Administrative Agent, (i) any obligation of such Lender (x) to make Term Rate Loans or Loan denominated in an Agreed Foreign Currency, (y) to continue Term Rate Borrowings or Borrowings denominated in an Agreed Foreign Currency, or (z) to convert ABR Loans to Term Rate Loans shall be suspended, and (ii) if such notice asserts the illegality of such Lender making or maintaining ABR Loans the interest rate on which is determined by reference to the Daily Compounded SOFR or Adjusted Term SOFR component of the Alternative Base Rate, the interest rate on which ABR Loans of such Lender shall, if necessary to avoid such illegality, be determined by the Administrative Agent without reference to **clause (c)** of the definition of “Alternative Base Rate”, in each case until such Lender revokes such notice and advises the Administrative Agent and Borrower that the circumstances giving rise to such determination no longer exist. Upon receipt of such notice, (x) all Term Rate Loans or Loans denominated in an

Agreed Foreign Currency of such Lender shall automatically convert to ABR Loans (the interest rate on which ABR Loans of such Lender shall, if necessary to avoid such illegality, be determined by the Administrative Agent without reference to **clause (c)** of the definition of “Alternative Base Rate”), either on the last day of the Interest Period therefor, if such Loans are Term Rate Loans and the Lender may lawfully continue to maintain such Loans to such day, or on the immediately succeeding Business Day, if such Loans are Daily Compounded SOFR Loans or such Lender may not lawfully continue to maintain such Loans (in which event the Borrower shall not be required to pay any yield maintenance, breakage or similar fees) and (y) if such notice asserts the illegality of such Lender determining or charging interest rates based upon Daily Compounded SOFR or Adjusted Term SOFR, the Administrative Agent shall during the period of such suspension compute the Alternative Base Rate applicable to such Lender without reference to **clause (c)** of the definition of “Alternative Base Rate” until the Administrative Agent is advised in writing by such Lender that it is no longer illegal for such Lender to determine or charge interest rates based upon Daily Compounded SOFR or Adjusted Term SOFR. Upon any such conversion, the Borrower shall also pay accrued interest on the amount so converted, together with any additional amounts required pursuant to **Section 2.14**.

2.12 Increased Costs.

(a) Increased Costs Generally. If any Change in Law shall:

(i) impose, modify or deem applicable any reserve, special deposit, compulsory loan, insurance charge, or similar requirement against assets of, deposits with or for account of, or credit extended by, any Lender (except any such reserve requirement reflected in the definition of any Benchmark);

(ii) subject any Lender to any Taxes (other than (A) Covered Taxes, (B) Taxes described in **clauses (b), (c) or (d)** of the definition of Excluded Taxes and (C) Connection Income Taxes) on its loans, loan principal, letters of credit commitments, or other obligations, or its deposits, reserves, other liabilities or capital attributable thereto; or

(iii) impose on any Lender or any applicable interbank market any other condition, cost or expense (other than Taxes) affecting this Agreement or Loans made by such Lender or participation therein;

and the result of any of the foregoing shall be to increase the cost to such Lenders of making or maintaining any Loan (or of maintaining its obligation to make any such Loan) or to reduce the amount of any sum received or receivable by such Lender hereunder (whether of principal, interest or otherwise), then the Borrower will pay to such Lender, in Dollars, such additional amount or amounts as will compensate such Lender for such additional costs incurred or reduction suffered.

(b) Capital Requirements. If any Lender determines that any Change in Law regarding capital or liquidity requirements has or would have the effect of reducing the rate of return on such Lender’s capital or on the capital of such Lender’s holding company, if any (or would have the effect of reducing the liquidity of such Lender or such Lender’s holding company, if any), as a consequence of this Agreement or the Loans made by such Lender, to a level below that which such Lender or such Lender’s holding company could have achieved but for such Change in Law (taking into consideration such Lender’s policies and the policies of such Lender’s holding company with respect to capital adequacy or liquidity position), by an amount deemed to be material by such Lender, then from time to time the Borrower will pay to such Lender, in Dollars,

such additional amount or amounts as will compensate such Lender or such Lender's holding company for any such reduction suffered.

(c) **Certificates from Lenders.** A certificate of a Lender setting forth the amount or amounts, in Dollars, necessary to compensate such Lender or its holding company, as the case may be, as specified in *paragraph (a)* or *(b)* of this **Section** shall be promptly delivered to the Borrower and shall be conclusive absent manifest error. The Borrower shall pay such Lender the amount shown as due on any such certificate within 10 days after receipt thereof.

(d) **Delay in Requests.** Failure or delay on the part of any Lender to demand compensation pursuant to this **Section** shall not constitute a waiver of such Lender's right to demand such compensation; *provided* that no Obligor shall be required to compensate a Lender pursuant to the foregoing provisions of this **Section** for any increased costs incurred or reductions suffered more than six months prior to the date that such Lender notifies the Borrower in writing of any such Change in Law giving rise to such increased costs or reductions.

2.13 Break Funding Payments; Foreign Currency Losses.

(a) In the event of (i) the payment of any principal of any Term Rate Loan other than on the last day of an Interest Period therefor (including as a result of an Event of Default), (ii) the conversion of any Term Rate Loan other than on the last day of an Interest Period therefor, (iii) the failure to borrow, convert, continue or prepay any Term Rate Loan on the date specified in any notice delivered pursuant hereto (regardless of whether such notice is permitted to be revocable under **Section 2.08(e)** and is revoked in accordance herewith), (iv) the assignment as a result of a request by the Borrower pursuant to **Section 2.17(b)** of any Term Rate Loan other than on the last day of an Interest Period therefor or (v) the conversion of any Term Rate Loan other than on the last day of an Interest Period therefor as a result of the occurrence of a CAM Exchange or otherwise, including without limitation in connection with **Section 2.15**, then, in any such event, the Borrower shall compensate each Lender for any loss, cost and expense (excluding, for clarity, applicable margin and lost profits) actually incurred by such Lender in respect thereof.

Payments under this **Section** shall be made upon written request of a Lender delivered to the Borrower not later than five Business Days following the payment, conversion, or failure to borrow, convert, continue or prepay that gives rise to a claim under this **Section** accompanied by a written certificate of such Lender setting forth in reasonable detail the amount or amounts that such Lender is entitled to receive pursuant to this **Section**, which certificate shall be conclusive absent manifest error. The Borrower shall pay such Lender the amount shown as due on any such certificate within 10 days after receipt thereof.

(b) In the event that any Loan not denominated in Dollars is converted to, or redenominated in Dollars (including, without limitation, pursuant to **Section 2.15**, a CAM Exchange or otherwise), then in any such event, the Borrower shall compensate each Lender for the loss, cost or expense attributable to such event.

2.14 Taxes.

(a) **Payments Free of Taxes.** Any and all payments by or on account of any obligation of the Borrower hereunder or under any other Loan Document shall be made free and clear of and without deduction for any Taxes, unless otherwise required by applicable law; *provided* that if the Borrower (or other applicable withholding agent) shall be required by applicable law (as determined by Borrower or other applicable withholding agent in good faith) to deduct any Taxes

from such payments, then (i) the Borrower (or other applicable withholding agent) shall make such deductions, (ii) the Borrower (or other applicable withholding agent) shall pay the full amount deducted to the relevant Governmental Authority in accordance with applicable law and (iii) if such Tax is a Covered Tax, the sum payable shall be increased as necessary so that after making all required deductions (including deductions applicable to additional sums payable under this **Section 2.14**) the Administrative Agent or Lender receives an amount equal to the sum it would have received had no such deductions been made.

(b) **Payment of Other Taxes by the Borrower.** In addition, the Borrower shall pay any Other Taxes to the relevant Governmental Authority in accordance with applicable law.

(c) **Indemnification by the Borrower.** The Borrower shall indemnify the Administrative Agent and each Lender for and, within 10 Business Days after written demand therefor, pay the full amount of any Covered Taxes (including Covered Taxes imposed or asserted on or attributable to amounts payable under this **Section 2.14(c)**) payable or paid by the Administrative Agent or such Lender, as the case may be, and reasonable expenses arising therefrom or with respect thereto, whether or not such Covered Taxes were correctly or legally imposed or asserted by the relevant Governmental Authority. A certificate as to the amount of such payment or liability delivered to the Borrower by a Lender or by the Administrative Agent on its own behalf or on behalf of a Lender, shall be conclusive absent manifest error.

(d) **Indemnification by the Lenders.** Each Lender shall severally indemnify the Administrative Agent, within 10 Business Days after written demand therefor, for (i) any Covered Taxes or Other Taxes attributable to such Lender (but only to the extent that the Borrower has not already indemnified the Administrative Agent for such Covered Taxes or Other Taxes and without limiting the obligation of the Borrower to do so), (ii) any Taxes attributable to such Lender's failure to comply with the provisions of **Section 9.04(f)** relating to the maintenance of a Participant Register and (iii) any Excluded Taxes attributable to such Lender, in each case, that are payable or paid by the Administrative Agent in connection with any Loan Document, and any reasonable expenses arising therefrom or with respect thereto, whether or not such Taxes were correct or legally imposed or asserted by the relevant Governmental Authority. A certificate as to the amount of such payment or liability delivered to any Lender by the Administrative Agent shall be conclusive absent manifest error. Each Lender hereby authorizes the Administrative Agent to set off and apply any and all amounts at any time owing to such Lender under any Loan Document or otherwise payable by the Administrative Agent to the Lender from any other source against any amount due to the Administrative Agent under this *paragraph (d)*.

(e) **Evidence of Payments.** As soon as practicable after any payment of Covered Taxes or Other Taxes by the Borrower to a Governmental Authority pursuant to this **Section 2.14**, the Borrower shall deliver to the Administrative Agent the original or a certified copy of a receipt issued by such Governmental Authority evidencing such payment, a copy of the return reporting such payment or other evidence of such payment reasonably satisfactory to the Administrative Agent.

(f) **Status of Lenders and Administrative Agent.**

(i) Any Lender that is entitled to an exemption from or reduction of withholding tax under the law of the jurisdiction in which the Borrower is located, or any treaty to which such jurisdiction is a party, with respect to payments under this Agreement shall deliver to the Borrower (with a copy to the Administrative Agent), at the time or times

prescribed by applicable law or reasonably requested by the Borrower, such properly completed and executed documentation prescribed by applicable law as will permit such payments to be made without withholding or at a reduced rate. In addition, any Lender, if requested by the Borrower or the Administrative Agent, shall deliver such other documentation prescribed by applicable law or reasonably requested by the Borrower or the Administrative Agent as will enable the Borrower or the Administrative Agent to determine whether or not such Lender is subject to backup withholding or information reporting requirements. Notwithstanding anything to the contrary in the preceding two sentences, the completion, execution and submission of such documentation (other than such documentation set forth in **Section 2.14(f)(ii)** and **Section 2.14(h)** below) shall not be required if in the Lender's reasonable judgment such completion, execution or submission would subject such Lender to any material unreimbursed cost or expense or would materially prejudice the legal or commercial position of such Lender.

(ii) Without limiting the generality of the foregoing, (x) any Lender that is a “United States person” as defined in *Section 7701(a)(30)* of the Code shall deliver to the Borrower and the Administrative Agent on or prior to the date on which such Lender becomes a Lender under this Agreement (and from time to time thereafter upon the request of the Borrower or the Administrative Agent), executed copies of Internal Revenue Service Form W-9 certifying that such Lender is exempt from U.S. federal withholding Tax; and (y) each Foreign Lender shall deliver to the Borrower and the Administrative Agent (in such number of copies as shall be requested by the recipient) on or prior to the date on which such Foreign Lender becomes a Lender under this Agreement (and from time to time thereafter upon the reasonable request of the Borrower or the Administrative Agent, but, in any event, only if such Foreign Lender is legally entitled to do so), whichever of the following is applicable:

(A) In the case of a Foreign Lender claiming benefits of an income tax treaty to which the United States is a party (1) executed copies of Internal Revenue Service Form W-8BEN, Internal Revenue Service Form W-8BEN-E, or any successor form, establishing an exemption from, or reduction of, U.S. federal withholding Tax pursuant to the “interest” article of such income tax treaty and (2) with respect to any other applicable payments under any Loan Document, Internal Revenue Service Form W-8BEN, Internal Revenue Service Form W-8BEN-E, or any successor form establishing an exemption from, or reduction of, U.S. federal withholding Tax pursuant to the “business profits” or “other income” article of such income tax treaty,

(B) a duly completed executed copy of Internal Revenue Service Form W-8ECI or any successor form certifying that the income receivable pursuant to this Agreement is effectively connected with the conduct of a trade or business in the United States,

(C) in the case of a Foreign Lender claiming the benefits of the exemption for portfolio interest under *Section 881(c)* of the Code, (1) a certificate, signed under penalties of perjury, to the effect that such Foreign Lender is not (x) a “bank” within the meaning of *Section 881(c)(3)(A)* of the Code, (y) a “10 percent shareholder” of the Borrower within the meaning of *Section 881(c)(3)(B)* of the Code, or (z) a “controlled foreign corporation” described in *Section 881(c)(3)(C)* of the Code and (2) a duly completed executed copy of Internal Revenue Service Form W-8BEN or Internal Revenue Service

Form W-8BEN-E (or any successor form) certifying that the Foreign Lender is not a United States Person, or

(D) any other form as prescribed by applicable law as a basis for claiming exemption from or a reduction in United States federal withholding tax duly completed together with such supplementary documentation as may be prescribed by applicable law to permit the Borrower or other withholding agent to determine the withholding or deduction required to be made, including, to the extent a Foreign Lender is not the beneficial owner, duly completed executed copies of Internal Revenue Service Form W-8IMY accompanied by Internal Revenue Service Form W-8ECI, Internal Revenue Service Form W-8BEN or Internal Revenue Service Form W-8BEN-E, as applicable, a certificate substantially similar to the certificate described in **Section 2.14(f)(ii)(C)(I)** above, Internal Revenue Service Form W-9 and/or other certification documents from each beneficial owner, as applicable.

In addition, each Lender shall deliver such forms promptly upon the expiration or invalidity of any form previously delivered by such Lender, provided it is legally able to do so at the time. Each Lender shall promptly notify the Borrower and the Administrative Agent at any time that it becomes aware that it no longer satisfies the legal requirements to provide any previously delivered form or certificate to the Borrower (or any other form of certification adopted by the U.S. or other taxing authorities for such purpose).

(g) The Administrative Agent shall assume primary withholding responsibility under Chapters 3 and 4 of the Code and primary Form 1099 and Form 1042-S reporting and backup withholding responsibility with respect to payments it receives on account of any Lender. If the Administrative Agent is a U.S. Person, then it shall, on or prior to the Effective Date (or, in the case of a successor Administrative Agent, on or before the date on which it becomes Administrative Agent, co-agent or sub-agent hereunder), provide the Borrower with a properly completed and duly executed copy of Internal Revenue Service Form W-9 confirming that the Administrative Agent is exempt from U.S. federal backup withholding. If the Administrative Agent is not a U.S. Person, then it shall, on or prior to the Effective Date (or, in the case of a successor Administrative Agent, on or before the date on which it becomes the Administrative Agent, co-agent or sub-agent hereunder), provide the Borrower with, (x) with respect to payments made to the Administrative Agent for its own account, a properly completed and duly executed Internal Revenue Service Form W-8ECI or W-8BEN-E claiming an exemption from U.S. withholding tax), and (y) with respect to payments made to the Administrative Agent on behalf of any Lender, two properly completed and executed copies of Internal Revenue Service Form W-8IMY (or any successor form) certifying that the Administrative Agent is either (A) a “qualified intermediary” which has assumed primary withholding responsibility under Chapters 3 and 4 of the Code and primary Form 1099 reporting and backup withholding responsibility, or (B) a U.S. branch providing such form as evidence of its agreement with the Borrower to be treated as a “U.S. person” for U.S. federal withholding Tax purposes (as contemplated by Section 1.1441-1(b)(2)(iv)(A) of the United States Treasury Regulations) and that the payments it receives for the account of such Lender are not effectively connected with the conduct of its trade or business in the United States. If any form or certification Administrative Agent previously delivered expires or becomes obsolete or inaccurate in any respect, it will promptly update such form or certification.

(h) If a payment made to a Lender under this Agreement would be subject to U.S. federal withholding Tax imposed by FATCA if such Lender were to fail to comply with the applicable reporting requirements of FATCA (including those contained in *Section 1471(b)*

or 1472(b) of the Code, as applicable), such Lender shall deliver to the Administrative Agent and the Borrower at the time or times prescribed by applicable law and at such time or times requested by the Borrower or the Administrative Agent such documentation prescribed by applicable law (including as prescribed by *Section 1471(b)(3)(C)(i)* of the Code) and such additional documentation reasonably requested by the Administrative Agent or the Borrower as may be necessary for the Administrative Agent and the Borrower to comply with their obligations under FATCA and to determine that such Lender has complied with such Lender's obligations under FATCA or to determine the amount to deduct and withhold from any such payment. Solely for purposes of this **Section 2.14(h)**, "**FATCA**" shall include any amendment made to FATCA after the date hereof. Each Lender agrees that if any form or certification it previously delivered expires or becomes obsolete or inaccurate in any respect, it shall update such form or certification or promptly notify the Borrower and the Administrative Agent in writing of its legal inability to do so.

(i) **Treatment of Certain Refunds.** If the Administrative Agent or any Lender determines, in its sole discretion, exercised in good faith, that it has received a refund or credit of any Covered Taxes as to which it has been indemnified by the Borrower or with respect to which the Borrower has paid additional amounts pursuant to this **Section 2.14**, it shall pay to the Borrower an amount equal to such refund or credit (but only to the extent of indemnity payments made, or additional amounts paid, by the Borrower under this **Section** with respect to the Covered Taxes giving rise to such refund or credit), net of all reasonable out-of-pocket expenses of the Administrative Agent or any Lender, as the case may be, and without interest (other than any interest paid by the relevant Governmental Authority with respect to such refund or credit), provided that the Borrower, upon the request of the Administrative Agent or any Lender, agrees to repay the amount paid over to the Borrower (plus any penalties, interest or other charges imposed by the relevant Governmental Authority) to the Administrative Agent or any Lender in the event the Administrative Agent or any Lender is required to repay such refund or credit to such Governmental Authority. Notwithstanding anything to the contrary in this **paragraph (i)**, in no event will the Administrative Agent or any Lender be required to pay any amount to the Borrower pursuant to this **paragraph (i)** the payment of which would place the Administrative Agent or such Lender in a less favorable net position after-Taxes than the Administrative Agent or such Lender would have been in if the indemnification payments or additional amounts giving rise to such refund had never been paid. This **subsection** shall not be construed to require the Administrative Agent or any Lender to make available its tax returns or its books or records (or any other information relating to its taxes that it deems confidential) to the Borrower or any other Person.

2.15 Payments Generally; Pro Rata Treatment: Sharing of Set-offs.

(a) **Payments by the Borrower.** The Borrower shall make each payment required to be made by it hereunder (whether of principal, interest, fees, or under **Section 2.12**, **2.13** or **2.14**, or otherwise) or under any other Loan Document (except to the extent otherwise provided therein) prior to 12:00 noon, New York City time, on the date when due, in immediately available funds, without set-off, deduction or counterclaim. Any amounts received after such time on any date may, in the discretion of the Administrative Agent, be deemed to have been received on the next succeeding Business Day for purposes of calculating interest thereon. All such payments shall be made to the Administrative Agent at the Administrative Agent's Account, except as otherwise expressly provided in the relevant Loan Document and except payments pursuant to **Sections 2.12**, **2.13**, **2.14** and **9.03**, which shall be made directly to the Persons entitled thereto. The Administrative Agent shall distribute any such payments received by it for account of any other Person to the appropriate recipient promptly following receipt thereof. If any payment hereunder shall be due on a day that is not a Business Day, the date for payment shall be extended to the next succeeding

Business Day and, in the case of any payment accruing interest, interest thereon shall be payable for the period of such extension.

All amounts owing under this Agreement (including commitment fees, payments required under **Sections 2.12** and **2.13**, and payments required under **Section 2.14** relating to any Loan denominated in Dollars, but not including principal of and interest on any Loan denominated in any Foreign Currency or payments relating to any such Loan required under **Section 2.14**, which are payable in such Foreign Currency) or under any other Loan Document (except to the extent otherwise provided therein) are payable in Dollars. Notwithstanding the foregoing, if the Borrower shall fail to pay any principal of any Loan when due (whether at stated maturity, by acceleration, by mandatory prepayment or otherwise), the unpaid portion of such Loan shall, if such Loan is not denominated in Dollars, automatically be redenominated in Dollars on the due date thereof (or, if such due date is a day other than the last day of the Interest Period therefor, on the last day of such Interest Period) in an amount equal to the Dollar Equivalent thereof on the date of such redenomination and such principal shall be payable on demand; and if the Borrower shall fail to pay any interest on any Loan that is not denominated in Dollars, such interest shall automatically be redenominated in Dollars on the due date thereof (or, if such due date is a day other than the last day of the Interest Period therefor, on the last day of such Interest Period) in an amount equal to the Dollar Equivalent thereof on the date of such redenomination and such interest shall be payable on demand.

(b) **Application of Insufficient Payments.** If at any time insufficient funds are received by and available to the Administrative Agent to pay fully all amounts of principal, interest and fees of a Class then due hereunder, such funds shall be applied (i) first, to pay interest and fees of such Class then due hereunder, ratably among the parties entitled thereto in accordance with the amounts of interest and fees then due to such parties, and (ii) second, to pay principal of such Class then due hereunder, ratably among the parties entitled thereto in accordance with the amounts of principal then due to such parties.

(c) **Pro Rata Treatment.** Except to the extent otherwise provided herein: (i) each Borrowing of a Class shall be made from the Lenders of such Class, each payment of commitment fee under **Section 2.09** shall be made for account of the Lenders of the applicable Class, and each termination or reduction of the amount of the Commitments of a Class under **Section 2.06**, **Section 2.08** or otherwise shall be applied to the respective Commitments of the Lenders of such Class, pro rata according to the amounts of their respective Commitments of such Class; (ii) each Borrowing of a Class shall be allocated pro rata among the Lenders according to the amounts of their respective Commitments of such Class (in the case of the making of Loans) or their respective Loans of such Class that are to be included in such Borrowing (in the case of conversions and continuations of Loans), subject to **Section 2.02(e)**; (iii) each payment or prepayment of principal of Loans of a Class by the Borrower shall be made for account of the Lenders of such Class pro rata in accordance with the respective unpaid principal amounts of the Loans of such Class held by them (and, with respect to the pro rata treatment of prepayments between Classes, any such prepayments shall be made in accordance with the provisions of **Section 2.08(e)**); and (iv) each payment of interest on Loans of a Class by the Borrower shall be made for account of the Lenders pro rata in accordance with the amounts of interest on such Loans of such Class then due and payable to the respective Lenders; *provided* however that, notwithstanding anything to the contrary contained herein, in the event that the Borrower wishes to make a Multicurrency Borrowing in an Agreed Foreign Currency and the Multicurrency Commitments are fully utilized, the Borrower may make a Borrowing under the Dollar Commitments (if otherwise permitted hereunder) and may use the proceeds of such Borrowing to prepay the Multicurrency Loans (without making a ratable prepayment to the Dollar Loans) solely

to the extent that the Borrower concurrently utilizes any Multicurrency Commitments made available as a result of such prepayment to make a Multicurrency Borrowing in an Agreed Foreign Currency.

(d) **Sharing of Payments by Lenders.** If any Lender shall, by exercising any right of set-off or counterclaim or otherwise, obtain payment in respect of any principal of or interest on any of its Loans, resulting in such Lender receiving payment of a greater proportion of the aggregate amount of its Loans, and accrued interest thereon then due than the proportion received by any other Lender, then the Lender receiving such greater proportion shall purchase (for Cash at face value) participations in the Loans of other Lenders to the extent necessary so that the benefit of all such payments shall be shared by the Lenders ratably in accordance with the aggregate amount of principal of and accrued interest on their respective Loans; *provided* that (i) if any such participations are purchased and all or any portion of the payment giving rise thereto is recovered, such participations shall be rescinded and the purchase price restored to the extent of such recovery, without interest, and (ii) the provisions of this *paragraph* shall not be construed to apply to any payment made by the Borrower pursuant to and in accordance with the express terms of this Agreement or any payment obtained by a Lender as consideration for the assignment of or sale of a participation in any of its Loans to any assignee, other than to the Borrower or any Subsidiary or Affiliate thereof (as to which the provisions of this *paragraph* shall apply). The Borrower consents to the foregoing and agrees, to the extent it may effectively do so under applicable law, that any Lender acquiring a participation pursuant to the foregoing arrangements may exercise against the Borrower rights of set-off and counterclaim with respect to such participation as fully as if such Lender were a direct creditor of the Borrower in the amount of such participation.

(e) **Presumptions of Payment.** Unless the Administrative Agent shall have received notice from the Borrower prior to the date on which any payment is due to the Administrative Agent for account of the Lenders hereunder that the Borrower will not make such payment, the Administrative Agent may assume that the Borrower has made such payment on such date in accordance herewith and may, in reliance upon such assumption, distribute to the Lenders the amount due. In such event, if the Borrower has not in fact made such payment, then each of the Lenders severally agrees to repay to the Administrative Agent forthwith on demand the amount so distributed to such Lender with interest thereon, for each day from and including the date such amount is distributed to it to but excluding the date of payment to the Administrative Agent at the Federal Funds Effective Rate.

(f) **Certain Deductions by the Administrative Agent.** If any Lender shall fail to make any payment required to be made by it pursuant to *Section 2.04(a)* or *(b)* or *2.15(e)*, then the Administrative Agent may, in its discretion (notwithstanding any contrary provision hereof), apply any amounts thereafter received by the Administrative Agent for account of such Lender to satisfy such Lender's obligations under such Sections until all such unsatisfied obligations are fully paid.

2.16 Defaulting Lenders.

(a) **Adjustments.** Notwithstanding anything to the contrary contained in this Agreement, if any Lender becomes a Defaulting Lender, then, until such time as that Lender is no longer a Defaulting Lender, to the extent permitted by applicable Law:

(i) **Lender Action.** The Commitment and Revolving Credit Exposure of such Defaulting Lender shall not be included in determining whether all Lenders or the Required Lenders have taken or may take any action hereunder or under

any other Loan Document, and, for the avoidance of doubt, no Defaulting Lender shall have any right to approve or disapprove any amendment, waiver or consent hereunder, except that (i) the Commitment of any Defaulting Lender may not be increased or extended without the consent of such Lender and any waiver, amendment or modification requiring the consent of all Lenders or each affected Lender which affects such Defaulting Lender differently than other Lenders or affected Lender as applicable, shall require the consent of such Defaulting Lender.

(ii) **Defaulting Lender Waterfall.** Any payment of principal, interest, fees or other amounts received by Administrative Agent for the account of such Defaulting Lender (whether voluntary or mandatory, at maturity, pursuant to **Article VII** or otherwise) or received by Administrative Agent from a Defaulting Lender, will be applied at such time or times as may be determined by Administrative Agent as follows: *first*, to the payment of any amounts owing by such Defaulting Lender to Administrative Agent hereunder; *second*, as Borrower may request (so long as no Default or Event of Default exists), to the funding of any Loan in respect of which such Defaulting Lender has failed to fund its portion thereof as required by this Agreement, as determined by Administrative Agent; *third*, if so determined by Administrative Agent and Borrower, to be held in a deposit account and released *pro rata* in order to satisfy such Defaulting Lender's potential future funding obligations with respect to Loans under this Agreement; *fourth*, to the payment of any amounts owing to Lenders as a result of any judgment of a court of competent jurisdiction obtained by any Lender against such Defaulting Lender as a result of such Defaulting Lender's breach of its obligations under this Agreement; *fifth*, so long as no Default or Event of Default exists, to the payment of any amounts owing to Borrower as a result of any judgment of a court of competent jurisdiction obtained by Borrower against such Defaulting Lender as a result of such Defaulting Lender's breach of its obligations under this Agreement; and *sixth*, to such Defaulting Lender or as otherwise directed by a court of competent jurisdiction; *provided* that if: (x) such payment is a payment of the principal amount of any Loans in respect of which such Defaulting Lender has not fully funded its appropriate share; and (y) such Loans were made at a time when the conditions set forth in **Section 4.02** were satisfied or waived, such payment will be applied solely to pay the Loans of all Non-Defaulting Lenders on a *pro rata* basis prior to being applied to the payment of any Loans of such Defaulting Lender until such time as all Loans are held by Lenders *pro rata* in accordance with the Total Credit Exposures hereunder. Any payments, prepayments or other amounts paid or payable to a Defaulting Lender that are applied (or held) to pay amounts owed by a Defaulting Lender pursuant to this **Section 2.16** are hereby deemed paid to and redirected by such Defaulting Lender, and each Lender irrevocably consents hereto.

(iii) **Certain Fees.** A Defaulting Lender is not entitled to receive any unused commitment fee payable under **Section 2.09** for any period during which that Lender is a Defaulting Lender (and Borrower will not be required to pay any such fee that otherwise would have been required to have been paid to such Defaulting Lender).

(b) **Defaulting Lender Cure.** If Borrower and Administrative Agent agree in writing that a Lender is no longer a Defaulting Lender, Administrative Agent will so notify the parties hereto, whereupon as of the effective date specified in such notice and subject to any conditions set forth therein, that Lender will, to the extent applicable, purchase at par that portion of outstanding Loans of the other Lenders or take such other actions as Administrative Agent may determine to be necessary to cause the Loans to be held on a *pro rata* basis by Lenders in accordance with their Applicable Percentages, whereupon such Lender will cease to be a Defaulting Lender;

provided that no adjustments will be made retroactively with respect to fees accrued or payments made by or on behalf of Borrower while that Lender was a Defaulting Lender; and *provided, further*, that except to the extent otherwise expressly agreed by the affected parties, no change hereunder from Defaulting Lender to Lender will constitute a waiver or release of any claim of any party hereunder arising from that Lender's having been a Defaulting Lender. Notwithstanding anything in this Agreement to the contrary, if any Lender is a Non-Permitted Holder, any cure or cessation of such Lender's status as a Defaulting Lender shall require the affirmative consent of Borrower, in its sole discretion.

2.17 Mitigation Obligations; Replacement of Lenders.

(a) **Designation of a Different Lending Office.** If any Lender exercises its rights under **Section 2.11(b)** or requests compensation under **Section 2.12**, or if the Borrower is required to pay any additional amount to any Lender or any Governmental Authority for account of any Lender pursuant to **Section 2.14**, then such Lender shall use reasonable efforts (subject to overall policy considerations of such Lender) to designate a different lending office for funding or booking its Loans hereunder or to assign its rights and obligations hereunder to another of its offices, branches or affiliates, if in the sole judgment of such Lender, such designation or assignment (i) would eliminate or reduce amounts payable pursuant to **Section 2.12** or **2.14**, as the case may be, in the future, or eliminate the circumstance giving rise to such Lender exercising its rights under **Section 2.11(b)** and (ii) would not subject such Lender to any cost or expense not required to be reimbursed by the Borrower and would not otherwise be disadvantageous to such Lender. The Borrower hereby agrees to pay all reasonable costs and expenses incurred by any Lender in connection with any such designation or assignment.

(b) **Replacement of Lenders.** If any Lender exercises its rights under **Section 2.11(b)** or requests compensation under **Section 2.12**, or if the Borrower is required to pay any additional amount to any Lender or any Governmental Authority for account of any Lender pursuant to **Section 2.14**, or if any Lender becomes a Defaulting Lender, or if any Lender becomes a Non-Consenting Lender, then the Borrower may, at its sole expense and effort, upon notice to such Lender and the Administrative Agent, require such Lender to assign and delegate, without recourse (in accordance with and subject to the restrictions contained in **Section 9.04**), all its interests, rights and obligations under this Agreement to an assignee that shall assume such obligations (which assignee may be another Lender, if a Lender accepts such assignment); *provided* that (i) the Borrower shall have received the prior written consent of the Administrative Agent which consent shall not unreasonably be withheld, (ii) such Lender shall have received payment of an amount equal to the outstanding principal of its Loans, accrued interest thereon, accrued fees (other than to Defaulting Lenders, which for the avoidance of doubt shall not be entitled to fees hereunder) and all other amounts payable to it hereunder, from the assignee (to the extent of such outstanding principal and accrued interest and fees) or the Borrower (in the case of all other amounts) and (iii) in the case of any such assignment resulting from a claim for compensation under **Section 2.12** or payments required to be made pursuant to **Section 2.14**, such assignment will result in a reduction in such compensation or payments. A Lender shall not be required to make any such assignment and delegation if prior thereto, as a result of a waiver by such Lender or otherwise, the circumstances entitling the Borrower to require such assignment and delegation cease to apply.

(c) **Defaulting Lenders.** If any Lender shall fail to make any payment required to be made by it pursuant to **Section 2.04** or **9.03(c)**, then the Administrative Agent may, in its discretion and notwithstanding any contrary provision hereof, (i) apply any amounts thereafter received by the Administrative Agent for the account of such Lender for the benefit of the Administrative Agent to satisfy such Lender's obligations under such Sections until all such

unsatisfied obligations are fully paid, and/or (ii) hold any such amounts in a segregated account as cash collateral for, and application to, any future funding obligations of such Lender under such Sections, in the case of each of *clauses (i) and (ii)* above, in any order as determined by the Administrative Agent in its discretion.

Article III. REPRESENTATIONS AND WARRANTIES

Each of the Borrower and the General Partner represents and warrants to the Lenders that:

3.01 **Organization; Powers.** Each of the Companies is duly organized or incorporated, validly existing and in good standing under the laws of the jurisdiction of its organization or incorporation, has all requisite power and authority to carry on its business as now conducted and, except where the failure to do so, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect, is qualified to do business in, and is in good standing in, every jurisdiction where the failure to do so could reasonably be expected to result in a Material Adverse Effect. There is no existing material default under any charter, by-laws or other organizational documents of any Company or any Subscription Document or any event which, with the giving of notice or passage of time or both, would constitute a default by any party thereunder.

3.02 **Authorization; Enforceability.** The Transactions are within the Companies' organizational powers and have been duly authorized by all necessary organizational action and the Companies have approved the transactions contemplated in this Agreement. This Agreement has been duly executed and delivered by the General Partner and the Borrower and constitutes, and each of the other Loan Documents to which it is a party when executed and delivered will constitute, a legal, valid and binding obligation of the applicable Companies, enforceable in accordance with its terms, except as such enforceability may be limited by (a) bankruptcy, insolvency, reorganization, moratorium or similar laws of general applicability affecting the enforcement of creditors' rights and (b) the application of general principles of equity (regardless of whether such enforceability is considered in a proceeding in equity or at law).

3.03 **Governmental Approvals; No Conflicts.** The Transactions (a) do not require any consent or approval of registration or filing with, or any other action by, any Governmental Authority, except for (i) such as have been or will be obtained or made and are in full force and effect and (ii) filings and recordings in respect of the Liens created pursuant to the Security Documents, (b) will not violate any applicable law or regulation or the charter, by-laws or other organizational documents of any Company, or any Subscription Document or any order of any Governmental Authority, (c) will not violate or result in a default in any material respect under any indenture, agreement or other instrument binding upon any Company or assets, or give rise to a right thereunder to require any payment to be made by any such Person, and (d) except for the Liens created pursuant to the Security Documents, will not result in the creation or imposition of any Lien on any asset of any Company.

3.04 **Financial Condition; No Material Adverse Effect.**

(a) **Material Liabilities as of the Effective Date.** As of the Effective Date, none of the Companies or any of their respective Subsidiaries has any material contingent liabilities, material liabilities for taxes, material unusual forward or material long-term commitments or material unrealized or anticipated losses from any unfavorable commitments not reflected in the financial statements referred to below.

(b) **Financial Statements.** The financial statements delivered to the Administrative Agent and the Lenders by the Borrower pursuant to **Sections 5.01(a)** and **(b)** present fairly, in all material respects, the consolidated financial position and results of operations and cash flows of the Borrower and its consolidated Subsidiaries as of the end of and for the applicable period in accordance with GAAP, subject, in the case of unaudited financial statements, to year-end audit adjustments and the absence of footnotes. As of the end of the period covered by the most recent financial statements referred to in this **paragraph (b)**, none of the Borrower or any of its Subsidiaries has any material contingent liabilities, material liabilities for Taxes, material unusual forward or material long-term commitments which are not reflected in such financial statements.

(c) **No Material Adverse Effect.** Since the Effective Date, there has not been any event, development or circumstance that has had or could reasonably be expected to have a Material Adverse Effect.

3.05 **Litigation.** There are no actions, suits, investigations or proceedings by or before any arbitrator or Governmental Authority now pending against or, to the knowledge of the General Partner or the Borrower, threatened against or affecting any Company (a) as to which there is a reasonable possibility of an adverse determination and that, if adversely determined, could reasonably be expected, individually or in the aggregate, to result in a Material Adverse Effect or (b) that involve this Agreement or the Transactions.

3.06 **Compliance with Laws and Agreements.** Each of the Companies is in compliance with all laws, regulations and orders of any Governmental Authority applicable to it or its property and all indentures, agreements and other instruments binding upon it or its property, except where the failure to do so, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect. No Company is subject to any contract or other arrangement, the performance of which by such Company could reasonably be expected to result in a Material Adverse Effect.

3.07 **Taxes.** Each of the Companies has timely filed or has caused to be timely filed all material U.S. federal, state and local Tax returns that are required to be filed by it and all other material Tax returns that are required to be filed by it and has paid all material Taxes for which it is liable and any assessments made against it or any of its property and all other material Taxes, fees or other charges imposed on it or any of its property by any Governmental Authority, other than any material Taxes, fees or other charges the amount or validity of which is currently being contested in good faith by appropriate proceedings and with respect to which reserves in conformity with GAAP have been provided on the books of the applicable Company. The charges, accruals and reserves on the books of the Companies in respect of any material Taxes and other governmental charges are adequate in accordance with GAAP. None of the Companies has given or been requested to give a waiver of the statute of limitations relating to the payment of any material U.S. federal, state, local and foreign Taxes or other impositions, and no Tax lien has been filed with respect to the Companies. There is no proposed Tax assessment against any Company, and there is no basis for such assessment.

3.08 **ERISA Compliance.** (a) No Company nor any ERISA Affiliate has established, maintains, contributes to, or has any liability (contingent or otherwise) with respect to, any Plan, which singularly or in the aggregate could reasonably be expected to result in a Material Adverse Effect; (b) no ERISA Event has occurred or is reasonably expected to occur that, when taken together with all other such ERISA Events for which liability is reasonably expected to occur, could reasonably be expected to result in a Material Adverse Effect; (c) the underlying assets of each Obligor do not constitute Plan Assets; and (d) assuming the conditions of **Section 8.11** are true and correct, none of the transactions contemplated under the Loan Documents constitutes a “*non-exempt prohibited transaction*” under **Section 4975(c)(1)** of

the Code or *Section 406(a)* of ERISA that could subject Administrative Agent or any Lender to any Tax, penalty, damages or any other claim for relief under Section 4975 of the Code or ERISA.

3.09 Disclosure.

(a) All written reports, financial statements, certificates and other written information (other than projected financial information, other forward-looking information, information relating to third parties, and information of a general economic or general industry nature) which has been made available to the Administrative Agent or any Lender by or on behalf of the General Partner, the Borrower or any other Company in connection with the transactions contemplated by this Agreement or delivered under any Loan Document, taken as a whole, will not contain any untrue statement of a material fact or omit to state a material fact necessary in order to make the statements contained therein at the time made and taken as a whole (and after giving effect to all written updates provided by the General Partner or the Borrower to the Administrative Agent for delivery to the Lenders from time to time) not misleading in any material respect in light of the circumstances under which such statements were made; and

(b) All financial projections, pro forma financial information and other forward-looking information which has been delivered to the Administrative Agent or any Lender by or on behalf of General Partner, the Borrower, or any other Company in connection with the transactions contemplated by this Agreement or delivered under any Loan Document are based upon good faith assumptions and, in the case of financial projections and pro forma financial information, good faith estimates, in each case, believed to be reasonable at the time made, it being recognized that (i) such financial information as it relates to future events is subject to significant uncertainty and contingencies (many of which are beyond the control of the Borrower) and are therefore not to be viewed as fact, and (ii) actual results during the period or periods covered by such financial information may materially differ from the results set forth therein.

3.10 Investment Company Act; Margin Regulations.

(a) **Investment Company Act.** No Company is required to be registered as an “investment company” within the meaning of the Investment Company Act.

(b) **Investment Policies.** The Companies are in compliance in all material respects with the Investment Policies.

(c) **Margin Stock.** No Company is engaged, principally or as one of its important activities, in the business of purchasing or carrying Margin Stock. Following the application the proceeds of each Borrowing not more than 25% of the value of the assets of Borrower only or of Borrower and its Subsidiaries on a consolidated basis that are subject to any restrictions contained herein consists of Margin Stock. None of the Collateral consists of Margin Stock, and the Obligations are not “indirectly secured” (as such term is defined in 12 CFR §221.2) by Margin Stock, including pursuant to *Section 9.05(h)* with respect to any indebtedness held by any Lender or any Affiliate of a Lender.

3.11 Material Agreements and Liens.

(a) **Material Agreements.** *Schedule 3.11(a)* is a complete and correct list of each credit agreement, loan agreement, indenture, purchase agreement, guarantee, letter of credit or other arrangement providing for or otherwise relating to any Indebtedness or any extension of credit (or commitment for any extension of credit) to, or guarantee by, any Company outstanding

on the Effective Date, and, other than in the case of Hedging Agreement Obligations, the aggregate principal or face amount outstanding or that is, or may become, outstanding under each such arrangement, in each case on the Effective Date, is correctly described in **Schedule 3.11(a)**.

(b) **Liens.** **Schedule 3.11(b)** is a complete and correct list of each Lien securing Indebtedness of any Person outstanding on the Effective Date covering any property of any Company, and, other than in the case of Hedging Agreement Obligations, the aggregate principal amount of such Indebtedness secured (or that may be secured) by each such Lien and the property covered by each such Lien as of the Effective Date is correctly described in **Schedule 3.11(b)**.

3.12 **Subsidiaries and Investments.**

(a) **Subsidiaries.** Set forth in **Schedule 3.12(a)** is a complete and correct list of all of the Subsidiaries of the Borrower as of the Effective Date together with, for each such Subsidiary, (i) the jurisdiction of organization of such Subsidiary, (ii) each Person holding ownership interests in such Subsidiary and (iii) the nature of the ownership interests held by each such Person and the percentage of ownership of such Subsidiary represented by such ownership interests. Except as disclosed in **Schedule 3.12(a)**, as of the Effective Date, (x) the Borrower owns, free and clear of Liens, and has the unencumbered right to vote, all outstanding ownership interests in each Subsidiary shown to be held by it in **Schedule 3.12(a)**, and (y) all of the issued and outstanding Capital Stock of each such Subsidiary organized as a corporation is validly issued, fully paid and nonassessable.

(b) **Investments.** Set forth in **Schedule 3.12(b)** is a complete and correct list of all Investments (other than Investments of the types referred to in *paragraphs (b), (c), (d) and (e)* of **Section 6.04**) held by the Borrower or any of its Subsidiaries in any Person on the Effective Date and, for each such Investment, (x) the identity of the Person or Persons holding such Investment and (y) the nature of such Investment. Except as disclosed in **Schedule 3.12(b)**, as of the Effective Date each of the Borrower and its Subsidiaries owns, free and clear of all Liens (other than Liens permitted pursuant to **Section 6.02**), all such Investments.

3.13 **Properties.**

(a) **Title Generally.** Each of the Companies and its Subsidiaries has good title to, or valid leasehold interests in, all its real and personal property material to its business, except for minor defects in title that do not interfere with its ability to conduct its business as currently conducted or to utilize such properties for their intended purposes.

(b) **Intellectual Property.** Each of the Companies and its Subsidiaries owns, or is licensed to use, all trademarks, tradenames, copyrights, patents and other intellectual property material to its business, and the use thereof by the Borrower and its Subsidiaries does not infringe upon the rights of any other Person, except for any such infringements that, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect.

3.14 **Solvency.** On the Effective Date, and upon the incurrence of any extension of credit hereunder, on any date on which this representation and warranty is made the Borrower, on a consolidated basis, will be Solvent.

3.15 **Affiliate Agreements.** As of the Effective Date, the Borrower has heretofore delivered to each of the Lenders true and complete copies of each of the Affiliate Agreements (including

any schedules and exhibits thereto, and any amendments, supplements or waivers executed and delivered thereunder). As of the Effective Date, (a) each of the Affiliate Agreements is in full force and effect, (b) the Permitted Holders Control the Investment Advisor and (c) other than the Affiliate Agreements, there is no contract, agreement or understanding, in writing, between the Borrower, any of its Subsidiaries or any Intermediate Entity, on the one hand, and any Affiliate of the Borrower, on the other hand.

3.16 Security Documents.

(a) The Guarantee and Security Agreement is effective to create in favor of the Collateral Agent for the benefit of the Secured Parties (as defined in the Guarantee and Security Agreement), legal, valid and enforceable first priority Liens (subject to Permitted Liens) on, and security interests in, the Collateral (as defined in the Guarantee and Security Agreement) and, when (i) all appropriate filings or recordings are made in the appropriate offices as may be required under applicable law and, as applicable, (ii) upon the taking of possession or control by the Collateral Agent of the Collateral with respect to which a security interest may be perfected by possession or control (which possession or control shall be given to the Collateral Agent to the extent possession or control by the Collateral Agent is required by the Guarantee and Security Agreement), the Liens created by the Guarantee and Security Agreement shall constitute fully perfected Liens on, and security interests in, all right, title and interest of the grantors in the Collateral (other than such Collateral in which a security interest cannot be perfected under the Uniform Commercial Code as in effect at the relevant time in the relevant jurisdiction), in each case subject to no Liens other than Permitted Liens.

(b) Each Capital Call Security Agreement is effective to create in favor of the Collateral Agent for the benefit of the Secured Parties (as defined in the Capital Call Security Agreement) or the Intermediate Entity identified therein, legal, valid and enforceable first priority Liens on, and security interests in, the Collateral (as defined in such Capital Call Security Agreement) and, when (i) all appropriate filings or recordings are made in the appropriate offices as may be required under applicable law and, as applicable, (ii) upon the taking of possession or control by the Collateral Agent of the Collateral with respect to which a security interest may be perfected by possession or control (which possession or control shall be given to the Collateral Agent to the extent possession or control by the Collateral Agent is required by the Capital Call Security Agreement), the Liens created by the Capital Call Security Agreements shall constitute fully perfected Liens on, and security interests in, all right, title and interest of the grantors in the Collateral (other than such Collateral in which a security interest cannot be perfected under the Uniform Commercial Code as in effect at the relevant time in the relevant jurisdiction), in each case subject to no Liens other than Permitted Liens.

3.17 **Compliance with Sanctions.** No Company, nor any officer or director thereof, nor, to the knowledge of the General Partner, the Borrower, any Affiliate of the General Partner or the Borrower or any officer, employee, agent or director thereof, (a) is subject to, or subject of, sanctions administered by the United States Department of the Treasury's Office of Foreign Assets Control ("**OFAC**"), any other United States Governmental Authority, the European Union, His Majesty's Treasury, the United Nations Security Council, or any other relevant sanctions authority (collectively, "**Sanctions**"), (b) included on OFAC's list of Specially Designated Nationals, HMT's Consolidated List of Financial Sanctions Targets, or any similar list enforced by any other relevant sanctions authority; or (c) is located, has a place of business or is organized or resident in, or controlled by or under common control with, a country, territory or region that is, or whose government is, the subject of any Sanction. Furthermore, no part of the proceeds of a Loan will be used, directly or indirectly, by any Company or any Affiliate of a Company to finance or facilitate a transaction with a person the subject of Sanctions.

3.18 **Anti-Money Laundering Program.** The Companies have implemented an anti-money laundering program to the extent required by the Uniting And Strengthening America By Providing Appropriate Tools Required To Intercept And Obstruct Terrorism of 2001 (the “*USA PATRIOT Act*”), and the rules and regulations thereunder and maintains in effect and enforces policies and procedures designed to ensure compliance by the Companies and their respective directors, officers, employees and agents with applicable Sanctions.

3.19 **Foreign Corrupt Practices Act.** No Company nor, to the General Partner’s or the Borrower’s knowledge, any director, officer, agent, employee, Affiliate or other person associated with or acting on behalf of any Company has: (a) used any corporate funds for any unlawful contribution, gift, entertainment or other unlawful expense relating to political activity or to influence official action; (b) made any direct or indirect unlawful payment to any foreign or domestic government official or employee from corporate funds; (c) made any bribe, rebate, payoff, influence payment, kickback or other unlawful payment; or (iv) violated or is in violation of any provision of the U.S. Foreign Corrupt Practices Act of 1977 and the rules and regulations thereunder (the “*FCPA*”); and each Company has conducted its businesses in compliance with the FCPA and have instituted and maintained policies and procedures designed to ensure, and which are reasonably expected to continue to ensure, compliance therewith. Furthermore, no part of the proceeds of a Loan will be used, directly or indirectly, by any Company or any Affiliate of a Company to finance or facilitate a transaction in violation of the FCPA.

3.20 **Borrowing Base Certificate.** The Borrowing Base Certificate most recently delivered to the Administrative Agent, as updated from time to time in accordance with the terms hereof, is true and correct in all material respects.

3.21 **Capital Commitments and Contributions.**

(a) Each of the Investors are set forth on ***Schedule 3.21*** (as supplemented pursuant to ***Section 5.01(k)***, ***Section 6.14(c)*** or ***(d)*** or as otherwise updated in a writing delivered to the Administrative Agent) and incorporated herein by reference. As of the Effective Date, the aggregate amount of Capital Commitments of the Investors is set forth on ***Schedule 3.21***, and the aggregate Unfunded Capital Commitment that could be subject to a Capital Call is set forth on ***Schedule 3.21***.

(b) The aggregate amount of the Unfunded Capital Commitments of all Investors as of the date hereof is \$60,550,000. The aggregate amount of the Unfunded Capital Commitments of all Borrowing Base Investors as of the date hereof is \$60,550,000. There are no Capital Call Notices outstanding except as otherwise disclosed in writing to the Administrative Agent. To the General Partner’s or the Borrower’s knowledge, no Investor is in default under any Governing Agreement or its Subscription Documents. Prior to the date hereof, the Borrower has satisfied all conditions to its rights to make a Capital Call, including any and all conditions contained in its organizational documents or the Subscription Documents.

3.22 **Investors Documents.** Each Investor as of the Effective Date has executed a Subscription Agreement, a copy of which has been (or prior to its execution will be) provided to the Administrative Agent. Each Side Letter with respect to such Subscription Agreement has been provided to the Administrative Agent. Except as otherwise disclosed in writing to the Administrative Agent, for each Investor, the applicable Governing Agreement and its Subscription Documents set forth its entire agreement regarding its Capital Commitment.

3.23 **Organizational Structure.** The structure of the Borrower, each Intermediate Entity and the General Partner as of the Effective Date is accurately depicted on ***Schedule 3.23*** hereto in

all material respects. The Borrower and the General Partner have not formed any Alternative Investment Vehicles or Parallel Investment Vehicles.

3.24 **No Defenses.** No Company has actual knowledge of any default or circumstance which with the passage of time and/or giving of notice would constitute an event of default by such Company under its organizational documents or any Subscription Document which would constitute a defense to the obligations of any Investor to make Capital Calls to the Borrower or any Intermediate Entity in accordance with its Subscription Documents or the applicable Governing Agreement, and has no knowledge of any claims of offset or any other claims of any Investor against any Company which would or could diminish or adversely affect in any material respect the obligations of such Investor to make Capital Calls in accordance with its Subscription Documents or the applicable Governing Agreement other than, in each case, that which has been disclosed in writing by such Company to the Administrative Agent.

3.25 **No Withdrawals Without Approval.** No Investor is permitted to withdraw its interest in an Obligor or any Intermediate Entity except in accordance with the terms of the applicable Governing Agreement.

3.26 **Investor Commitments.** No Investor has (i) been excused or exempted from funding any Capital Call; (ii) requested or been asked to withdraw from the Borrower or any Intermediate Entity and such withdrawal could reasonably be expected to have a Material Adverse Effect; (iii) other than as disclosed in writing to the Administrative Agent, been precluded from or requested exclusion from any Investment or type of Investment; or (iv) informed an Obligor or any Intermediate Entity of its intent to transfer its interest in the Borrower or such Intermediate Entity and such transfer could reasonably be expected to have a Material Adverse Effect.

3.27 **Investment Policies.** Neither the Borrower nor the General Partner: (a) knows of any default or circumstance that with the passage of time or giving of notice, could constitute a default under Borrower's or any Intermediate Entity's organizational documents that would constitute a defense to the obligations of the Investors to make Capital Calls to Borrower or such Intermediate Entity pursuant to a Capital Call Notice, in accordance with Borrower's or such Intermediate Entity's organizational documents, or (b) has knowledge of any claims of offset or any other claims of the Investors against Borrower, any Intermediate Entity or General Partner that would or could diminish or adversely affect the obligations of the Investors to make Capital Calls in accordance with Borrower's or Intermediate Entity's organizational documents. No Company has received written notice of any investment policy or organizational document of any Investor that would, based on the applicable Governing Agreement or applicable Subscription Documents with respect to such Investor, afford such Investor an excuse right pursuant to the applicable Governing Agreement or any Subscription Document with respect to a Capital Call.

3.28 **General Partner Representation.** The General Partner has received direct or indirect benefit from the Loans evidenced by the Obligations and the grant of security interest in the Collateral was a condition to making such Loans.

3.29 **Use of Proceeds.** No proceeds of any Loan made hereunder have been used in contravention of **Section 5.09** hereof.

3.30 **No Event of Default.** No Event of Default has occurred and is continuing.

3.31 **EEA Financial Institutions.** No Company is an EEA Financial Institution.

3.32 **Beneficial Ownership Certification.** As of the Effective Date, to the best knowledge of the Borrower, the information included in any Beneficial Ownership Certification provided on or prior to the Effective Date to any Lender in connection with this Agreement is true and correct in all respects.

Article IV. CONDITIONS

4.01 **Effective Date.** The effectiveness of this Agreement and of the obligations of the Lenders to make Loans hereunder shall not become effective until completion of each of the following conditions precedent (unless a condition shall have been waived in accordance with **Section 9.02**) (such date, the “**Effective Date**”):

(a) **Documents.** Administrative Agent shall have received each of the following documents, each of which shall be reasonably satisfactory to the Administrative Agent (and to the extent specified below to each Lender) in form and substance:

(i) **Executed Counterparts.** From each party hereto either (1) a counterpart of this Agreement signed on behalf of such party or (2) written evidence satisfactory to the Administrative Agent (which may include telecopy transmission of a signed signature page to this Agreement) that such party has signed a counterpart of this Agreement.

(ii) **Guarantee and Security Agreement.** The Guarantee and Security Agreement, duly executed and delivered by each of the parties to the Guarantee and Security Agreement.

(iii) **Capital Call Security Agreement.** The Capital Call Security Agreements, duly executed and delivered by the Borrower, each Intermediate Entity and General Partner.

(iv) **Feeder Acknowledgment and Confirmation.** A Feeder Acknowledgment and Confirmation, duly executed by each Feeder and other Intermediate Fund that pledges a security interest to another Intermediate Fund pursuant to a Capital Call Security Agreement.

(v) **Custodian Agreement.** The Custodian Agreement, duly executed and delivered by each of the parties to the Custodian Agreement.

(vi) **Control Agreements.** Account Control Agreements, in form and substance reasonably satisfactory to the Administrative Agent, over each Control Account.

(vii) **Fee Letter.** A fee letter, in form and substance reasonably satisfactory to the Administrative Agent, setting forth fees payable by the Borrower to the Administrative Agent and Lenders on the Effective Date.

(viii) **Opinion of Counsel to the Borrower.** A favorable written opinion (addressed to the Administrative Agent and the Lenders and dated the Effective Date) of Mayer Brown LLP, counsel for the Companies, in form and substance reasonably acceptable to the Administrative Agent and covering such matters as the Administrative

Agent may reasonably request (and the Borrower hereby instructs such counsel to deliver such opinion to the Lenders and the Administrative Agent).

(ix) **Corporate Documents of the Companies.** (v) Copies of the organizational documents of each Company, including the Governing Agreements and Affiliate Agreements, certified as of a recent date by the appropriate governmental official, if applicable, (w) signature and incumbency certificates of the officers of such Company executing the Loan Documents to which it is a party, (x) resolutions of the Managing Member on behalf of each Company approving and authorizing the execution, delivery and performance of this Agreement and the other Loan Documents to which it is a party or by which it or its assets may be bound as of the Effective Date, certified as of the Effective Date by its secretary or an assistant secretary as being in full force and effect without modification or amendment, (y) a good standing certificate from the applicable Governmental Authority of each Company's jurisdiction of incorporation, organization or formation and in each jurisdiction in which it is qualified as a foreign corporation or other entity to do business, each dated a recent date prior to the Effective Date, and (z) such other documents and certificates as the Administrative Agent or its counsel may reasonably request relating to the organization, existence and good standing of the Companies, and the authorization of the Transactions, all in form and substance reasonably satisfactory to the Administrative Agent and its counsel.

(x) **Officer's Certificate.** A certificate, dated the Effective Date and signed by the Managing Member on behalf of the Borrower, confirming compliance with the conditions set forth in **Sections 4.01(l), 4.02(a), (b), (c) and (d)**.

(xi) **Borrowing Base Certificate.** A Borrowing Base Certificate showing a calculation of the Borrowing Base as of a date not less than five days prior to the Effective Date.

(xii) **Investor Documents.** From each Investor, a copy of such Investor's duly executed Subscription Documents.

(xiii) **ERISA Deliverables.** With respect to each Obligor, an Operating Company Opinion from counsel to such Obligor, and each Obligor hereby requests that such counsel deliver such Operating Company Opinion; *provided, however*, if (A) an Obligor does not need to qualify as an Operating Company in order to avoid holding Plan Assets, and (B) it is reasonable for such Obligor to conclude that its underlying assets will not constitute Plan Assets throughout the entire contemplated term of this Credit Agreement due to satisfaction of another exception to holding Plan Assets (other than the Operating Company exceptions), then such Obligor may deliver a No Plan Asset Certificate to Administrative Agent in lieu of providing an Operating Company Opinion.

(b) **Liens.** The Administrative Agent shall have received results of a recent lien search in each relevant jurisdiction with respect to the Companies, confirming the priority of the Liens in favor of the Collateral Agent created pursuant to the Security Documents and revealing no liens on any of the assets of the Borrower or its Subsidiaries or any Intermediate Entity except for Liens permitted under **Section 6.02** or Liens to be discharged on or prior to the Effective Date pursuant to documentation satisfactory to the Administrative Agent. Subject to **Section 5.08(c)(ii)**, all Uniform Commercial Code financing statements, control agreements and other documents or instruments required to be filed or executed and delivered in order to create in favor of the Administrative Agent, for the benefit of the Lenders, a first priority perfected (subject to Eligible

Liens) security interest in the Collateral (to the extent that such a security interest may be perfected by filing, possession or control under the Uniform Commercial Code) shall have been properly filed or executed and delivered in each jurisdiction required.

(c) **Financial Information.** The Administrative Agent shall have received a certification from the Borrower that no financial statements nor any GP Report has been prepared as of the Effective Date.

(d) **Consents.** The Borrower shall have obtained and delivered to the Administrative Agent certified copies of all consents, approvals, authorizations, registrations, or filings (other than any filing required under the Exchange Act or the rules or regulations promulgated thereunder, including, without limitation, any filing required on Form 8-K) required to be made or obtained by the Borrower and all Obligors in connection with the Transactions, and such consents, approvals, authorizations, registrations, filings and orders shall be in full force and effect and all applicable waiting periods shall have expired and no investigation or inquiry by any Governmental Authority regarding the Transactions or any transaction being financed with the proceeds of the Loans shall be ongoing.

(e) **No Litigation.** There shall not exist any action, suit, investigation, litigation or proceeding or other legal or regulatory developments pending or threatened in any court or before any arbitrator or Governmental Authority that relates to the Transactions or that could have a Material Adverse Effect.

(f) **Solvency Certificate.** On the Effective Date, the Administrative Agent shall have received a solvency certificate executed by the Managing Member on behalf of the Borrower dated as of the Effective Date and addressed to the Administrative Agent and the Lenders, and in form, scope and substance reasonably satisfactory to Administrative Agent, with appropriate attachments and demonstrating that both before and after giving effect to the Transactions, (i) the Borrower will be Solvent on an unconsolidated basis and (ii) the General Partner will be Solvent on an unconsolidated basis.

(g) **Investment Policies.** The Administrative Agent shall have received the Investment Policies as in effect on the Effective Date in form and substance reasonably satisfactory to the Administrative Agent.

(h) **Beneficial Ownership Regulation.** The Administrative Agent shall have received, to the extent the Borrower qualifies as a “legal entity customer” under the Beneficial Ownership Regulation, at least five days prior to the Effective Date, any Lender that has requested, in a written notice to the Borrower at least 10 days prior to the Effective Date, a Beneficial Ownership Certification in relation to the Borrower shall have received such Beneficial Ownership Certification (provided that, upon the execution and delivery by such Lender of its signature page to this Agreement, the condition set forth in this *paragraph (h)* shall be deemed to be satisfied).

(i) **Fees and Expenses.** The Borrower shall have paid in full to the Administrative Agent and the Lenders all fees and expenses related to this Agreement owing on the Effective Date under any Loan Document to the extent invoiced, including any up-front fee due to any Lender on the Effective Date.

(j) **Default.** No Default or Event of Default shall have occurred and be continuing under this Agreement or under any Material Indebtedness immediately before and after

giving effect to the Transactions, any incurrence of Indebtedness hereunder and the use of the proceeds hereof on a pro forma basis.

(k) **Evidence of Insurance.** The Administrative Agent shall have received a certificate from Borrower's insurance broker or other evidence reasonably satisfactory to it that all insurance required to be maintained pursuant to the Loan Documents is in full force and effect.

(l) **Minimum Capital Commitments.** Borrower will have closed with Investors holding a minimum of \$50,000,000 in Capital Commitments.

(m) **USA PATRIOT Act.** The Administrative Agent and each Lender shall have received all documentation and other information required by bank regulatory authorities under applicable "know your customer" and anti-money laundering rules and regulations, including the USA PATRIOT Act, as reasonably requested by the Administrative Agent and each Lender.

(n) **Other Documents.** The Administrative Agent shall have received such other documents as the Administrative Agent may reasonably request in form and substance satisfactory to the Administrative Agent.

The contemporaneous exchange and release of executed signature pages by each of the Persons contemplated to be a party hereto shall render this Agreement effective and any such exchange and release of such executed signature pages by all such persons shall constitute satisfaction or waiver (as applicable) of any condition precedent to such effectiveness set forth above.

4.02 **Each Credit Event.** The obligation of each Lender to make any Loan, including any such extension of credit on the Effective Date is additionally subject to the satisfaction of the following conditions:

(a) the representations and warranties of the Companies set forth in this Agreement and in the other Loan Documents shall be true and correct in all material respects (other than any representation or warranty already qualified by materiality or Material Adverse Effect, which shall be true and correct in all respects) on and as of the date of such Loan, or, as to any such representation or warranty that refers to a specific date, as of such specific date;

(b) at the time of and immediately after giving effect to such Loan, (i) no Borrowing Base Deficiency shall exist, (ii) no Default shall have occurred and be continuing and (iii) each of the terms or conditions to the making of Loans set forth in **Section 2.01** or **Section 2.02** shall be satisfied;

(c) either (i) the aggregate Covered Debt Amount (after giving effect to such extension of credit) shall not exceed the Borrowing Base reflected on the Borrowing Base Certificate most recently delivered to the Administrative Agent or (ii) the Borrower shall have delivered an updated Borrowing Base Certificate demonstrating that the Covered Debt Amount (after giving effect to such extension of credit) shall not exceed the Borrowing Base after giving effect to such extension of credit as well as any concurrent acquisitions of Portfolio Investments by the Borrower or payment of outstanding Loans;

(d) after giving effect to such extension of credit, the Borrower shall be in pro forma compliance with the covenants set forth in **Section 6.07**; and

(e) the proposed date of such extension of credit shall take place during the Availability Period.

Each Borrowing shall be deemed to constitute a representation and warranty by the Borrower on the date thereof as to the matters specified in the preceding sentence.

Article V. AFFIRMATIVE COVENANTS

Until the Termination Date, the Borrower covenants and agrees with the Lenders that:

5.01 **Financial Statements and Other Information.** The Borrower will furnish to the Administrative Agent for distribution to each Lender:

(a) within 120 days after the end of each fiscal year of the Borrower (commencing with the fiscal year ending December 31, 2023), the audited consolidated statement of assets, liabilities and Partners' Capital and the related consolidated statement of operations and statement of cash flows of the Borrower and its Subsidiaries, as of the end of and for such year, setting forth in each case in comparative form the figures for the previous fiscal year (to the extent full fiscal year information is available), all reported on by Grant Thornton LLP or other independent public accountants of recognized national standing to the effect that such consolidated financial statements present fairly in all material respects the financial condition and results of operations of the Borrower and its Subsidiaries on a consolidated basis in accordance with GAAP consistently applied (which report shall be unqualified as to going concern and scope of audit and shall not contain any explanatory paragraph or paragraph of emphasis with respect to going concern; *provided*, that there shall be no violation of this **Section** if the report or opinion is subject to a "going concern" or other qualification solely as a result of the impending stated final maturity date under this Agreement);

(b) within 60 days after the end of each of the first three fiscal quarters of each fiscal year of the Borrower and the end of the fiscal year ending December 31, 2022, the consolidated statement of assets, liabilities and Partners' Capital and the related consolidated statement of operations and statement of cash flows of the Borrower and its Subsidiaries as of the end of and for such fiscal quarter and the then elapsed portion of the fiscal year, setting forth in each case in comparative form the figures for (or, in the case of the statement of assets and liabilities, as of the end of) the corresponding period or periods of the previous fiscal year (to the extent such information is available for the previous fiscal year), all certified by the Managing Member or a Financial Officer of the Borrower as presenting fairly in all material respects the financial condition and results of operations of the Borrower and its Subsidiaries on a consolidated basis in accordance with GAAP consistently applied, subject to normal year-end audit adjustments and the absence of footnotes;

(c) concurrently with any delivery of financial statements under **paragraphs (a) and (b)** of this **Section**, a certificate of the Managing Member or a Financial Officer of the Borrower (i) certifying as to whether the Borrower has knowledge that a Default has occurred during the most recent period covered by such financial statements (or has occurred and is continuing from a prior period) and, if a Default has occurred during such period (or has occurred and is continuing from a prior period), specifying the details thereof and any action taken or proposed to be taken with respect thereto, (ii) setting forth reasonably detailed calculations demonstrating compliance with **Sections 6.01(b), 6.02(d), 6.03(e), 6.04(g), 6.05(c)** and **6.07** for the applicable period, (iii) stating whether any change in GAAP as applied by (or in the application of

GAAP by) the Borrower has occurred since the Effective Date (but only if the Borrower has not previously reported such change to the Administrative Agent and if such change has had a material effect on the financial statements) and, if any such change has occurred (and has not been previously reported to the Administrative Agent), specifying the effect of such change on the financial statements accompanying such certificate, and (iv) attaching a list of Subsidiaries and Immaterial Subsidiaries as of the date of delivery of such certificate or a confirmation that there is no change in such information since the later of the Effective Date or the date of the last such list;

(d) Borrowing Base Certificates, which shall be delivered:

(i) as soon as available and in any event not later than twenty calendar days after the end of each monthly accounting period (ending on the last day of each calendar month) of the Borrower and its Subsidiaries, as of the last day of such accounting period, including an Excel schedule containing such additional information as shall have been mutually agreed with the Administrative Agent; *provided, that* any Borrowing Base Certificate delivered pursuant to this **clause (i)** shall also include a calculation of the Applicable Margin;

(ii) upon and with each Borrowing Request to the extent (x) the Borrower does not include a representation therein that the Subscription Borrowing Base has not declined since the Subscription Borrowing Base reported in the Borrowing Base Certificate most recently delivered or (y) the amount of the requested Borrowing would result in the total Covered Debt Amount exceeding the Borrowing Base reported in the Borrowing Base Certificate most recently delivered;

(iii) with respect only to the Subscription Borrowing Base, promptly (and in any event within three Business Days) following the issuance of any Capital Calls to the Investors together with copies of such Capital Calls in accordance with **Section 5.14(c)**;

(iv) with respect only to the Subscription Borrowing Base, promptly (and in any event within three Business Days) following the Borrower's knowledge of any Exclusion Event or a Capital Event relating to any Borrowing Base Investor's Capital Commitment;

(v) with respect only to the Subscription Borrowing Base, promptly (and in any event within three Business Days) following any Transfer of any Borrowing Base Investor's Capital Commitment;

(vi) promptly (and in any event within three Business Days) following Borrower obtaining knowledge that there is a Borrowing Base Deficiency, a Borrowing Base Certificate, indicating the amount of the Borrowing Base Deficiency as of the date Borrower obtained knowledge thereof and as of the date of delivery of such Borrowing Base Certificate; and

(vii) promptly (and in any event within three Business Days) following the Borrower obtaining knowledge that the Borrowing Base has decreased by more than 15% (other than as a result of the issuance of a Capital Call Notice covered under **clause (iii)** above), the Borrower shall give notice thereof and shall provide an updated a Borrowing Base Certificate as of such date;

(e) concurrently with any delivery of financial statements under *paragraphs (a) or (b)* of this **Section**, a copy of the quarterly GP Report (if any) distributed during or in respect of the applicable fiscal quarter;

(f) promptly upon receipt thereof copies of all qualified opinions, material deficiency reports and fraud analyses submitted to the management or board of directors of the Borrower by the Borrower's independent public accountants in connection with each annual, interim or special audit or review of any type of the financial statements or related internal control systems of the Borrower or any of its Subsidiaries delivered by such accountants to the management or board of directors of the Borrower;

(g) within 45 days after the last day of each fiscal quarter, all internal and external valuation reports relating to the Eligible Portfolio Investments (other than valuation reports delivered by an Approved Third-Party Appraiser Agent retained by the Administrative Agent pursuant to **Section 5.12(b)(ii)(G)** or **Section 5.12(b)(ii)(J)**, but including all valuation reports delivered by the Approved Third-Party Appraiser in connection with the quarterly valuation of Unquoted Investments in accordance with **Section 5.12(b)(ii)(B)** (subject to the Administrative Agent entering into a non-reliance letter, confidentiality letter or similar agreement on market terms requested or required by the Approved Third-Party Appraiser, it being the understanding that no Lender shall have the right to review any such report unless such Lender has also entered into such non-reliance letter, confidentiality letter or similar agreement)) and the underwriting memoranda for all Eligible Portfolio Investments included in such valuation reports, along with any other information relating to the Eligible Portfolio Investments as reasonably requested by the Administrative Agent or any Lender, provided that the underwriting memoranda for a particular Eligible Portfolio Investment of an Obligor shall only be required to be delivered within 30 days of the initial closing of such Eligible Portfolio Investment and at no other time;

(h) to the extent not otherwise provided by the Custodian, within 30 days after the end of each month, updated copies of custody reports (including, to the extent available, an itemized list of each Portfolio Investment held in any Custodian Account owned by the Borrower or any Subsidiary) with respect to any custodian account owned by the Borrower or any of its Subsidiaries;

(i) within 45 days after the end of each fiscal quarter of the Borrower, a certificate of the Managing Member or a Financial Officer of the Borrower certifying that attached thereto is a complete and correct description of all Portfolio Investments as of the date thereof, including, with respect to each such Portfolio Investment, the name of the Borrower or Subsidiary holding such Portfolio Investment and the name of the issuer of such Portfolio Investment;

(j) [reserved];

(k) concurrently with any Borrowing Base Certificate to be delivered under **Section 5.01(d)**, an updated version of **Schedule 3.21** setting forth (i) all Investors as of such date, (ii) the Capital Commitment of each Investor as of such date, (iii) the aggregate amount of Capital Commitments as of such date and (iv) the aggregate Unfunded Capital Commitment that could be subject to a Capital Call as of such date;

(l) within five Business Days of execution thereof, copies of the Subscription Agreement (and any related Side Letter) of any new Investor or written evidence of an increase in the Capital Commitment of any Investor;

(m) promptly after the occurrence thereof, notice of any cancellation or termination of the Unfunded Capital Commitment of any Investor pursuant to the Partnership Agreement or other applicable Governing Agreement;

(n) promptly upon the receipt thereof, copies of all financial statements, reports and other material information and other material correspondence sent to or received by each Company from the Investors, including, without limitation, notices of default, notices relating in any way to an Investor's funding obligation and any notice containing any reference to misconduct of any Company.

(o) simultaneously with delivery to any Investor, copies of all other financial statements, appraisal reports, notices, and other matters at any time or from time to time prepared by Borrower, General Partner or any Intermediate Entity and furnished to the Investors, including, without limitation, any notice of default, notice of election or exercise of any rights or remedies under any Subscription Agreement, Side Letter, Governing Agreement or the Partnership Agreement, or any notices relating in any way to any Investor's Capital Commitment, and any notice relating in any way to the misconduct of the Borrower, General Partner or Intermediate Entity;

(p) promptly following any request therefor, such other information regarding the operations, business affairs and financial condition of the Borrower, any of its Subsidiaries or any Intermediate Entity, or compliance with the terms of this Agreement and the other Loan Documents, as the Administrative Agent or any Lender may reasonably request;

(q) any change in the information provided in the Beneficial Ownership Certification delivered to a Lender that would result in a change to the list of beneficial owners identified in such certificate; and

(r) information and documentation reasonably requested by the Administrative Agent or any Lender for purposes of compliance with applicable "know your customer" and anti-money laundering rules and regulations, including the Patriot Act and the Beneficial Ownership Regulation;

5.02 Notices of Material Events. Upon the Borrower becoming aware of any of the following, the Borrower will furnish to the Administrative Agent and each Lender prompt written notice of the following:

(a) the occurrence of any Default (provided that if such Default is subsequently cured within the time periods set forth herein, the failure to provide notice of such Default shall not itself result in an Event of Default hereunder);

(b) the filing or commencement of any action, suit or proceeding by or before any arbitrator or Governmental Authority against or affecting the Borrower or any of its Affiliates that, if adversely determined, could reasonably be expected to result in a Material Adverse Effect;

(c) the occurrence of any ERISA Event that, alone or together with any other ERISA Events that have occurred, could reasonably be expected to result in a Material Adverse Effect;

(d) that any Investor has violated or breached any material term of any Governing Agreement or has become an Excluded Investor; or the existence of any condition or

event which, with the lapse of time or giving of notice or both, would cause an Investor to become an Excluded Investor;

(e) any decline in the Rating of any Borrowing Base Investor, or decline in the capital status of any Borrowing Base Investor that is a Bank Holding Company, whether or not such change results in an Exclusion Event;

(f) the occurrence of an Exclusion Event;

(g) the occurrence of a Key Person Event (as defined in the Partnership Agreement); and

(h) any other development (excluding matters of a general economic, financial or political nature to the extent that they could not reasonably be expected to have a disproportionate effect on the Borrower) that results in, or could reasonably be expected to result in, a Material Adverse Effect.

Each notice delivered under this **Section** shall be accompanied by a statement of the Managing Member or a Financial Officer or other executive officer of the Borrower setting forth the details of the event or development requiring such notice and any action taken or proposed to be taken with respect thereto.

5.03 Existence; Conduct of Business. The General Partner and the Borrower will, and will cause each Intermediate Entity and each of the Borrower's Subsidiaries (other than Immaterial Subsidiaries) to, do or cause to be done all things necessary to preserve, renew and keep in full force and effect its legal existence and the rights, licenses, permits, privileges and franchises material to the conduct of its business; *provided* that the foregoing shall not prohibit any merger, consolidation, liquidation or dissolution permitted under **Section 6.03**.

5.04 Payment of Obligations. The General Partner and the Borrower will, and will cause each Intermediate Entity and each of the Borrower's Subsidiaries to, pay their respective obligations, including tax liabilities and material contractual obligations, that, if not paid, could reasonably be expected to result in a Material Adverse Effect before the same shall become delinquent or in default, except where (a) the validity or amount thereof is being contested in good faith by appropriate proceedings, (b) the General Partner, the Borrower, such Intermediate Entity or such Subsidiary has set aside on its books adequate reserves with respect thereto in accordance with GAAP and (c) the failure to make payment pending such contest could not reasonably be expected to result in a Material Adverse Effect.

5.05 Maintenance of Properties; Insurance. The General Partner and the Borrower will, and will cause each Intermediate Entity and each of the Borrower's Subsidiaries (other than Immaterial Subsidiaries) to, (a) keep and maintain all property material to the conduct of its business in good working order and condition, ordinary wear and tear excepted, and (b) maintain, with financially sound and reputable insurance companies, insurance in such amounts and against such risks as are customarily maintained by companies engaged in the same or similar business, operating in the same or similar locations.

5.06 Books and Records; Inspection and Audit Rights.

(a) **Books and Records; Inspection Rights.** The General Partner and the Borrower will, and will cause each Intermediate Entity and each of the Borrower's Subsidiaries to, keep books of record and account in accordance with GAAP. The General Partner and the Borrower will, and will cause each Intermediate Entity and each of the Borrower's Subsidiaries to, permit

any representatives designated by the Administrative Agent or any Lender, upon reasonable prior notice to the Borrower, to (i) visit and inspect its properties, to examine and make extracts from its books and records, and (ii) discuss its affairs, finances and condition with its officers and independent accountants, all at such reasonable times and as often as reasonably requested; *provided* that the General Partner, the Borrower, such Intermediate Entity or such Subsidiary shall be entitled to have its representatives and advisors present during any inspection of its books and records or meeting with its independent accountants; *provided, further*, that the Administrative Agent and the Lenders shall not conduct more than one such visit and inspection in any calendar year unless an Event of Default has occurred and is continuing at the time of any subsequent visits and inspections during such calendar year.

(b) **Audit Rights.** The Borrower will, and will cause each Intermediate Entity and each of its Subsidiaries to, permit any representatives designated by Administrative Agent (including any consultants, accountants, lawyers and appraisers retained by the Administrative Agent) to conduct evaluations and appraisals of the Borrower's computation of the Borrowing Base (and any components thereof) and the assets included in the Borrowing Base (and any components thereof including, for clarity, rights to make Capital Calls and related rights and audits of any Agency Accounts, funds transfers and custody procedures), all at such reasonable times and as often as reasonably requested; *provided* that the rights set forth in this *paragraph* shall be exclusive and not duplicative of the right of Administrative Agent to obtain appraisals pursuant to **Section 5.12(b)(ii)(G)**. The Borrower shall pay the reasonable, documented fees and expenses of representatives retained by the Administrative Agent to conduct any such evaluation or appraisal; *provided* that the Borrower shall not be required to pay such fees and expenses for more than one such evaluation or appraisal during any calendar year unless an Event of Default has occurred and is continuing at the time of any subsequent evaluation or appraisal during such calendar year; *provided, further*, that the scope of the engagement of any representative engaged by the Administrative Agent pursuant to this sentence shall be consistent with agreed upon procedures between the Administrative Agent and the Borrower. The Borrower also agrees to modify or adjust the computation of the Borrowing Base and/or the assets included in the Borrowing Base, to the extent required by the Administrative Agent or the Required Lenders as a result of any such evaluation or appraisal indicating that such computation or inclusion of assets is not consistent with the terms of this Agreement, provided that if the Borrower demonstrates that such evaluation or appraisal is incorrect, the Borrower shall be permitted to re-adjust its computation of the Borrowing Base.

5.07 **Compliance with Laws and Agreements.** The General Partner and the Borrower will, and will cause each Intermediate Entity and each of the Borrower's Subsidiaries to, comply with all laws, rules, regulations, and orders of any Governmental Authority applicable to it or its property and all indentures, agreements and other instruments, except where the failure to do so, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect.

5.08 **Certain Obligations Respecting Subsidiaries; Further Assurances.**

(a) **Subsidiary Guarantors.** In the event that (i) the Borrower or any of its Subsidiaries shall form or acquire any new Subsidiary (other than a CFC or a Transparent Subsidiary), or that any other Person (other than a CFC or a Transparent Subsidiary) shall become a "Subsidiary" within the meaning of the definition thereof; (ii) any CFC shall no longer constitute a "CFC" pursuant to the definition thereof (in which case such Person shall be deemed to be a "new" Subsidiary for purposes of this **Section 5.08**), or (iii) any Transparent Subsidiary shall no longer constitute a "Transparent Subsidiary" pursuant to the definition thereof (in which case such Person shall be deemed to be a "new" Subsidiary for purposes of this **Section 5.08**), the Borrower

will, in each case, on or before 30 days following such Person becoming a Subsidiary or such CFC or Transparent Subsidiary, as the case may be, no longer qualifying as such, cause such new Subsidiary or former CFC or former Transparent Subsidiary, as the case may be, to become a “Subsidiary Guarantor” (and, thereby, an “**Obligor**”) under the Guarantee and Security Agreement pursuant to a Guarantee Assumption Agreement and to deliver such proof of corporate or other action, incumbency of officers, opinions of counsel and other documents as the Administrative Agent shall have reasonably requested; *provided* that in no event shall an opinion of counsel be required to be delivered in connection with the formation of any Tax Blocker Subsidiary or any Tax Blocker Subsidiary becoming an Obligor hereunder.

(b) **Ownership of Subsidiaries.** The Borrower will, and will cause each of its Subsidiaries to, take such action from time to time as shall be necessary to ensure that each of its Subsidiaries is a wholly owned Subsidiary; provided that the foregoing shall not prohibit any transaction permitted under **Sections 6.03(a), (b), (c), (f) or (g)**, so long as after giving effect to such permitted transaction each of the remaining Subsidiaries is a wholly owned Subsidiary.

(c) **Further Assurances.** The Borrower will, and will cause each of the Intermediate Entities and each of the Subsidiary Guarantors to, take such action from time to time as shall reasonably be requested by the Administrative Agent to effectuate the purposes and objectives of this Agreement. Without limiting the generality of the foregoing, the Borrower will, and will cause each of the Subsidiary Guarantors and each Intermediate Entity, to:

(i) take such action from time to time (including filing appropriate Uniform Commercial Code financing statements and executing and delivering such assignments, security agreements and other instruments) as shall be reasonably requested by the Administrative Agent to create, in favor of the Collateral Agent for the benefit of the Lenders (and any Affiliate thereof that is a party to any Hedging Agreement entered into with the Borrower), pursuant to the Security Documents perfected security interests and Liens in the Collateral; *provided* that any such security interest or Lien shall be subject to the relevant requirements of the Security Documents;

(ii) commencing no later than the date on which the Borrower delivers its first Borrowing Request to the Administrative Agent and at all times thereafter, with respect to each deposit account or securities account of an Obligor or an Intermediate Entity, (solely with respect to any account of an Intermediate Entity in which Investors fund Capital Contributions) (other than (A) any payroll account so long as such payroll account is coded as such, (B) withholding tax and fiduciary accounts or any trust account maintained solely on behalf of a Portfolio Investment, (C) checking accounts of the Obligors that do not contain, at any one time, an aggregate balance in excess of \$1,000,000, provided that Borrower will, and will cause each of its Subsidiary Guarantors to, use commercially reasonable efforts to obtain control agreements governing any such account in this **clause (C)**, (D) any account in which the aggregate value of deposits therein, together with all other such accounts under this **clause (D)**, does not at any time exceed \$75,000, and (E) any account established to receive tax distributions from any Portfolio Investment (*provided* that all funds deposited in such account are promptly remitted to pay taxes of such Obligor; *provided*, further that to the extent such account described under this **clause (E)** ceases to be an Excluded Account as a result of such account receiving a distribution from a Portfolio Investment, the Borrower shall have 30 days from the date such account ceases to be an Excluded Account to either transfer the funds in such account to an account subject to an Account Control Agreement or to obtain an Account Control Agreement with respect to such account); *provided* that in the case of each of the foregoing

clauses (A) through (E) (collectively, the “**Excluded Accounts**”), no other Person (other than the depository institution at which such account is maintained) shall have “**control**” over such account (within the meaning of the Uniform Commercial Code)), cause each bank or securities intermediary (within the meaning of the Uniform Commercial Code) to enter into such arrangements with the Collateral Agent as shall be appropriate in order that the Collateral Agent has “control” (within the meaning of the Uniform Commercial Code) over each such deposit account or securities account (each, a “**Control Account**”) and in connection therewith, the Borrower agrees, subject to **Sections 5.08(c)(iv)** below, to cause all Cash and other proceeds of Portfolio Investments (other than tax distributions) received by any Obligor to be immediately deposited into a Control Account (or otherwise delivered to, or registered in the name of, the Collateral Agent) or with respect to any Capital Contributions, to be paid directly into a Control Account, and, both prior to and following such deposit, delivery or registration such Cash and other proceeds shall be held in trust by the Borrower for and as the property of the Collateral Agent and shall not be commingled with any other funds or property of such Obligor or any other Person (including with any money or financial assets of the Borrower in its capacity as “**agent**” for any other Bank Loans subject to **Section 5.08(c)(iv)** below);

(iii) Each Company may withdraw funds from its Control Account at any time or from time to time, so long as at the time of such withdrawal and after giving effect thereto no Cash Control Event has occurred and is continuing, unless, in the case of a Borrowing Base Deficiency or a Default under **Section 7.01(a)** or **(b)**, the applicable Company has directed such withdrawn funds to be paid to Administrative Agent to pay any outstanding Obligations, in which case Administrative Agent may restrict withdrawals to be directed to such purpose, and may not deliver a notice exercising exclusive control under a control agreement unless a distinct Cash Control Event has occurred and is continuing, or results from Default in making such payment of Obligations. Any withdrawal by a Company from its Control Account will be deemed a representation and warranty that no Cash Control Event exists at such time or would result from such withdrawal.

(iv) in the event that any Obligor is acting as an agent or administrative agent under any loan documents with respect to any Bank Loan (or is acting in an analogous agency capacity under any note purchase agreements with respect to any Mezzanine Investment) and such Obligor does not hold all of the credit extended to the underlying borrower or issuer under the relevant underlying loan documents or note purchase agreements, ensure that (1) all funds held by such Obligor in such capacity as agent or administrative agent are segregated from all other funds of such Obligor and clearly identified as being held in an agency capacity (an “**Agency Account**”); (2) all amounts owing on account of such Bank Loan or Mezzanine Investment by the underlying borrower or other obligated party are remitted by such borrower or obligated party to either (A) such Agency Account or (B) directly to an account in the name of the underlying lender to whom such amounts are owed (for the avoidance of doubt, no funds representing amounts owing to more than one underlying lender may be remitted to any single account other than the Agency Account); and (3) within four Business Days after receipt of such funds, such Obligor acting in its capacity as agent or administrative agent shall distribute any such funds belonging to any Obligor to the Custodian Account (provided that if any distribution referred to in this **paragraph (c)** is not permitted by applicable bankruptcy law to be made within such four-Business Day period as a result of the bankruptcy of the underlying borrower, such Obligor shall use commercially reasonable efforts to obtain permission to

make such distribution and shall make such distribution as soon as legally permitted to do so); and

(v) cause all Portfolio Investments held by an Obligor that are Bank Loans (other than any Noteless Assigned Loan) to be evidenced by promissory notes in the name of such Obligor, cause such Obligor to be party to the underlying loan documents as a “***lender***” having a direct interest (or a participation not acquired from an Affiliate) in such underlying loan documents and the extensions of credit thereunder, and cause all such underlying loan and other documents relating to any such Portfolio Investment (including, without limitation, such promissory notes that are owned by an Obligor) to be held by (x) the Collateral Agent or (y) the Custodian pursuant to the terms of a Custodian Agreement and, unless delivered to the Collateral Agent, such Bank Loan shall be credited to the Custodian Account; *provided* that Borrower’s obligation to deliver underlying documentation (other than promissory notes, which must be delivered in the original) may be satisfied by delivery of copies of such underlying documentation; *provided, further*, that solely in the case of Portfolio Investments in which the Collateral Agent has a first-priority perfected security interest pursuant to a valid Uniform Commercial Code filing: (a) the Borrower shall have up to 10 Business Days following the acquisition of a Portfolio Investment to deliver an original promissory note with respect to such Portfolio Investment to the Collateral Agent or Custodian; and (b) the Borrower shall have up to 20 Business Days to return, transfer, assign or exchange any promissory note with respect to a Portfolio Investment in order to have new or additional notes issued in connection with the syndication, sale, transfer, assignment or exchange of a portion of such Portfolio Investment.

Notwithstanding anything to the contrary contained herein, if any instrument, promissory note, agreement, document or certificate held by the Custodian is destroyed or lost not as a result of any action of the Borrower, then any original of such instrument, promissory note, agreement, document or certificate shall be deemed held by the Custodian for all purposes hereunder, provided that, when the Borrower has actual knowledge of any such destroyed or lost instrument, promissory note, agreement, document or certificate, it uses all commercially reasonable efforts to obtain from the underlying borrower, and deliver to the Custodian, a replacement instrument, promissory note, agreement, document or certificate.

5.09 Use of Proceeds. The Borrower will use the proceeds of the Loans only for general corporate purposes of the Borrower and its Subsidiaries in the ordinary course of business, including making distributions not prohibited by this Agreement, making payments on indebtedness of the Borrower and its Subsidiaries to the extent permitted under this Agreement and the acquisition and funding (either directly or through one or more wholly-owned Subsidiary Guarantors) of leveraged loans, mezzanine loans, high-yield Securities, convertible Securities, preferred stock, common stock and other Investments; *provided* that neither the Administrative Agent nor any Lender shall have any responsibility as to the use of any of such proceeds. No part of the proceeds of any Loan will be used in violation of applicable law or, directly or indirectly, for the purpose, whether immediate, incidental or ultimate, of buying or carrying any Margin Stock. On the first day (if any) an Obligor acquires any Margin Stock or at any other time requested by the Administrative Agent or any Lender, the Borrower shall furnish to the Administrative Agent and each Lender a statement to the foregoing effect in conformity with the requirements of *FR Form G-3* or *FR Form U-1*, as applicable, referred to in Regulation U. Margin Stock shall be purchased by the Obligors only with the proceeds of Indebtedness not directly or indirectly secured by Margin Stock (within the meaning of Regulation U), or with the proceeds of equity capital of the Borrower.

5.10 [Reserved].

5.11 **Investment Policies.** The Borrower shall at all times be in compliance in all material respects with its Investment Policies.

5.12 **Portfolio Valuation and Diversification, Etc.**

(a) **Industry Classification Groups.** For purposes of this Agreement, the Borrower shall assign each Eligible Portfolio Investment to an Industry Classification Group as reasonably determined by the Borrower. To the extent that the Borrower reasonably determines that any Eligible Portfolio Investment is not correlated with the risks of other Eligible Portfolio Investments in an Industry Classification Group, such Eligible Portfolio Investment may be assigned by the Borrower to the Industry Classification Group that is most closely correlated to such Eligible Portfolio Investment.

(b) **Portfolio Valuation Etc.**

(i) **Settlement Date Basis.** For purposes of this Agreement, all determinations of whether an investment is to be included as an Eligible Portfolio Investment shall be determined on a settlement-date basis (meaning that any investment that has been purchased will not be treated as an Eligible Portfolio Investment until such purchase has settled, and any Eligible Portfolio Investment which has been sold will not be excluded as an Eligible Portfolio Investment until such sale has settled), provided that no such investment shall be included as an Eligible Portfolio Investment to the extent it has not been paid for in full.

(ii) **Determination of Values.** The Borrower will conduct reviews of the value to be assigned to each of its Eligible Portfolio Investments as follows:

(A) **Quoted Investments External Review.** With respect to Portfolio Investments (including Cash Equivalents) for which market quotations are readily available and are reflective of an active and orderly market (“*Quoted Investments*”), the Borrower shall, not less frequently than once each calendar week, determine the market value of such Quoted Investments which shall, in each case, be determined in accordance with one of the following methodologies as selected by the Borrower (each such value, an “*External Quoted Value*”):

(1) in the case of public and 144A Securities, the average of the bid prices as determined by two Approved Dealers selected by the Borrower,

(2) in the case of Bank Loans, the bid price as determined by one Approved Dealer selected by the Borrower,

(3) in the case of any Quoted Investment traded on an exchange, the closing price for such Quoted Investment most recently posted on such exchange, and

(4) in the case of any other Quoted Investment, the fair market value thereof as determined by an Approved Pricing Service.

(B) **Unquoted Investments - External Review.** With respect to Portfolio Investments for which market quotations are not readily available

(“**Unquoted Investments**”), the Borrower shall request an Approved Third-Party Appraiser to assist the Borrower in determining the fair market value of such Unquoted Investments, as at the last day of each fiscal quarter (values determined in accordance with this **subclause (B)** are referred to as “**Borrower External Unquoted Values**”), *provided* that:

(1) the Value of any such Unquoted Investment acquired during a fiscal quarter shall be deemed to be equal to the cost of such Unquoted Investment until such time as the fair market value of such Unquoted Investment is determined in accordance with the foregoing provisions of this **subclause (B)** as at the last day of such fiscal quarter; *provided* that with respect to any Unquoted Investment that is originated by the Borrower or any of its Affiliates and closes within 15 days prior to such valuation testing date (any such Unquoted Investment, a “**Recently Acquired Asset**”), the Borrower shall not be required to obtain such Value until the last day of the following fiscal quarter; and

(2) notwithstanding the foregoing, the Borrower may, without the assistance of an Approved Third-Party Appraiser, determine the fair market value of such Unquoted Investment so long as the aggregate Value thereof so determined does not at any time exceed 5% of the aggregate Portfolio Leverage Borrowing Base (excluding any Recently Acquired Assets from such fiscal quarter), except that the fair market value of any Portfolio Investment that has been determined without the assistance of an Approved Third-Party Appraiser as at the last day of any fiscal quarter or Testing Quarter shall be deemed to be zero as at the last day of the immediately succeeding fiscal quarter (but effective upon the date upon which the Borrowing Base Certificate for such last day is required to be delivered hereunder) if an Approved Third-Party Appraiser has not assisted the Borrower in determining the fair market value of such Unquoted Investment, as at such date.

(C) **Internal Review.** The Borrower shall conduct internal reviews to determine the value of all Portfolio Investments at least once each calendar week which shall take into account any events of which the Borrower has knowledge that adversely affect the value of any Portfolio Investment (each such value, an “**Internal Value**”). If the value of any Portfolio Investment as most recently determined by the Borrower pursuant to this **Section 5.12(b)(ii)(C)** is lower than the value of such Portfolio Investment as most recently determined pursuant to **Sections 5.12(b)(ii)(A)** and **(B)**, such lower value shall be deemed to be the “**Value**” of such Portfolio Investment for purposes hereof.

(D) **Failure of Borrower to Determine Values.** If the Borrower shall fail to determine the value of any Portfolio Investment as at any date pursuant to the requirements (but subject to the exclusions) of the foregoing **subclauses (A), (B)** or **(C)** then the “**Value**” of such Portfolio Investment for purposes of the Portfolio Leverage Borrowing Base as at such date shall be deemed to be zero.

(E) **Value of Quoted Investments.** Subject to **clauses (J)** and **(K)** of this **Section 5.12(b)(ii)**, the “**Value**” of each Quoted Investment for all

purposes of this Agreement shall be the lowest of (x) the Internal Value of such Quoted Investment as most recently determined by the Borrower pursuant to **Section 5.12(b)(ii)(C)** and the External Quoted Value of such Quoted Investment as most recently determined pursuant to **Section 5.12(b)(ii)(A)** and (y) the par or face value of such Quoted Investment.

(F) **Value of Unquoted Investments.** Subject to *clauses (G), (J) and (K)* of this **Section 5.12(b)(ii)**,

(1) if the Internal Value of any Unquoted Investment as most recently determined by the Borrower pursuant to **Section 5.12(b)(ii)(C)** falls below, or within, the range of the Borrower External Unquoted Value of such Unquoted Investment as most recently determined pursuant to **Section 5.12(b)(ii)(B)**, then the “Value” of such Unquoted Investment for all purposes of this Agreement shall be deemed to be the lower of (i) the Internal Value and (ii) the par or face value of such Unquoted Investment;

(2) if the Internal Value of any Unquoted Investment as most recently determined by the Borrower pursuant to **Section 5.12(b)(ii)(C)** falls above the range of the Borrower External Unquoted Value of such Unquoted Investment as most recently determined pursuant to **Section 5.12(b)(ii)(B)**, then the “Value” of such Unquoted Investment for all purposes of this Agreement shall be deemed to be the lower of (i) the midpoint of the range of the Borrower External Unquoted Value and (ii) the par or face value of such Unquoted Investment,

except that:

if an Unquoted Investment is either (1) a Recently Acquired Asset or (2) acquired during a fiscal quarter, the “Value” of such Unquoted Investment for such fiscal quarter shall be deemed to be equal to the lowest of (x) the Internal Value of such Unquoted Investment as determined by the Borrower pursuant to **Section 5.12(b)(ii)(C)** (if required), (y) the cost of such Unquoted Investment until such time as the Borrower External Unquoted Value of such Unquoted Investment is determined in accordance with **Section 5.12(b)(ii)(B)**, and (z) the par or face value of such Unquoted Investment.

(G) **Testing of Values.**

(1) For the second calendar month immediately following the end of each fiscal quarter (commencing with the fiscal quarter ending December 31, 2022) (the last such fiscal quarter is referred to herein as the “**Testing Quarter**”), the Administrative Agent shall cause an Approved Third-Party Appraiser selected by the Administrative Agent to value such number of Unquoted Investments (selected by the Administrative Agent) that collectively have an aggregate Value approximately equal to the Calculation Amount. If there is a difference between the Borrower’s valuation and the Approved Third-Party Appraiser’s valuation of any Unquoted Investment, the Value of such

Unquoted Investment for Portfolio Leverage Borrowing Base purposes shall be established as set forth in the third sentence of **subclause (K)** below.

(2) For the avoidance of doubt, the valuation of any Approved Third-Party Appraiser selected by the Administrative Agent would not be as at, or delivered at, the end of any fiscal quarter. Any such valuation would be as at the end of the second month immediately following any fiscal quarter and would be reflected in the Borrowing Base Certificate (to the extent required under **subclause (K)** below) for such month (provided that such Approved Third-Party Appraiser delivers such valuation at least seven Business Days before the 20th day after the end of the applicable monthly accounting period and, if such valuation is delivered after such time, it shall be included in the Borrowing Base Certificate (to the extent required under **subclause (K)** below) for the following monthly period (if a more recent valuation from an Approved Third Party Appraiser has not been otherwise provided as at such date) and applied to the then applicable balance of the related Portfolio Investment). For illustrative purposes, if the given fiscal quarter is the first quarter ending on March 31, 2023, then (A) the Administrative Agent would initiate the testing of Values (using the March 31, 2023 Calculation Amount for purposes of determining the scope of the testing under **subclause (E)(x)**) during the month of May with the anticipation of receiving the valuations from the Approved Third-Party Appraiser(s) on or after May 31, 2023 and (B)(xx) if such valuations were received before the 7th Business Day before June 20, 2023, such valuations would be included in the Borrowing Base Certificate delivered by June 20, 2023 covering the month of May, or (yy) if such valuations were received after such time, they would be included in the Borrowing Base Certificate delivered by July 20, 2023 for the month of June.

For the avoidance of doubt, all calculations of value pursuant to this **Section 5.12(b)(ii)(G)** shall be determined without application of the Advance Rates.

(H) Failure of Administrative Agent to Determine Values.

If the Administrative Agent shall fail to determine the value of any Portfolio Investment as at any date pursuant to **subclause (G)** as a result of any action, inaction or lack of cooperation of the Borrower or any of its Affiliates, then the “Value” of such Eligible Portfolio Investment for purposes of the Portfolio Leverage Borrowing Base shall be deemed to be zero.

(I) Actions Upon a Borrowing Base Deficiency. If, based upon the weekly internal review in **Section 5.12(b)(ii)(C)**, the Borrower determines that a Borrowing Base Deficiency exists, then the Borrower shall, promptly and in any event within two Business Days as provided in **Section 5.01(d)(vi)**, deliver a Borrowing Base Certificate reflecting the new amount of the Borrowing Base and shall take the actions, and make the payments and prepayments (if any), all as more specifically set forth in **Section 2.08(c)**.

(J) **Supplemental Testing of Values.** Notwithstanding the foregoing, the Administrative Agent, individually or at the request of the Required Lenders, shall at any time have the right to request any Portfolio Investment to be independently tested by an Approved Third-Party Appraiser selected by the Administrative Agent at any time. There shall be no limit on the number of such appraisals requested by the Administrative Agent and the cost of such valuation shall be at the expense of the Borrower; *provided* that the Borrower's obligation to reimburse valuation costs pursuant to this **Section 5.12(b)(ii)(J)** shall not exceed (unless an Event of Default shall have occurred and be continuing) the Supplemental Cap.

(K) **Valuation Dispute Resolution.** If the difference between the Borrower's valuation pursuant to **Section 5.12(b)(ii)(F)** and the valuation of any Approved Third-Party Appraiser retained by the Administrative Agent pursuant to **Section 5.12(b)(ii)(G)** or **Section 5.12(b)(ii)(J)** above is (1) less than 5% of the value thereof, then the Borrower's valuation shall be used, (2) between 5% and 20% of the value thereof, then the valuation of such Portfolio Investment shall be the average of the value determined by the Borrower and the value determined by the Approved Third-Party Appraiser retained by the Administrative Agent, and (3) greater than 20% of the value thereof, then either (i) the value shall be the lesser of the two values or (ii) if the Borrower so elects, the Borrower and the Administrative Agent shall retain (at the Borrower's sole cost and expense) an additional Approved Third-Party Appraiser and the value of such Portfolio Investment shall be the average of the three valuations (with the Administrative Agent's Approved Third-Party Appraiser value to be used until the third value is obtained). For purposes of this **Section 5.12(b)(ii)(K)**, if the valuation of any Approved Third-Party Appraiser retained by the Administrative Agent is a range, then Value shall be deemed the midpoint of the range. For the avoidance of doubt, such supplemental values shall be applicable only to and used only for determining value under this Agreement and shall not be deemed fair value of such asset under ASC Topic 820 for purposes of the Borrower's financial statements, the Investment Company Act or otherwise.

(iii) **Generally Applicable Valuation Provisions.**

(A) The Approved Third-Party Appraiser shall apply a recognized valuation methodology that is commonly accepted in the Borrower's industry for valuing Portfolio Investments of the type being valued and held by the Obligors. Other procedures relating to the valuation will be reasonably agreed upon by the Administrative Agent and the Borrower.

(B) All valuations shall be on a settlement date basis. For the avoidance of doubt, the value of any Portfolio Investments determined in accordance with any provision of this **Section 5.12** shall be the Value of such Portfolio Investment for purposes of this Agreement until a new Value for such Portfolio Investment is subsequently determined in good faith in accordance with this **Section 5.12**.

(C) Subject to the last sentence of **Section 9.03(a)**, the documented out-of-pocket costs of any valuation reasonably incurred by the Administrative Agent under this **Section 5.12** shall be at the expense of the

Borrower; *provided* that the Administrative Agent shall under no circumstances be required to incur expenses under **Section 5.12(b)(ii)(J)** in excess of the Supplemental Cap unless an Event of Default shall have occurred and is continuing).

(D) In addition, the values determined by the Approved Third-Party Appraiser shall be deemed to be “Information” hereunder and subject to **Section 9.13** hereof.

(E) The Administrative Agent shall provide a copy of the final results of any valuation received by the Administrative Agent and performed by the Approved Third-Party Appraiser to any Lender promptly upon such Lender’s request, except to the extent that such recipient has not executed and delivered a customary and reasonable non-reliance letter, confidentiality agreement or similar agreement requested or required by such Approved Third-Party Appraiser.

(F) The foregoing valuation procedures shall only be required to be used for purposes of calculating the Portfolio Leverage Borrowing Base and shall not be required to be utilized by the Borrower for any other purpose, including, without limitation, the delivery of financial statements or valuations required under ASC Topic 820 or the Investment Company Act.

(G) The Approved Third-Party Appraiser shall be instructed to conduct its tests in a manner not disruptive to the business of the Borrower. The Administrative Agent shall notify the Borrower of its receipt of the final results of any such test promptly upon its receipt thereof and shall provide a copy of such results and the related report to the Borrower promptly upon the Borrower’s request (subject to the Borrower entering into a non-reliance letter, confidentiality letter or similar agreement on market terms requested or required by the Approved Third-Party Appraiser and reasonably acceptable to the Borrower).

5.13 Calculation of Portfolio Leverage Borrowing Base. For purposes of this Agreement, the “*Portfolio Leverage Borrowing Base*” shall be determined, as at any date of determination, as the sum of the products obtained by multiplying (x) the Value of each Eligible Portfolio Investment by (y) the applicable Advance Rate, expressed as a fraction; *provided*, that:

(a) the Advance Rate applicable to the aggregate Value of all Eligible Portfolio Investments in their entirety shall be 0% at any time when the Portfolio Leverage Borrowing Base is composed entirely of Eligible Portfolio Investments issued by 7 or fewer different issuers; *provided* that at any time when the Portfolio Leverage Borrowing Base is composed entirely of Eligible Portfolio Investments issued by less than 8 or 9 different issuers, the Advance Rate applicable to each Eligible Portfolio Investment under this **Section 5.13** shall be multiplied by 0.5 (and, for the avoidance of doubt, no adjustment shall be made to the Advance Rate applicable to any Eligible Portfolio Investment under this Section when the Portfolio Leverage Borrowing Base is composed entirely of Eligible Portfolio Investments issued by 10 or more different issuers);

(b) the Advance Rate applicable to that portion of all Eligible Portfolio Investments in a single issuer that exceeds 7.5% of Obligors’ Net Capital shall be 50% of the Advance Rate otherwise applicable to such Eligible Portfolio Investments; *provided* that the

Advance Rate applicable to that portion of such Eligible Portfolio Investments that exceeds 10% of Obligors' Net Capital shall be 0%;

(c) the portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments in any single Industry Classification Group (other than the Largest Industry Classification Group and Second Largest Industry Classification Group) shall not exceed 15% of the Portfolio Leverage Borrowing Base and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 15% of the Portfolio Leverage Borrowing Base;

(d) the portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments in the Largest Industry Classification Group shall not exceed 25% of the Portfolio Leverage Borrowing Base and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 25% of the Portfolio Leverage Borrowing Base;

(e) the portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments in the Second Largest Industry Classification Group shall not exceed 20% of the Portfolio Leverage Borrowing Base and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 20% of the Portfolio Leverage Borrowing Base;

(f) the weighted average maturity of all Debt Eligible Portfolio Investments (based on the fair value of such Eligible Portfolio Investments to the extent included in the Portfolio Leverage Borrowing Base) shall not exceed 6.5 years, and the Portfolio Leverage Borrowing Base shall be reduced by removing Debt Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent necessary to cause the weighted average maturity of all Debt Eligible Portfolio Investments included in the Portfolio Leverage Borrowing Base to be no greater than 6.5 years (subject to all other constraints, limitations and restrictions set forth herein);

(g) the portion of the Portfolio Leverage Borrowing Base attributable to Debt Eligible Portfolio Investments with a maturity greater than 8 years shall not exceed 15% of the Portfolio Leverage Borrowing Base and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 15% of the Portfolio Leverage Borrowing Base;

(h) the Weighted Average Leverage Ratio of all Indebtedness senior to or *pari passu* with (and including) the Obligor's tranche (based on the fair value of Eligible Portfolio Investments to the extent included in the Borrowing Base) of all Eligible Portfolio Investments that represent indebtedness of the issuer shall not exceed 5.00x (provided that LTV Transactions may be excluded from such calculation), and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such Weighted Average Leverage Ratio would otherwise exceed 5.00x.

(i) the portion of the Portfolio Leverage Borrowing Base attributable to PIK Obligations and DIP Loans shall not exceed 15% of the Portfolio Leverage Borrowing Base and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 15% of the Portfolio Leverage Borrowing Base;

(j) the portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Cash, Cash Equivalents, Long-Term U.S. Government Securities, 10% Performing Covenant-Lite Loans or Performing First Lien Bank Loans, must equal or exceed 25% of the Portfolio Leverage Borrowing Base and the Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would not equal or exceed 25% of the Portfolio Leverage Borrowing Base;

(k) the portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Cash, Cash Equivalents, Long-Term U.S. Government Securities, 10% Performing Covenant-Lite Loans or Performing First Lien Bank Loans, Performing Last Out Loans, Performing Second Lien Bank Loans or Performing Secured High-Yield Securities must equal or exceed 80% of the Portfolio Leverage Borrowing Base and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would not otherwise equal or exceed 80% of the Portfolio Leverage Borrowing Base;

(l) the Weighted Average Fixed Coupon (after giving effect to any Hedging Agreement) shall not be less than the greater of (i) 8% and (ii) the one-month LIBO Rate or SOFR plus 4.5%, and the Portfolio Leverage Borrowing Base shall be reduced by removing Debt Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent necessary to cause the Weighted Average Fixed Coupon to be at least equal to the greater of (x) 8% and (y) the one-month LIBO Rate or SOFR plus 4.5% (subject to all other constraints, limitations and restrictions set forth herein);

(m) the Weighted Average Floating Spread (after giving effect to any Hedging Agreement) shall not be less than 4.5%, and the Portfolio Leverage Borrowing Base shall be reduced by removing Debt Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent necessary to cause the Weighted Average Floating Spread to be at least 4.5% (subject to all other constraints, limitations and restrictions set forth herein);

(n) the portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are LTV Transactions shall not exceed 15%, and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 15% of the Portfolio Leverage Borrowing Base;

(o) the portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments issued by Third Party Finance Companies shall not exceed 10%, and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 10% of the Portfolio Leverage Borrowing Base;

(p) the portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Foreign Eligible Portfolio Investments shall not exceed 15%, and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 15% of the Portfolio Leverage Borrowing Base; and

(q) the portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Affiliate Investments shall not exceed 20%, and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom

(but not from the Collateral) to the extent such portion would otherwise exceed 20% of the Portfolio Leverage Borrowing Base;

(r) the portion of the Portfolio Leverage Borrowing Base attributable to Warehouse Assets shall not exceed 30% of the Portfolio Leverage Borrowing Base and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 30% of the Portfolio Leverage Borrowing Base;

(s) the portion of the Portfolio Leverage Borrowing Base attributable to Performing Preferred Stock shall not exceed 5% of the Portfolio Leverage Borrowing Base and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 5% of the Portfolio Leverage Borrowing Base;

(t) the portion of the Portfolio Leverage Borrowing Base attributable to any Warehouse Asset shall be 0% from and after the termination of the Warehouse Asset Inclusion Period for such Portfolio Investment, and the Portfolio Leverage Borrowing Base shall be reduced by removing such Warehouse Asset therefrom (but not from the Collateral) unless such Warehouse Asset would otherwise meet the eligibility criteria for inclusion in the Portfolio Leverage Borrowing Base in accordance with and subject to the provisions hereof;

Notwithstanding anything in this **Section 5.13** to the contrary, the effective Advance Rate applied to the Value of all Eligible Portfolio Investments, after giving effect to the valuation criteria and concentration limits specified herein, (a) will not exceed 65%, at any time that the portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Cash, Cash Equivalents, Long-Term U.S. Government Securities, 10% Performing Covenant-Lite Loans or Performing First Lien Bank Loans, equals or exceeds 65% of the Portfolio Leverage Borrowing Base and (b) will not exceed 50%, at any time that the portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Cash, Cash Equivalents, Long-Term U.S. Government Securities, 10% Performing Covenant-Lite Loans or Performing First Lien Bank Loans, does not equal or exceed 65% of the Portfolio Leverage Borrowing Base; provided that, at any time of calculation of such Advance Rate, the portion of the Portfolio Leverage Borrowing Base attributable to Warehouse Assets subject to a Warehouse Asset Inclusion Period at such time, shall not be included in the calculation of such limit.

For the avoidance of doubt, no credit will be given in the Borrowing Base for (a) any (i) Capital Stock, (ii) warrants, options or other rights for the purchase or acquisition of Capital Stock or (iii) Securities convertible into or exchangeable for shares of Capital Stock, or (b) any Structured Finance Obligation.

For all purposes of this **Section 5.13**, (i) all issuers of Eligible Portfolio Investments that are Affiliates of one another shall be treated as a single issuer (unless such issuers are Affiliates of one another solely because they are under the common Control of the same private equity sponsor or similar sponsor) and (ii) to the extent the Portfolio Leverage Borrowing Base is required to be reduced to comply with this **Section 5.13**, the Borrower shall be permitted to choose the Portfolio Investments, or portions of such, to be so removed to effect such reduction. In addition, as used herein, the following terms have the following meanings:

“10% Performing Covenant-Lite Loans” means the portion of all Performing Covenant-Lite Loans in the Borrowing Base that are First Lien Bank Loans, to the extent that such portion does not exceed 10% of the Borrowing Base.

“**Advance Rate**” means, as to any Eligible Portfolio Investment and subject to adjustment as provided above, the following percentages with respect to such Eligible Portfolio Investment:

Eligible Portfolio Investment	Unquoted	Quoted
Cash and Cash Equivalents (including Short Term U.S. Government Securities)	n/a	100%
Long-Term U.S. Government Securities	n/a	85%
Performing First Lien Bank Loans and Performing DIP Loans	65%	75%
Performing Last Out Loans	55%	65%
Performing Second Lien Bank Loans	50%	60%
Performing Secured High Yield Securities	45%	55%
Performing Unsecured High Yield Securities, Performing Mezzanine Investments and Performing Covenant-Lite Loans	40%	50%
Performing PIK Obligations	35%	40%
Performing Preferred Stock	20%	30%

Additionally, during the Warehouse Asset Inclusion Period, the following additional Advance Rates shall apply to Warehouse Assets (the “**Warehouse Asset Advance Rates**”):

Eligible Portfolio Investment	Unquoted	Quoted
Performing Warehouse Assets constituting First Lien Bank Loans	70%	75%

For the avoidance of doubt, no asset shall be included in the Portfolio Leverage Borrowing Base in duplicate categories such that it would be counted toward the Borrowing Base more than once.

“**Bank Loans**” means debt obligations (including, without limitation, term loans, revolving loans, debtor-in-possession financings, the funded portion of revolving credit lines and letter of credit facilities and other similar loans and investments including interim loans, bridge loans and senior subordinated loans) that are generally provided under a syndicated loan or credit facility or pursuant to any loan agreement or other similar credit facility, whether or not syndicated.

“**Capital Stock**” has the meaning assigned to such term in **Section 1.01** of the Credit Agreement.

“**Cash**” has the meaning assigned to such term in **Section 1.01** of the Credit Agreement.

“**Cash Equivalents**” has the meaning assigned to such term in **Section 1.01** of the Credit Agreement.

“**Covenant-Lite Loan**” means a Bank Loan that does not require the borrower thereunder to comply with any financial covenants (including without limitation any covenant relating to a borrowing base, asset valuation or similar asset-based requirement) (regardless of whether compliance with one or more incurrence covenants is otherwise required by such Bank Loan).

“**Debt Eligible Portfolio Investment**” means an Eligible Portfolio Investment which is an Investment in Indebtedness.

“**Defaulted Obligation**” means any Investment in Indebtedness (i) as to which, (x) a default as to the payment of principal and/or interest has occurred and is continuing for a period of thirty two (32) consecutive days with respect to such Indebtedness (without regard to any grace period applicable thereto, or waiver thereof) or (y) a default not set forth in **clause (x)** has occurred and the holders of such Indebtedness have accelerated all or a portion of the principal amount thereof as a result of such default; (ii) as to which a default as to the payment of principal and/or interest has occurred and is continuing for a period of the lesser of the applicable grace period or five consecutive days with respect to such Indebtedness (without regard to any grace period applicable thereto, or waiver thereof) on another material debt obligation of the Portfolio Company under such Indebtedness which is senior or *pari passu* in right of payment to such Indebtedness; (iii) as to which the Portfolio Company under such Indebtedness or others have instituted proceedings to have such Portfolio Company adjudicated bankrupt or insolvent or placed into receivership and such proceedings have not been stayed or dismissed or such Portfolio Company has filed for protection under *Chapter 11* of the Bankruptcy Code (unless, in the case of **clause (ii)** or **(iii)**, such debt is a DIP Loan, in which case it shall not be deemed to be a Defaulted Obligation under such **clause**); (iv) as to which a default rate of interest has been and continues to be charged for more than 120 consecutive days, or foreclosure on collateral for such debt has been commenced and is being pursued by or on behalf of the holders thereof; or (v) as to which the Borrower has delivered written notice to the Portfolio Company declaring such Indebtedness in default or as to which the Borrower otherwise exercises significant remedies following a default.

“**DIP Loan**” means any loan (whether revolving or term) originated after the commencement of a case under Chapter 11 of the Bankruptcy Code by the Portfolio Company, which is a debtor-in-possession as described in *Section 1107* of the Bankruptcy Code or a debtor as defined in *Section 101(13)* of the Bankruptcy Code in such case (a “**Debtor**”) organized under the laws of the United States or any state therein and domiciled in the United States, which loan satisfies the following criteria: (a) the DIP Loan is duly authorized by a final order of the applicable bankruptcy court or federal district court under the provisions of *subsection (b), (c) or (d)* of 11 U.S.C. *Section 364*; (b) the Debtor’s bankruptcy case is still pending as a case under the provisions of Chapter 11 of Title 11 of the Bankruptcy Code and has not been dismissed or converted to a case under the provisions of *Chapter 7* of Title 11 of the Bankruptcy Code; (c) the Debtor’s obligations under such loan have not been (i) disallowed, in whole or in part, or (ii) subordinated, in whole or in part, to the claims or interests of any other Person under the provisions of 11 U.S.C. *Section 510*; (d) the DIP Loan is secured and the Liens granted by the applicable bankruptcy court or federal district court in relation to the Loan have not been subordinated or junior to, or *pari passu* with, in whole or in part, to the Liens of any other lender under the provisions of 11 U.S.C. *Section 364(d)* or otherwise; (e) the Debtor is not in default on its obligations under the loan; (f) neither the Debtor nor any party in interest has filed a Chapter 11 plan with the applicable federal bankruptcy or district court that, upon confirmation, would (i) disallow or subordinate the loan, in whole or in part, (ii) subordinate, in whole or in part, any Lien granted in connection with such loan, (iii) fail to provide for the repayment, in full and in Cash, of the loan upon the effective date of such plan or (iv) otherwise impair, in any manner, the claim evidenced by the loan; (g) the DIP Loan is documented in a form that is commercially reasonable; (h) the DIP Loan shall not provide for more than 50% (or a higher percentage with the consent of the Required Lenders) of the proceeds of such loan to be used to repay prepetition obligations owing to all or some of the same lender(s) in a “roll-up” or similar transaction; (i) no portion of the DIP Loan is payable in consideration other than Cash; and (j) no portion of the DIP Loan has been credit bid under *Section 363(k)* of the Bankruptcy Code or otherwise. For the purposes of this definition, an order is a “final order” if the applicable period for filing a motion to reconsider or notice of appeal in respect of a permanent order authorizing the Debtor to obtain credit has lapsed and no such motion or notice has been filed with the applicable bankruptcy court or federal district court or the clerk thereof.

“**EBITDA**” means the consolidated net income of the applicable Person (excluding extraordinary gains and extraordinary losses (to the extent excluded in the definition of “**EBITDA**” in the

relevant agreement relating to the applicable Eligible Portfolio Investment)) for the relevant period plus the following to the extent deducted in calculating such consolidated net income: (i) consolidated interest charges for such period; (ii) the provision for Federal, state, local and foreign income taxes payable for such period; (iii) depreciation and amortization expense for such period; and (iv) such other adjustments included in the definition of “*EBITDA*” (or similar defined term used for the purposes contemplated herein) in the relevant agreement relating to the applicable Eligible Portfolio Investment, provided that such adjustments are usual and customary and substantially comparable to market terms for substantially similar debt of other similarly situated borrowers at the time such relevant agreements are entered into as reasonably determined in good faith by the Borrower.

“*Enterprise Value*” shall be the value as of any given date as determined by the Approved Third Party Appraiser in its most recent valuation report provided in connection with such Portfolio Investment, except that (a) prior to the delivery of the first valuation report of the approved third party appraiser to be delivered after the Borrower’s acquisition of such Portfolio Investment (or if no such valuation report is delivered with respect to such Portfolio Investment), and/or (b) for Quoted Investments, the enterprise value of such Portfolio Company may be imputed by the Borrower in a commercially reasonable manner.

“*First Lien Bank Loan*” means a Bank Loan that is entitled to the benefit of a first lien and first priority perfected security interest on all or substantially all of the assets of the respective borrower and guarantors obligated in respect thereof, and which has the most senior pre-petition priority in any bankruptcy, reorganization, arrangement, insolvency, or liquidation proceedings; *provided, however*, that, in the case of accounts receivable and inventory (and the proceeds thereof), such lien and security interest may be second in priority to a Permitted Prior Working Capital Lien; and further provided that any portion of such a Bank Loan which has a total debt to EBITDA ratio above 4.00x will be deemed to be a Second Lien Bank Loan. For the avoidance of doubt, in no event shall a First Lien Bank Loan include a Last Out Loan, and LTV transactions shall not be subject to such 4.00x limit.

“*Fixed Rate Portfolio Investment*” means a Debt Eligible Portfolio Investment that bears interest at a fixed rate.

“*Floating Rate Portfolio Investment*” means a Debt Eligible Portfolio Investment that bears interest at a floating rate.

“*Foreign Eligible Portfolio Investment*” means Eligible Portfolio Investments with respect to which any or all of the following is true: (i) such Eligible Portfolio Investment is denominated and payable only in the Currency of a Permitted Foreign Jurisdiction, (ii) the issuer of such Eligible Portfolio Investment is organized under the laws of a Permitted Foreign Jurisdiction, (iii) the issuer of such Eligible Portfolio Investment is domiciled in a Permitted Foreign Jurisdiction, (iv) the issuer of such Eligible Portfolio Investment is organized under the laws of or is domiciled in a Permitted Foreign Tax Jurisdiction and, in the reasonable determination of the Investment Advisor, (x) the principal operations and property and assets of the “enterprise” consisting of the issuer of such Eligible Portfolio Investment and its subsidiaries that are pledged as collateral are located in the United States or a Permitted Foreign Jurisdiction and (y) the incorporation of such issuer in a Permitted Foreign Tax Jurisdiction does not adversely affect in any material respect the rights and remedies of the Borrower or the Lenders with respect to such Portfolio Investment, (v) the principal operations and property or any other assets of the issuer of such Eligible Portfolio Investment pledged as collateral are located in the United States or a Permitted Foreign Jurisdiction, or (vi) the only place of payment of such loans is a Permitted Foreign Jurisdiction or a Permitted Foreign Tax Jurisdiction.

“**High Yield Securities**” means debt Securities, in each case (a) issued by public or private issuers, (b) issued pursuant to an effective registration statement or pursuant to *Rule 144A* under the Securities Act (or any successor provision there under) and (c) that are not Cash Equivalents, Mezzanine Investments (described under *clause (i)* of the definition thereof) or Bank Loans.

“**Last Out Loan**” shall mean, with respect to any Bank Loan that is a term loan structured in a first out tranche and a last out tranche (with the first out tranche entitled to a lower interest rate but priority with respect to payments), that portion of such Bank Loan that is the last out tranche; *provided* that:

(a) such last out tranche is entitled (along with the first out tranche) to the benefit of a first lien and first priority perfected security interest on all or substantially all of the assets of the respective borrower and guarantors obligated in respect thereof, and which has the most senior pre-petition priority in any bankruptcy, reorganization, arrangement, insolvency, or liquidation proceedings;

(b) the ratio of (x) the amount of the first out tranche to (y) EBITDA of the underlying obligor does not at any time exceed 2.25x;

(c) such last out tranche (i) gives the holders of such last out tranche full enforcement rights during the existence of an event of default (subject to customary exceptions, including standstill periods and if the holders of the first out tranche have previously exercised enforcement rights), (ii) shall have the same maturity date as the first out tranche, (iii) is entitled to the same representations, covenants and events of default as the holders of the first out tranche (subject to customary exceptions), and (iv) provides the holders of such last out tranche with customary protections (including, without limitation, consent rights with respect to (1) any increase of the principal balance of the first out tranche by more than 15%, (2) any increase of the margins (other than as a result of the imposition of default interest) applicable to the interest rates with respect to the first out tranche by more than an additional 3.0%, (3) any reduction of the final maturity of the first out tranche, and (4) amending or waiving any provision in the underlying loan documents that is specific to the holders of such last out tranche); and

(d) such first out tranche is not subject to multiple drawings (unless, at the time of such drawing and after giving effect thereto, the ratio referenced in *clause (b)* above is not exceeded).

“**Liquidation Preference**” shall mean, with respect to Preferred Stock, the dollar amount required to be paid to the holder thereof upon any voluntary or involuntary liquidation, dissolution or winding up of the issuer of such Preferred Stock or the distribution of assets of such issuer that represents a return of capital or the purchase price paid for such Preferred Stock at the time of issuance of such Preferred Stock by such issuer.

“**Long-Term U.S. Government Securities**” means U.S. Government Securities maturing more than three months from the applicable date of determination.

“**LTV Transaction**” means any transaction that (i) does not include a financial covenant based on debt to EBITDA, debt to EBIT or a similar multiple of debt to operating cash flow, (ii) would customarily be deemed to be an asset-based or reserve-based transaction, and (iii) is designated as an LTV Transaction by the Borrower at the time of the initial investment.

“**Mezzanine Investments**” means (i) debt Securities (including convertible debt Securities (other than the “in-the-money” equity component thereof)) (a) issued by public or private Portfolio Companies, (b) issued without registration under the Securities Act, (c) not issued pursuant to Rule 144A under the Securities Act (or any successor provision thereunder), (d) that are not Cash Equivalents and (e) contractually subordinated in right of payment to other debt of the same Portfolio Company and (ii) a

Bank Loan (including a DIP Loan) that is not a First Lien Bank Loan, a Second Lien Bank Loan, a Covenant Lite Loan, a High Yield Security or a Last Out Loan.

“Noteless Assigned Loan” means a Bank Loan with respect to which: (a) the underlying documentation does not require the underlying borrower to execute and deliver a promissory note to evidence the indebtedness created under such Bank Loan; (b) none of the Borrower, the Investment Advisor, or any of their respective Affiliates was an agent with respect to such Bank Loan at the time of origination; and (c) the applicable Obligor has affirmatively requested a promissory note from the underlying agent and borrower and has used all commercially reasonable efforts to obtain such promissory note but has been unable to obtain a promissory note from the underlying borrower (but only for so long as the applicable Obligor has not received such a promissory note).

“Obligors’ Net Capital” means the sum of (x) Obligors’ Net Worth and (y) Unfunded Capital Commitments; *provided* that, for the purposes of this definition, Unfunded Capital Commitments shall not include any Unfunded Capital Commitments of any Excluded Investor.

“Performing” means with respect to any Eligible Portfolio Investment, (i) such Eligible Portfolio Investment is not a Defaulted Obligation and (ii) other than with respect to DIP Loans, does not represent debt of an issuer that has issued a Defaulted Obligation.

“Performing Covenant-Lite Loans” means Covenant Lite Loans that (a) are not PIK Obligations and (b) are Performing.

“Performing DIP Loans” means DIP Loans that are Performing.

“Performing First Lien Bank Loans” means First Lien Bank Loans that (a) are not PIK Obligations or Covenant-Lite Loans and (b) are Performing.

“Performing Last Out Loans” means Last Out Loans that (a) are not PIK Obligations or Covenant-Lite Loans and (b) are Performing.

“Performing Mezzanine Investments” means Mezzanine Investments that (a) are not PIK Obligations and (b) are Performing.

“Performing PIK Obligations” means PIK Obligations that are Performing.

“Performing Preferred Stock” means Preferred Stock of an issuer all of whose outstanding debt is Performing.

“Performing Second Lien Bank Loans” means Second Lien Bank Loans that (a) are not PIK Obligations or Covenant-Lite Loans and (b) are Performing.

“Performing Secured High Yield Securities” means Secured High Yield Securities that (a) are not PIK Obligations and (b) are Performing.

“Performing Unsecured High Yield Securities” means Unsecured High Yield Securities that (a) are not PIK Obligations and (b) are Performing.

“Permitted Foreign Jurisdiction” means Australia, Canada, Germany, Ireland, Luxembourg, New Zealand, Sweden, Switzerland, the United Kingdom, the Netherlands and each other country and jurisdiction agreed to by the Required Lenders.

“Permitted Foreign Tax Jurisdiction” means Netherlands Antilles, Bermuda, the Cayman Islands, the British Virgin Islands, the Channel Islands, the Isle of Man and each other country and jurisdiction agreed to by the Required Lenders.

“Permitted Prior Working Capital Lien” with respect to a Portfolio Company that is a borrower under a Bank Loan, a security interest to secure a working capital facility for such Portfolio Company in the accounts receivable and/or inventory (and the proceeds thereof) of such Portfolio Company and any of its subsidiaries that are guarantors of such working capital facility; *provided* that (i) such Bank Loan has a second priority lien on such accounts receivable and/or inventory, (ii) such working capital facility is not secured by any other assets (other than a second priority lien, subject to the first priority lien of the Bank Loan, on any other assets) and does not benefit from any standstill rights or other agreements (other than customary rights) with respect to any other assets and (iii) the maximum principal amount of such working capital facility is not at any time greater than 15% of the aggregate Enterprise Value of the Portfolio Company).

“PIK Obligation” is an obligation that provides that any portion of the interest accrued for a specified period of time or until the maturity thereof is, or at the option of the obligor may be, added to the principal balance of such obligation or otherwise deferred and accrued rather than being paid in Cash, provided that any such obligation shall not constitute a PIK Obligation if it (i) is a fixed rate obligation and requires payment of interest in Cash on an at least semi-annual basis at a rate of not less than 8% per annum or (ii) is not a fixed rate obligation and requires payment of interest in Cash on an at least semi-annual basis at a rate of not less than 4.5% per annum in excess of the applicable index.

“Preferred Stock”, as applied to the Capital Stock of any Person, means Capital Stock of such Person of any class or classes (however designated) that ranks prior, as to the payment of dividends or as to the distribution of assets upon any voluntary or involuntary liquidation, dissolution or winding up of such Person, to any shares (or other interests) of other Capital Stock of such Person, and shall include, without limitation, cumulative preferred, non-cumulative preferred, participating preferred and convertible preferred Capital Stock; provided that such Preferred Stock (i) pays a cash dividend on a monthly or quarterly basis, (ii) has a maturity date or is subject to mandatory redemption on a date certain that is not greater than ten (10) years from the date of initial issuance of such Preferred Stock and (iii) has a Liquidation Preference.

“Restructured Investment” means, as of any date of determination, (a) any Portfolio Investment that has been a Defaulted Obligation within the past six months, or (b) any Portfolio Investment that has in the past six months been on Cash non-accrual, or (c) any Portfolio Investment that has in the past six months been amended or subject to a deferral or waiver if both (i) the effect of such amendment, deferral or waiver is either, among other things, to (1) change the amount of previously required scheduled debt amortization (other than by reason of repayment thereof) or (2) extend the tenor of previously required scheduled debt amortization, in each case such that the remaining weighted average life of such Portfolio Investment is extended by more than 20% and (ii) the reason for such amendment, deferral or waiver is related to the deterioration of the credit profile of the underlying borrower such that, in the absence of such amendment, deferral or waiver, it is reasonably expected by the Borrower that such underlying borrower either (x) will not be able to make any such previously required scheduled debt amortization payment or (y) is anticipated to incur a breach of a material financial covenant. A Performing DIP Loan shall not be deemed to be a Restructured Investment.

“Second Lien Bank Loan” means a Bank Loan (other than a First Lien Bank Loan and a Last Out Loan) that is entitled to the benefit of a first and/or second lien and first and/or second priority perfected security interest on a substantial portion of the assets of the respective borrower and guarantors obligated in respect thereof.

“Secured High Yield Securities” means High Yield Securities that are entitled to the benefit of a first and/or second lien and first and/or second priority perfected security interest on all or substantially all of the assets of the respective borrower and guarantors obligated in respect thereof.

“Securities” means common and preferred stock, units and participations, member interests in limited liability companies, partnership interests in partnerships, notes, bonds, debentures, trust receipts and other obligations, instruments or evidences of indebtedness, including debt instruments of public and private issuers and tax-exempt Securities (including warrants, rights, put and call options and other options relating thereto, representing rights, or any combination thereof) and other property or interests commonly regarded as securities or any form of interest or participation therein, but not including Bank Loans.

“Securities Act” means the United States Securities Act of 1933.

“Short-Term U.S. Government Securities” means U.S. Government Securities maturing within three months of the applicable date of determination.

“Spread” means, with respect to Floating Rate Portfolio Investments, the Cash interest spread of such Floating Rate Portfolio Investment over the applicable LIBO Rate or SOFR-based rate; *provided*, that, in the case of any Floating Rate Portfolio Investment that does not bear interest by reference to the LIBO Rate or a SOFR-based rate, “Spread” shall mean the Cash interest spread of such Floating Rate Portfolio Investment over Term SOFR in effect as of the date of determination for deposits in U.S. dollars for a period of three months.

“Structured Finance Obligations” means any obligation issued by a special purpose vehicle (or any similar obligor) and secured directly by, referenced to, or representing ownership of, or investment in, a pool of receivables or other financial assets of any obligor, including collateralized loan obligations, collateralized debt obligations and mortgage-backed Securities, or any finance lease. For the avoidance of doubt, if an obligation satisfies this definition of “Structured Finance Obligation”, such obligation shall (a) not qualify as any other category of Portfolio Investment and (b) not be included in the Portfolio Leverage Borrowing Base. A Structured Finance Obligation shall not include a Third-Party Finance Company.

“Third Party Finance Company” means a Person that is (i) an operating company with employees, officers and directors, (ii) in the primary business of originating loans or factoring or financing receivables, inventory or other current assets, and (iii) an unaffiliated third party businesses organized under the laws of any State of the United States of America, domiciled in the United States of America, and with its principal operations and property located in the United States of America.

“Unsecured High Yield Securities” means High Yield Securities that are not Secured High Yield Securities.

“U.S. Government Securities” has the meaning assigned to such term in **Section 1.01** of the Credit Agreement.

“Value” means, means, with respect to any Eligible Portfolio Investment, the value thereof determined for purposes of the Credit Agreement in accordance with the “Valuation Methodology” described above.

“Warehouse Asset” means a First Lien Bank Loan (without consideration of the total debt to EBITDA requirement set forth in the last proviso of the definition of “First Lien Bank Loan”) that (a) is

designated as a “Warehouse Asset” upon its initial inclusion in the Borrowing Base by the Borrower in writing; (b) has an expected external Rating of CCC+ or higher; and (c) has a total debt to EBITDA ratio equal to or less than 6.0x; *provided, however*, that, any portion of such a Warehouse Asset which has a total debt to EBITDA ratio above 4.50x will be deemed to be a Second Lien Bank Loan for purposes of the definition of “***Warehouse Asset Advance Rate***”.

“***Warehouse Asset Advance Rate***” has the meaning set forth in the definition of “***Advance Rate***”.

“***Warehouse Asset Inclusion Period***” means, as to any Warehouse Asset, the period commencing on the date the Borrower first designates such First Lien Bank Loan as a Warehouse Asset upon its initial inclusion in the Borrowing Base through and including the date that is 120 days thereafter.

“***Weighted Average Fixed Coupon***” means, as of any date of determination, the number, expressed as a percentage, obtained by summing the products obtained by multiplying the Cash interest coupon of each Fixed Rate Portfolio Investment included in the Portfolio Leverage Borrowing Base as of such date by the outstanding principal balance of such Fixed Rate Portfolio Investment as of such date, dividing such sum by the aggregate outstanding principal balance of all such Fixed Rate Portfolio Investments and rounding up to the nearest 0.01%. For the purpose of calculating the Weighted Average Fixed Coupon, all Fixed Rate Portfolio Investments that are not currently paying Cash interest shall have an interest rate of 0%.

“***Weighted Average Floating Spread***” means, as of any date of determination, the number, expressed as a percentage, obtained by summing the products obtained by multiplying, in the case of each Floating Rate Portfolio Investment included in the Portfolio Leverage Borrowing Base, on an annualized basis, the Spread of such Floating Rate Portfolio Investments, by the outstanding principal balance of such Floating Rate Portfolio Investments as of such date and dividing such sum by the aggregate outstanding principal balance of all such Floating Rate Portfolio Investments and rounding the result up to the nearest 0.01%.

“***Weighted Average Leverage Ratio***” means, as of any date of determination, the number obtained by summing the products obtained by multiplying, in the case of each Debt Eligible Portfolio Investment included in the Portfolio Leverage Borrowing Base (other than Debt Eligible Portfolio Investments that are Quoted Investments with a Value above 90% of par value), the leverage ratio (the ratio of indebtedness for borrowed money to EBITDA expressed as a number) for the Portfolio Company of such Eligible Portfolio Investment of all Indebtedness for borrowed money (and excluding any capital lease obligations to the extent excluded from the leverage ratio in the underlying documentation of such Debt Eligible Portfolio Investment) that has a ranking of payment or lien priority senior to or *pari passu* with and including the tranche that includes the Borrower’s Eligible Portfolio Investment, by the fair value of such Eligible Portfolio Investment as of such date and dividing such sum by the aggregate of the fair values of all such Eligible Portfolio Investments and rounding the result up to the nearest 0.01.

5.14 Capital Calls.

(a) In order to secure further the payment and the performance of the Obligations and to effect and facilitate the right of the Secured Parties, the Borrower and each Intermediate Entity shall require that each of its Investors wire transfer to a Control Account all monies or sums paid or to be paid by the Investors pursuant to Capital Contributions pursuant to a Capital Call Notice. In addition, the Borrower shall deposit into a Control Account any payments and monies that Borrower or such Intermediate Entity receives directly from Investors as Capital Contributions in accordance with the Partnership Agreement or applicable Governing Agreement.

Deposits to a Control Account of any Intermediate Entity must promptly be funded to a Control Account of Borrower.

(b) During a Capital Call Trigger Period, the Administrative Agent may, in its discretion or at the request of the Required Lenders, exercise its rights against the Unfunded Capital Commitments, including the right to (i) call on such Unfunded Capital Commitments, (ii) make and enforce Capital Calls and (iii) receive Capital Contributions, in each case as set forth in **Section 7.03** hereof, in each case for the purpose of repaying the Obligations.

(c) In order that Lenders may monitor the Collateral and the Capital Commitments, neither Borrower nor any Intermediate Entity may issue any Capital Call Notice or otherwise request, notify, or demand that any Investor make any Capital Contribution, without delivering to Administrative Agent (which delivery may be via email or other mutually agreeable electronic means) promptly (and in any event within three Business Days of delivery of the Capital Call Notices to any Investors), copies of the Capital Call Notice for each Investor from whom a Capital Contribution is being sought, together with a schedule of amounts called from each Investor.

(d) Notwithstanding anything to the contrary herein contained, it is expressly understood and agreed that neither the Administrative Agent nor any other Secured Party undertakes any duties, responsibilities or liabilities with respect to the Capital Calls. None of them shall have any duty to determine or inquire into any happening or occurrence or any performance or failure of performance of any of the Borrower or any of the Investors. None of them shall have any duty to inquire into the use, purpose or reasons for the making of any Capital Call or the Investment or use of proceeds thereof. Notwithstanding anything to the contrary herein contained, in no event shall the exercise by Administrative Agent of any rights hereunder cause any Limited Partner to be liable for amounts in excess of such Limited Partner's Capital Commitment under the Partnership Agreement.

5.15 ERISA Deliverables.

(a) Prior to the date on which "benefit plan investors" (as defined in Section 3(42) of ERISA) would hold (based on commitments or otherwise) 25% or more of the total value of any class of equity interest in an Obligor (calculated in accordance with the Plan Assets Regulation), such Obligor will deliver to the Administrative Agent either: (i) an Operating Company Opinion; or (ii) such other certifications, in a form reasonably acceptable to Administrative Agent, to the effect that the Borrower satisfies another exception to holding Plan Assets (other than the Operating Company exception).

(b) To the extent an Obligor has delivered to Administrative Agent (i) an Operating Company Opinion pursuant to **Section 4.01(a)(xiii)** or **Section 5.15(a)(i)**, then by the sixtieth (60th) day of each Annual Valuation Period of such Obligor, such Obligor will deliver to the Administrative Agent an Operating Company Certificate; or (ii) a No Plan Asset Certificate pursuant to **Section 4.01(a)(xiii)** or such certifications set forth in **Section 5.15(a)(ii)**, then at the times described in **Section 5.01(a)**, such Obligor will deliver an updated No Plan Asset Certificate or written confirmation that such certifications described in **Section 5.01(a)(ii)** remain true and continue to apply.

Article VI.
NEGATIVE COVENANTS

Until the Termination Date, the Borrower covenants and agrees with the Lenders that:

6.01 **Indebtedness.** The Borrower will not, nor will it permit any of its Subsidiaries or Intermediate Entities to, create, incur, assume or permit to exist any Indebtedness, except:

- (a) Indebtedness created hereunder or under any other Loan Document;
- (b) Other Permitted Indebtedness and obligations arising with respect to Hedging Agreements permitted under **Section 6.04(c)** (it being understood that obligations under a Hedging Agreement shall be deemed equal to the net amount such Person would be obligated for under such Hedging Agreement if such Hedging Agreement was terminated at any time of determination), in an aggregate principal amount not to exceed \$5,000,000;
- (c) obligations payable to clearing agencies, brokers or dealers in connection with the purchase or sale of Securities in the ordinary course of business;
- (d) Indebtedness of the Borrower on account of the sale by the Borrower of the first out tranche of any First Lien Bank Loan that arises solely as an accounting matter under ASC 860; *provided* that such Indebtedness (i) is non-recourse to the Borrower and its Subsidiaries and (ii) would not represent a claim against the Borrower or any of its Subsidiaries in a bankruptcy, insolvency or liquidation proceeding of the Borrower or its Subsidiaries, in each case in excess of the amount sold or purportedly sold; and
- (e) Indebtedness of an Obligor to any other Obligor.

6.02 **Liens.** The Borrower will not, nor will it permit any of its Subsidiaries or any Intermediate Entity to, create, incur, assume or permit to exist any Lien on any property or asset now owned or hereafter acquired by it, or assign or sell any income or revenues (including accounts receivable) or rights in respect of any thereof except:

- (a) any Lien on any property or asset of the Borrower existing on the Effective Date and set forth in **Schedule 3.11(b)**, provided that (i) no such Lien shall extend to any other property or asset of the Borrower or any of its Subsidiaries, and (ii) any such Lien shall secure only those obligations which it secures on the Effective Date and extensions, renewals and replacements thereof that do not increase the outstanding principal amount thereof;
- (b) Liens created pursuant to the Security Documents (including Liens securing Hedging Agreement Obligations);
- (c) Permitted Liens;
- (d) Additional Liens securing Indebtedness not to exceed \$2,500,000 in the aggregate provided such Indebtedness is permitted under **Section 6.01(b)** of this Agreement; and
- (e) Liens on Special Equity Interests included in the Portfolio Investments but only to the extent securing obligations in the manner provided in the definition of “*Special Equity Interests*” in **Section 1.01**.

6.03 **Fundamental Changes.** The Borrower will not, nor will it permit any of its Subsidiaries or any Intermediate Entity to, enter into any transaction of merger or consolidation or amalgamation, or liquidate, wind up or dissolve itself (or suffer any liquidation or dissolution). The Borrower will not, nor will it permit any of its Subsidiaries or Intermediate Entities to, acquire any business or property from, or Capital Stock of, or be a party to any acquisition of, any Person, except for purchases or acquisitions of Portfolio Investments and other assets in the normal course of the day-to-day business activities of the Borrower and its Subsidiaries and not in violation of the terms and conditions of this Agreement or any other Loan Document. The Borrower will not, nor will it permit any of its Subsidiaries or Intermediate Entities to, convey, sell, lease, transfer or otherwise dispose of, in one transaction or a series of transactions, any part of its assets (including, without limitation, Cash, Cash Equivalents and Equity Interests), whether now owned or hereafter acquired, but excluding (x) assets (including Cash and Cash Equivalents but excluding Portfolio Investments) sold or disposed of in the ordinary course of business of the Borrower and its Subsidiaries (including to make expenditures of Cash in the normal course of the day-to-day business activities of the Borrower and its Subsidiaries) and (y) subject to the provisions of *paragraph (d)* below, Portfolio Investments.

Notwithstanding the foregoing provisions of this **Section**:

(a) any Subsidiary of the Borrower may be merged or consolidated with or into the Borrower or any other Subsidiary Guarantor; *provided* that if any such transaction shall be between a Subsidiary and a wholly owned Subsidiary Guarantor, the wholly owned Subsidiary Guarantor shall be the continuing or surviving corporation;

(b) any Subsidiary of the Borrower may sell, lease, transfer or otherwise dispose of any or all of its assets (upon voluntary liquidation or otherwise) to the Borrower or any wholly owned Subsidiary Guarantor of the Borrower;

(c) the Capital Stock of any Subsidiary of the Borrower may be sold, transferred or otherwise disposed of to the Borrower or any wholly owned Subsidiary Guarantor of the Borrower;

(d) the Obligors may sell, transfer or otherwise dispose of Portfolio Investments to unaffiliated third parties so long as prior to and immediately after giving effect to such sale, transfer or other disposition (and any concurrent acquisitions of Portfolio Investments or payment of outstanding Loans) there is no Borrowing Base Deficiency or, if there is a Borrowing Base Deficiency: (i) the sale price for such Portfolio Investment was in cash and for full value and (ii) such Borrowing Base Deficiency is not increased by virtue of such sale;

(e) the Borrower and its Subsidiaries may sell, lease, transfer or otherwise dispose of equipment or other property or assets that do not consist of Portfolio Investments in the ordinary course of business so long as the aggregate amount of all such sales, leases, transfer and dispositions does not exceed \$2,000,000 in any fiscal year;

(f) the Borrower may merge or consolidate with any other Person, so long as (i) the Borrower is the continuing or surviving entity in such transaction and (ii) at the time thereof and after giving effect thereto, no Default shall have occurred or be continuing; and

(g) any Subsidiary of the Borrower may be liquidated or dissolved; *provided* that (i) in connection with such liquidation or dissolution, any and all of the assets of such Subsidiary shall be distributed or otherwise transferred to the Borrower or any wholly-owned Subsidiary Guarantor of the Borrower and (ii) the Borrower determines in good faith that such

liquidation is in the best interest of the Borrower and is not materially disadvantageous to the Lenders.

6.04 **Investments.** The Borrower will not, nor will it permit any of its Subsidiaries to, acquire, make or enter into, or hold, any Investments except:

- (a) operating deposit accounts with banks;
- (b) Investments by the Borrower and the Subsidiary Guarantors in the Borrower and the Subsidiary Guarantors;
- (c) Hedging Agreements entered into in the ordinary course of the Borrower's financial planning and not for speculative purposes;
- (d) Portfolio Investments by the Borrower and its Subsidiaries to the extent such Portfolio Investments are permitted under the Investment Company Act (to the extent such applicable Person is subject to the Investment Company Act) and the Borrower's Investment Policies;
- (e) Investments in Cash and Cash Equivalents;
- (f) Investments described on *Schedule 3.12(b)* hereto; and
- (g) additional Investments up to but not exceeding \$5,000,000 in the aggregate (for purposes of this *paragraph (g)*, the aggregate amount of an Investment at any time shall be deemed to be equal to (A) the aggregate amount of Cash, together with the aggregate fair market value of property loaned, advanced, contributed, transferred or otherwise invested that gives rise to such Investment (calculated at the time such Investment is made), *minus* (B) the aggregate amount of dividends, distributions or other payments received in Cash in respect of such Investment, *provided that* in no event shall the aggregate amount of any Investment be less than zero, and *provided further* that the amount of any Investment shall not be reduced by reason of any write-off of such Investment, nor increased by way of any increase in the amount of earnings retained in the Person in which such Investment is made that have not been dividended, distributed or otherwise paid out).

6.05 **Restricted Payments.** The Borrower will not, nor will it permit any of its Subsidiaries or any Intermediate Entity to, declare or make, or agree to pay or make, directly or indirectly, any Restricted Payment, except that:

- (a) the Borrower may declare and pay dividends with respect to the Capital Stock of the Borrower payable solely in additional shares of the Borrower's common stock;
- (b) Subsidiaries of the Borrower may declare and pay Restricted Payments to the Borrower or any Subsidiary Guarantor;
- (c) the Borrower may issue dividends or make distributions, in each case not consisting of Recallable Capital, so long as prior to and immediately after giving effect to such Restricted Payments:
 - (i) the aggregate amount of Restricted Payments made pursuant to this *paragraph (c)* does not exceed the aggregate amount of net investment income (as

defined under GAAP) and net realized capital gains received by the Borrower from the Initial Closing Date to the date of such Restricted Payment (taking into account the Restricted Payment at issue); *provided* that the calculation of net investment income hereunder shall exclude one-time fees, costs and expenses related to this Agreement and the transactions contemplated hereby;

(ii) no Event of Default shall have occurred and be continuing provided that the requirement of this **clause (ii)** shall not apply with respect to any Tax Distribution so long as such Event of Default is not an Event of Default under **Section 7.01(a)** or **Section 7.01(b)** and so long as both before and after such dividend or distribution a Borrowing Base Deficiency does not exist;

(iii) prior to and immediately after giving effect to such Restricted Payment, the Covered Debt Amount does not exceed 90% of the Borrowing Base; *provided that* the requirement of this **Section 6.05(c)(iii)** shall not apply with respect to any Tax Distribution or distribution made solely with funds derived from net investment income (as such term is defined in accordance with GAAP); and

(iv) the Borrower shall be in *pro forma* compliance with the Partners' Capital Test, to the extent then applicable;

(d) the Borrower may make Restricted Payments (1) in connection with the Effective Date, each Subsequent Closing Date (in connection with the admission of new Investors or the increase in the Capital Commitments of existing Investors at such Subsequent Closing Date) and the Final Closing Date (in connection with the admission of new Investors or the increase in the Capital Commitments of existing Investors at the Final Closing Date), to return Capital Contributions to the Investors admitted prior to the Effective Date, such Subsequent Closing Date or the Final Closing Date, as applicable, in their capacity as such, solely pursuant to the Partnership Agreement, or (2) during the Availability Period, returns of capital consisting of Recallable Capital to Investors pursuant to the Partnership Agreement, so long as, in each case for (1) and (2), (i) prior to and immediately after giving effect to such Restricted Payment, (A)(x) the Covered Debt Amount does not exceed 90% of the Borrowing Base and (y) the Borrower shall have delivered an updated Borrowing Base Certificate demonstrating compliance with the preceding **clause (x)** and (B) no Default shall have occurred and be continuing; (ii) the full amount of such returned Capital Calls shall at all times be recallable in full and subject to future Capital Calls; *provided, that*, no such returned amount shall be included in the calculation of the Subscription Borrowing Base unless the Administrative Agent has been notified in accordance with the definition of "*Recallable Capital*"; and (iii) prior to and immediately after giving effect to such Restricted Payment, the Borrower shall be in *pro forma* compliance with the Partners' Capital Test, to the extent then applicable; and

(e) any Intermediate Entity may make, declare or make, or agree to pay or make, any Restricted Payment of Cash, Securities or other Property received, directly or indirectly, from a Restricted Payment by the Borrower that was permitted under this **Section 6.05**.

6.06 Certain Restrictions on Subsidiaries. The Borrower will not permit any of its Subsidiaries or any Intermediate Entity to enter into or suffer to exist any indenture, agreement, instrument or other arrangement (other than the Loan Documents) that prohibits or restrains, in each case in any material respect, or imposes materially adverse conditions upon, the incurrence or payment of Indebtedness, the granting of Liens, the declaration or payment of dividends, the making of loans, advances, guarantees or Investments or the sale, assignment, transfer or other disposition of property, except for any prohibitions

or restraints contained in (i) any Indebtedness permitted under **Section 6.01(b)** secured by a Lien permitted under **Section 6.02(d)** provided that such prohibitions and restraints are applicable by their terms only to the assets that are subject to such Lien (iii) any Indebtedness permitted under **Section 6.01(c)** secured by a Permitted Lien provided that such prohibitions and restraints are applicable by their terms only to the assets that are subject to such Lien, (iv) any agreement, instrument or other arrangement pertaining to any sale, lease or other disposition of any asset permitted by this Agreement so long as the applicable restrictions (x) only apply to such assets and (y) do not restrict prior to the consummation of such sale, lease or disposition the creation or existence of the Liens in favor of the Collateral Agent pursuant to the Security Documents or otherwise required by this Agreement, or the incurrence or payment of Indebtedness under this Agreement or the ability of the Borrower and its Subsidiaries to perform any other obligation under any of the Loan Documents and (v) any document, agreement, or instrument that imposes customary restrictions on Equity Interests.

6.07 Financial Covenants.

(a) On the last day of any fiscal quarter on which the Portfolio Leverage Borrowing Base represents more than 35% of the Borrowing Base, the Borrower will not permit the Partners' Capital of the Borrower to be less than 65% of Contributed Partners' Capital (the "**Partners' Capital Test**").

(b) Borrower will not permit the minimum ratio of Partners' Capital to total assets of the Borrower on a consolidated basis to be less than (i) 0% for the first six months following the Effective Date, (ii) 20% (A) for the period commencing on the six month anniversary of the Effective Date and ending nine months following the Effective Date and (B) for the period of six months following the Final Closing Date, and (ii) 33% at all other times.

6.08 Transactions with Affiliates. The Borrower will not, and will not permit any of its Subsidiaries or Intermediate Entities to, enter into any transactions with any of its Affiliates, even if otherwise permitted under this Agreement, except (i) transactions in the ordinary course of business at prices and on terms and conditions not less favorable to the Borrower or such Subsidiary (or, in the case of a transaction between an Obligor and a non-Obligor Subsidiary, not less favorable to such Obligor) than could be obtained at the time on an arm's-length basis from unrelated third parties, (ii) transactions between or among the Obligors not involving any other Affiliate, (iii) Restricted Payments permitted by **Section 6.05**, (iv) the transactions provided in the Affiliate Agreements as the same may be amended in accordance with **Section 6.11(a)**, (v) existing transactions with Affiliates as set forth in **Schedule 6.08** or (vi) the payment of compensation and reimbursement of expenses of directors in a manner consistent with current practice of the Borrower and general market practice, and indemnification to directors in the ordinary course of business.

6.09 Lines of Business. The Borrower will not, nor will it permit any of its Subsidiaries or Intermediate Entities to, engage to any material extent in any business other than in accordance with its Investment Policies.

6.10 No Further Negative Pledge. The Borrower will not, and will not permit any of its Subsidiaries or Intermediate Entities to, enter into any agreement, instrument, deed or lease which prohibits or limits the ability of any Obligor to create, incur, assume or suffer to exist any Lien upon any of its properties, assets or revenues, whether now owned or hereafter acquired, or which requires the grant of any security for an obligation if security is granted for another obligation, except the following: (a) this Agreement and the other Loan Documents; (b) covenants in documents creating Liens permitted by **Section 6.02** prohibiting further Liens on the assets encumbered thereby; (c) customary restrictions contained in leases not subject to a waiver; and (d) any other agreement that does not restrict in any manner

(directly or indirectly) Liens created pursuant to the Loan Documents on any Collateral securing the “**Secured Obligations**” under and as defined in the Guarantee and Security Agreement and does not require the direct or indirect granting of any Lien securing any Indebtedness or other obligation by virtue of the granting of Liens on or pledge of property of any Obligor or Intermediate Entity to secure the Loans or any Hedging Agreement.

6.11 **Modifications of Certain Documents.**

(a) The Borrower will not, and will not permit any of its Subsidiaries or Intermediate Entities to, consent to any modification, supplement or waiver of any of the Affiliate Agreements, unless such modification, supplement or waiver is not materially adverse to the rights, remedies or interests of the Lenders, in the reasonable discretion of the Administrative Agent.

(b) Other than with respect to Permitted Policy Amendments, the Borrower will not, and will not permit any of its Subsidiaries or Intermediate Entities to, amend, supplement, waive or otherwise modify in any material respect the Investment Policies as in effect on the Effective Date.

(c) The Borrower will promptly notify the Administrative Agent of any amendment, supplement, waiver or modification, in any respect, of the Partnership Agreement or any Intermediate Entities’ Governing Agreement or any other organizational document including, without limitation, any such amendment affecting the Investors’ debts, duties, obligations, and liabilities, or the rights, titles, security interests, Liens, powers and privileges of the Borrower, and any other Obligor, any Intermediate Entity, the General Partner, or the Secured Parties, or relating to Capital Call Notices, Capital Commitments, Capital Contributions or Unfunded Capital Commitments. Without the prior written consent of the Administrative Agent and each Lender, no Company will consummate any such amendment, supplement, waiver or modification that materially and adversely affects, in the sole discretion of the Administrative Agent, the rights of the Secured Parties. Notwithstanding the foregoing, without the consent of the Administrative Agent or the Lenders, the Borrower or any Intermediate Entity may amend the Partnership Agreement or any other organizational document: (i) to admit new Investors to the extent permitted by this Agreement; (ii) to reflect transfers of interests permitted by this Agreement; or (iii) to extend the Commitment Period (as defined in the Partnership Agreement).

(d) The Borrower will not amend, supplement, waive or modify any Subscription Document, to the extent such modifications would be materially adverse to the Administrative Agent or any of the Lenders, in the sole discretion of the Administrative Agent.

The Administrative Agent hereby acknowledges and agrees that the Borrower may, at any time and from time to time, without the consent of the Administrative Agent, freely amend, restate, terminate, or otherwise modify any documents, instruments and agreements evidencing, securing or relating to Indebtedness permitted pursuant to **Section 6.01(b)**, including (subject to any restrictions contained herein) increases in the principal amount thereof, modifications to the advance rates and/or modifications to the interest rate, fees or other pricing terms.

6.12 **Derivative Transactions.** The Borrower will not, nor will it permit any of its Subsidiaries to, enter into any derivative, swap or other similar transactions or agreements, except for repurchase agreements described in **clause (d)** of the definition of “*Cash Equivalents*” and for Hedging Agreements to the extent permitted pursuant to **Sections 6.01(b)** and **6.04(c)**.

6.13 **Side Letters.** Prior to the third anniversary of the Effective Date, neither the Borrower nor any Intermediate Entity will, nor will it permit any of its Subsidiaries to, enter into any new Side Letter or other arrangement on or after the Effective Date with any Person that would, in any case, be materially adverse to the Administrative Agent or any of the Lenders (in the sole discretion of the Administrative Agent). No later than five (5) Business Days prior to entering into any new or additional Side Letter, the applicable Company will deliver to the Administrative Agent a proposed draft of such Side Letter, and, if the Administrative Agent determines in its sole discretion that the Side Letter is adverse to the interests of the Administrative Agent or any Lender, the applicable Investor will be excluded from the Borrowing Base.

6.14 **Transfer by, or Admission of, Investors; Capital Events.**

(a) The Borrower may not permit the Transfer of the Subscribed Interest of any Investor without the prior written consent of the Administrative Agent, acting alone, which will not be unreasonably withheld or delayed.

(b) Designation of any transferee as a Borrowing Base Investor will require the consent of the Administrative Agent and all Lenders, each in its sole discretion.

(c) The Borrower shall not admit any Person as an additional Investor unless: (i) such Person is not currently Subject to Sanctions, (ii) such admission is effected in accordance with the terms of the applicable Governing Agreement, Subscription Agreement and any Side Letter, (iii) the Borrower has delivered a copy of such Investor's Subscription Agreement or assignment agreement and applicable Side Letter entered into with such Person and a revised **Schedule 3.21** to the Administrative Agent and (iv) such Person has provided the Administrative Agent and the Lenders with all documentation and other information reasonably requested by any of the Administrative Agent or the Lenders in writing or required by bank regulatory authorities under applicable "know your customer" and anti-money laundering rules and regulations, including the USA PATRIOT Act. The Borrower will give the Administrative Agent prior written notice of the admission of any additional Investor.

(d) The Borrower will give prior written notice to the Administrative Agent of any Capital Event with respect to any Investor, and will deliver copies of notices relating thereto, and, if such Capital Event is a Transfer by an Investor of its all or any portion of its Subscribed Interest, relevant documents relating to such Transfer, and information about the transferee as reasonably required by the Administrative Agent in order to effect its due diligence under this Agreement prior to such Transfer. The Borrower will require that any Person admitted as a substitute or new Investor (whether due to a Transfer by an existing Investor or otherwise) will, as a condition to such admission, deliver the documentation similar to that described in **Section 4.01(a)(xii)** satisfactory to the Administrative Agent in its reasonable discretion. In the event any Person is admitted as an additional or substitute Investor, the Borrower will promptly deliver to the Administrative Agent a revised **Schedule 3.21** to this Agreement, containing the names of each Investor and the Capital Commitments of each.

(e) Prior to the effectiveness of any Transfer or Capital Event with respect to any Borrowing Base Investor, Borrower will calculate whether, taking into account the Capital Commitments of the Borrowing Base Investors as if such Transfer or Capital Event had occurred, such Transfer or Capital Event would cause a Borrowing Base Deficiency to occur and Borrower will prepay any mandatory prepayment under **Section 2.08** that would result from such Transfer or Capital Event, and make any Capital Calls required to pay such mandatory prepayment prior to permitting such Transfer or Capital Event (and with respect to any transferring Investor or Investor

that is the subject of such Capital Event, the related Capital Contribution must have been made prior to permitting such Transfer or Capital Event).

6.15 Capital Commitments and Capital Events. The Borrower may not: (a) without the prior written consent of the Administrative Agent, effect or permit a Capital Event with respect to any Excluded Investor; and (b) without the prior written approval of the Administrative Agent and all Lenders: (i) issue any Capital Call Notices without complying with **Section 5.14(c)**; (ii) effect or permit a Capital Event with respect to any Borrowing Base Investor; or (iii) excuse any Investor from or permit any Investor to defer any Capital Contribution, if the proceeds from the related Capital Call Notice are to be applied to the Obligations hereunder. General Partner will not agree to release any Investor from its obligations under **Section 13.9** of the applicable Governing Agreement with respect to the Obligations, nor waive the requirements of such **Section 13.9**.

6.16 Alternative Investment Vehicles; Holding Vehicles; Parallel Funds.

(a) The Borrower shall not: (i) transfer the Unfunded Capital Commitments of any of its Investors to any Alternative Investment Vehicle, Holding Vehicle or Parallel Fund; (ii) cause Capital Calls to be made by any of its Investors to an Alternative Investment Vehicle, Holding Vehicle or Parallel Fund; or (iii) permit any Holding Vehicle to use any Capital Calls for any other purpose other than funding to the Borrower.

(b) Neither the General Partner nor the Borrower shall form or acquire any Holding Vehicle.

(c) No Holding Vehicle may directly acquire or hold Portfolio Investments.

6.17 Capital Calls. The Borrower will not make any contractual or other agreement with any Person which will restrict, limit, penalize or control its ability to make Capital Calls or the timing thereof.

6.18 Control Accounts. The Borrower will not direct, authorize or otherwise permit any proceeds, monies or sums paid by the Investors pursuant to any Capital Call to be deposited, credited or otherwise included in any account other than a Control Account.

6.19 Intermediate Entities. The Borrower shall not form or acquire any Intermediate Entity unless: (i) Borrower has provided prior written notice of the same, (ii) such Intermediate Entity has executed and delivered documents similar to those delivered by the Feeders on the Effective Date, and satisfied the conditions of **Section 4.01** that applied to the Feeders on the Effective Date and (iii) Borrower has delivered a replacement **Schedule 1.01(e)** including description of the Governing Agreement of such Intermediate Entity.

6.20 ERISA Compliance. (a) No Company nor any ERISA Affiliate may establish, maintain, contribute to, or incur any liability (contingent or otherwise) with respect to, any Plan that could reasonably be expected to result in a Material Adverse Effect; (b) without the approval of all Lenders, no Obligor may take any action or omit to take any action that would cause its underlying assets to constitute Plan Assets; (c) no Obligor may change its Annual Valuation Period without giving prior written notice to Administrative Agent; and (d) assuming the conditions of **Section 8.11** are true and correct, no Company may take any action, or omit to take any action, which would give rise to a “*non-exempt prohibited transaction*” under **Section 4975(c)(1)(A), (B), (C) or (D)** of the Code or **Section 406(a)** of ERISA and would subject Administrative Agent or Lenders to any Tax, penalty, damages or any other claim for relief under **Section 4975** of the Code or ERISA.

6.21 **Limitation on General Partner.** General Partner may not create or suffer to exist any Lien upon its Subscribed Interest in Borrower or any Intermediate Entity, nor may General Partner engage in any activities or operate any other business other than to serve as general partner of Borrower or any Intermediate Entity. General Partner will deliver to Administrative Agent, not later than fifteen (15) Business Days after the effectiveness thereof, a certified copy of any amendment, supplement, modification or change to its Governing Agreement. General Partner has not and will not delegate or transfer: (a) any of its rights to issue Capital Call Notices, (b) any of its rights to require that the Investors make Capital Contributions, (c) any other right or remedy relating to the Collateral hereunder (including enforcement of the Investors' obligations to make Capital Contributions in accordance with the Governing Agreements) or (d) any of its rights to consent to the Transfer by any Investor of its Subscribed Interest in Borrower or any Intermediate Entity or any Capital Event.

Article VII. EVENTS OF DEFAULT

7.01 **Events of Default.** If any of the following events ("*Events of Default*") shall occur and be continuing:

(a) the Borrower shall fail to pay any principal of any Loan (including, without limitation, any principal payable under **Section 2.08(b), (c) or (d)**) when and as the same shall become due and payable, whether at the due date thereof or at a date fixed for prepayment thereof or otherwise;

(b) the Borrower shall fail to pay any interest on any Loan or any fee or any other amount (other than an amount referred to in **paragraph(a)** of this **Section 7.01**) payable under this Agreement or under any other Loan Document, when and as the same shall become due and payable, and such failure shall continue unremedied for a period of three or more Business Days;

(c) any representation or warranty made or deemed made by or on behalf of any Company or any of its Subsidiaries in or in connection with this Agreement or any other Loan Document or any amendment or modification hereof or thereof, or in any report, certificate, financial statement or other document furnished pursuant to or in connection with this Agreement or any other Loan Document or any amendment or modification hereof or thereof, shall prove to have been incorrect when made or deemed made in any material respect (except that such materiality qualifier shall not be applicable to any representation or warranty already qualified by materiality or Material Adverse Effect);

(d) any Company shall fail to observe or perform any covenant, condition or agreement contained in (i) **Sections 5.01(d), (f) and (g), Section 5.02(a), Section 5.03** (with respect to the Borrower's and its Subsidiaries' existence only, and not with respect to the Borrower's and its Subsidiaries' rights, licenses, permits, privileges or franchises), **Sections 5.08(a), (b) or 5.08(c)(ii), Section 5.09, Section 5.12, Section 5.14(a), Section 5.14(c), Section 9.17(a)** or in **Article VI** or any Obligor shall default in the performance of any of its obligations contained in **Section 7** of the Guarantee and Security Agreement, or (ii) **Sections 5.01(h) or Sections 5.02(b), 5.02(c) or 5.02(d)** and, in the case of this **clause (ii)**, such failure shall continue unremedied for a period of five or more days after the Borrower has knowledge of such failure;

(e) the Borrower or any other Company, as applicable, shall fail to observe or perform any covenant, condition or agreement contained in this Agreement (other than those specified in **paragraphs (a), (b), (d)** of this **Section 7.01**) or any other Loan Document and such failure shall continue unremedied for a period of 30 or more days after the earlier of (i) notice

thereof from the Administrative Agent (given at the request of any Lender) to the Borrower or (ii) the Borrower having obtained actual knowledge thereof;

(f) the Borrower or any of its Subsidiaries shall fail to make any payment (whether of principal or interest and regardless of amount) in respect of any Material Indebtedness, when and as the same shall become due and payable, taking into account any applicable grace period;

(g) any event or condition occurs that (i) results in any Material Indebtedness becoming due prior to its scheduled maturity or (ii) shall continue unremedied for any applicable period of time sufficient to enable or permit the holder or holders of any Material Indebtedness or any trustee or agent on its or their behalf to, as a result of an event of default under such Material Indebtedness, cause such Material Indebtedness to become due, or to require the prepayment, repurchase, redemption or defeasance thereof, prior to its scheduled maturity, unless, in the case of this *clause (ii)*, such event or condition is no longer continuing or has been waived in accordance with the terms of such Material Indebtedness such that the holder or holders thereof or any trustee or agent on its or their behalf are no longer enabled or permitted to cause such Material Indebtedness to become due, or to require the prepayment, repurchase, redemption or defeasance thereof, prior to its scheduled maturity; *provided* that this *paragraph (g)* shall not apply to (1) secured Indebtedness that becomes due as a result of the voluntary sale or transfer of the property or assets securing such Indebtedness; or (2) convertible debt that becomes due as a result of a conversion, repurchase or redemption event; *provided* that such conversion, repurchase or redemption is settled only with Permitted Equity Interests (other than interest and expenses, which may be paid in Cash).

(h) an involuntary proceeding shall be commenced or an involuntary petition shall be filed seeking (i) liquidation, reorganization or other relief in respect of the Investment Advisor or any Company or any of its Subsidiaries or their respective debts, or of a substantial part of their respective assets, under any Federal, state or foreign bankruptcy, insolvency, receivership or similar law now or hereafter in effect or (ii) the appointment of a receiver, trustee, custodian, sequestrator, conservator or similar official for Investment Advisor, any Company or any of its Subsidiaries or for a substantial part of their respective assets, and, in any such case, such proceeding or petition shall continue undismissed and unstayed for a period of 60 or more days or an order or decree approving or ordering any of the foregoing shall be entered;

(i) Investment Advisor, any Company or any of its Subsidiaries shall (i) voluntarily commence any proceeding or file any petition seeking liquidation, reorganization or other relief under any Federal, state or foreign bankruptcy, insolvency, receivership or similar law now or hereafter in effect, (ii) consent to the institution of, or fail to contest in a timely and appropriate manner, any proceeding or petition described in *clause (i)*, (iii) apply for or consent to the appointment of a receiver, trustee, custodian, sequestrator, conservator or similar official for Investment Advisor, any Company or any of its Subsidiaries or for a substantial part of their respective assets, (iv) file an answer admitting the material allegations of a petition filed against it in any such proceeding, (v) make a general assignment for the benefit of creditors or (vi) take any action for the purpose of effecting any of the foregoing;

(j) Investment Advisor, any Company or any of its Subsidiaries shall become unable, admit in writing its inability or fail generally to pay its debts as they become due;

(k) one or more judgments for the payment of money in an aggregate amount in excess of \$5,000,000 shall be rendered against any Intermediate Entity, the Borrower or any of

its Subsidiaries or any combination thereof and (i) the same shall remain undischarged for a period of 30 consecutive days following the entry of such judgment during which 30 day period such judgment shall not have been vacated, stayed, discharged or bonded pending appeal, or liability for such judgment amount shall not have been admitted by an insurer of reputable standing, or (ii) any action shall be legally taken by a judgment creditor to attach or levy upon any assets of any Intermediate Entity, the Borrower or any of its Subsidiaries to enforce any such judgment;

(l) an ERISA Event shall have occurred that, when taken together with all other ERISA Events that have occurred, could reasonably be expected to result in a Material Adverse Effect;

(m) an Investment Advisor Departure Event shall occur;

(n) a Change in Control shall occur;

(o) the Liens created by the Security Documents shall, at any time with respect to Portfolio Investments held by Obligor having an aggregate Value in excess of 5% of the aggregate Value of all Portfolio Investments held by Obligor, not be, valid and perfected (to the extent perfection by filing, registration, recordation, possession or control is required herein or therein) in favor of the Collateral Agent (or any Company or any Affiliate of an Obligor shall so assert in writing), free and clear of all other Liens (other than Liens permitted under **Section 6.02** or under the respective Security Documents) except as a result of a disposition of Portfolio Investments in a transaction or series of transactions permitted under this Agreement and except to the extent that any such loss of perfection results from the failure of the Collateral Agent to maintain possession of certificates representing Securities pledged under the Guarantee and Security Agreement; provided that if such default is as a result of any action of the Administrative Agent or Collateral Agent or a failure of the Administrative Agent or Collateral Agent to take any action within its control, then there shall be no Default or Event of Default hereunder unless such default shall continue unremedied for a period of 10 consecutive Business Days after the earlier of (i) the Borrower becoming aware of such default and (ii) the Borrower's receipt of written notice of such default thereof from the Administrative Agent, unless, in each case, the continuance thereof is a result of a failure of the Collateral Agent or Administrative Agent to take an action within their control (and the Borrower has requested that the Collateral Agent or Administrative Agent to take such action);

(p) except for expiration in accordance with its terms, any of the Security Documents shall for whatever reason be terminated or cease to be in full force and effect in any material respect, or the enforceability thereof shall be contested by any Company or declared ineffective, illegal or inoperative or in any way whatsoever ceases to give or provide the respective Liens, security interest, rights, titles, interest remedies, powers or privileges intended to be created thereby, or there shall be any actual invalidity of any guaranty thereunder or any Company or any Affiliate of a Company shall so assert any of the foregoing in writing;

(q) General Partner repudiates, challenges, or declares unenforceable its obligation to make contributions to the capital of Borrower or any Intermediate Entity pursuant to its Capital Commitments or otherwise disaffirms the provisions of any applicable Governing Agreement, or fails to make a contribution to the capital of Borrower or any Intermediate Entity when required; or

(r) Investors having Capital Commitments aggregating 15% or greater of the aggregate Capital Commitments of all Investors default in their obligation to fund any Capital Call

within 15 Business Days' written notice of such Capital Call, *provided that* no Event of Default will occur under this *clause (r)* if the Portfolio Leverage Borrowing Base is greater than or equal to 110% of the Covered Debt Amount;

then, and in every such event (other than an event described in *paragraphs(h), (i) or (j)* of this **Section 7.01**), and at any time thereafter during the continuance of such event, the Administrative Agent may, and at the request of the Required Lenders shall, by notice to the Borrower, take the following actions, at the same or different times: (i) terminate the Commitments, and thereupon the Commitments shall terminate immediately, (ii) declare the Loans then outstanding to be due and payable in whole (or in part, in which case any principal not so declared to be due and payable may thereafter be declared to be due and payable), and thereupon the principal of the Loans so declared to be due and payable, together with accrued interest thereon and all fees and other obligations of the Borrower accrued hereunder and under the other Loan Documents, shall become due and payable immediately, without presentment, demand, protest or other notice of any kind, all of which are hereby waived by the Borrower; and in case of any event described in *paragraphs(h), (i) or (j)* of this **Section 7.01**, the Commitments shall automatically terminate and the principal of the Loans then outstanding, together with accrued interest thereon and all fees and other obligations of the Borrower accrued hereunder and under the other Loan Documents, shall automatically become due and payable, without presentment, demand, protest or other notice of any kind, all of which are hereby waived by the Borrower; (iii) without notice of default or demand, pursue and enforce any of the Administrative Agent's or the Lender's rights and remedies under the Loan Documents, or as otherwise provided under or pursuant to any applicable law or agreement. Upon the occurrence of any Cash Control Event, the Administrative Agent shall have the right to exercise exclusive control over the Control Accounts and restrict any Company from making withdrawals therefrom, other than to repay the Obligations.

7.02 Certain Actions with Respect to Capital Calls. The Collateral Agent, on behalf of the Secured Parties, is hereby authorized, during a Capital Call Trigger Period, to (i) initiate one or more Capital Calls pursuant to the terms and conditions of the Security Documents in order to pay the Loans then due and owing, (ii) notify the Investors to make all payments due or to become due with respect to their Capital Commitments directly to the applicable Control Account, (iii) take or bring in the name of the Borrower or the General Partner, or that of the Secured Parties, all steps, actions, suits or proceedings permitted under the Loan Documents and deemed by the Administrative Agent necessary or desirable to effect possession or collection of payments of the Capital Commitments, (iv) complete any contract or agreement of the Borrower or the General Partner in any way related to payment of any of the Capital Commitments, (v) make allowances or adjustments related to the Capital Commitments, (vi) compromise any claims related to the Capital Commitments or (vii) exercise any other right, privilege, power or remedy provided to the Borrower or the General Partner under any Governing Agreement or the Subscription Agreements with respect to the Capital Commitments and permitted under the Loan Documents. Regardless of any provision hereof, in the absence of gross negligence or willful misconduct by the Administrative Agent, Collateral Agent or the Secured Parties, neither the Administrative Agent nor the Collateral Agent or the Secured Parties shall be liable for failure to collect or for failure to exercise diligence in the collection, possession, or any transaction concerning, all or part of the Capital Calls or the Capital Commitment or sums due or paid thereon, nor shall they be under any obligation whatsoever to anyone by virtue of the security interests and Liens relating to the Capital Commitment, subject to the Internal Revenue Code. The Administrative Agent shall give the Borrower notice of actions taken pursuant to this **Section 7.02** concurrently with, or promptly after, the taking of such action, but its failure to give such notice shall not affect the validity of such action, nor shall such failure give rise to defenses to the Borrower's obligations hereunder. The Administrative Agent is hereby authorized to execute any documents or take any other actions specified in this **Section 7.02** in pursuance of the powers granted to it pursuant to the irrevocable power of attorney granted to it by the Borrower and the General Partner pursuant to **Section 7.03**. Upon the

Collateral Agent's exercise of rights under clause (i) above during a Capital Call Trigger Period, Borrower agrees to cause any Intermediate Entity issuing a Capital Call for the purposes of repayment of the Obligations to require Capital Contributions to be funded as equity contributions, and not as debt, in accordance with the applicable Governing Agreement.

7.03 Additional Action Relating to Capital Calls. At any time during a Capital Call Trigger Period, issuance by the Collateral Agent on behalf of the Secured Parties of a receipt (or issuance by any Intermediate Entity of a receipt on their behalf) to any Person obligated to pay any Capital Contribution shall be a full and complete release, discharge and acquittance to such Person to the extent of any amount so paid to the Administrative Agent for the benefit of the Secured Parties (or to the Borrower or any Intermediate Entity on their behalf) so long as such amounts shall not be invalidated, declared to be fraudulent or preferential, set aside or required to be repaid to a trustee, receiver or any other Person under any insolvency law, state or federal law, common law or equitable doctrine. The Collateral Agent, on behalf of the Secured Parties, is hereby authorized and empowered, on behalf of the Borrower or the General Partner, to endorse the name of the Borrower or the General Partner upon any check, draft, instrument, receipt, instruction or other document or items, including, but not limited to, all items evidencing payment upon a Capital Contribution coming into the Administrative Agent's possession, and to apply the proceeds therefrom in accordance with the terms hereof. The Administrative Agent is hereby authorized to execute any documents or take any actions specified in this **Section 7.03** in pursuance of the powers granted to it pursuant to the irrevocable power of attorney granted to it by the Borrower and the General Partner pursuant to this **Section 7.03**. The Administrative Agent, on behalf of the Secured Parties, is hereby granted an irrevocable power of attorney, which is coupled with an interest and given by way of security to secure the performance of the Obligations, to, during a Capital Call Trigger Period, execute all checks, drafts, receipts, instruments, instructions or other documents, agreements, or items on behalf of the Borrower or the General Partner, either before or after demand of payment of the Obligations, as shall be deemed by the Administrative Agent to be necessary or advisable, in the sole discretion of the Administrative Agent, to protect the first priority security interests and Liens in the Collateral or the repayment of the Obligations, and none of the Administrative Agent or the Secured Parties, in the absence of gross negligence and willful misconduct, shall incur any liability in connection with or arising from the exercise of such power of attorney.

7.04 CAM Exchange. Notwithstanding anything to the contrary contained herein, on the CAM Exchange Date, to the extent not otherwise prohibited by law, (a) the Commitments shall automatically and without further act be terminated, the Lenders shall automatically and without further act be deemed to have exchanged interests in the Designated Obligations such that, in lieu of the interests of each Lender in the Designated Obligations under each Loan in which it shall participate as of such date, such Lender shall own an interest equal to such Lender's CAM Percentage in the Designated Obligations under each of the Loans, whether or not such Lender shall previously have participated therein, and (b) simultaneously with the deemed exchange of interests pursuant to **clause (a)** above, the interests in the Designated Obligations to be received in such deemed exchange shall, automatically and with no further action required, be converted into the Dollar Equivalent of such amount (as of the Business Day immediately prior to the CAM Exchange Date) and on and after such date all amounts accruing and owed to the Lenders in respect of such Designated Obligations shall accrue and be payable in Dollars at the rate otherwise applicable hereunder. Each Lender, each Person acquiring a participation from any Lender as contemplated by **Section 9.04** and the Borrower hereby consents and agrees to the CAM Exchange. It is understood and agreed that the CAM Exchange, in itself, will not affect the aggregate amount of Designated Obligations owing by the Obligor. The Borrower and the Lenders agree from time to time to execute and deliver to the Administrative Agent all such promissory notes and other instruments and documents as the Administrative Agent shall reasonably request to evidence and confirm the respective interests and obligations of the Lenders after giving effect to the CAM Exchange, and each Lender agrees to surrender any promissory notes originally received by it in connection with its Loans hereunder to the Administrative

Agent against delivery of any promissory notes so executed and delivered; *provided* that the failure of the Borrower to execute or deliver or of any Lender to accept such promissory note, instrument or document shall not affect the validity or effectiveness of the CAM Exchange.

As a result of the CAM Exchange, on and after the CAM Exchange Date, each payment received by the Administrative Agent pursuant to any Loan Document in respect of the Designated Obligations shall be distributed to the Lenders pro rata in accordance with their respective CAM Percentages (to be redetermined as of each such date of payment). Any direct payment received by a Lender on or after the CAM Exchange Date, including by way of set-off, in respect of a Designated Obligation shall be paid over to the Administrative Agent for distribution to the Lenders in accordance herewith.

Article VIII.

THE ADMINISTRATIVE AGENT AND COLLATERAL AGENT

8.01 Appointment of the Administrative Agent. Each of the Lenders hereby irrevocably appoints the Administrative Agent as its agent hereunder and under the other Loan Documents and authorizes the Administrative Agent to take such actions on its behalf and to exercise such powers as are delegated to the Administrative Agent by the terms hereof or thereof, together with such actions and powers as are reasonably incidental thereto.

8.02 Capacity as Lender. The Person serving as the Administrative Agent hereunder shall have the same rights and powers in its capacity as a Lender as any other Lender and may exercise the same as though it were not the Administrative Agent, and such Person and its Affiliates may accept deposits from, lend money to and generally engage in any kind of business with the Borrower or any Subsidiary or other Affiliate thereof as if it were not the Administrative Agent hereunder.

8.03 Limitation of Duties; Exculpation. The Administrative Agent shall not have any duties or obligations except those expressly set forth herein and in the other Loan Documents. Without limiting the generality of the foregoing, (a) the Administrative Agent shall not be subject to any fiduciary or other implied duties, regardless of whether a Default has occurred and is continuing, (b) the Administrative Agent shall not have any duty to take any discretionary action or exercise any discretionary powers, except discretionary rights and powers expressly contemplated hereby or by the other Loan Documents that the Administrative Agent is required to exercise in writing by the Required Lenders, and (c) except as expressly set forth herein and in the other Loan Documents, the Administrative Agent shall not have any duty to disclose, and shall not be liable for the failure to disclose, any information relating to the Borrower or any of its Subsidiaries that is communicated to or obtained by the bank serving as Administrative Agent or any of its Affiliates in any capacity. The Administrative Agent shall not be liable for any action taken or not taken by it with the consent or at the request of the Required Lenders (or such other number or percentage of the Lenders as shall be necessary, or as the Administrative Agent shall believe in good faith shall be necessary, under the circumstances as provided in **Section 9.02** and **Article VII** of this Agreement) or in the absence of its own gross negligence or willful misconduct. The Administrative Agent shall be deemed not to have knowledge of any Default unless and until written notice thereof is given to the Administrative Agent by the Borrower or a Lender, and the Administrative Agent shall not be responsible for or have any duty to ascertain or inquire into (i) any statement, warranty or representation made in or in connection with this Agreement or any other Loan Document, (ii) the contents of any certificate, report or other document delivered hereunder or thereunder or in connection herewith or therewith, (iii) the performance or observance of any of the covenants, agreements or other terms or conditions set forth herein or therein, (iv) the validity, enforceability, effectiveness or genuineness of this Agreement, any other Loan Document or any other agreement, instrument or document, or (v) the satisfaction of any condition set forth in **Article IV** or elsewhere herein or therein, other than to confirm receipt of items expressly required to be delivered to the Administrative Agent. Furthermore, the

Administrative Agent shall not be responsible or have any liability for, or have any duty to ascertain, inquire into, monitor or enforce, compliance with the provisions hereof relating to Disqualified Lenders. Without limiting the generality of the foregoing, the Administrative Agent shall not (x) be obligated to ascertain, monitor or inquire as to whether any Lender or Participant or prospective Lender or Participant is a Disqualified Lender or (y) have any liability with respect to or arising out of any assignment or participation of Loans, or disclosure of confidential information, to any Disqualified Lender; *provided* that notwithstanding anything in this Agreement or any other Loan Document to the contrary, a Disqualified Lender (other than a Disqualified Lender who became a Lender with the consent of the Borrower (to the extent then required) shall not have any voting or consent rights under or with respect to any Loan Document or constitute a “Lender” (or be, or have its Loans and Commitments, included in the calculation of total Loans or Commitments outstanding or in the determination of “Required Lenders” or “Lenders directly affected” pursuant to **Section 9.02**) for any voting or consent rights under or with respect to any Loan Document; *provided further* that (A) the Commitment of a Disqualified Lender may not be increased, extended or reinstated, (B) the principal of a Disqualified Lender’s Loans may not be reduced or forgiven, and (C) the interest rate applicable to Obligations owing to a Disqualified Lender may not be reduced, in each case, without the consent of such Disqualified Lender.

8.04 Reliance. The Administrative Agent shall be entitled to rely upon, and shall not incur any liability for relying upon, any notice, request, certificate, consent, statement, instrument, document or other writing (including any electronic message, Internet or intranet website posting or other distribution) believed by it to be genuine and to have been signed or sent by the proper Person. The Administrative Agent also may rely upon any statement made to it orally or by telephone and believed by it to be made by the proper Person, and shall not incur any liability for relying thereon. The Administrative Agent may consult with legal counsel, independent accountants and other experts selected by it, and shall not be liable for any action taken or not taken by it in accordance with the advice of any such counsel, accountants or experts.

8.05 Sub-Agents. The Administrative Agent may perform any and all its duties and exercise its rights and powers by or through any one or more sub-agents appointed by the Administrative Agent. The Administrative Agent and any such sub-agent may perform any and all its duties and exercise its rights and powers through their respective Related Parties. The exculpatory provisions of the preceding paragraphs shall apply to any such sub-agent and to the Related Parties of the Administrative Agent and any such sub-agent, and shall apply to their respective activities in connection with the syndication of the credit facilities provided for herein as well as activities as Administrative Agent.

8.06 Resignation; Successor Administrative Agent. The Administrative Agent may resign at any time by notifying the Lenders and the Borrower. Upon any such resignation, the Required Lenders shall have the right, with the consent of the Borrower not to be unreasonably withheld (provided that no such consent shall be required if an Event of Default has occurred and is continuing), to appoint a successor. If no successor shall have been so appointed by the Required Lenders and shall have accepted such appointment within 30 days after the retiring Administrative Agent gives notice of its resignation, then the retiring Administrative Agent’s resignation shall nonetheless become effective and (1) the retiring Administrative Agent shall be discharged from its duties and obligations hereunder and (2) the Required Lenders shall perform the duties of the Administrative Agent (and all payments and communications provided to be made by, to or through the Administrative Agent shall instead be made by or to each Lender directly) until such time as the Required Lenders appoint a successor agent as provided for above in this *paragraph*. Upon the acceptance of its appointment as Administrative Agent hereunder by a successor, such successor shall succeed to and become vested with all the rights, powers, privileges and duties of the retiring (or retired) Administrative Agent and the retiring Administrative Agent shall be discharged from its duties and obligations hereunder (if not already discharged therefrom as provided above in this *paragraph*). The fees payable by the Borrower to a successor Administrative Agent shall be the same as

those payable to its predecessor unless otherwise agreed between the Borrower and such successor. After the Administrative Agent's resignation hereunder, the provisions of this *Article* and **Section 9.03** shall continue in effect for its benefit in respect of any actions taken or omitted to be taken by it while it was acting as Administrative Agent.

8.07 Reliance by Lenders. Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

8.08 Modifications to Loan Documents. Except as otherwise provided in **Section 9.02(b)** or **9.02(d)** with respect to this Agreement, the Administrative Agent may, with the prior consent of the Required Lenders (but not otherwise), consent to any modification, supplement or waiver under any of the Loan Documents; *provided* that, without the prior consent of each Lender, the Administrative Agent shall not (except as provided herein or in the Security Documents) release all or substantially all of the Collateral or otherwise terminate all or substantially all of the Liens under any Security Document providing for collateral security, agree to additional obligations being secured by all or substantially all of such collateral security, or alter the relative priorities of the obligations entitled to the benefits of the Liens created under the Security Documents with respect to all or substantially all of the Collateral, except that no such consent shall be required, and the Administrative Agent is hereby authorized, to (1) release any Lien covering property that is the subject of either a disposition of property permitted hereunder or a disposition of less than all or substantially all of the Collateral to which the Required Lenders have consented and (2) release from the Guarantee and Security Agreement any "Subsidiary Guarantor" (and any property of such Subsidiary Guarantor) which is no longer required to be a "Subsidiary Guarantor", so long as in the case of this *clause (2)*: (A) immediately after giving effect to any such release (and any concurrent acquisitions of Portfolio Investments or payment of outstanding Indebtedness) the Covered Debt Amount does not exceed the Borrowing Base and the Borrower delivers a certificate of the Managing Member or a Financial Officer to such effect to the Administrative Agent, (B) either (I) the amount of any excess availability under the Borrowing Base immediately prior to such release is not diminished as a result of such release or (II) the Borrowing Base immediately after giving effect to such release is at least 120% of the Covered Debt Amount and (C) no Event of Default has occurred and is continuing.

8.09 Appointment of the Collateral Agent. Each of the Lenders hereby irrevocably appoints the Collateral Agent as its agent hereunder and under the other Loan Documents pursuant to the terms of the Guarantee and Security Agreement and authorizes the Collateral Agent to take such actions on its behalf and to exercise such powers as are delegated to the Collateral Agent by the terms hereof or thereof, together with such actions and powers as are reasonably incidental thereto.

8.10 Erroneous Payments

(a) Each Lender hereby agrees that (i) if the Administrative Agent notifies such Lender that the Administrative Agent has determined in its sole discretion that any funds received by such Lender from the Administrative Agent or any of its Affiliates were erroneously transmitted to, or otherwise erroneously or mistakenly received by, such Lender (whether or not known to such Lender) (whether as a payment, prepayment or repayment of principal, interest, fees or otherwise; individually and collectively, a "**Erroneous Payment**") and

demands the return of such Erroneous Payment (or a portion thereof), such Lender shall promptly, but in no event later than one Business Day thereafter, return to the Administrative Agent the amount of any such Erroneous Payment (or portion thereof) as to which such a demand was made, in same day funds (in the currency so received), together with interest thereon in respect of each day from and including the date such Erroneous Payment (or portion thereof) was received by such Lender to the date such amount is repaid to the Administrative Agent in same day funds at the greater of the Federal Funds Effective Rate and a rate determined by the Administrative Agent in accordance with banking industry rules on interbank compensation from time to time in effect and (ii) to the extent permitted by applicable law, such Lender shall not assert any right or claim to the Erroneous Payment, and hereby waives, any claim, counterclaim, defense or right of set-off or recoupment with respect to any demand, claim or counterclaim by the Administrative Agent for the return of any Erroneous Payments received, including without limitation waiver of any defense based on “discharge for value” or any similar doctrine. A notice of the Administrative Agent to any Lender under this **clause (a)** shall be conclusive, absent manifest error.

(b) Without limiting immediately preceding **clause (a)**, each Lender hereby further agrees that if it receives an Erroneous Payment from the Administrative Agent (or any of its Affiliates) (x) that is in a different amount than, or on a different date from, that specified in a notice of payment sent by the Administrative Agent (or any of its Affiliates) with respect to such Erroneous Payment (an “**Erroneous Payment Notice**”), (y) that was not preceded or accompanied by an Erroneous Payment Notice, or (z) that such Lender otherwise becomes aware was transmitted, or received, in error or by mistake (in whole or in part), in each case, an error has been made (and that it is deemed to have knowledge of such error at the time of receipt of such Erroneous Payment) with respect to such Erroneous Payment, and to the extent permitted by applicable law, such Lender shall not assert any right or claim to the Erroneous Payment, and hereby waives, any claim, counterclaim, defense or right of set-off or recoupment with respect to any demand, claim or counterclaim by the Administrative Agent for the return of any Erroneous Payments received, including without limitation waiver of any defense based on “discharge for value” or any similar doctrine. Each Lender agrees that, in each such case, it shall promptly (and, in all events, within one Business Day of its knowledge (or deemed knowledge) of such error) notify the Administrative Agent of such occurrence and, upon demand from the Administrative Agent, it shall promptly, but in all events no later than one Business Day thereafter, return to the Administrative Agent the amount of any such Erroneous Payment (or portion thereof) as to which such a demand was made in same day funds (in the currency so received), together with interest thereon in respect of each day from and including the date such Erroneous Payment (or portion thereof) was received by such Lender to the date such amount is repaid to the Administrative Agent in same day funds at the greater of the Federal Funds Effective Rate and a rate determined by the Administrative Agent in accordance with banking industry rules on interbank compensation from time to time in effect

(c) The Borrower and each other Company hereby agrees that (x) in the event an Erroneous Payment (or portion thereof) is not recovered from any Lender that has received such Erroneous Payment (or portion thereof) for any reason, the Administrative Agent shall be subrogated to all the rights of such Lender with respect to such amount and (y) an Erroneous Payment shall not pay, prepay, repay, discharge or otherwise satisfy any Obligations owed by the Borrower or any other Company.

(d) Each party’s obligations under this **Section 8.09** shall survive the resignation or replacement of the Administrative Agent, the termination of the Commitments or the repayment, satisfaction or discharge of all Obligations (or any portion thereof) under any Loan Document.

8.11 Certain ERISA Matters.

(a) Each Lender (x) represents and warrants, as of the date such Person became a Lender party hereto, to, and (y) covenants, from the date such Person became a Lender party hereto to the date such Person ceases being a Lender party hereto, for the benefit of, the Administrative Agent, the Arranger, and their respective Affiliates, and not, for the avoidance of doubt, to or for the benefit of any Company, that at least one of the following is and will be true:

(i) such Lender is not using Plan Assets in connection with the Loans, the Commitments and the Loan Documents;

(ii) the transaction exemption set forth in one or more prohibited transaction class exemption issued by the U.S. Department of Labor, as any such exemption may be amended from time to time (“*PTEs*”), such as PTE 84-14 (a class exemption for certain transactions determined by independent qualified professional asset managers), PTE 95-60 (a class exemption for certain transactions involving insurance company general accounts), PTE 90-1 (a class exemption for certain transactions involving insurance company pooled separate accounts), PTE 91-38 (a class exemption for certain transactions involving bank collective investment funds) or PTE 96-23 (a class exemption for certain transactions determined by in-house asset managers), is applicable and the conditions of such exemption are satisfied with respect to such Lender’s entrance into, participation in, administration of and performance of the Loans, the Commitments and the Loan Documents;

(iii) (A) such Lender is an investment fund managed by a “Qualified Professional Asset Manager” (within the meaning of Part VI of PTE 84-14), (B) such Qualified Professional Asset Manager made the investment decision on behalf of such Lender to enter into, participate in, administer and perform the Loans, the Letters of Credit, the Commitments and the Loan Documents, (C) the entrance into, participation in, administration of and performance of the Loans, the Letters of Credit, the Commitments and the Loan Documents satisfies the requirements of sub-sections (b) through (g) of Part I of PTE 84-14 and (D) to the best knowledge of such Lender, the requirements of subsection (a) of Part I of PTE 84-14 are satisfied with respect to such Lender’s entrance into, participation in, administration of and performance of the Loans, the Commitments and the Loan Documents; or

(iv) such other representation, warranty and covenant as may be agreed in writing between the Administrative Agent, in its sole discretion, and such Lender.

(b) In addition, unless either (1) sub-clause (i) in the immediately preceding clause (a) is true with respect to a Lender or (2) a Lender has provided another representation, warranty and covenant in accordance with sub-clause (iv) in the immediately preceding clause (a), such Lender further (x) represents and warrants, as of the date such Person became a Lender party hereto, to, and (y) covenants, from the date such Person became a Lender party hereto to the date such Person ceases being a Lender party hereto, for the benefit of, the Administrative Agent, the Arranger, and their respective Affiliates, and not, for the avoidance of doubt, to or for the benefit of any Company, that none of the Administrative Agent, the Arranger, or their respective Affiliates is a fiduciary with respect to the assets of such Lender involved in the Loans, the Commitments and the Loan Documents (including in connection with the reservation or exercise of any rights by the Administrative Agent under this Agreement, any Loan Document or any documents related to hereto or thereto).

Article IX.
MISCELLANEOUS

9.01 Notices; Electronic Communications.

(a) **Notices Generally.** Except in the case of notices and other communications expressly permitted to be given by telephone, all notices and other communications provided for herein shall be in writing and shall be delivered by hand or overnight courier service, mailed by certified or registered mail or sent by telecopy or (to the extent permitted by **Section 9.01(b)**) e-mail to each party at its address set forth on **Schedule 9.01**:

Any party hereto may change its address or telecopy number or e-mail address for notices and other communications hereunder by notice to the other parties hereto. All notices and other communications given to any party hereto in accordance with the provisions of this Agreement shall be deemed to have been given on the date of receipt. Notices delivered through electronic communications to the extent provided in **paragraph (b)** below, shall be effective as provided in said **paragraph (b)**.

(b) **Electronic Communications.** Notices and other communications to the Lenders hereunder may be delivered or furnished by electronic communication (including e-mail and Internet or intranet websites) pursuant to procedures approved by the Administrative Agent; *provided* that the foregoing shall not apply to notices to any Lender if such Lender has notified the Administrative Agent that it is incapable of receiving notices by electronic communication. The Administrative Agent or the Borrower may, in its discretion, agree to accept notices and other communications to it hereunder by electronic communications pursuant to procedures approved by it; *provided that* approval of such procedures may be limited to particular notices or communications. Without limiting the foregoing, the Borrower hereby acknowledges that the Administrative Agent or the Arranger may, but is not obligated to, make available to Lenders materials and/or information provided by or on behalf of the Borrower hereunder (collectively, **“Borrower Materials”**), by posting Borrower Materials on Debt Domain, IntraLinks, SyndTrak, ClearPar or another substantially similar electronic transmission system (the **“Platform”**).

Unless the Administrative Agent otherwise prescribes, (i) notices and other communications sent to an e-mail address shall be deemed received upon the sender’s receipt of an acknowledgement from the intended recipient (such as by the “return receipt requested” function, as available, return e-mail or other written acknowledgement); *provided* that if such notice or other communication is not sent during the normal business hours of the recipient, such notice or communication shall be deemed to have been sent at the opening of business on the next business day for the recipient, and (ii) notices or communications posted to an Internet or intranet website shall be deemed received upon the deemed receipt by the intended recipient at its e-mail address as described in the foregoing **clause (i)** of notification that such notice or communication is available and identifying the website address therefor.

(c) **Documents to be Delivered under Sections 5.01 and 5.12(a).** For so long as the Platform is available to each of the Lenders hereunder, the Borrower may satisfy its obligation to deliver documents to the Administrative Agent or the Lenders under **Sections 5.01** and **5.12(a)** by delivering one hard copy thereof to the Administrative Agent and either an electronic copy or a notice identifying the website where such information is located for posting by the Administrative Agent the Platform, provided that the Administrative Agent shall have no responsibility to maintain access to the Platform.

9.02 Waivers; Amendments.

(a) **No Deemed Waivers Remedies Cumulative.** No failure or delay by the Administrative Agent or any Lender in exercising any right or power hereunder shall operate as a waiver thereof nor shall any single or partial exercise of any such right or power, or any abandonment or discontinuance of steps to enforce such a right or power, preclude any other or further exercise thereof or the exercise of any other right or power. The rights and remedies of the Administrative Agent and the Lenders hereunder are cumulative and are not exclusive of any rights or remedies that they would otherwise have. No waiver of any provision of this Agreement or consent to any departure by the Borrower therefrom shall in any event be effective unless the same shall be permitted by *paragraph (b)* of this *Section*, and then such waiver or consent shall be effective only in the specific instance and for the purpose for which given. Without limiting the generality of the foregoing, the making of a Loan shall not be construed as a waiver of any Default, regardless of whether the Administrative Agent or any Lender may have had notice or knowledge of such Default at the time.

(b) **Amendments to this Agreement.** Neither this Agreement nor any provision hereof may be waived, amended or modified except pursuant to an agreement or agreements in writing entered into by the Borrower and the Required Lenders or by the Borrower and the Administrative Agent with the consent of the Required Lenders; *provided* that, subject to *Section 2.16*, no such agreement shall:

(i) increase the Commitment of any Lender without the written consent of such Lender,

(ii) reduce the principal amount of any Loan or reduce the rate of interest thereon, or reduce any fees payable hereunder, without the written consent of each Lender directly affected thereby,

(iii) postpone the scheduled date of payment of the principal amount of any Loan, or any interest thereon, or any fees payable to a Lender hereunder, or reduce the amount or waive or excuse any such payment, or postpone the scheduled date of expiration of any Commitment, without the written consent of each Lender directly affected thereby,

(iv) change *Section 2.15(b), (c)* or *(d)* in a manner that would alter the pro rata sharing of payments, or making of disbursements, required thereby without the written consent of each Lender directly affected thereby,

(v) change any of the provisions of this *Section* or the percentage in the definition of the term “Required Lenders” or any other provision hereof specifying the number or percentage of Lenders required to waive, amend or modify any rights hereunder or make any determination or grant any consent hereunder, without the written consent of each Lender;

(vi) change any of the provisions of the definition of the term “Agreed Foreign Currency” or any other provision hereof specifying the Foreign Currencies in which each Multicurrency Lender must make Multicurrency Loans, or make any determination or grant any consent hereunder with respect to the definition of “Agreed Foreign Currencies” without the written consent of each Multicurrency Lender; or

(vii) change, in any way adverse to the Lenders, the provisions of this Agreement relating to the Subscription Borrowing Base (including the definitions used therein and definitions constituting components of such definitions);

provided further that (x) no such agreement shall amend, modify or otherwise affect the rights or duties of the Administrative Agent or the Collateral Agent hereunder or under any Loan Document without the prior written consent of the Administrative Agent, or the Collateral Agent, as applicable, and (y) the consent of Lenders holding not less than two-thirds of the total Revolving Credit Exposures and unused Commitments will be required for (A) change adverse to the Lenders affecting the provisions of this Agreement relating to the Portfolio Leverage Borrowing Base (including the definitions used therein and definitions constituting components of such definitions), or the provisions of **Section 5.12(b)(ii)** or (B) any release of any material portion of the Collateral other than for fair value or as otherwise permitted hereunder or under the other Loan Documents.

(c) **Voting Relating to Bankruptcy.** Each Lender is entitled to vote as such Lender sees fit on any reorganization plan that affects the Loans, and each Lender acknowledges that the provisions of *Section 1126(c)* of the Bankruptcy Code supersede any unanimous consent provisions set forth herein; and (ii) the Required Lenders may consent to allow Borrower to use Cash collateral in the context of a bankruptcy or insolvency proceeding;

(d) **Amendments to Security Documents.** No Security Document nor any provision thereof may be waived, amended or modified, except to the extent otherwise expressly contemplated by such Security Document; *provided* that, subject to **Section 2.16**, (i) without the written consent of the holders of not less than two-thirds of the total Revolving Credit Exposures and unused Commitments, no waiver, amendment or modification to any Security Document shall (A) release any Obligor representing more than 10% of the Partners' Capital and Unfunded Commitments in the Borrower from its obligations under the Security Documents, (B) release any guarantor representing more than 10% of the Partners' Capital and Unfunded Commitments in the Borrower under the Guarantee and Security Agreement from its guarantee obligations thereunder, or (C) amend the definition of "*Collateral*" under the Security Documents (except to add additional collateral) and (ii) without the written consent of each Lender, no such agreement shall (W) release all or substantially all of the Obligors from their respective obligations under the Security Documents, (X) release all or substantially all of the collateral security or otherwise terminate all or substantially all of the Liens under the Security Documents, or (Y) release all or substantially all of the guarantors under the Guarantee and Security Agreement from their guarantee obligations thereunder; except that no such consent described in *clause (i)* or *(ii)* above shall be required, and the Administrative Agent is hereby authorized (and so agrees with the Borrower) to direct the Collateral Agent under the Security Documents to release any Lien covering property (and to release any such guarantor) that is the subject of either a disposition of property permitted hereunder or a disposition to which the Required Lenders or the required number or percentage of Lenders have consented, or otherwise in accordance with **Section 9.15**.

(e) **Replacement of Non-Consenting Lender.** If, in connection with any proposed amendment, waiver or consent requiring (i) the consent of "each Lender" or "each Lender affected thereby," or (ii) the consent of "two-thirds of the holders of the total Revolving Credit Exposures and unused Commitments", the consent of the Required Lenders is obtained, but the consent of other necessary Lenders is not obtained (any such Lender whose consent is necessary but not obtained being referred to herein as a "**Non-Consenting Lender**"), then the Borrower shall have the right, at its sole cost and expense, to replace each such Non-Consenting Lender or Lenders with one or more replacement Lenders pursuant to **Section 2.17(b)** so long as at the time of such

replacement, each such replacement Lender consents to the proposed change, waiver, discharge or termination.

(f) **Ambiguity, Omission, Mistake or Typographical Error.** Notwithstanding the foregoing, if the Administrative Agent and the Borrower acting together identify any ambiguity, omission, mistake, typographical error or other defect in any provision of this Agreement or any other Loan Document, then the Administrative Agent and the Borrower shall be permitted to amend, modify or supplement such provision to cure such ambiguity, omission, mistake, typographical error or other defect, and such amendment shall become effective without any further action or consent of any other party to this Agreement.

9.03 **Expenses; Indemnity; Damage Waiver.**

(a) **Costs and Expenses.** The Borrower shall pay (i) all reasonable documented and out-of-pocket costs and expenses incurred by the Administrative Agent, the Collateral Agent and their Affiliates, including the reasonable fees, charges and disbursements of up to one counsel for the Administrative Agent and the Collateral Agent collectively (other than the allocated costs of internal counsel), in connection with the syndication of the credit facilities provided for herein, the preparation and administration (other than internal overhead charges) of this Agreement and the other Loan Documents and any amendments, modifications or waivers of the provisions hereof or thereof (whether or not the transactions contemplated hereby or thereby shall be consummated) including, subject to the last sentence of this *paragraph(a)*, all costs and expenses of the Approved Third-Party Appraiser retained by the Administrative Agent, (ii) all out-of-pocket expenses incurred by the Administrative Agent or any Lender, including the reasonable and documented fees, charges and disbursements of any counsel for the Administrative Agent or any Lender, in connection with the enforcement or protection of its rights in connection with this Agreement and the other Loan Documents, including its rights under this *Section*, or in connection with the Loans made, including all such out-of-pocket expenses incurred during any workout, restructuring or negotiations in respect thereof and (iii) all reasonable out-of-pocket costs, expenses, taxes, assessments and other charges incurred in connection with any filing, registration, recording or perfection of any security interest contemplated by any Security Document or any other document referred to therein. Unless an Event of Default has occurred and is continuing, the Borrower shall not be responsible for the reimbursement of any fees, costs and expenses of the Approved Third-Party Appraiser retained by the Administrative Agent incurred pursuant to *Section 5.12(b)(ii)(J)* in excess of the \$200,000 in the aggregate incurred for all such fees, costs and expenses in any 12-month period (the “*Supplemental Cap*”).

(b) **Indemnification by the Borrower.** The Borrower shall indemnify the Administrative Agent and each Lender, and each Related Party of any of the foregoing Persons (each such Person being called an “*Indemnatee*”) against, and hold each Indemnatee harmless from, any and all losses, claims, damages, liabilities and related expenses (other than Taxes or Other Taxes which shall only be indemnified by the Borrower to the extent provided in *Section 2.14* other than any Taxes or Other Taxes that represent losses, claims, damages, etc. arising from any non-Tax claim), including the reasonable and documented fees, charges and disbursements of any counsel for any Indemnatee (other than the allocated costs of internal counsel), incurred by or asserted against any Indemnatee by any Person (including Borrower) other than such Indemnatee and its Related Parties, arising out of, in connection with, or as a result of (i) the execution or delivery of this Agreement or any agreement or instrument contemplated hereby, the performance by the parties hereto of their respective obligations hereunder or the consummation of the Transactions or any other transactions contemplated hereby, or, in the case of Administrative Agent (and any sub-agent thereof) and its Related Parties only, the administration of this Agreement and

the other Loan Documents; (including, without limitation, any arrangement entered into with an Approved Third-Party Appraiser), (ii) any Loan or the use of the proceeds therefrom or (iii) any actual or prospective claim, litigation, investigation or proceeding relating to any of the foregoing, whether based on contract, tort or any other theory, whether brought by any third party or the Borrower and regardless of whether any Indemnatee is a party thereto IN ALL CASES, WHETHER OR NOT CAUSED BY OR ARISING, IN WHOLE OR IN PART, OUT OF THE COMPARATIVE, CONTRIBUTORY OR SOLE NEGLIGENCE OF THE INDEMNITEE ; *provided* that such indemnity shall not as to any Indemnatee, be available to the extent that such losses, claims, damages, liabilities or related expenses (1) are determined by a court of competent jurisdiction by final and nonappealable judgment to have resulted from the willful misconduct or gross negligence of such Indemnatee, (2) result from a claim brought against such Indemnatee for material breach, or a breach in bad faith, of such Indemnatee's obligations under this Agreement or the other Loan Documents, if there has been a final and nonappealable judgment against such Indemnatee on such claim as determined by a court of competent jurisdiction, or (3) result from a claim arising as a result of a dispute between Indemnitees (other than (x) any dispute involving claims against the Administrative Agent, in its capacity as such, and (y) claims arising out of any act or omission by the Borrower or its Affiliates).

(c) **Reimbursement by Lenders.** To the extent that the Borrower fails to pay any amount required to be paid by it to the Administrative Agent under *paragraph (a) or (b)* of this **Section** (and without limiting its obligation to do so), or to the extent that the fees, costs and expenses of the Approved Third-Party Appraiser incurred pursuant to **Section 5.12(b)(ii)(J)** exceed the Supplemental Cap for any 12-month period (provided that prior to incurring expenses in excess of the Supplemental Cap, the Administrative Agent shall have afforded the Lenders an opportunity to consult with the Administrative Agent regarding such expenses), each Lender severally agrees to pay to the Administrative Agent, as the case may be, such Lender's Applicable Percentage (determined as of the time that the applicable unreimbursed expense or indemnity payment is sought) of such unpaid amount; *provided* that the unreimbursed expense or indemnified loss, claim, damage, liability or related expense, as the case may be, was incurred by or asserted against the Administrative Agent in its capacity as such or against any Related Party of any of the foregoing acting for Administrative Agent (or any such sub-agent) in connection with such capacity. The obligations of Lenders under this **subsection (c)** are several.

(d) **Waiver of Consequential Damages, Etc.** To the extent permitted by applicable law, the Borrower shall not assert, and hereby waives, any claim against any Indemnatee, on any theory of liability, for special, indirect, consequential or punitive damages (as opposed to direct or actual damages) arising out of, in connection with, or as a result of; this Agreement or any agreement or instrument contemplated hereby, the Transactions, any Loan or the use of the proceeds thereof. No Indemnatee referred to in **subsection (b)** above will be liable for any damages arising from the use by unintended recipients of any information or other materials distributed to such unintended recipients by such Indemnatee through telecommunications, electronic or other information transmission systems in connection with this Agreement or the other Loan Documents or the transactions contemplated hereby or thereby.

(e) All amounts due under this **Section** shall be payable promptly after written demand therefor.

(f) The agreements in this **Section** will survive the resignation of Administrative Agent, the replacement of any Lender, the termination of the Commitments and the repayment, satisfaction or discharge of the Obligations.

(g) The Administrative Agent, each Lender and their Affiliates (collectively, solely for purposes of this **paragraph**, the “**Lenders**”), may have economic interests that conflict with those of the Borrower or any of its Subsidiaries, their stockholders and/or their affiliates. The Borrower and each of its Subsidiaries each acknowledge and agree that (i) the transactions contemplated by the Loan Documents (including the exercise of rights and remedies hereunder and thereunder) are arm’s-length commercial transactions between the Lenders, on the one hand, and the Borrower and its Subsidiaries, on the other, and (ii) in connection therewith and with the process leading thereto, (x) except as otherwise provided in any of the Loan Documents, no Lender has assumed an advisory or fiduciary responsibility in favor of the Borrower or any of its Subsidiaries, any of their stockholders or affiliates (irrespective of whether any Lender has advised, is currently advising or will advise the Borrower or any of its Subsidiaries, their stockholders or their affiliates on other matters) and (y) each Lender is acting hereunder solely as principal and not as the agent or fiduciary of the Borrower or any of its Subsidiaries, their management or stockholders. The Borrower and each Obligor each acknowledge and agree that it has consulted legal and financial advisors to the extent it deemed appropriate and that it is responsible for making its own independent judgment with respect to such transactions and the process leading thereto. The Borrower and each Obligor each agree that it will not claim that any Lender has rendered advisory services hereunder of any nature or respect, or owes a fiduciary duty to the Borrower or any of its Subsidiaries, in each case, in connection with such transactions contemplated hereby or the process leading thereto.

9.04 Successors and Assigns.

(a) **Assignments Generally.** The provisions of this Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns permitted hereby, except that (i) the Borrower may not assign or otherwise transfer any of its rights or obligations hereunder without the prior written consent of each Lender (and any attempted assignment or transfer by the Borrower without such consent shall be null and void) and (ii) no Lender may assign or otherwise transfer its rights or obligations hereunder except in accordance with this **Section**. Nothing in this Agreement, expressed or implied, shall be construed to confer upon any Person (other than the parties hereto, their respective successors and assigns permitted hereby and, to the extent expressly contemplated hereby, the Related Parties of each of the Administrative Agent and the Lenders) any legal or equitable right, remedy or claim under or by reason of this Agreement.

(b) Assignments by Lenders.

(i) **Assignments Generally.** Subject to the conditions set forth in **clause (ii)** below, any Lender may assign to one or more assignees (other than natural persons, any Defaulting Lender or any Disqualified Lender) all or a portion of its rights and obligations under this Agreement (including all or a portion of its Commitment and the Loans at the time owing to it) with the prior written consent (such consent not to be unreasonably withheld, conditioned or delayed) of:

(A) the Borrower, provided that (i) no consent of the Borrower shall be required for an assignment to a Lender, an Affiliate of a Lender, or, if an Event of Default has occurred and is continuing, any other assignee, and (ii) the Borrower shall be deemed to have consented to any such assignment unless it shall object thereto by written notice to the Administrative Agent within five Business Days after having received written notice thereof; and

(B) the Administrative Agent, provided that no consent of the Administrative Agent shall be required for an assignment by a Lender to an Affiliate of a Lender with prior written notice by such Lender to the Administrative Agent.

(ii) **Certain Conditions to Assignments.** Assignments shall be subject to the following additional conditions:

(A) except in the case of an assignment to a Lender or an Affiliate of a Lender or an assignment of the entire remaining amount of the assigning Lender's Commitment or Loans of a Class, the amount of the Commitment or Loans of such Class of the assigning Lender subject to each such assignment (determined as of the date the Assignment and Assumption with respect to such assignment is delivered to the Administrative Agent) shall not be less than U.S. \$1,000,000 unless each of the Borrower and the Administrative Agent otherwise consent; *provided* that no such consent of the Borrower shall be required if an Event of Default has occurred and is continuing;

(B) each partial assignment of any Class of Commitments or Loans shall be made as an assignment of a proportionate part of all the assigning Lender's rights and obligations under this Agreement in respect of such Class of Commitments and Loans;

(C) the parties to each assignment shall execute and deliver to the Administrative Agent an Assignment and Assumption in substantially the form of **Exhibit A** hereto, together with a processing and recordation fee of U.S. \$3,500 (which fee shall not be payable in connection with an assignment to a Lender or to an Affiliate of a Lender), for which the Borrower and the Guarantors shall not be obligated (except in the case of an assignment pursuant to **Section 2.17(b)**); and

(D) the assignee, if it shall not already be a Lender of the applicable Class, shall deliver to the Administrative Agent an Administrative Questionnaire.

(E) No such assignment may be made: (I) to Borrower or any Affiliate or Subsidiary of Borrower; (II) to any Defaulting Lender or any of its Subsidiaries, or Disqualified Lender or any of its Subsidiaries, or any Person who, upon becoming a Lender hereunder, would constitute any of the foregoing Persons described in this **clause (II)**; or (III) to a natural Person (or a holding company, investment vehicle or trust for, or owned and operated for the primary benefit of, a natural Person).

(iii) **Effectiveness of Assignments.** Subject to acceptance and recording thereof pursuant to **paragraph (c)** of this **Section**, from and after the effective date specified in each Assignment and Assumption the assignee thereunder shall be a party hereto and, to the extent of the interest assigned by such Assignment and Assumption, have the rights and obligations of a Lender under this Agreement, and the assigning Lender thereunder shall, to the extent of the interest assigned by such Assignment and Assumption, be released from its obligations under this Agreement (and, in the case of an Assignment and Assumption covering all of the assigning Lender's rights and obligations under this Agreement, such Lender shall cease to be a party hereto but shall continue to be entitled to

the benefits of **Sections 2.12, 2.13, 2.14** and **9.03** with respect to facts and circumstances occurring prior to the effective date of such assignment; provided, that, except to the extent otherwise expressly agreed by the affected parties, no assignment by a Defaulting Lender will constitute a waiver or release of any claim of any party hereunder arising from that Lender's having been a Defaulting Lender). Upon request, Borrower (at its expense) agrees to execute and deliver a promissory note to the Assignee, and the applicable existing promissory note or promissory notes will be returned to Borrower). Any assignment or transfer by a Lender of rights or obligations under this Agreement that does not comply with this **Section 9.04** shall be treated for purposes of this Agreement as a sale by such Lender of a participation in such rights and obligations in accordance with **paragraph (f)** of this **Section**.

(c) **Maintenance of Registers by Administrative Agent.** The Administrative Agent, acting solely for this purpose as an agent of the Borrower, shall maintain at one of its offices in New York City a copy of each Assignment and Assumption delivered to it and a register for the recordation of the names and addresses of the Lenders, and the Commitments of, and principal amount and "stated interest" for tax purposes of the Loans owing to, each Lender pursuant to the terms hereof from time to time (the "**Registers**" and each individually, a "**Register**"). The entries in the Registers shall be conclusive, and the Borrower, the Administrative Agent and the Lenders shall treat each Person whose name is recorded in the Registers pursuant to the terms hereof as a Lender hereunder for all purposes of this Agreement, notwithstanding notice to the contrary. The Registers shall be available for inspection by the Borrower and any Lender, at any reasonable time and from time to time upon reasonable prior notice.

(d) **Acceptance of Assignments by Administrative Agent.** Upon its receipt of a duly completed Assignment and Assumption executed by an assigning Lender and an assignee, the assignee's completed Administrative Questionnaire (unless the assignee shall already be a Lender hereunder), the processing and recordation fee referred to in **paragraph (b)** of this **Section** and any written consent to such assignment required by **paragraph (b)** of this **Section**, the Administrative Agent shall accept such Assignment and Assumption and record the information contained therein in the Register. No assignment shall be effective for purposes of this Agreement unless it has been recorded in the Register as provided in this **paragraph**.

(e) **Special Purposes Vehicles.**

(i) Notwithstanding anything to the contrary contained herein, any Lender (a "**Granting Lender**") may grant to a special purpose funding vehicle (an "**SPC**") owned or administered by such Granting Lender, identified as such in writing from time to time by the Granting Lender to the Administrative Agent and the Borrower, the option to provide all or any part of any Loan that such Granting Lender would otherwise be obligated to make; *provided* that (a) nothing herein shall constitute a commitment to make any Loan by any SPC, (b) if an SPC elects not to exercise such option or otherwise fails to provide all or any part of such Loan, the Granting Lender shall, subject to the terms of this Agreement, make such Loan pursuant to the terms hereof, (c) the rights of any such SPC shall be derivative of the rights of the Granting Lender, and such SPC shall be subject to all of the restrictions upon the Granting Lender herein contained, and (d) no SPC shall be entitled to the benefits of **Sections 2.12** (or any other increased costs protection provision), **2.13** or **2.14**. Each SPC shall be conclusively presumed to have made arrangements with its Granting Lender for the exercise of voting and other rights hereunder in a manner which is acceptable to the SPC, the Administrative Agent, the Lenders and the Borrower, and each of the Administrative Agent, the Lenders and the Obligor shall be entitled to rely

upon and deal solely with the Granting Lender with respect to Loans made by or through its SPC. The making of a Loan by an SPC hereunder shall utilize the Commitment of the Granting Lender to the same extent, and as if, such Loan were made by the Granting Lender.

(ii) Each party hereto hereby agrees (which agreement shall survive the termination of this Agreement) that, prior to the date that is one year and one day after the payment in full of all outstanding senior indebtedness of any SPC, it will not institute against, or join any other person in instituting against, such SPC, any bankruptcy, reorganization, arrangement, insolvency or liquidation proceedings or similar proceedings under the laws of the United States or any State thereof, in respect of claims arising out of this Agreement; *provided* that the Granting Lender for each SPC hereby agrees to indemnify, save and hold harmless each other party hereto for any loss, cost, damage and expense arising out of their inability to institute any such proceeding against its SPC. In addition, notwithstanding anything to the contrary contained in this **Section**, any SPC may (a) without the prior written consent of the Borrower and the Administrative Agent and without paying any processing fee therefor, assign all or a portion of its interests in any Loans to its Granting Lender or to any financial institutions providing liquidity and/or credit facilities to or for the account of such SPC to fund the Loans made by such SPC or to support the Securities (if any) issued by such SPC to fund such Loans (but nothing contained herein shall be construed in derogation of the obligation of the Granting Lender to make Loans hereunder); *provided* that neither the consent of the SPC or of any such assignee shall be required for amendments or waivers hereunder except for those amendments or waivers for which the consent of participants is required under **paragraph (f)** below, and (b) disclose on a confidential basis (in the same manner described in **Section 9.13(b)**) any non-public information relating to its Loans to any rating agency, commercial paper dealer or provider of a surety, guarantee or credit or liquidity enhancement to such SPC.

(f) **Participations.** Any Lender may, with the consent of the Borrower (such consent not to be unreasonably withheld, conditioned or delayed), sell participations to one or more banks or other entities (a “**Participant**”) in all or a portion of such Lender’s rights and obligations under this Agreement and the other Loan Documents (including all or a portion of its Commitments and the Loans owing to it); *provided* that (i) the consent of the Borrower shall not be required (A) for any participation to a Lender or an Affiliate of a Lender, or (B) if an Event of Default has occurred and is continuing, (ii) the Borrower shall be deemed to have consented unless it shall object thereto by written notice to the Administrative Agent within five Business Days after receiving notice thereof, (iii) such Lender’s obligations under this Agreement and the other Loan Documents shall remain unchanged, (iv) such Lender shall remain solely responsible to the other parties hereto for the performance of such obligations, (v) the Borrower, the Administrative Agent and the other Lenders shall continue to deal solely and directly with such Lender in connection with such Lender’s rights and obligations under this Agreement and the other Loan Documents and (vi) no Disqualified Lender may be a Participant. Any agreement or instrument pursuant to which a Lender sells such a participation shall provide that such Lender shall retain the sole right to enforce this Agreement and the other Loan Documents and to approve any amendment, modification or waiver of any provision of this Agreement or any other Loan Document; *provided* that such agreement or instrument may provide that such Lender will not, without the consent of the Participant, agree to any amendment, modification or waiver described in the first proviso to **Section 9.02(b)** that affects such Participant. Subject to **paragraph (g)** of this **Section**, the Borrower agrees that each Participant shall be entitled to the benefits of **Sections 2.12, 2.13 and 2.14** (subject to the requirements and limitations therein, including the requirements under **Section 2.14(f)**) to

the same extent as if it were a Lender and had acquired its interest by assignment pursuant to **paragraph (b)** of this **Section**. To the extent permitted by law, each Participant also shall be entitled to the benefits of **Section 9.08** as though it were a Lender, provided such Participant agrees to be subject to **Section 2.15(d)** as though it were a Lender hereunder. Each Lender that sells a participation shall, acting solely for this purpose as a non-fiduciary agent of the Borrower, maintain a register on which it enters the name and address of each Participant and the principal amounts (and stated interest) of each Participant's interest in the Commitments or other obligations under the Loan Documents (the "**Participant Register**"); provided that no Lender shall have any obligation to disclose all or any portion of the Participant Register (including the identity of any Participant or any information relating to a Participant's interest in any Commitments, Loans or its other obligations under any Loan Document) to any Person except to the extent that such disclosure is necessary to establish that such Commitment, Loan or other obligation is in registered form under **Section 5f.103-1(c)** of the United States Treasury Regulations. The entries in the Participant Register shall be conclusive absent manifest error, and such Lender shall treat each Person whose name is recorded in the Participant Register as the owner of such participation for all purposes of this Agreement notwithstanding any notice to the contrary.

(g) **Limitations on Rights of Participants.** A Participant shall not be entitled to receive any greater payment under **Section 2.12, 2.13** or **2.14** than the applicable Lender would have been entitled to receive with respect to the participation sold to such Participant, unless the entitlement to a greater payments results from a Change in Law after the date such Participant acquired its participation. A Participant that would be a Foreign Lender if it were a Lender shall not be entitled to the benefits of **Section 2.14** unless such Participant agrees, for the benefit of the Borrower, to comply with **Sections 2.14(e)** and **2.14(f)** as though it were a Lender (it being understood that the documentation required under **Section 2.14(f)** shall be delivered to the participating Lender). Each Lender that sells a participation agrees, at the Borrower's request and expense, to use reasonable efforts to cooperate with the Borrower to effectuate the provisions of **Section 2.17(b)** with respect to any Participant.

(h) **Certain Pledges.** Any Lender may at any time pledge or assign a security interest in all or any portion of its rights under this Agreement to secure obligations of such Lender, including any such pledge or assignment to a Federal Reserve Bank or any other central bank, and this **Section** shall not apply to any such pledge or assignment of a security interest; *provided* that no such pledge or assignment of a security interest shall release a Lender from any of its obligations hereunder or substitute any such assignee for such Lender as a party hereto.

(i) **No Assignments to the Borrower or Affiliates.** Anything in this **Section** to the contrary notwithstanding, no Lender may (i) assign or participate any interest in any Commitment or Loan held by it hereunder to the Borrower or any of its Affiliates or Subsidiaries without the prior consent of each Lender or (ii) assign any interest in any Commitment or Loan held by it hereunder to a natural person or to any Person known by such Lender at the time of such assignment to be a Defaulting Lender, a Subsidiary of a Defaulting Lender or a Person who, upon consummation of such assignment would be a Defaulting Lender.

(j) **Multicurrency Lenders.** Any assignment by a Multicurrency Lender, so long as no Event of Default has occurred and is continuing, must be to a Person that is able to fund and receive payments on account of each outstanding Agreed Foreign Currency at such time without the need to obtain any authorization referred to in **clause (c)** of the definition of "**Agreed Foreign Currency**".

9.05 **Survival.** All covenants, agreements, representations and warranties made by the Borrower herein and in the certificates or other instruments delivered in connection with or pursuant to this Agreement shall be considered to have been relied upon by the other parties hereto and shall survive the execution and delivery of this Agreement and the making of any Loans, regardless of any investigation made by any such other party or on its behalf and notwithstanding that the Administrative Agent or any Lender may have had notice or knowledge of any Default or incorrect representation or warranty at the time any credit is extended hereunder, and shall continue in full force and effect as long as the principal of or any accrued interest on any Loan or any fee or any other amount payable under this Agreement is outstanding and unpaid and so long as the Commitments have not expired or terminated. The provisions of **Sections 2.12, 2.13, 2.14 and 9.03** and **Article VIII** shall survive and remain in full force and effect regardless of the consummation of the transactions contemplated hereby, the repayment of the Loans, the expiration or termination of the Commitments or the termination of this Agreement or any provision hereof.

9.06 **Counterparts; Integration; Effectiveness; Electronic Execution.**

(a) **Counterparts; Integration; Effectiveness.** This Agreement may be executed in counterparts (and by different parties hereto on different counterparts), each of which shall constitute an original, but all of which when taken together shall constitute a single contract. This Agreement and any separate letter agreements with respect to fees payable to the Administrative Agent constitute the entire contract between and among the parties relating to the subject matter hereof and supersede any and all previous agreements and understandings, oral or written, relating to the subject matter hereof. This Agreement shall become effective when provided in **Section 4.01**, and thereafter shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns. Delivery of an executed counterpart of a signature page to this Agreement by telecopy or electronic mail shall be effective as delivery of a manually executed counterpart of this Agreement.

(b) **Electronic Execution of Assignments.** The words “execution,” “signed,” “signature,” and words of like import in any Assignment and Assumption shall be deemed to include electronic signatures or the keeping of records in electronic form, each of which shall be of the same legal effect validity or enforceability as a manually executed signature or the use of a paper-based recordkeeping system, as the case may be, to the extent and as provided for in any applicable law, including the Federal Electronic Signatures in Global and National Commerce Act, the New York State Electronic Signatures and Records Act, or any other similar state laws based on the Uniform Electronic Transactions Act.

9.07 **Severability.** Any provision of this Agreement held to be invalid, illegal or unenforceable in any jurisdiction shall, as to such jurisdiction, be ineffective to the extent of such invalidity, illegality or unenforceability without affecting the validity, legality and enforceability of the remaining provisions hereof; and the invalidity of a particular provision in a particular jurisdiction shall not invalidate such provision in any other jurisdiction.

9.08 **Right of Setoff.** If an Event of Default shall have occurred and be continuing, each Lender and each of its Affiliates is hereby authorized at any time and from time to time, to the fullest extent permitted by law, to set off and apply any and all deposits (general or special, time or demand, provisional or final) at any time held and other obligations at any time owing by such Lender or Affiliate to or for the credit or the account of any Obligor against any of and all the obligations of any Obligor now or hereafter existing under this Agreement held by such Lender, irrespective of whether or not such Lender shall have made any demand under this Agreement and although such obligations may be unmatured. The rights of each Lender under this **Section** are in addition to other rights and remedies (including other rights of setoff) which such Lender may have. Each Lender agrees promptly to notify the Borrower after any such set-off

and application made by such Lender; provided that the failure to give such notice shall not affect the validity of such set off and application.

9.09 Governing Law; Jurisdiction; Etc.

(a) **Governing Law.** This Agreement shall be construed in accordance with and governed by the law of the State of New York.

(b) **Submission to Jurisdiction.** The Borrower hereby irrevocably and unconditionally submits, for itself and its property, to the exclusive jurisdiction of the Supreme Court of the State of New York sitting in New York County and of the United States District Court of the Southern District of New York, and any appellate court from any thereof, in any action or proceeding arising out of or relating to this Agreement, or for recognition or enforcement of any judgment, and each of the parties hereto hereby irrevocably and unconditionally agrees that all claims in respect of any such action or proceeding may be heard and determined in such New York State or, to the extent permitted by law, in such Federal court. Each of the parties hereto agrees that a final judgment in any such action or proceeding shall be conclusive and may be enforced in other jurisdictions by suit on the judgment or in any other manner provided by law. Nothing in this Agreement shall affect any right that the Administrative Agent or any Lender may otherwise have to bring any action or proceeding relating to this Agreement against the Borrower or its properties in the courts of any jurisdiction.

(c) **Waiver of Venue.** The Borrower hereby irrevocably and unconditionally waives, to the fullest extent it may legally and effectively do so, any objection which it may now or hereafter have to the laying of venue of any suit, action or proceeding arising out of or relating to this Agreement in any court referred to in *paragraph (b)* of this **Section**. Each of the parties hereto hereby irrevocably waives, to the fullest extent permitted by law, the defense of an inconvenient forum to the maintenance of such action or proceeding in any such court.

(d) **Service of Process.** Each party to this Agreement irrevocably consents to service of process in the manner provided for notices in **Section 9.01**. Nothing in this Agreement will affect the right of any party to this Agreement to serve process in any other manner permitted by law.

9.10 WAIVER OF JURY TRIAL. EACH PARTY HERETO HEREBY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN ANY LEGAL PROCEEDING DIRECTLY OR INDIRECTLY ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY (WHETHER BASED ON CONTRACT, TORT OR ANY OTHER THEORY). EACH PARTY HERETO (a) CERTIFIES THAT NO REPRESENTATIVE, AGENT OR ATTORNEY OF ANY OTHER PARTY HAS REPRESENTED, EXPRESSLY OR OTHERWISE, THAT SUCH OTHER PARTY WOULD NOT, IN THE EVENT OF LITIGATION, SEEK TO ENFORCE THE FOREGOING WAIVER AND (b) ACKNOWLEDGES THAT IT AND THE OTHER PARTIES HERETO HAVE BEEN INDUCED TO ENTER INTO THIS AGREEMENT BY, AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS SECTION.

9.11 Judgment Currency. This is an international loan transaction in which the specification of Dollars or any Foreign Currency, as the case may be (the “**Specified Currency**”) and payment in New York City or the country of the Specified Currency (the “**Specified Place**”) is of the essence, and the Specified Currency shall be the Currency of account in all events relating to Loans denominated in the Specified Currency. Subject to **Section 2.15(a)**, the payment obligations of the

Borrower under this Agreement shall not be discharged or satisfied by an amount paid in another Currency or in another place, whether pursuant to a judgment or otherwise, to the extent that the amount so paid on conversion to the Specified Currency and transfer to the Specified Place under normal banking procedures does not yield the amount of the Specified Currency in the Specified Place due hereunder. If for the purpose of obtaining judgment in any court it is necessary to convert a sum due hereunder in the Specified Currency into another Currency (the “**Second Currency**”), the rate of exchange that shall be applied shall be the rate at which in accordance with normal banking procedures the Administrative Agent could purchase the Specified Currency with the Second Currency on the Business Day next preceding the day on which such judgment is rendered. The obligation of the Borrower in respect of any such sum due from it to the Administrative Agent or any Lender hereunder or under any other Loan Document (in this **Section** called an “**Entitled Person**”) shall, notwithstanding the rate of exchange actually applied in rendering such judgment, be discharged only to the extent that on the Business Day following receipt by such Entitled Person of any sum adjudged to be due hereunder in the Second Currency such Entitled Person may in accordance with normal banking procedures purchase and transfer to the Specified Place the Specified Currency with the amount of the Second Currency so adjudged to be due; and the Borrower hereby, as a separate obligation and notwithstanding any such judgment, agrees to indemnify such Entitled Person against, and to pay such Entitled Person on demand, in the Specified Currency, the amount (if any) by which the sum originally due to such Entitled Person in the Specified Currency hereunder exceeds the amount of the Specified Currency so purchased and transferred.

9.12 **Headings.** Article and Section headings and the Table of Contents used herein are for convenience of reference only, are not part of this Agreement and shall not affect the construction of, or be taken into consideration in interpreting, this Agreement.

9.13 **Treatment of Certain Information; Confidentiality.**

(a) **Treatment of Certain Information.** The Borrower acknowledges that from time to time financial advisory, investment banking and other services may be offered or provided to the Borrower or one or more of its Subsidiaries (in connection with this Agreement or otherwise) by any Lender or by one or more subsidiaries or affiliates of such Lender and the Borrower hereby authorizes each Lender to share any information delivered to such Lender by the Borrower and its Subsidiaries pursuant to this Agreement, or in connection with the decision of such Lender to enter into this Agreement, to any such Subsidiary or Affiliate, it being understood that any such Subsidiary or Affiliate receiving such information shall be bound by the provisions of **paragraph (b)** of this **Section** as if it were a Lender hereunder. Such authorization shall survive the repayment of the Loans, and the Commitments or the termination of this Agreement or any provision hereof.

(b) **Confidentiality.** Each of the Administrative Agent (including in its capacity as the Collateral Agent) and the Lenders agrees to maintain the confidentiality of the Information (as defined below), except that Information may be disclosed (a) to its Affiliates and to its and its Affiliates’ respective partners, directors, officers, employees, agents, advisors and other representatives (it being understood that the Persons to whom such disclosure is made will be informed of the confidential nature of such Information and instructed to keep such Information confidential), (b) to the extent requested by any regulatory authority purporting to have jurisdiction over it (including any self-regulatory authority), (c) to the extent required by applicable laws or regulations or by any subpoena or similar legal process, (d) to any other party hereto, (e) in connection with the exercise of any remedies hereunder or under any other Loan Document or any action or proceeding relating to this Agreement or any other Loan Document or the enforcement of rights hereunder or thereunder, (f) subject to an agreement containing provisions substantially the same as those of this **Section**, to (i) other than to any Disqualified Lender, any assignee of or

Participant in, or any prospective assignee of or Participant in, any of its rights or obligations under this Agreement, or (ii) any actual or prospective counterparty (or its advisors) to any swap or derivative transaction relating to the Borrower and its obligations, (g) with the consent of the Borrower, (h) on a confidential basis to (i) any rating agency in connection with rating the Borrower or its Subsidiaries or the Loans, (ii) the CUSIP Service Bureau or any similar agency in connection with the issuance and monitoring of CUSIP numbers with respect to the Loans, (i) to the extent such Information (x) becomes publicly available other than as a result of a breach of this **Section** or (y) becomes available to the Administrative Agent, any Lender or any of their respective Affiliates on a nonconfidential basis from a source other than the Borrower, or (j) in connection with the Lenders' right to grant security interest pursuant to **Section 9.04(h)** to the Federal Reserve Bank or any other central bank, or subject to an agreement containing provisions substantially the same as those of this **Section**, to any other pledgee or assignee pursuant to **Section 9.04(h)**.

For purposes of this **Section**, "**Information**" means all information received from the Borrower or any of its Subsidiaries relating to the Borrower or any of its Subsidiaries or any of their respective businesses, other than any such information that is available to the Administrative Agent or any Lender on a non-confidential basis prior to disclosure by the Borrower or any of its Subsidiaries, provided that, in the case of information received from the Borrower or any of its Subsidiaries after the Effective Date, such information is clearly identified at the time of delivery as confidential. Any Person required to maintain the confidentiality of Information as provided in this **Section** shall be considered to have complied with its obligation to do so if such Person has exercised the same degree of care to maintain the confidentiality of such Information as such Person would accord to its own confidential information.

9.14 **USA PATRIOT Act.** Each Lender hereby notifies the Borrower that pursuant to the requirements of the USA PATRIOT Act, it is required to obtain, verify and record information that identifies the Borrower, which information includes the name and address of the Borrower and other information that will allow such Lender to identify the Borrower in accordance with said Act. The Borrower will, promptly following a request by Administrative Agent or any Lender, provide all documentation and other information that Administrative Agent or such Lender requests in order to comply with its ongoing obligations under applicable "know your customer" and anti-money laundering rules and regulations, including the USA PATRIOT Act and the Beneficial Ownership Regulation.

9.15 **Termination.** Promptly upon the Termination Date, the Administrative Agent shall direct the Collateral Agent to, on behalf of the Administrative Agent, the Collateral Agent and the Lenders, deliver to Borrower such termination statements and releases and other documents necessary or appropriate to evidence the termination of this Agreement, the Loan Documents, and each of the documents securing the obligations hereunder as the Borrower may reasonably request, all at the sole cost and expense of the Borrower.

9.16 **Acknowledgement and Consent to Bail-In of Affected Financial Institutions.** Solely to the extent any Lender that is an Affected Financial Institution is a party to this Agreement, notwithstanding anything to the contrary in any Loan Document or in any other agreement, arrangement or understanding among any such parties, each party hereto acknowledges that any liability of any Lender that is an Affected Financial Institution arising under any Loan Document, to the extent such liability is unsecured, may be subject to the Write-Down and Conversion Powers of the applicable Resolution Authority and agrees and consents to, and acknowledges and agrees to be bound by:

(a) the application of any Write-Down and Conversion Powers by the applicable Resolution Authority to any such liabilities arising hereunder which may be payable to it by any Lender that is an Affected Financial Institution; and

(b) the effects of any Bail-in Action on any such liability, including, if applicable:

(i) a reduction in full or in part or cancellation of any such liability;

(ii) a conversion of all, or a portion of, such liability into shares or other instruments of ownership in such Affected Financial Institution, its parent undertaking, or a bridge institution that may be issued to it or otherwise conferred on it, and that such shares or other instruments of ownership will be accepted by it in lieu of any rights with respect to any such liability under this Agreement or any other Loan Document; or

(iii) the variation of the terms of such liability in connection with the exercise of the Write-Down and Conversion Powers of the applicable Resolution Authority.

9.17 Subordination of Claims.

(a) As used herein, the term “***Subordinated Claims***” means, with respect to the Investors, the Borrower, any Intermediate Entity, the Investment Advisor and the General Partner, all debts and liabilities between or among any two or more of such Persons, whether such debts and liabilities now exist or are hereafter incurred or arise, or whether the obligations of such Person or Persons thereon be direct, contingent, primary, secondary, several, joint and several, or otherwise, and irrespective of whether such debts or liabilities be evidenced by note, contract, open account, or otherwise, and irrespective of the Person or Persons in whose favor such debts or liabilities may, at their inception, have been, or may hereafter be created, or the manner in which they have been or may hereafter be acquired by the Borrower, the Investment Advisor or the General Partner (including, without limitation, by setoff pursuant to the terms of any applicable agreement). Subordinated Claims include without limitation all rights and claims of the Borrower, any Intermediate Entity, the Investment Advisor and the General Partner against an Investor under the organizational documents of such Person or under the Subscription Documents. At any time that a Borrowing Base Deficiency exists and until the mandatory prepayment pursuant to ***Section 2.08(c)*** in connection therewith, if any, is paid and satisfied in full, or, during the existence and continuation of an Event of Default, none of the Borrower, any Intermediate Entity, the Investment Advisor or the General Partner may receive or collect, directly or indirectly any amount upon the Subordinated Claims, other than to obtain funds required to make any mandatory prepayment pursuant to ***Section 2.08(c)***.

(b) Any Liens, security interests, judgment liens, charges, or other encumbrances upon any Person’s assets securing payment of Subordinated Claims, including, but not limited to, any Liens or security interests on an Investor’s Subscribed Interest in the Borrower, will be and remain inferior and subordinate in right of payment and of security to any Liens, security interests, judgment liens, charges, or other encumbrances upon an Investor’s assets securing such Investor’s obligations and liabilities to the Secured Parties pursuant to any of the Security Documents executed by such Person, regardless of whether such encumbrances in favor of the Borrower, any Intermediate Entity, the Investment Advisor, the General Partner or the Secured Parties presently exist or are hereafter created or attach. Without the prior written consent of the Administrative Agent, when an Event of Default has occurred and is continuing, none of the Borrower, any Intermediate Entity, the General Partner nor the Investment Advisor may: (a) exercise or enforce any creditor’s or partnership right it may have against an Investor; (b) foreclose, repossess, sequester, or otherwise take steps or institute any action or proceedings

(judicial or otherwise, including without limitation, the commencement of, or joinder in, any liquidation, bankruptcy, rearrangement, debtor's relief, or insolvency proceeding) to enforce any Liens, mortgages, deeds of trust, security interest, collateral rights, judgments or other encumbrances on assets of such Investor held by such Person; or (c) exercise any rights or remedies against an Investor under the organization documents of such Person or the Subscription Documents, provided that any action taken by the Administrative Agent or the other Secured Parties in the Borrower's name, or any action taken by the Borrower that is required under any Loan Document or to comply with any Loan Document, will not be a violation of this **Section 9.17**.

9.18 **Material Non-Public Information.** The Borrower hereby acknowledges that certain of the Lenders may have personnel who do not wish to receive material non-public information with respect to the Borrower or its Affiliates, or the respective Securities of any of the foregoing, and who may be engaged in investment and other market-related activities with respect to such Persons' Securities. The Borrower hereby agrees that: (i) all of its Borrower Materials that are to be made available to such Lenders will be clearly and conspicuously marked "PUBLIC" which, at a minimum, means that the word "PUBLIC" appears prominently on the first page thereof; (ii) by marking Borrower Materials "PUBLIC," the Borrower is hereby deemed to authorize the Administrative Agent, the Arranger and the Lenders to treat Borrower Materials as not containing any material non-public information with respect to the Borrower or its Securities for purposes of United States Federal and state securities laws (provided, however, that to the extent Borrower Materials constitute Information, they will be treated as set forth in **Section 9.13**); (iii) all of its Borrower Materials marked "PUBLIC" are permitted to be made available through a portion of the Platform designated "Public Side Information;" and (iv) the Administrative Agent and the Arranger are entitled to treat Borrower Materials of the Borrower that are not marked "PUBLIC" as being suitable only for posting on a portion of the Platform not designated "Public Side Information." Notwithstanding the foregoing, the Borrower is not under any obligation to mark Borrower Materials "PUBLIC."

***Remainder of Page Intentionally Blank;
Signature Page(s) Follow.***

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be duly executed and delivered as of the day and year first written above.

**PENNANTPARK CREDIT OPPORTUNITIES
FUND IV AGGREGATOR, LP**, as Borrower

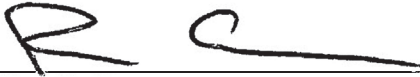
By:



Name: Richard T. Allorto, Jr.
Title: Chief Financial Officer

PENNANTPARK CAPITAL IV GP, LLC, as
General Partner

By:



Name: Richard T. Allorto, Jr.
Title: Chief Financial Officer

ING CAPITAL LLC, as Administrative Agent and a
Lender

By: 
Grace Fu (Dec 15, 2022 18:47 EST)
Name: Grace Fu
Title: Managing Director

By: 
Dominik Breuer (Dec 15, 2022 20:05 EST)
Name: Dominik Breuer
Title: Director

APPROVED DEALERS AND APPROVED PRICING SERVICES

Approved Dealers:

See attached.

Approved Pricing Services:

1. Valuation Research Corporation
2. Murray Devine Valuation Advisors
3. Kroll, LLC (previously Duff and Phelps)
4. Lincoln
5. Bloomberg/IDC/IHS Markit

Qualified/Approved trade counterparties:

1	<i>ABRY Partners</i>	41	<i>Deutsche Bank</i>	81	<i>Oppenheimer</i>
2	<i>Alcentra</i>	42	<i>Deerpath Capital Management ⁽¹⁾</i>	82	<i>Outcomes Holdings, Inc.</i>
3	<i>Alcova Capital Management LP ⁽¹⁾</i>	43	<i>EquiTrust Life Insurance Co. ⁽¹⁾</i>	83	<i>Owl Rock Capital ⁽¹⁾</i>
4	<i>Aldwych Capital Partners, LLC</i>	44	<i>FBR Capital Markets & Co.</i>	84	<i>Portfolio Advisers</i>
5	<i>Allied America, Inc.</i>	45	<i>Five Points Capital</i>	85	<i>Principal Financial Group ⁽¹⁾</i>
6	<i>Allstate Life Insurance Company</i>	46	<i>Garrison Investment Group, LP</i>	86	<i>Prospect Capital</i>
7	<i>Altshuler Shaham</i>	47	<i>GE Capital</i>	87	<i>Prudential Investment Management</i>
8	<i>Antares Capital Corporation</i>	48	<i>Gleacher & Company</i>	88	<i>RCWB Funding LLC</i>
9	<i>Ares Capital Corporation</i>	49	<i>Global Hunter Securities</i>	89	<i>Redwood Master Fund</i>
10	<i>Arlington Capital Partners</i>	50	<i>Goldman Sachs</i>	90	<i>Regiment Capital, L.L.C.</i>
11	<i>Audax</i>	51	<i>Golub Capital Advisors LLC</i>	91	<i>Regions Bank</i>
12	<i>Bank of America/Merrill Lynch</i>	52	<i>GSR Holdco, Inc.</i>	92	<i>Royal Bank of Canada</i>
13	<i>Bank of Ireland</i>	53	<i>Guggenheim Partners</i>	93	<i>Royal Bank of Scotland Group PLC</i>
14	<i>Bank of Montreal</i>	54	<i>Hamilton Lane</i>	94	<i>RW Pressprich</i>
15	<i>Barclays</i>	55	<i>Heracles Acquisition, Inc.</i>	95	<i>Sankaty Advisors, LLC</i>
16	<i>Beach Point Capital</i>	56	<i>HPS Investment Partners, LLC ⁽¹⁾</i>	96	<i>Seaport Global Securities LLC</i>
17	<i>BedRok Securities, LLC</i>	57	<i>Hutchin Hill Capital</i>	97	<i>Societe Generale</i>
18	<i>Blackrock Kelso Capital Corporation</i>	58	<i>Imperial Capital</i>	98	<i>SP Credit Acquisitions LLC</i>
19	<i>BMO Capital Markets</i>	59	<i>Intermediate Capital Group PLC</i>	99	<i>Stifel Nicolaus Weisel</i>
20	<i>BNP Paribas</i>	60	<i>Jefferies & Company, Inc.</i>	100	<i>SunTrust</i>
21	<i>Bridge Bank ⁽¹⁾</i>	61	<i>JPMorgan Chase</i>	101	<i>Tennenbaum Capital</i>
22	<i>Brightwood Capital Advisors, LLC</i>	62	<i>Kemper</i>	102	<i>The Seaport Group</i>
23	<i>Business Development Corporation of America</i>	63	<i>KeyBanc Capital Markets</i>	103	<i>THL Credit Lake Shore</i>
24	<i>Cantor Fitzgerald & Co.</i>	64	<i>KKR & Co. Inc.</i>	104	<i>Trinity Universal Insurance Company ⁽¹⁾</i>
25	<i>Capital One, N.A.</i>	65	<i>Knight Libertas LLC</i>	105	<i>Truist Financial</i>
26	<i>Castren & Snellman</i>	66	<i>LBC Credit Partners</i>	106	<i>TwinBrook Capital Partners ⁽¹⁾</i>
27	<i>Cerberus Capital Management LP</i>	67	<i>M&T Securities, Inc.</i>	107	<i>UBS</i>
28	<i>Chadelaine & Co.</i>	68	<i>Macquarie Securities (USA) Inc.</i>	108	<i>United Insurance Company of America</i>
29	<i>Chatham Credit Management, III, LLC</i>	69	<i>Madison Capital Funding</i>	109	<i>Varagon Capital Partners</i>
30	<i>Churchill Capital ⁽¹⁾</i>	70	<i>Main Street Capital Corporation</i>	110	<i>VinsonForbes Capital LLC</i>
31	<i>CI Capital Partners</i>	71	<i>Maximus</i>	111	<i>Wachovia</i>
32	<i>CIBC</i>	72	<i>MEDLEY CAPITAL LLC</i>	112	<i>Wafra</i>
33	<i>CIFC Asset Management, LLC</i>	73	<i>MidCap Fiancial LLC</i>	113	<i>Webster Bank, NA</i>
34	<i>CIT Finance LLC</i>	74	<i>Millstreet Capital Management ⁽¹⁾</i>	114	<i>Wells Fargo</i>
35	<i>Citigroup</i>	75	<i>MLV & Co. LLC and LEL Energy LLC</i>	115	<i>West Investment Holdings, LLC</i>
36	<i>CITIZENS BANK, NA</i>	76	<i>Morgan Stanley</i>	116	<i>White Oak</i>
37	<i>Compass Bank and NewStar Financial</i>	77	<i>New Mountain Capital</i>	117	<i>Wilmington Trust, National Association</i>
38	<i>Cortland Capital LLC</i>	78	<i>NH Credit Partners III Holdings, LP ⁽¹⁾</i>		
39	<i>Credit Suisse</i>	79	<i>NXT Capital, LLC</i>		
40	<i>Crescent Capital Investments, Inc.</i>	80	<i>Oaktree Capital Management ⁽¹⁾</i>		

⁽¹⁾Counterparties added since prior year end.

COMMITMENTS

<i>Name</i>	<i>Commitment</i>	<i>Applicable Percentage</i>
ING Capital LLC	\$60,000,000	100%
TOTAL	\$60,000,000	100%

INDUSTRY CLASSIFICATION GROUPS

- | | |
|---|---|
| • Aerospace and Defense | • Leisure, Amusement, Motion Pictures, Entertainment |
| • Auto sector | • Lodging/Leisure/ Resorts |
| • Banking | • Machinery (Non-Agriculture, Non-Construction and Non- Electronic) |
| • Beverage, Food and Tobacco | • Manufacturing/Basic industry |
| • Broadcasting and entertainment | • Media |
| • Building materials | • Mining, Steel, Iron and Non- Precious Metals |
| • Buildings and real estate | • Oil and Gas |
| • Business services | • Other Media |
| • Cable television | • Packaging |
| • Cargo Transport | • Personal and Non-Durable Consumer Products (Manufacturing Only) |
| • Chemicals, Plastics and Rubber | • Personal, Food and Miscellaneous Services |
| • Communications | • Personal Transportation |
| • Containers, packaging and glass | • Printing and Publishing |
| • Consumer products | • Restaurants |
| • Distribution | • Retail |
| • Diversified / Conglomerate | • Retail Store |
| • Manufacturing | • Telecommunications |
| • Diversified / Conglomerate | • Textiles and Leather |
| • Service | • Transportation |
| • Diversified Natural Resources, Precious Metals and Minerals | • Utilities |
| • Ecological | |
| • Education | |
| • Electronics | |
| • Energy/Utilities | |
| • Environmental services | |
| • Farming and Agriculture | |
| • Finance | |
| • Financial services | |
| • Food | |
| • Grocery | |
| • Healthcare, Education and Childcare | |
| • Home and Office Furnishings, Housewares and Durable Consumer Products | |
| • Homebuilding | |
| • Hotels, Motels, Inns and Gaming | |
| • Insurance | |

ELIGIBILITY CRITERIA

A Portfolio Investment shall not be an Eligible Portfolio Investment on any date of determination unless it meets all of the following criteria:

1. (a) if a debt investment other than a Noteless Assigned Loan (and other than a High Yield Security that is held through DTC and has been credited to the account of the Custodian), (x) such Portfolio Investment is evidenced by an original promissory note registered in the name of an Obligor and delivered to the Custodian or the Collateral Agent and (y) all documentation evidencing or otherwise relating to such Portfolio Investment has been duly authorized and executed, is in full force and effect and is the legal, binding and enforceable obligation of the parties thereto and copies thereof (and in the case of the promissory note, the original) have been delivered to the Custodian or the Collateral Agent; provided, that with respect to clause (x) above and solely in the case of Portfolio Investments in which the Collateral Agent has a first-priority perfected security interest pursuant to a valid Uniform Commercial Code filing (a) the Borrower shall have up to 10 Business Days following the acquisition of a Portfolio Investment to deliver an original promissory note with respect to such Portfolio Investment to the Custodian or the Collateral Agent; and (b) as a result of the syndication, sale, transfer, assignment or exchange of a portion of a Portfolio Investment the Borrower shall have up to 20 Business Days to return, transfer, assign or exchange any promissory note with respect to such Portfolio Investment and deliver new or additional promissory notes to the Custodian or the Collateral Agent as required above (each an “Undelivered Note”) (it being understood that during the time periods in clauses (a) and (b) above only the portion of such Portfolio Investment that has not been syndicated, sold, transferred, assigned or exchanged shall satisfy the criteria specified in paragraph 1(a)(x)), provided, further that any portion of the Borrowing Base that consists of an Eligible Portfolio Investment that is an Undelivered Note shall be identified as such in any Borrowing Base Certificate;

(b) if a Noteless Assigned Loan, the Custodian shall have received an original of each transfer document or instrument relating to such Noteless Assigned Loan evidencing the assignment of such Noteless Assigned Loan from any prior third party owner thereof directly to the Obligor (together with the consent of each party required under the applicable loan documentation); and

(c) if any Investment in Indebtedness, (x) the Custodian shall have received originals or copies of each of the following, to the extent applicable, any related loan agreement, credit agreement, note purchase agreement, security agreement (if separate from any mortgage), acquisition agreement pursuant to which such Investment was acquired, subordination agreement, intercreditor agreement or similar instruments, guarantee, assumption or substitution agreement or similar material operative document, in each case together with any amendment or modification thereto; and (y) all documentation evidencing or otherwise relating to such Portfolio Investment has been duly authorized and executed, is in full force and effect and is the legal, binding and enforceable obligation of the parties thereto;
2. Such Portfolio Investment, whether originated directly or purchased, was underwritten and closed in all material respects in accordance with the Investment Policies;
3. If the issuer of such Portfolio Investment is a “Debtor” (as defined in the definition of “DIP Loan”) and such Portfolio Investment is a Bank Loan, such Portfolio Investment meets the other criteria set forth in the definition of “DIP Loan”;

4. such Portfolio Investment is Transferable (as defined below);
5. Such Portfolio Investment is not a Defaulted Obligation or a Restructured Investment; provided that a Restructured Investment may, at the Borrower's request and in the sole discretion of the Administrative Agent, be an Eligible Portfolio Investment so long as such Portfolio Investment (i) is Performing and (ii) has been valued by an Approved Third Party Appraiser;
6. Other than for an LTV Transaction, when the underlying issuer of such Portfolio Investment has either (x) a trailing 24-month EBITDA of less than \$20,000,000 or (y) a trailing 12-month EBITDA of less than \$10,000,000 as calculated by the Borrower in a commercially reasonable manner, such issuer satisfies at least one of the following two conditions at all times: (i) a total leverage ratio (based on trailing 12-month EBITDA) as calculated by the Borrower in a commercially reasonable manner of less than 4.5x, or (ii) a loan (through the Borrower or Obligor's exposure) to Enterprise Value ratio of not more than 65%;
7. Such Portfolio Investment does not represent an investment in any issuer in which the Investment Advisor or any of its affiliates, or any entities advised by any of the foregoing, holds any investment other than an investment that is in the same class or classes as such Portfolio Investment (and, in the case of multiple classes, such Investment shall represent a ratable strip of each class);
8. Such Portfolio Investment does not represent an investment in any investment fund, Structured Finance Obligation or similar off balance sheet financing vehicle, or any joint venture or other Person that is in the principal business of making debt or equity investments primarily in other unaffiliated Persons (other than investments in a Third Party Finance Company);
9. (x) Such Portfolio Investment is owned by the Borrower or any Obligor, free and clear of any liens and Collateral Agent holds a first priority, perfected security interest in the Portfolio Investment (subject to no liens other than Eligible Liens), (y) the Collateral Agent or the Custodian as bailee on behalf of the Collateral Agent is holding (but only to the extent required to be delivered pursuant to paragraph 1) all documents evidencing or otherwise relating to such Portfolio Investment (which may be copies, except as required in paragraph (1)(x) above) and (z) other customary steps to ensure that the Collateral Agent has "control" or other customary protection of the relevant Portfolio Investment;
10. Such Portfolio Investment and related documents are in compliance, in all material respects, with applicable laws rules and regulations (including relating to usury, truth in lending, fair credit billing, fair credit reporting, equal credit opportunity, fair debt collection practices and privacy, OFAC and the USA PATRIOT Act);
11. Such Portfolio Investment is denominated and payable only in US dollars or an Agreed Foreign Currency and the issuer of such Portfolio Investment is organized under the laws of the United States or any state thereof, any Permitted Foreign Jurisdiction or province thereof or any Permitted Foreign Tax Jurisdiction, is domiciled in the United States or any Permitted Foreign Jurisdiction or province thereof or any Permitted Foreign Tax Jurisdiction, and its principal operations and any property or other assets of the issuer thereunder pledged as collateral are primarily located in the United States, any Permitted Foreign Jurisdiction or any Permitted Foreign Tax Jurisdiction, and the only place of payment of such loans is the United States, any Permitted Foreign Jurisdiction or any Permitted Foreign Tax Jurisdiction; provided that in the case of a Portfolio Investment organized under the laws of or domiciled in any Permitted Foreign Tax Jurisdiction, the principal operations and property and assets of the "enterprise" consisting of the issuer of such Eligible

Portfolio Investment and its subsidiaries that are pledged as collateral are located in the United States or a Permitted Foreign Jurisdiction (as reasonably determined by the Investment Advisor);

12. Such Portfolio Investment, if a debt investment, bears interest which is due and payable no less frequently than semi-annually and provides for a fixed amount of principal payable on a scheduled payment date and or at maturity, and does not have a final maturity greater than 10 years;
13. Such Portfolio Investment includes a contractual provision requiring all payments to be made without set off, defense or counterclaim, and does not include a contractual provision granting rights of rescission, set off, counterclaim or defense in favor of the obligor in respect of such Portfolio Investment, and no material dispute has been asserted with respect to such Portfolio Investment;
14. Such Portfolio Investment is not (x) secured primarily by a mortgage, deed of trust or similar lien on real estate, or (y) issued by a person whose primary asset is real estate, or whose value is otherwise primarily derived from real estate;
15. Such Portfolio Investment does not represent a consumer obligation (including, without limitation, a mortgage loan, auto loan, credit card loan or personal loan); it being understood that an interest in a fund or finance company that invests in consumer obligations will not be deemed to represent a consumer obligation for purposes of this paragraph (15);
16. No payment in respect of such Portfolio Investment, if a debt investment, is subject to withholding in respect to taxes of any nature, unless the issuer is required to make customary and market-based gross-up payments on an after tax basis for the full amount of such tax;
17. Such Portfolio Investment is not a derivative instrument;
18. The issuer of such Portfolio Investment (or an agent on its behalf) is required to make payments directly into an account of the Borrower or any Obligor over which the Collateral Agent has “control” and, to the extent such account is not an Agency Account, no other person’s assets are commingled in such account; and
19. If such Portfolio Investment is a Bank Loan and the issuer of such Portfolio Investment has issued a Permitted Prior Working Capital Lien, the Borrower has delivered to the Administrative Agent evidence showing the calculation of the Enterprise Value of such issuer to be used for purposes of the conditions outlined in clause (iii) of the definition of Permitted Prior Working Capital Lien.

For purposes of Paragraph (4) above, “Transferable” means, in the case of any Portfolio Investment, both that:

- i) the applicable Obligor may create a security interest in or pledge all of its rights under and interest in such Portfolio Investment to secure its obligations under the Credit Agreement or any other loan document, and that such pledge or security interest may be enforced in any manner permitted under applicable law; and
- ii) such Portfolio Investment (and all documents related thereto) contains no provision that directly or indirectly restricts the assignment of such Obligor’s, or any assignee of Obligor’s, rights under such Portfolio Investment (including any requirement that the Borrower maintain a minimum ownership percentage of such Portfolio Investment); provided that, such Portfolio Investment may contain the following restrictions on customary and market based terms: (a) restrictions pursuant to which assignments may be subject to the consent of the obligor or

Portfolio Company or agent under the Portfolio Investment so long as the applicable provision also provides that such consent may not be unreasonably withheld, (b) restrictions on transfer to parties that are not 'eligible assignees' within the customary and market based meaning of the term, and (c) restrictions on transfer to the applicable obligor or issuer under the Portfolio Investment or its equity holders or financial sponsor entities, competitors, or, in each case, their affiliates; provided, further, that in the event that an Obligor is a party to an intercreditor arrangement with other lenders thereof with payment rights or lien priorities that are junior or senior to the rights of such Obligor, such Portfolio Investment may be subject to customary and market based rights of first refusal, rights of first offer and purchase rights in favor, in each case, of such other lenders thereof (so long as the Value used in determining the Borrowing Base is not greater than the amount of such right of first refusal, first offer or purchase rights).

GOVERNING AGREEMENTS

Company	Governing Agreement(s)
PennantPark Credit Opportunities Fund IV Aggregator, LP	Amended and Restated Limited Partnership Agreement of PennantPark Credit Opportunities Fund IV Aggregator, LP, dated as of December 19, 2022
PennantPark Credit Opportunities Fund IV, LP	Amended and Restated Limited Liability Company Agreement of PennantPark Credit Opportunities Fund IV, LP, dated as of December 19, 2022

MARGIN STOCK

None.

MATERIAL AGREEMENTS

None.

LIENS

None.

SUBSIDIARIES

None.

INVESTMENTS

None.

CAPITAL COMMITMENTS

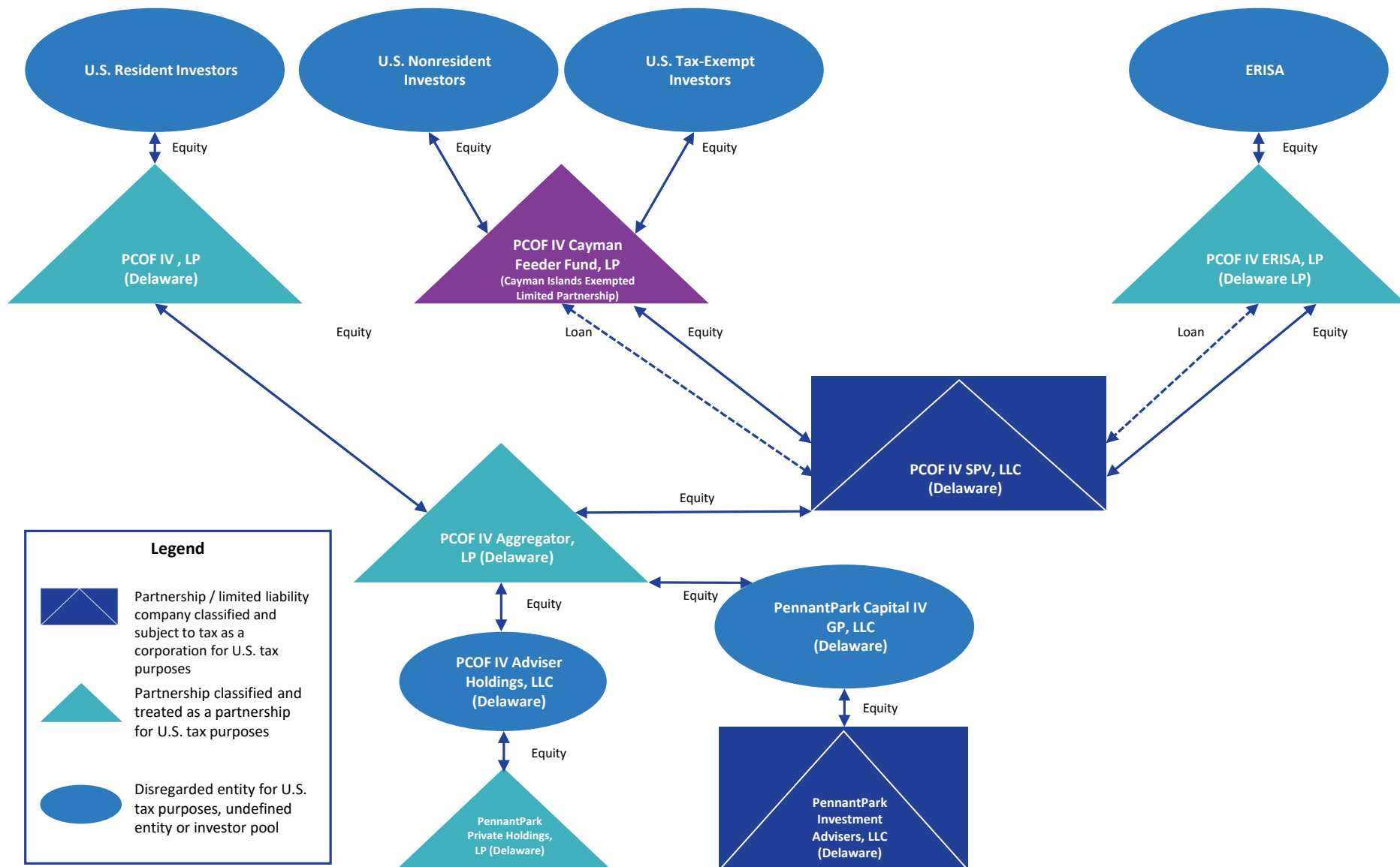
INVESTORS IN PENNANTPARK CREDIT OPPORTUNITIES FUND IV, LP:

Investor	Amount (\$ millions)
Kemper (Trinity Insurance Company)	15.0
Ray Irani (Cedar Tree Investments LLP)	8.0
Simpson Estates (Alis & Co.)	5.0
Pompano Beach	5.0
Miramar Police	5.0
Lauderhill Police	4.0
Rosemary Reisch Revocable Trust	1.5
2020 Levin Revocable Trust	0.25
Hollywood Police	4.0
Plantation Police	3.0
Kevin Mesmer	0.5
Cape Coral Police	5.0
GP - PennantPark	4.3
Total	\$60.55 million

ORGANIZATIONAL STRUCTURE

See attached structure chart

PCOF IV Fund Structure - U.S. Resident and U.S. Nonresident Investors



CERTAIN AFFILIATE TRANSACTIONS

None.

NOTICES

If to the Borrower, to it at:

PennantPark Credit Opportunities Fund IV Aggregator, LP
1350 Avenue of the Americas, 32nd Floor
New York, NY 10019
Attention: Admin Ops
Phone: (212) 905-1000
Fax: (212) 905-1075

If to the Administrative Agent, to it at:

ING Capital LLC
1133 Avenue of the Americas
New York, New York 10036
Attention: Richard Troxel
Phone: (646) 424-6910
Fax: (646) 424-6919
E-mail: richard.troxel@ing.com

If to any other Lender, to it at its address (or telecopy number) set forth in its Administrative Questionnaire.

EXHIBIT A

FORM OF ASSIGNMENT AND ASSUMPTION

This Assignment and Assumption (the “**Assignment and Assumption**”) is dated as of the Effective Date set forth below and is entered into by and between [Insert name of Assignor] (the “**Assignor**”) and [Insert name of Assignee] (the “**Assignee**”). Capitalized terms used but not defined herein shall have the meanings given to them in the Credit Agreement identified below (as amended, the “**Credit Agreement**”), receipt of a copy of which is hereby acknowledged by the Assignee. The Standard Terms and Conditions set forth in **Annex 1** attached hereto are hereby agreed to and incorporated herein by reference and made a part of this Assignment and Assumption as if set forth herein in full.

For an agreed consideration, the Assignor hereby irrevocably sells and assigns to the Assignee, and the Assignee hereby irrevocably purchases and assumes from the Assignor, subject to and in accordance with the Standard Terms and Conditions and the Credit Agreement, as of the Effective Date inserted by the Administrative Agent as contemplated below: (i) all of the Assignor’s rights and obligations in its capacity as a Lender under the Credit Agreement and any other documents or instruments delivered pursuant thereto to the extent related to the amount and percentage interest identified below of all of such outstanding rights and obligations of the Assignor under the respective facilities identified below (including any letters of credit and guarantees included in such facilities) and (ii) to the extent permitted to be assigned under applicable law, all claims, suits, causes of action and any other right of the Assignor (in its capacity as a Lender) against any Person, whether known or unknown, arising under or in connection with the Credit Agreement, any other documents or instruments delivered pursuant thereto or the loan transactions governed thereby or in any way based on or related to any of the foregoing, including contract claims, tort claims, malpractice claims, statutory claims and all claims at law or in equity related to the rights and obligations sold and assigned pursuant to clause (i) above (the rights and obligations sold and assigned pursuant to clauses (i) and (ii) above being referred to herein collectively as the “**Assigned Interest**”). Such sale and assignment is without recourse to the Assignor and, except as expressly provided in this Assignment and Assumption, without representation or warranty by the Assignor.

1. Assignor: _____
2. Assignee: _____
[and is an Affiliate of [identify Lender]¹]
3. Borrower: PennantPark Credit Opportunities Fund IV Aggregator, LP
4. Administrative Agent: ING Capital LLC, as the administrative agent under the Credit Agreement.

¹ Select as applicable.

5. Credit Agreement: The Senior Secured Revolving Credit Agreement dated as of December 19, 2022, among PennantPark Credit Opportunities Fund IV Aggregator, LP, PennantPark Capital IV GP, LLC, the Lenders party thereto and ING Capital LLC, as Administrative Agent
6. Assigned Interest:

Aggregate Amount of Commitment/Loans for all Lenders	Amount of Commitment/Loans Assigned	Percentage Assigned of Aggregate Commitment/Loans ²
\$	\$	%

Effective Date: _____, 20__ [TO BE INSERTED BY ADMINISTRATIVE AGENT AND WHICH SHALL BE THE EFFECTIVE DATE OF RECORDATION OF TRANSFER IN THE REGISTER THEREFOR.]

***[Remainder of Page Intentionally Left Blank;
Signature Page(s) Follow(s).]***

² Set forth, to at least 9 decimals, as a percentage of the Commitment/Loans of all Lenders thereunder.

The terms set forth in this Assignment and Assumption are hereby agreed to:

ASSIGNOR:

[NAME OF ASSIGNOR]

By: _____
Name:
Title:

ASSIGNEE:

[NAME OF ASSIGNEE]

By: _____
Name:
Title:

Consented to and Accepted:

ING CAPITAL LLC, as
Administrative Agent

By: _____
Name:
Title:

[Consented to:

**PENNANTPARK CREDIT OPPORTUNITIES
FUND IV AGGREGATOR, LP**

By: PennantPark Capital IV GP, LLC, its
General Partner

By: [Managing Member], its
Managing Member

By: _____
Name:
Title:]³

³ To be added only when the consent of the Borrower is required by the terms of the Credit Agreement.

ANNEX 1

STANDARD TERMS AND CONDITIONS FOR ASSIGNMENT AND ASSUMPTION

1. Representations and Warranties.

1.1 Assignor. The Assignor (a) represents and warrants that (i) it is the legal and beneficial owner of the Assigned Interest, (ii) the Assigned Interest is free and clear of any lien, encumbrance or other adverse claim and (iii) it has full power and authority, and has taken all action necessary, to execute and deliver this Assignment and Assumption and to consummate the transactions contemplated hereby; and (b) assumes no responsibility with respect to (i) any statements, warranties or representations made in or in connection with the Credit Agreement or any other Loan Document, (ii) the execution, legality, validity, enforceability, genuineness, sufficiency or value of the Loan Documents or any collateral thereunder, (iii) the financial condition of the Borrower, any of its Subsidiaries or Affiliates or any other Person obligated in respect of any Loan Document or (iv) the performance or observance by the Borrower, any of its Subsidiaries or Affiliates or any other Person of any of their respective obligations under any Loan Document.

1.2 Assignee. The Assignee (a) represents and warrants that (i) it has full power and authority, and has taken all action necessary, to execute and deliver this Assignment and Assumption and to consummate the transactions contemplated hereby and to become a Lender under the Credit Agreement, (ii) it satisfies the requirements, if any, specified in the Credit Agreement that are required to be satisfied by it in order to acquire the Assigned Interest and become a Lender, (iii) from and after the Effective Date, it shall be bound by the provisions of the Credit Agreement as a Lender thereunder and, to the extent of the Assigned Interest, shall have the obligations of a Lender thereunder, (iv) it has received a copy of the Credit Agreement, together with copies of the most recent financial statements delivered pursuant to **Section 5.01** thereof, as applicable, and such other documents and information as it has deemed appropriate to make its own credit analysis and decision to enter into this Assignment and Assumption and to purchase the Assigned Interest on the basis of which it has made such analysis and decision independently and without reliance on the Administrative Agent or any other Lender, and (v) if it is a Foreign Lender, attached to the Assignment and Assumption is any documentation required to be delivered by it pursuant to the terms of the Credit Agreement, duly completed and executed by the Assignee; and (b) agrees that (i) it will, independently and without reliance on the Administrative Agent, the Assignor or any other Lender, and based on such documents and information as it shall deem appropriate at the time, continue to make its own credit decisions in taking or not taking action under the Loan Documents, and (ii) it will perform in accordance with their terms all of the obligations which by the terms of the Loan Documents are required to be performed by it as a Lender.

2. Payments. From and after the Effective Date, the Administrative Agent shall make all payments in respect of the Assigned Interest (including payments of principal, interest, fees and other amounts) to the Assignor for amounts which have accrued to but excluding the Effective Date and to the Assignee for amounts which have accrued from and after the Effective Date.

3. General Provisions. This Assignment and Assumption shall be binding upon, and inure to the benefit of, the parties hereto and their respective successors and assigns. This Assignment and Assumption may be executed in any number of counterparts, which together shall constitute one instrument. Delivery of an executed counterpart of a signature page of this Assignment and Assumption by telecopy, email or other electronic method of transmission shall be effective as

delivery of a manually executed counterpart of this Assignment and Assumption. This Assignment and Assumption shall be governed by, and construed in accordance with, the law of the State of New York.

EXHIBIT B

FORM OF BORROWING BASE CERTIFICATE

Delivered pursuant to [APPLICABLE SECTION AND CORRESPONDING DELIVERY REQUIREMENT]⁴ _____, 20____
[Reporting Date ____] (the “*Reporting Date*”)

Reference is made to that certain Senior Secured Revolving Credit Agreement, dated as of December 19, 2022 (as amended, restated, supplemented or otherwise modified from time to time, the “*Credit Agreement*”), by and among PENNANTPARK CREDIT OPPORTUNITIES FUND IV AGGREGATOR, LP, a Delaware limited partnership (the “*Borrower*”), PENNANTPARK CAPITAL IV GP, LLC, a Delaware limited liability company (the “*General Partner*”), the financial institutions party thereto as Lenders, and ING CAPITAL LLC, as the Administrative Agent. Capitalized terms used herein without definition are so used as defined in the Credit Agreement.

Pursuant to *Section 5.01(d)*([APPLICABLE SECTION]⁵) of the Credit Agreement, the undersigned, the _____ of the Borrower, and as such a Financial Officer of the Borrower, hereby certifies, represents and warrants on behalf of the Borrower that (a) attached hereto is (i) [a complete and correct list as at the Reporting Date of all Portfolio Investments included in the Collateral as well as a summary of Portfolio Investment changes from the previous month (including changes in value, new and liquidated investments from the previously delivered Borrowing Base Certificate);]⁶ [(ii)] a complete and correct list as at the Reporting Date, of all Unfunded Capital Commitments included in the Collateral as well as a summary of changes from the previous month (including as a result of a Transfer, Admission of a new Investor or Capital Event)[;/ and] [(iii)] a true and correct calculation of the [Subscription]⁷ Borrowing Base as at the end of such monthly accounting period determined in accordance with the requirements of the Credit Agreement[and [(iv)] a true and correct calculation of the Applicable Margin as of the Reporting Date]⁸, (b) without limiting the generality of the foregoing, all Portfolio

⁴ Select the applicable section and corresponding delivery requirement:
[Section 5.01(d)(i) and in connection with the monthly accounting period ended]
[Section 5.01(d)(ii) and in connection with the Borrowing Request dated]
[Section 5.01(d)(iii) and in connection with the Issuance of a Capital Call dated]
[Section 5.01(d)(iv) and in connection with the [Exclusion][Capital] Event occurring]
[Section 5.01(d)(v) and in connection with the Transfer of a Borrowing Base Investor’s Capital Commitment occurring]
[Section 5.01(d)(vi) and in connection with knowledge of a Borrowing Base Deficiency obtained on]
[Section 5.01(d)(vii) and in connection with knowledge of a Borrowing Base decrease obtained on]

⁵ Select as applicable.

⁶ To be included for Borrowing Base Certificates delivered pursuant to *Sections 5.01(d)(i), (ii), (vi) or (vii)*.

⁷ To be included for Borrowing Base Certificates delivered pursuant to *Sections 5.01(d)(iii), (iv), or (v)*.

⁸ To be included for Borrowing Base Certificates delivered pursuant to *Section 5.01(d)(i)*.

Investments included in the calculation of the Borrowing Base herein are Eligible Portfolio Investments; (c) without limiting the generality of the foregoing, all Eligible Portfolio Investments included in the calculation of the Borrowing Base herein have been Delivered (as defined in the Guarantee and Security Agreement) to the Collateral Agent; (d) except as set forth on *Annex I-B* to this certificate: (i) no Borrowing Base Investor has changed its name or otherwise changed its identity by merger or otherwise; (ii) all subsequent Investors, if any, have satisfied the conditions under **Section 6.14** of the Credit Agreement; and (iii) to the knowledge of Borrower, no Borrowing Base Investor is subject to an Exclusion Event.

***[Remainder of Page Intentionally Left Blank;
Signature Page Follows.]***

IN WITNESS WHEREOF, the undersigned has caused this certificate to be duly executed as of the _____ day of _____, 20__.

[FINANCIAL OFFICER], as Financial Officer of:
PennantPark Credit Opportunities Fund IV
Aggregator, LP

By: _____
Name:
Title:

[Annex 1-A]⁹

List of Portfolio Investments

(see attached Lists of Eligible Portfolio Investments and all other Portfolio Investments)

⁹ To be included for Borrowing Base Certificates delivered pursuant to ***Sections 5.01(d)(i), (ii), (vi) or (vii)***.

Annex 1-B

List of Unfunded Capital Commitments of Investors

(see attached Lists of Borrowing Base Investors and Excluded Investors)

Borrowing Base Calculation

(1) Subscription Borrowing Base	\$ _____
(2) Portfolio Leverage Borrowing Base	\$ _____
(3) Total Borrowing Base ((1) <i>plus</i> (2)) (Adjusted as detailed in Exhibit A to Annex I)	\$ _____
(4) Calculation of Covered Debt Amount (total Revolving Credit Exposure)	\$ _____
(5) Available Borrowing Base (Borrowing Base Deficiency) ((3) <i>minus</i> (4))	\$ _____

Exhibit A to Annex 1

Adjustments to Total Borrowing Base Calculations

Subscription Borrowing Base

(a) 65% of the aggregate Unfunded Capital Commitments of Borrowing Base Investors: \$ _____

Condition: The Unfunded Capital Commitments of Borrowing Base Investors will first be reduced by all applicable Subscription Borrowing Base Concentration Limits:

Investor Classification	Individual Concentration Limit	Aggregate Concentration Limit
Institutional Investors	20%	N/A
HNW Investors	5%	20%

Adjustments: [None]

(b) **Condition:** The Subscription Borrowing Base will be zero (a) at any time in which there are fewer than two Investors (other than the General Partner), (b) after the third anniversary of the Effective Date, and (c) at any time Investors holding Capital Commitments in excess of 15% (in aggregate) of the total Capital Commitments are Excluded Investors:

Adjustments: [None]

TOTAL SUBSCRIPTION BORROWING BASE (including adjustments) \$ _____

[Portfolio Leverage Borrowing Base]¹⁰

- (a) **Condition:** The Advance Rate applicable to the aggregate Value of all Eligible Portfolio Investments in their entirety shall be 0% at any time when the Portfolio Leverage Borrowing Base is composed entirely of Eligible Portfolio Investments issued by 7 or fewer different issuers; provided that at any time when the Portfolio Leverage Borrowing Base is composed entirely of Eligible Portfolio Investments issued by 8 or 9 different issuers, the Advance Rate applicable to each Eligible Portfolio Investment under *Section 5.13* of the Credit Agreement shall be multiplied by 0.5 (and, for the avoidance of doubt, no adjustment shall be made to the Advance Rate applicable to any Eligible Portfolio Investment when the Portfolio Leverage Borrowing Base is composed entirely of Eligible Portfolio Investments issued by 10 or more different issuers);

Number of issuers: ____

Adjustments: [None]

- (b) **Condition:** With respect to all Eligible Portfolio Investments issued by a single issuer, the Advance Rate applicable to that portion of such Eligible Portfolio Investments that exceeds 7.5% of the Obligors' Net Capital shall be 50% of the Advance Rate otherwise applicable to such Eligible Portfolio Investments; provided that the Advance Rate applicable to that portion of such Eligible Portfolio Investments that exceeds 10% of Obligors' Net Capital shall be 0%;

Obligors' Net Capital: \$_____

7.5% of Obligors' Net Capital: \$_____

10% of Obligors' Net Capital: \$_____

Portfolio Companies exceeding 7.5% of Obligors' Net Capital:

[Name of Portfolio Company]	\$_____
[Name of Portfolio Company]	\$_____

Portfolio Companies exceeding 10% of Obligors' Net Capital:

[Name of Portfolio Company]	\$_____
[Name of Portfolio Company]	\$_____

Adjustments: [None]

¹⁰ To be included for Borrowing Base Certificates delivered pursuant to *Sections 5.01(d)(i), (ii), (vi) or (vii)*.

- (c) **Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments in any single Industry Classification Group (other than the Largest Industry Classification Group and Second Largest Industry Classification Group) shall not exceed 15% of the Portfolio Leverage Borrowing Base, and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 15% of the Portfolio Leverage Borrowing Base;

Portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments in any Industry Classification Group (other than the Largest Industry Classification Group and Second Largest Industry Classification Group) that exceeds 15% of the Portfolio Leverage Borrowing Base:

[Name of Group]: \$ _____ __. __ %
[Name of Group]: \$ _____ __. __ %

Adjustments: [None]

- (d) **Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments in the Largest Industry Classification Group shall not exceed 25% of the Portfolio Leverage Borrowing Base, and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 25% of the Portfolio Leverage Borrowing Base;

Portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments in the Largest Industry Classification Group:

[Name of Largest Industry Classification Group]: \$ _____ __. __ %

Adjustments: [None]

- (e) **Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments in the Second Largest Industry Classification Group shall not exceed 20% of the Portfolio Leverage Borrowing Base and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 20% of the Portfolio Leverage Borrowing Base;

Portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments in the Second Largest Industry Classification Group:

[Name of Second Largest Industry Classification Group]: \$ _____ __. __ %

Adjustments: [None]

- (f) **Condition:** The weighted average maturity of all Debt Eligible Portfolio Investments (based on the fair value of such Eligible Portfolio Investments to the extent included in the Portfolio Leverage Borrowing Base) shall not exceed 6.5 years, and the Portfolio Leverage Borrowing Base shall be reduced by removing Debt Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent necessary to cause the weighted average maturity of all Debt Eligible Portfolio Investments included in the Portfolio Leverage Borrowing Base to be no greater than 6.5 years (subject to all other constraints, limitations and restrictions set forth in the Credit Agreement);

Weighted average maturity of all Debt Eligible Portfolio Investments: __. __ years

Adjustments: [None]

- (g) **Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to Debt Eligible Portfolio Investments with a maturity greater than 8 years shall not exceed 15% of the Portfolio Leverage Borrowing Base, and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 15% of the Portfolio Leverage Borrowing Base;

Portion of the Portfolio Leverage Borrowing Base attributable to Debt Eligible Portfolio Investments with a maturity greater than 8 years: \$ _____ or ____%

Adjustments: [None]

- (h) **Condition:** The Weighted Average Leverage Ratio of all Indebtedness senior to or *pari passu* with (and including) the Obligor's tranche (based on the fair value of Eligible Portfolio Investments to the extent included in the Portfolio Leverage Borrowing Base) of all Eligible Portfolio Investments that represent indebtedness of the issuer shall not exceed 5.00x (provided that LTV Transactions may be excluded from such calculation), and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such Weighted Average Leverage Ratio would otherwise exceed 5.00x;

Weighted Average Leverage Ratio: __. __x

Adjustments: [None]

- (i) **Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to PIK Obligations and DIP Loans shall not exceed 15% of the Portfolio Leverage Borrowing Base, and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 15% of the Portfolio Leverage Borrowing Base;

Portion of the Portfolio Leverage Borrowing Base attributable to PIK Obligations and DIP Loans: \$ _____ or ____%

Adjustments: [None]

- (j) **[Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Cash, Cash Equivalents, Long-Term U.S. Government Securities, 10% Performing Covenant-Lite Loans or Performing First Lien Bank Loans must equal or exceed 25% of the Portfolio Leverage Borrowing Base, and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would not equal or exceed 25% of the Portfolio Leverage Borrowing Base;]¹¹

Portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Cash, Cash Equivalents, Long-Term U.S. Government Securities, 10% Performing Covenant-Lite Loans or Performing First Lien Bank Loans:
\$ _____ or ____%.

Adjustments: [None]

- (k) **[Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Cash, Cash Equivalents, Long-Term U.S. Government Securities, Performing First Lien Bank Loans, 10% Performing Covenant-Lite Loans, Performing Last Out Loans, Performing Second Lien Bank Loans or Performing Secured High Yield Securities must equal or exceed 80% of the Portfolio Leverage Borrowing Base and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would not otherwise equal or exceed 80% of the Portfolio Leverage Borrowing Base;]¹²

Portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Cash, Cash Equivalents, Long-Term U.S. Government Securities, Performing First Lien Bank Loans, 10% Performing Covenant-Lite Loans or Performing Last Out Loans, Performing Second Lien Bank Loans or Performing Secured High Yield Securities: \$ _____ or ____%.

Adjustments: [None]

- (l) **Condition:** The Weighted Average Fixed Coupon (after giving effect to any Hedging Agreement) shall not be less than the greater of (i) 8% and (ii) the one-month LIBO Rate or SOFR plus 4.5%, and the Portfolio Leverage Borrowing Base shall be reduced by removing Debt Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent necessary to cause the Weighted Average Fixed Coupon to be at least equal to the greater of (x) 8% and (y) the one-month LIBO Rate or SOFR plus 4.5% (subject to all other constraints, limitations and restrictions set forth in the Credit Agreement);

Weighted Average Fixed Coupon: ____%

Adjustments: [None]

¹¹ [NTD: Update per any changes to CA § 5.13(j).]

¹² [NTD: Update per any changes to CA § 5.13(k).]

- (m) **Condition:** The Weighted Average Floating Spread (after giving effect to any Hedging Agreement) shall not be less than 4.5%, and the Portfolio Leverage Borrowing Base shall be reduced by removing Debt Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent necessary to cause the Weighted Average Floating Spread to be at least 4.5% (subject to all other constraints, limitations and restrictions set forth in the Credit Agreement);

Weighted Average Floating Spread: __. __%

Adjustments: [None]

- (n) **Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are LTV Transactions shall not exceed 15%, and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 15% of the Portfolio Leverage Borrowing Base;

Portion of the Portfolio Leverage Borrowing Base attributable to LTV Transactions:
\$ _____ or ____%

Adjustments: [None]

- (o) **Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments issued by Third Party Finance Companies shall not exceed 10%, and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 10% of the Portfolio Leverage Borrowing Base;

Portion of the Portfolio Leverage Borrowing Base attributable to Third Party Finance Companies: \$ _____ or ____%

Adjustments: [None]

- (p) **Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Foreign Eligible Portfolio Investments shall not exceed 15%, and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 15% of the Portfolio Leverage Borrowing Base;

Portion of the Portfolio Leverage Borrowing Base attributable to Foreign Eligible Portfolio Investments: \$ _____ or ____%

Adjustments: [None]

- (q) **Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Affiliate Investments shall not exceed 20%, and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 20% of the Portfolio Leverage Borrowing Base;

Portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Affiliate Investments: \$ _____ or ____%

Adjustments: [None]

- (r) **Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to Warehouse Assets shall not exceed 30% of the Portfolio Leverage Borrowing Base and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 30% of the Portfolio Leverage Borrowing Base;

Portion of the Portfolio Leverage Borrowing Base attributable to Warehouse Assets:
\$ _____ or ____%

Adjustments: [None]

- (s) **Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to Performing Preferred Stock shall not exceed 5% of the Portfolio Leverage Borrowing Base and the Portfolio Leverage Borrowing Base shall be reduced by removing Eligible Portfolio Investments therefrom (but not from the Collateral) to the extent such portion would otherwise exceed 5% of the Portfolio Leverage Borrowing Base;

Portion of the Portfolio Leverage Borrowing Base attributable to Performing Preferred Stock: \$ _____ or ____%

Adjustments: [None]

- (t) **Condition:** The portion of the Portfolio Leverage Borrowing Base attributable to any Warehouse Asset shall be 0% from and after the termination of the Warehouse Asset Inclusion Period for such Portfolio Investment, and the Portfolio Leverage Borrowing Base shall be reduced by removing such Warehouse Asset therefrom (but not from the Collateral) unless such Warehouse Asset would otherwise meet the eligibility criteria for inclusion in the Portfolio Leverage Borrowing Base in accordance with and subject to the provisions hereof;

Portion of the Portfolio Leverage Borrowing Base attributable to Warehouse Assets after the termination of the Warehouse Asset Inclusion Period: \$ _____ or ____%

Adjustments: [None]

- (u) **Condition:** The effective Advance Rate applied to the Value of all Eligible Portfolio Investments, after giving effect to the valuation criteria and concentration limits specified herein and in the Credit Agreement, (i) will not exceed 65% at any time that the portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Cash, Cash Equivalents, Long-Term U.S. Government Securities, 10% Performing Covenant-Lite Loans or Performing First Lien Bank Loans, equals or exceeds 65% of the Portfolio Leverage Borrowing Base and (ii) will not exceed 50% at any time that the portion of the Portfolio Leverage Borrowing Base attributable to Eligible Portfolio Investments that are Cash, Cash Equivalents, Long-Term U.S. Government Securities, 10% Performing Covenant-Lite Loans or Performing First Lien Bank Loans, does not equal or exceed 65% of the Portfolio Leverage Borrowing Base; provided that, during the Warehouse Asset Inclusion Period, the portion of the Portfolio Leverage Borrowing Base attributable to Warehouse Assets shall not be included in the calculation of such limit.

TOTAL PORTFOLIO LEVERAGE BORROWING BASE (including adjustments)

\$ _____

[Calculation of Applicable Margin]¹³

¹³ To be included for Borrowing Base Certificates delivered pursuant to *Section 5.01(d)(i)*.

EXHIBIT C

[FORM OF] PROMISSORY NOTE

[●], 20__

New York, New York

For value received, PENNANTPARK CREDIT OPPORTUNITIES FUND IV AGGREGATOR, LP, a Delaware limited partnership (the “Borrower”), promises to pay [●] (the “Payee”) or its registered assigns, when due, the aggregate unpaid principal amount of all Loans of the Payee to the Borrower outstanding under the Credit Agreement referred to below.

The Borrower also promises to pay interest on the unpaid principal amount hereof, from the date hereof until paid in full, at the rates and at the times which shall be determined in accordance with the provisions of that certain Senior Secured Revolving Credit Agreement, dated as of December 19, 2022 (as amended, restated, supplemented or otherwise modified from time to time, the “Credit Agreement”), by and among the Borrower, PENNANTPARK CAPITAL IV GP, LLC, the financial institutions party thereto as Lenders, and ING CAPITAL LLC, as the Administrative Agent. Capitalized terms used herein without definition are so used as defined in the Credit Agreement.

This Promissory Note (this “Note”) is one of the promissory notes referred to in *Section 2.07(f)* of the Credit Agreement and is issued pursuant to and entitled to the benefits of the Credit Agreement, to which reference is hereby made for a more complete statement of the terms and conditions under which the Loans evidenced hereby were made and are to be repaid.

All payments of principal and interest in respect of this Note shall be made in the Currency required by the terms of the Credit Agreement and in immediately available funds to the Administrative Agent’s Account or as otherwise required by the terms of the Credit Agreement. Unless and until an Assignment and Assumption effecting the assignment or transfer of the obligations evidenced hereby shall have been accepted by Administrative Agent and recorded in the Register, the Borrower, the Lenders and the Administrative Agent shall be entitled to deem and treat the Payee as the owner and holder of this Note and the obligations evidenced hereby. The Payee hereby agrees, by its acceptance hereof, that before disposing of this Note or any part hereof it will make a notation hereon of all principal payments previously made hereunder and of the date to which interest hereon has been paid; provided, the failure to make a notation of any payment made on this Note shall not limit or otherwise affect the obligations of the Borrower hereunder with respect to payments of principal of or interest on this Note.

This Note is subject to mandatory prepayment and to prepayment at the option of the Borrower, each as provided in the Credit Agreement.

THIS NOTE AND THE RIGHTS AND OBLIGATIONS OF THE BORROWER AND PAYEE HEREUNDER SHALL BE CONSTRUED IN ACCORDANCE WITH AND GOVERNED BY THE LAW OF THE STATE OF NEW YORK.

Upon the occurrence and continuation of an Event of Default that has not been waived or cured, the unpaid balance of the principal amount of this Note, together with all accrued and unpaid interest

thereon, may become, or may be declared to be, due and payable in the manner, upon the conditions and with the effect provided in the Credit Agreement.

The terms of this Note are subject to amendment only in the manner provided in the Credit Agreement.

No reference herein to the Credit Agreement and no provision of this Note or the Credit Agreement shall alter or impair the obligations of the Borrower, which are absolute and unconditional, to pay the principal of and interest on this Note at the place, at the respective times, and in the currency herein prescribed.

The Borrower promises to pay all reasonable and documented out-of-pocket costs and expenses, including reasonable attorneys' fees (but excluding allocated costs of internal counsel), all as provided in the Credit Agreement, incurred in connection with the collection and enforcement of this Note. The Borrower and any endorsers of this Note hereby consent to renewals and extensions of time at or after the maturity hereof, without notice, and hereby waive diligence, presentment, protest, demand notice of every kind and, to the full extent permitted by law, the right to plead any statute of limitations as a defense to any demand hereunder.

***[Remainder of Page Intentionally Left Blank;
Signature Page Follows.]***

IN WITNESS WHEREOF, the Borrower has caused this Note to be duly executed and delivered by its officer thereunto duly authorized as of the date and at the place first written above.

**PENNANTPARK CREDIT OPPORTUNITIES
FUND IV AGGREGATOR, LP**

By: PennantPark Capital IV GP, LLC, its
General Partner

By: [Managing Member], its
Managing Member

By: _____
Name:
Title:

EXHIBIT D
FORM OF BORROWING REQUEST

BORROWING REQUEST

_____, 20__

To: Richard Troxel
ING Capital LLC,
as Administrative Agent for the Lenders party to
the Credit Agreement referred to below
1133 Avenue of the Americas
New York, NY 10036

Re: The Senior Secured Revolving Credit Agreement dated as of December 19, 2022 (as amended, restated, supplemented or otherwise modified from time to time, the “Credit Agreement”), among PennantPark Credit Opportunities Fund IV Aggregator, LP (the “Borrower”), PennantPark Capital IV GP, LLC (the “General Partner”), the several banks and other financial institutions or entities from time to time parties thereto as lenders, and ING Capital LLC (“ING”), as administrative agent (in such capacity, the “Administrative Agent”).

Ladies and Gentlemen:

Unless otherwise defined herein, capitalized terms used herein shall have the meanings attributable thereto in the Credit Agreement. This Borrowing Request is subject to the terms of the Credit Agreement.

The Borrower hereby gives you irrevocable notice, pursuant to **Section 2.03** of the Credit Agreement, that the Borrower hereby requests that Loans, as specified below, under the Credit Agreement be made, and in that connection set forth below is the information related to the proposed borrowing (the “Proposed Borrowing”) as required by **Section 2.03** of the Credit Agreement:

1. The Proposed Borrowing is to be made under the [Dollar Commitments][Multicurrency Commitments].
2. The aggregate principal amount and Currency of the Proposed Borrowing under the Credit Agreement shall be [\$][CAD]_____.
3. The date of the Proposed Borrowing under the Credit Agreement shall be [●], 20__.
4. [The Proposed Borrowing under the Credit Agreement shall be a:

Term Rate Borrowing
[ABR Borrowing]¹⁴

¹⁴ Note to Form: Include only in the case of a Proposed Borrowing denominated in Dollars.

5. If the Borrower has elected to obtain a Term Rate Borrowing, the duration of the Interest Period with respect thereto shall be:

1 month
3 months

6. The Borrower hereby instructs you to wire the Proposed Borrowing amount to the following account:

Bank Name:
ABA Routing Number:
Account Number:
Account Name:
Reference:

7. The Borrower hereby certifies that, as of the date hereof and the date of the Proposed Borrowing, each of the conditions set forth in **Section 4.02** of the Credit Agreement for the making of such Loans has been met.
8. [Attached hereto is an updated Borrowing Base Certificate] [The Borrower hereby represents and warrants to Administrative Agent that (a) the Subscription Borrowing Base has not declined since the Subscription Borrowing Base reported in the Borrowing Base Certificate most recently delivered under the Credit Agreement and (b) the amount of the requested Borrowing would not result in the total Covered Debt Amount exceeding the Borrowing Base reported in the Borrowing Base Certificate most recently delivered.]¹⁵

***[Remainder of Page Intentionally Left Blank;
Signature Page Follows.]***

¹⁵ Note to Form: see **Section 5.01(d)(ii)** of the Credit Agreement.

The Borrower has caused this Borrowing Request to be executed and delivered by its duly authorized officer this ___ day of [●], 20__.

**PENNANTPARK CREDIT OPPORTUNITIES
FUND IV AGGREGATOR, LP**

By: PennantPark Capital IV GP, LLC, its
General Partner

By: [Managing Member], its
Managing Member

By: _____
Name:
Title: